道德与专业行为标准
Ethical and Professional Standards

官方教材习题与解析整理
Bilingual Exercises and Explanations

305 条学习条目 · 10 个含习题学习单元
305 exercise and worked-example records · 10 modules with exercises

资料来源：你提供的 2027 CFA Program Curriculum Level I 英文原版 PDF 及其双语 EPUB。英文题目、选项、图表与官方解析按原书保留；中文为学习译文，不是 CFA Institute 发布的官方中文译本。

Source: the user-provided 2027 CFA Program Curriculum Level I PDFs and bilingual EPUBs. Original questions, options, visuals, and official explanations are retained. Chinese text is a study translation, not an official CFA Institute translation.

阅读顺序为：题目与资料 → 官方答案与解析 → 补充解析 → 相关知识点。补充解析和知识点为本次整理的学习辅助内容；已发现的原书笔误单独说明。正文叙述式示例沿用原文，未另编新题。

Each record presents the question, official explanation, supplementary explanation, and related concepts together. Added teaching notes are separate from the official text. Identified source errors are annotated; narrated examples are retained without invented questions.

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2027_CFA_L1V10_Ethics.pdf
2027_CFA_L1V10_Ethics_Teaching_ZH_EN.epub
题号以原书为准。集合内的条目编号用于唯一定位，不替代原题号。 / Collection IDs provide unique navigation and do not replace original numbering.

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LM 1 · 投资行业的道德与信任
Ethics and Trust in the Investment Profession

28 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M01-KN-014

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 20

题目与资料 / **Question and data**

1. 以下哪项表述最准确？道德可以描述为：

1. Which of the following statements is most accurate? Ethics can be described as:

A. 对维护法律的承诺。

A. a commitment to upholding the law.

B. 个人对是非的看法。

B. an individual's personal opinion about right and wrong.

C. 为我们的行为提供指引的一套道德原则。

C. a set of moral principles that provide guidance for our behavior.

官方答案与解析 / **Official answer and explanation**

C正确。道德可以描述为为我们的行为提供指引的一套道德原则；这些原则可能由某个社区或社会群体共同认同。

C is correct. Ethics can be described as a set of moral principles that provide guidance for our behavior; these may be moral principles shared by a community or societal group.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？道德可以描述为：

概念拆解：伦理判断关心行为对利益相关者的影响以及应遵守的原则。法律提供重要边界，但职业信任还要求诚信、专业能力和对客户的责任。

应用到题干：先列出客户、同事、雇主、市场和社会等受影响者，再比较行动的后果与原则。不要只看行为是否能给自己或公司带来收益。

排除干扰项：把道德等同于个人偏好、把合法等同于合乎伦理，都会遗漏对他人的责任。

相关知识点 / **Related concepts**

伦理、利益相关者与信任

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-015

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 21

题目与资料 / **Question and data**

2. 以下哪项表述最准确？行为准则：

2. Which of the following statements is most accurate? Standards of conduct:

A. 是任何道德准则必不可少的组成部分。

A. are a necessary component of any code of ethics.

B. 为群体成员的恰当行为提供一般性指引。

B. serve as a general guide regarding proper conduct by members of a group.

C. 是群体成员所须达到的最低可接受行为的衡量基准。

C. serve as benchmarks for the minimally acceptable behavior required of members of a group.

官方答案与解析 / **Official answer and explanation**

C正确。行为准则是群体成员所须达到的最低可接受行为的衡量基准。

C is correct. Standards of conduct serve as benchmarks for the minimally acceptable behavior required of members of a group.

有些组织只采用道德准则，以传达组织的价值观及对成员行为的总体期望。

Some organizations will adopt only a code of ethics, which communicates the organization’s values and overall expectations regarding member behavior.

其他组织可能同时采用道德准则和行为准则。

Others may adopt both a code of ethics and standards of conduct.

行为准则规定群体成员必须遵循的具体行为，并作为成员最低可接受行为的衡量基准。

Standards of conduct identify specific behavior required of community members and serve as benchmarks for the minimally acceptable behavior of community members.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？行为准则：

概念拆解：道德准则给出职业的核心价值和责任，行为标准把原则转化为更具体的最低要求与判断指引。两者共同支持客户信任和市场完整性。

应用到题干：分清题目在问价值原则、具体行为要求还是纪律程序。回到教材列出的准则用语，避免把个人偏好的理想行为当成明确强制要求。

排除干扰项：道德准则不可能列出所有场景，遵守最低规则也不消除在复杂情境中继续作出专业判断的责任。

相关知识点 / **Related concepts**

道德准则与行为标准的关系

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-016

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 26

题目与资料 / **Question and data**

1. 以下哪项表述最准确？投资专业人士有特别责任合乎道德地行事，因为：

1. Which of the following statements is most accurate? Investment professionals have a special responsibility to act ethically because:

A. 该行业受到严格监管。

A. the industry is heavily regulated.

B. 他们受托保护客户资产。

B. they are entrusted to protect clients' assets.

C. 该专业要求遵守其道德准则。

C. the profession requires compliance with its code of ethics.

官方答案与解析 / **Official answer and explanation**

B正确。投资专业人士负有特别责任，因为客户委托他们保护自己的资产。

B is correct. Investment professionals have a special responsibility because clients entrust them to protect the clients' assets.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？投资专业人士有特别责任合乎道德地行事，因为：

概念拆解：客户把资产和决策委托给专业人士，会产生较高的审慎与忠诚要求。责任的来源是受托关系及对他人资源的控制，而不只是监管数量或职业身份。

应用到题干：识别谁承担风险、谁依赖专业建议、谁从行动中受益，再检验行动是否以客户的正当利益为中心。面对团队压力时，这个责任顺序尤其重要。

排除干扰项：个人、同事和雇主获得好处并不必然是客户获益；遵守形式规则也不能替代应有的关怀。

相关知识点 / **Related concepts**

受托责任与客户利益

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-017

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 26

题目与资料 / **Question and data**

2. 以下哪项最适合补全下列句子？

2. Which of the following statements best completes the following sentence?

专业人士运用其专门知识和技能：

Professionals use their specialized knowledge and skills:

A. 为他人服务。

A. in service to others.

B. 推进自己的职业发展。

B. to advance their careers.

C. 专门为雇主谋取利益。

C. for the exclusive benefit of their employers.

官方答案与解析 / **Official answer and explanation**

A正确。专业人士运用专门知识和技能为他人服务。

A is correct. Professionals use specialized knowledge and skills in service to others.

他们的职业发展和雇主可能因此受益，但这些结果并不是专业人士运用其专门知识和技能的首要目的。

Their careers and employers may benefit, but those results are not the primary focus of a professionals' use of their specialized knowledge and skills.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项最适合补全下列句子？ 专业人士运用其专门知识和技能：

概念拆解：专业职业通常以专门知识、行为标准、能力维持和对社会的责任赢得信任。投资行业的信任来自客户相信专业人士既有能力，也会把客户利益放在适当位置。

应用到题干：从教育与能力、共同标准、职业监督和公共利益四个角度判断题干所述特征。长期声誉与信任会影响客户是否愿意委托资产。

排除干扰项：只有技术技能或市场盈利能力不足以构成完整的专业责任。职业标准的作用也不只是避免被处罚。

相关知识点 / **Related concepts**

职业专业性与公共信任

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-018

知识检查
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知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 26-27

题目与资料 / **Question and data**

3. 以下哪项表述最准确？专业群体的道德准则：

3. Which of the following statements is most accurate? A profession’s code of ethics:

A. 包含行为准则或具体的行为衡量基准。

A. includes standards of conduct or specific benchmarks for behavior.

B. 确保所有专业成员在任何时候都合乎道德地行事。

B. ensures that all members of a profession will act ethically at all times.

C. 向公众传达专业成员共同遵循的原则及所期望的行为。

C. publicly communicates the shared principles and expected behaviors of a profession’s members.

官方答案与解析 / **Official answer and explanation**

C正确。专业群体的道德准则向公众传达其成员共同遵循的原则及所期望的行为。

C is correct. A profession's code of ethics publicly communicates the shared principles and expected behaviors of a profession's members.

道德准则的存在，并不能确保所有成员的行为始终与准则一致，也不能确保他们任何时候都合乎道德地行事。

The existence of a code of ethics does not ensure that all members will behave in a manner consistent with the code and act ethically at all times.

专业群体通常会设立纪律程序，处理涉嫌违反道德准则的行为。

A profession will often establish a disciplinary process to address alleged violations of the code of ethics.

专业群体可以采用行为准则，以补充和阐明道德准则。

A profession may adopt standards of conduct to enhance and clarify the code of ethics.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？专业群体的道德准则：

概念拆解：道德准则给出职业的核心价值和责任，行为标准把原则转化为更具体的最低要求与判断指引。两者共同支持客户信任和市场完整性。

应用到题干：分清题目在问价值原则、具体行为要求还是纪律程序。回到教材列出的准则用语，避免把个人偏好的理想行为当成明确强制要求。

排除干扰项：道德准则不可能列出所有场景，遵守最低规则也不消除在复杂情境中继续作出专业判断的责任。

相关知识点 / **Related concepts**

道德准则与行为标准的关系

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-019

知识检查
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题目与资料 / **Question and data**

1. 以下哪项最有可能决定一个人是否会采取不道德行为？

1. Which of the following will most likely determine whether an individual will behave unethically?

A. 个人品格

A. The person's character

B. 个人的内在特质和内在动机

B. The person’s internal traits and intrinsic motivation

C. 外部因素，例如环境或文化因素

C. External factors, such as environmental or cultural elements

官方答案与解析 / **Official answer and explanation**

C正确。社会心理学家已证明，即使是好人，在困境中也可能做出不道德行为。

C is correct. Social psychologists have shown that even good people may behave unethically in difficult situations.

环境或文化因素等外部情境因素可以塑造我们的思维、决策和行为，而且比内在特质或品格更容易导致不道德行为。

Situational influences, which are external factors (e.g., environmental or cultural elements), can shape our thinking, decision-making, and behavior and are more likely to lead to unethical behavior than internal traits or character.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项最有可能决定一个人是否会采取不道德行为？

概念拆解：团队忠诚、奖金、从众、权威指令和短期目标会影响本来有道德意愿的人。识别这些影响有助于解释为什么仅靠“我是好人”不足以防止错误。

应用到题干：把个人性格因素与题目设置的激励和社会关系分开，再判断哪项因素在当前决定中最直接。可以通过暂停决策、独立复核和讨论冲突来降低压力。

排除干扰项：不能把团队利益自动当成客户利益；他人有迫切经济需求也不会改变对客户的责任。

相关知识点 / **Related concepts**

情境压力与行为偏差

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-020

知识检查
Knowledge Check

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题目与资料 / **Question and data**

2. 以下哪项表述最准确？

2. Which of the following statements is most accurate?

A. 奖金等丰厚的经济回报是最强大的情境影响。

A. Large financial rewards, such as bonuses, are the most powerful situational influences.

B. 当决策聚焦短期因素时，合乎道德行事的可能性会上升。

B. When decision-making focuses on short-term factors, the likelihood of ethical conduct increases.

C. 情境影响可能促使个人追逐自身短期利益，却没有意识到这会给自己及他人带来的长期风险或后果。

C. Situational influences can motivate individuals to act in their short-term self-interests without recognizing the long-term risks or consequences for themselves and others.

官方答案与解析 / **Official answer and explanation**

C正确。情境影响可能促使个人追逐自身短期利益，却没有意识到这会给自己及他人带来的长期风险或后果。

C is correct. Situational influences can motivate individuals to act in their short-term self-interests without recognizing the long-term risks or consequences for themselves and others.

丰厚的经济回报是一种强大的情境影响，但在某些情况下，对同事的忠诚等其他情境影响可能更强大。

Large financial rewards are powerful situational influences, but in some situations, other situational influences, such as loyalty to colleagues, may be even more powerful.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？

概念拆解：团队忠诚、奖金、从众、权威指令和短期目标会影响本来有道德意愿的人。识别这些影响有助于解释为什么仅靠“我是好人”不足以防止错误。

应用到题干：把个人性格因素与题目设置的激励和社会关系分开，再判断哪项因素在当前决定中最直接。可以通过暂停决策、独立复核和讨论冲突来降低压力。

排除干扰项：不能把团队利益自动当成客户利益；他人有迫切经济需求也不会改变对客户的责任。

相关知识点 / **Related concepts**

情境压力与行为偏差

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-021

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 31

题目与资料 / **Question and data**

1. 以下哪项表述最准确？

1. Which of the following statements is most accurate?

A. 所有合法行为都是道德行为。

A. All legal behavior is ethical behavior.

B. 某些道德行为可能违法。

B. Some ethical behavior may be illegal.

C. 法律标准代表最高标准。

C. Legal standards represent the highest standard.

官方答案与解析 / **Official answer and explanation**

B正确。某些道德行为可能违法。公民不服从就是可能违法、但被某些人认为合乎道德的行为的例子。

B is correct. Some ethical behavior may be illegal. Civil disobedience is an example of what may be illegal behavior that some consider to be ethical.

合法行为与道德行为经常重合，但并非总是如此。

Legal and ethical behavior often coincide but not always.

基于道德原则的行为准则，可能代表比法律要求更高的行为标准。

Standards of conduct based on ethical principles may represent a higher standard of behavior than the behavior required by law.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？

概念拆解：法律能够规定可执行的要求，但不会覆盖所有情境；伦理标准可能比当地法律更严格。监管设计还可能有滞后、适用范围及意外后果。

应用到题干：分别判断行为是否符合法律和是否符合伦理；若两者要求不同，应按适用准则选择更严格的行为边界。

排除干扰项：没有违法不等于没有道德问题，合乎道德的行动也不能自动推定在所有地区都合法。

相关知识点 / **Related concepts**

法律最低要求与伦理标准

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-022

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 31-32

题目与资料 / Question and data

2. 以下哪项表述最准确？

2. Which of the following statements is most accurate?

A. 增加监管规定是减少市场参与者不道德行为最有效的办法。

A. Increased regulations are the most useful means to reduce unethical behavior by market participants.

B. 监管机构能够迅速设计和实施法律法规，以应对损害市场公平与效率的做法。

B. Regulators quickly design and implement laws and regulations to address practices that adversely affect the fairness and efficiency of markets.

C. 为减少或消除损害市场的行为而制定的新法律，可能为不同但同样有问题的行为创造机会。

C. New laws designed to reduce or eliminate conduct that adversely affects the markets can create opportunities for different, but similarly problematic, conduct.

官方答案与解析 / Official answer and explanation

C正确。为减少或消除损害市场的行为而制定的新法律，可能为不同但同样有问题的行为创造机会。

C is correct. New laws designed to reduce or eliminate conduct that adversely affects the markets can create opportunities for different, but similarly problematic, conduct.

补充解析 / Supplementary explanation

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？

概念拆解：法律能够规定可执行的要求，但不会覆盖所有情境；伦理标准可能比当地法律更严格。监管设计还可能有滞后、适用范围及意外后果。

应用到题干：分别判断行为是否符合法律和是否符合伦理；若两者要求不同，应按适用准则选择更严格的行为边界。

排除干扰项：没有违法不等于没有道德问题，合乎道德的行动也不能自动推定在所有地区都合法。

相关知识点 / Related concepts

法律最低要求与伦理标准

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-CA-013

应用道德决策框架
Applying an Ethical Decision-Making Framework

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 34-38

题目与资料 / **Question and data**

例5 EXAMPLE 5

应用道德决策框架 Applying an Ethical Decision-Making Framework

你被一家大型投资银行聘为初级分析师。

You have been hired as a junior analyst with a major investment bank.

入职时，你收到一份公司的政策文件，并接受相关培训。

When you join the bank, you receive a copy of the firm's policies as well as training on the policies.

你的上司是这家投资银行的科技行业高级分析师。

Your supervisor is the senior technology analyst for the investment bank.

你的职责之一，是为这位高级分析师收集资料、起草文件、开展分析，并提供其他支持。

As part of your duties, you gather information, draft documents, conduct analysis, and perform other support functions for the senior analyst.

一家知名科技公司即将首次公开募股（IPO），你的雇主是参与此次发行的几家投资银行之一。

Your employer is one of several investment banks working on the initial public offering (IPO) of a well-known technology company.

预计此次IPO将为参与发行的投资银行带来可观收入。

The IPO is expected to generate significant revenues for the investment banks participating in the offering.

市场对这次IPO期待已久，每天都有相关新闻。

The IPO has been highly anticipated and is in the news every day.

上司要求你参与数项研究工作，为投资者分析即将进行的IPO并进行估值，你对此非常兴奋。

You are thrilled when your supervisor asks you to work on several research projects related to analyzing and valuing the upcoming IPO for investors.

你积极收集资料，拟出了一页提纲。

You eagerly compile information and draft a one-page outline.

在继续工作之前，你停下来思考还能增加哪些信息，以改进报告。

You stop to consider what other information you could add to improve the report before proceeding.

你想到自己在科技行业有两位很好的联系人，他们可以审阅你的工作，并提供一些额外且可能有价值的观点。

You realize that you have two excellent contacts in the technology industry who could review your work and provide some additional and potentially valuable perspectives.

你起草了一封给这两位联系人的电子邮件，内容如下：

You draft an email to your contacts reading:

我正在为投资者分析Big Tech公司并进行估值。

I am working on an analysis and valuation of Big Tech Company for investors.

我的雇主是参与此次IPO的银行之一，我想确保自己考虑周全。

My employer is one of the banks participating in the IPO, and I want to make sure I have considered everything.

希望你能就Big Tech的前景及其面临的风险提供反馈。

I was hoping you could give me feedback on the prospects and risks facing Big Tech.

请对所有附件资料保密。

Please treat all the attached material as confidential.

在点击发送按钮之前，你停下来，想到自己学习过的道德决策框架。

Before hitting the send button, you stop and think about the ethical decision-making framework you have studied.

> 官方答案与解析 / **Official answer and explanation**

你决定应用该框架，并在逐步思考时记下要点：在第一页，你完成识别阶段，列出相关事实、自己对其负有责任的利益相关者、潜在利益冲突，以及道德原则。

You decide to apply the framework and jot down some notes as you work through the process: On the first page, you work through the identification phase and make a list of the relevant facts, stakeholders to whom you owe a duty, potential conflicts of interest, and ethical principles.

这份清单见图表3。

This list is shown is Exhibit 3.

图表3：识别阶段 Exhibit 3: Identification Phase

- 相关事实：

- Relevant facts:

- 正在参与十年一遇的重要交易 / IPO

- Working on the deal/IPO of the decade

- 雇主是参与此次IPO的几家投资银行之一

- Employer is one of several investment banks working on IPO

- 此次IPO备受期待

- The IPO is highly anticipated

● IPO成功可能为公司带来更多投资银行交易和收入

● A successful IPO could lead to additional investment banking deals and revenues for the firm

• 上司依赖我的工作

● Supervisor is relying on me

• 雇主有成文的政策和程序

● Employer has documented policies and procedures

• 行业受到监管，已有许多规则和法规

● Industry is regulated, with many rules and regulations in place

■ 利益相关者及所负责任。我对以下各方负有责任：

■ Stakeholders and duties owed. I have a duty to the following:

• 上司

● Supervisor

• 雇主

● Employer

• 雇主的企业客户，即这家科技公司

● Employer's corporate client, the technology company

• 雇主的资产管理客户和其他投资客户

● Employer's asset management and other investing clients

• 雇主在此次IPO中的合作方

● Employer's partners in the IPO

• 关注此次IPO的投资者和市场参与者

● Investors and market participants interested in the IPO

• 所有资本市场参与者

● All capital market participants

• 专业群体

● Profession

• 整个社会

● Society as a whole

■ 实际或潜在利益冲突包括：

■ Conflicts or potential conflicts of interest include the following:

• 从外部渠道收集更多研究资料与保守秘密之间的冲突

● Gathering additional research from external sources versus maintaining confidentiality

• 对上司的责任与想给上司留下好印象的愿望之间的冲突

● Duty to supervisor versus desire to impress

• 对企业客户的责任与对公司其他客户的责任之间的冲突

● Duty to corporate client versus duty to other clients of the firm

• 较高的IPO价格有利于公司的企业客户，而较低的IPO价格则有利于公司的资产管理客户

● The firm's corporate client benefits from a high IPO price whereas the firm's asset management clients would benefit from a low IPO price

• 让IPO对市场具有吸引力的卖方营销，与客观分析此次交易投资潜力的买方分析之间的冲突

● Making the IPO look attractive to the market (sell-side marketing) versus objective analysis of the investment potential of this deal (buy-side analysis)

• 我的奖金、报酬和职业前景与上司及IPO的成功挂钩；同时，我对雇主、雇主的投资客户和专业群体负有责任

● My bonus, compensation, and career prospects are tied to my supervisor's and the IPO's success; duty to employer, employer's investing clients, profession

■ 与此情境有关的道德原则包括：

■ Ethical principles that are relevant to this situation include the following:

• 对雇主的忠诚义务

● Duty of loyalty to employer

• 客户利益优先

● Client interests come first

• 守密并维护信息的保密性

● Maintain confidences and confidentiality of information

• 分析的客观性

● Objectivity of analysis

• 公平对待市场参与者

● Fairness to market participants

在下一页，你记下与框架第二阶段有关的内容：在考虑备选行动之前，先考虑各种情境因素和可获得的指导。

On the next page, you write notes relating to the second phase of the framework, considering the various situational factors and the guidance available to you before considering alternative actions.

这些笔记见图表4。

These notes are shown in Exhibit 4.

图表4：考虑阶段 Exhibit 4: Consideration Phase

■ 情境影响：

■ Situational influences:

• 公司的书面政策

● The firm’s written policies

• 银行将从此次IPO赚取高额费用

● The bank will earn big fees from the IPO

• 我想给上司以及潜在的未来上司留下好印象

● I want to impress my boss—and potential future bosses

• 我的奖金、报酬和职业前景，将受到我对本次及其他交易成功所作贡献的影响

● My bonus, compensation, and career prospects will be influenced by my contribution to the success of this deal and other deals

• 只有少数人参与这项交易，我就是其中之一；这确实是一种荣誉，其他人会因我参与其中而对我留下深刻印象

● I am one of very few people working on this deal; it is a real honor, and others would be impressed that I am working on this deal

• 雇主公司中有许多积极进取、成功而富有的人；我也想像他们一样成功富有

● My employer is filled with successful and wealthy people who are go-getters; I want to be successful and wealthy like them

■ 进一步指导。我可以从以下来源寻求指导：

■ Additional guidance. I could seek guidance from the following:

• 公司的道德准则

● The firm’s code of ethics

• 公司的书面政策

● The firm’s written policies

• 公司的一位同事

● A peer in my firm

• 我的上司，即那位高级分析师

● My supervisor, the senior analyst

• 合规部门

● The compliance department

• 一位来自公司、大学或业内的导师

● A mentor either at the firm or perhaps from university or industry

● CFA协会《道德准则与专业行为准则》

● The CFA Institute Code and Standards

• 外部法律顾问

● Outside legal counsel

■ 备选行动。我可以考虑：

■ Alternative actions. I could consider the following:

• 询问联系人听到了哪些消息

● Asking contacts what they have heard

• 将报告作为草稿提交，并建议业内联系人可能提供更多见解

● Submitting the report as a draft and suggesting that contacts in the industry might be able to provide more perspective

• 向多位科技行业资深人士发送调查问卷，征询他们对行业发展的看法

● Sending a survey to various technology industry veterans soliciting their viewpoints on developments

完成这些步骤后，你决定查看公司政策。

After completing these steps, you decide to check the firm's policies.

在题为"研究分析师在证券发行中的角色"的章节中，手册写道："在任何发行进行期间及相关静默期内，你不得分发与公司及/或其发行有关的任何书面材料（包括通过电子邮件、传真、电子及其他方式发送的材料）……"

Under a section entitled "Research Analyst Role in Securities Offerings," the manual states, "You may not distribute any written (which include email, fax, electronic, and other means) material related to companies and/or their offerings . . . during the course of any offering and the related quiet period."

继续阅读时，你注意到"跨越信息隔离墙的政策与程序"一节规定：在事先未获法律及合规部门批准的情况下，"持有保密信息的员工，不得向没有正当知情需要的任何人传达该信息"。

You read further and note a section entitled "Wall Crossing Policy and Procedures" that states that "employees with confidential information may not communicate the information to anyone who does not have a valid need to know" without first obtaining clearance from the legal and compliance department.

你判断，这两位联系人没有"正当知情需要"，而且公司的法律和合规人员也不太可能批准分享这些信息。

You decide that your contacts do not have a "valid need to know" and that it is unlikely the firm's legal and compliance professionals would approve sharing the information.

于是，你决定向高级研究分析师提及这两位联系人。

You then decide to mention your contacts to the senior research analyst.

他认为他们可能有有用的见解，建议你与他们交谈听取看法，同时提醒你，不要披露任何有关公司客户、待完成交易或研究的信息。

He suggests that they may have some useful perspective and that you might talk to them to hear their perspective and cautions you not to disclose any information about any of the firm's clients, pending deals, or research.

你回到办公桌前，删除邮件，并按照高级研究分析师的建议，致电联系人，讨论科技行业及其前景与挑战。

You return to your desk, delete the email, and following the senior research analyst's advice, call your contacts on the telephone to discuss the technology sector, its prospects, and its challenges.

通话过程中，你谨慎地避免透露任何有关Big Tech公司或此次发行的细节。

During the calls, you take care not to reveal any details about Big Tech Company or its offering.

无论采取什么行动，事后都应花时间反思决定及其结果。

Whatever action you take, you should take time afterward to reflect on the decision and the outcome.

结果是否符合预期？为什么符合或不符合？

Was the outcome as anticipated? Why or why not?

本例最初介绍的事实，取材于一位年轻初级分析师参与备受期待IPO的真实经历。

The initial facts presented in the example are based on the real-life experience of a young junior analyst working on a highly anticipated IPO.

这位初级分析师可能使用过、也可能没有使用道德决策框架来评估自身处境。

The junior analyst may or may not have used an ethical decision-making framework to evaluate his situation.

他没有寻求进一步指导，就发送了一封与例子中类似的邮件，其附件包含保密的专有信息，包括高级分析师的分析和预测。

Without seeking additional guidance, the junior analyst sent an email similar to the one in the example with an attachment that included confidential, proprietary information, including the senior analyst's analysis and forecasts.

数月后，距离IPO发行已过去很久，雇主发现了这封邮件。

Months later, long after the IPO offering, the junior analyst's email was discovered by his employer.

被询问时，他承认自己接受过公司政策培训，但发送邮件前既未与任何人讨论，也未寻求任何人批准。

When questioned, he admitted that he had received training regarding the firm's policies and that he did not discuss or seek approval from anyone before sending the email.

两天后，公司解雇了这位初级分析师，并向监管机构报告：他因在证券发行期间通过电子邮件分发书面材料而被解雇，违反了公司禁止在证券发行及相关期间散发任何书面材料的政策。

Two days later, the firm terminated the junior analyst's employment and reported to regulatory authorities that he had been terminated for distributing written materials, by email, during a securities offering in violation of firm policies that prohibit the dissemination of any written materials during the course of a securities offering and related periods.

他的上司也因未能恰当监督该分析师而失去工作。

The junior analyst's supervisor also lost his job for failing to properly supervise the analyst.

多个监管机构调查了此事，公司因未能适当监督员工而被罚款数百万美元。

Multiple regulators investigated the matter, and the firm was fined millions of dollars for failing to supervise its employees properly.

有关这位初级分析师被解雇的信息被公布在监管机构网站上，至今仍可供所有人查看。

The information regarding the junior analyst's termination was posted and remains available on the regulator's website for all to see.

未来的雇主在进行例行背景调查时，会得知他曾因违反有关证券发行的公司政策而被解雇。

Future employers conducting routine background checks will know that the analyst was terminated for violating firm policies relating to a securities offering.

这个例子与许多分析师面临的情境相似。

The example presented is similar to situations faced by many analysts.

使用道德决策框架能够帮助你从多个角度评估情况，避免不良决策，以及考虑不周的行动可能造成的后果。

Using an ethical decision-making framework will help you evaluate situations from multiple perspectives, avoid poor decision-making, and avoid the consequences that can result from taking an ill-conceived course of action.

道德决策框架不能保证结果良好，但可能帮助你避免作出不道德的决定。

Using an ethical decision-making framework is no guarantee of a positive outcome but may help you avoid making unethical decisions.

补充解析 / **Supplementary explanation**

本例讨论“应用道德决策框架”。

概念拆解：框架帮助把事实、利益相关者、原则、冲突、可选行动及后果摆在一起，从而减少被压力或直觉牵着走。它是持续判断工具，不是机械替代个人责任的清单。

应用到题干：按识别事实与责任、考虑方案和外部建议、决定并行动、事后反思的顺序分析。特别检查短期奖励是否遮蔽长期损害。

排除干扰项：存在公司道德守则或法律规则，并不使框架失去意义。事后结果理想，也不代表决策过程没有伦理缺陷。

相关知识点 / **Related concepts**

伦理决策框架

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-023

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 38

题目与资料 / **Question and data**

一位理财顾问一直从工资中存下一部分钱，准备购买新车。

A financial adviser has been saving a portion of his salary to purchase a new vehicle.

照目前进度，他将在未来三个月内存够所需金额。

He is on track to have enough saved within the next three months.

雇主为本季度设立了一项特别奖金，奖励吸引最多新投资者投资公司旗下基金的团队。

His employer has offered a special bonus for this quarter, which will go to the team that attracts the most new investors into the firm's investment funds.

除了可能获得的奖金外，公司还向销售旗下基金份额的员工支付5%的佣金。

In addition to the potential bonus, the firm pays a 5% commission to employees who sell shares in the firm's investment funds.

其中几只基金评级很高，包括一只旨在向投资者提供稳定收入的基金。

Several of the funds are highly rated, including one designed to provide steady income to investors.

这位理财顾问只为公司基金新增了少量投资者，但他的队友在招揽投资者方面十分成功。

The financial adviser has added only a few new investors to the firm's funds, but his teammates have been very successful in their efforts.

距离季度结束还有一周，他所在团队与另一团队对奖金的争夺非常接近。

The end of the quarter is one week away, and his team is competing closely with another team for the bonus.

一位队友告诉这位理财顾问，他非常需要这笔奖金，以便让年迈的母亲接受治疗。

One of his teammates informs the financial adviser that he really needs the bonus so his elderly mother can receive medical treatment.

当天稍后，理财顾问与一位收入有限的老年客户会面；客户希望从投资组合中获得更多收入。

Later that day, the financial adviser meets with an elderly client on a limited income who is seeking more income from his investment portfolio.

客户89岁，健康状况不佳。根据遗嘱，其投资组合将在去世后捐给他最喜爱的慈善机构。

The client is 89 years old and in poor health. According to the client's will, the client's investment portfolio will go to his favorite charity upon his death.

1. 以下哪种情境因素，可能对这位理财顾问争取新客户投资基金的努力影响最大？

1. Which of the following situational influences is likely to have the most effect on the financial adviser's efforts to get new clients to invest in the funds?

他与以下哪一方的关系：

His relationship with his:

A. 客户。

A. client.

B. 雇主。

B. employer.

C. 队友。

C. teammates.

官方答案与解析 / **Official answer and explanation**

C正确。理财顾问与队友的关系，可能对其努力程度产生最大影响。

C is correct. The financial adviser's relationship with his teammates is likely to have the most effect on the financial adviser's efforts.

队友将共同分享雇主发放的奖金。

The teammates share in earning the bonus from the employer.

此外，团队成员经常共同工作，这种合作产生的社会影响很可能左右其决策和投入程度。

In addition, the team works with each other on a regular basis where there is a likelihood that social influences of working together play a role in decision-making and effort.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪种情境因素，可能对这位理财顾问争取新客户投资基金的努力影响最大？ 他与以下哪一方的关系：

概念拆解：团队忠诚、奖金、从众、权威指令和短期目标会影响本来有道德意愿的人。识别这些影响有助于解释为什么仅靠“我是好人”不足以防止错误。

应用到题干：把个人性格因素与题目设置的激励和社会关系分开，再判断哪项因素在当前决定中最直接。可以通过暂停决策、独立复核和讨论冲突来降低压力。

排除干扰项：不能把团队利益自动当成客户利益；他人有迫切经济需求也不会改变对客户的责任。

相关知识点 / **Related concepts**

情境压力与行为偏差

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-KN-024

知识检查
Knowledge Check

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 38-39

题目与资料 / **Question and data**

一位理财顾问一直从工资中存下一部分钱，准备购买新车。

A financial adviser has been saving a portion of his salary to purchase a new vehicle.

照目前进度，他将在未来三个月内存够所需金额。

He is on track to have enough saved within the next three months.

雇主为本季度设立了一项特别奖金，奖励吸引最多新投资者投资公司旗下基金的团队。

His employer has offered a special bonus for this quarter, which will go to the team that attracts the most new investors into the firm's investment funds.

除了可能获得的奖金外，公司还向销售旗下基金份额的员工支付5%的佣金。

In addition to the potential bonus, the firm pays a 5% commission to employees who sell shares in the firm's investment funds.

其中几只基金评级很高，包括一只旨在向投资者提供稳定收入的基金。

Several of the funds are highly rated, including one designed to provide steady income to investors.

这位理财顾问只为公司基金新增了少量投资者，但他的队友在招揽投资者方面十分成功。

The financial adviser has added only a few new investors to the firm's funds, but his teammates have been very successful in their efforts.

距离季度结束还有一周，他所在团队与另一团队对奖金的争夺非常接近。

The end of the quarter is one week away, and his team is competing closely with another team for the bonus.

一位队友告诉这位理财顾问，他非常需要这笔奖金，以便让年迈的母亲接受治疗。

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当天稍后，理财顾问与一位收入有限的老年客户会面；客户希望从投资组合中获得更多收入。

Later that day, the financial adviser meets with an elderly client on a limited income who is seeking more income from his investment portfolio.

客户89岁，健康状况不佳。根据遗嘱，其投资组合将在去世后捐给他最喜爱的慈善机构。

The client is 89 years old and in poor health. According to the client's will, the client's investment portfolio will go to his favorite charity upon his death.

2. 以下哪项表述最准确？道德决策框架：

2. Which of the following statements is most accurate? An ethical decision-making framework:

A. 只有在公司没有道德准则时才有益。

A. is only beneficial when a firm lacks a code of ethics.

B. 用于提高遵守法律法规的程度。

B. is used to improve compliance with laws and regulations.

C. 是分析某项决策的潜在备选行动及其后果的工具。

C. is a tool for analyzing the potential alternative actions and consequences of a decision.

官方答案与解析 / **Official answer and explanation**

C正确。道德决策框架是分析某项决策的潜在备选行动及其后果的工具。

C is correct. An ethical decision-making framework is a tool for analyzing the potential alternative actions and consequences of a decision.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项表述最准确？道德决策框架：

概念拆解：框架帮助把事实、利益相关者、原则、冲突、可选行动及后果摆在一起，从而减少被压力或直觉牵着走。它是持续判断工具，不是机械替代个人责任的清单。

应用到题干：按识别事实与责任、考虑方案和外部建议、决定并行动、事后反思的顺序分析。特别检查短期奖励是否遮蔽长期损害。

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相关知识点 / **Related concepts**

伦理决策框架

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V10-M01-KN-025

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3. 以下哪项最准确？道德决策框架：

3. Which of the following is most accurate? Ethical decision-making frameworks:

A. 提高对不同视角的认识。

A. raise awareness of different perspectives.

B. 把注意力集中在短期后果上。

B. focus attention on short-term consequences.

C. 对直接从决策中受益的各方赋予更高权重。

C. allocate more weight to those who will directly benefit from the decision.

> 官方答案与解析 / **Official answer and explanation**

A正确。道德决策框架能提高对不同视角的认识。

A is correct. Ethical decision-making frameworks raise awareness of different perspectives.

框架应考虑短期后果，但短期后果并不是其关注重点。

The framework should consider short-term consequences, but they are not the focus of the framework.

同样，框架可能对直接从决策中受益的各方赋予更高权重，但这不是道德决策框架的主要目标。

Similarly, the framework may allocate more weight to those who directly benefit from decisions, but this is not the primary goal of an ethical decision-making framework.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

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V10-M01-KN-026

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4. 以下哪项最准确？道德决策框架：

4. Which of the following is most accurate? Ethical decision-making frameworks:

A. 只要行为合法就不需要。

A. are not needed if behavior is legal.

B. 识别谁从决策中获益最多。

B. identify who gains the most from a decision.

C. 有助于减少未预见的道德失误和意外后果。

C. can help reduce unanticipated ethical lapses and unexpected consequences.

> 官方答案与解析 / **Official answer and explanation**

C正确。道德决策框架有助于避免未预见的道德后果。

C is correct. Ethical decision-making frameworks can help avoid unanticipated ethical consequences.

关于A，道德标准往往高于法律标准，因此仍然需要道德决策框架。

As it relates to A, ethics standards are often higher than legal standards so an ethical decision-making framework would be needed.

虽然B的表述正确，但识别谁从决策中获益最多，只是框架的一小部分。

Although B is accurate, identifying who gains most from the decision is a small component of the framework.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项最准确？道德决策框架：

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相关知识点 / **Related concepts**

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V10-M01-KN-027

知识检查
Knowledge Check

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5. 运用道德决策框架，在上述情境中，以下哪项责任最有可能优先？

5. Using an ethical decision-making framework, which of the following duties would most likely take precedence in the scenario described?

理财顾问对以下哪一方的责任：

The financial adviser's duty to his:

A. 客户。

A. client.

B. 雇主。

B. employer.

C. 同事。

C. colleagues.

> 官方答案与解析 / **Official answer and explanation**

A正确。运用道德决策框架，在此情境中，理财顾问与客户的关系最有可能优先。

A is correct. Using an ethical decision-making framework, the financial adviser's relationship with his client would most likely take precedence in this scenario.

顾问应将客户利益放在首位。当对市场诚信的影响应优先考虑时，则构成客户利益优先原则的例外。

The adviser should put his client's interests first. The exception to client interests taking precedence occurs when market integrity effects take precedence.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：运用道德决策框架，在上述情境中，以下哪项责任最有可能优先？ 理财顾问对以下哪一方的责任：

概念拆解：客户把资产和决策委托给专业人士，会产生较高的审慎与忠诚要求。责任的来源是受托关系及对他人资源的控制，而不只是监管数量或职业身份。

应用到题干：识别谁承担风险、谁依赖专业建议、谁从行动中受益，再检验行动是否以客户的正当利益为中心。面对团队压力时，这个责任顺序尤其重要。

排除干扰项：个人、同事和雇主获得好处并不必然是客户获益；遵守形式规则也不能替代应有的关怀。

相关知识点 / **Related concepts**

受托责任与客户利益

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V10-M01-KN-028

知识检查
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6. 运用道德决策框架，理财顾问最有可能：

6. Using an ethical decision-making framework, the financial adviser would most likely:

A. 建议这位老年客户将至少一部分资产投资于评级很高的基金。

A. recommend that the elderly client invest at least some of his assets in the highly rated fund.

B. 在向这位老年客户提出建议之前，研究其他能够提供稳定收入的投资。

B. research other investments that can provide steady income before making a recommendation to his elderly client.

C. 在建议老年客户将至少一部分资产投资于评级很高的基金之前，披露自己将赚取的佣金。

C. disclose the commission he would earn before recommending that the elderly client invest at least some of his assets in the highly rated fund.

> 官方答案与解析 / **Official answer and explanation**

B正确。运用道德决策框架，理财顾问会识别相关事实、利益相关者、所负责任和潜在冲突。

B is correct. Using an ethical decision-making framework, the financial adviser would identify the relevant facts, stakeholders, duties owed, and potential conflicts.

在此情境中，理财顾问对客户和雇主都负有责任。

In this scenario, the financial adviser owes a duty to his client as well as his employer.

客户的利益优先于所有其他利益。

His client's interests take precedence over all other interests.

奖金以及同事希望帮助母亲的愿望，属于情境影响。

The bonus and his colleague's desire to help his mother are situational influences.

为妥善处理此事，理财顾问应寻求更多信息；在向客户提出建议前，他应研究其他能够提供稳定收入的投资的风险收益特征及收费结构。

To navigate this situation, the financial adviser should seek additional information; he should research the risk and return parameters and fee structures of other investments that can provide steady income before making a recommendation to his client.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

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概念拆解：框架帮助把事实、利益相关者、原则、冲突、可选行动及后果摆在一起，从而减少被压力或直觉牵着走。它是持续判断工具，不是机械替代个人责任的清单。

应用到题干：按识别事实与责任、考虑方案和外部建议、决定并行动、事后反思的顺序分析。特别检查短期奖励是否遮蔽长期损害。

排除干扰项：存在公司道德守则或法律规则，并不使框架失去意义。事后结果理想，也不代表决策过程没有伦理缺陷。

相关知识点 / **Related concepts**

伦理决策框架

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43, 45

题目与资料 / **Question and data**

1. 群体成员最低可接受行为的衡量基准是：

1. Benchmarks for minimally acceptable behaviors of community members are:

A. 道德准则。

A. a code of ethics.

B. 法律和法规。

B. laws and regulations.

C. 行为准则。

C. standards of conduct.

官方答案与解析 / **Official answer and explanation**

1. C正确。行为准则适用于特定社区或社会群体，规定群体成员必须遵循的具体行为。

1. C is correct. Standards of conduct are applied to specific communities or societal groups and identify specific behaviors required of community members.

这些行为准则是群体成员最低可接受行为的衡量基准。

These standards of conduct serve as benchmarks for the minimally acceptable behavior of community members.

道德准则为成员应如何行事提供一般性指引；它传达组织的价值观及对成员行为的总体期望，但不规定成员必须遵循的具体行为。

Codes of ethics serve as a general guide for how community members should act; they communicate the organization's values and overall expectations regarding member behavior, but they do not identify specific behaviors required of community members.

法律和法规是政府及相关机构对必须履行及禁止行为所制定的规则，广泛适用于其管辖下的个人和实体。

Laws and regulations are rules of conduct defined by governments and related entities about obligatory and forbidden conduct broadly applicable for individuals and entities under their jurisdiction.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：群体成员最低可接受行为的衡量基准是：

概念拆解：道德准则给出职业的核心价值和责任，行为标准把原则转化为更具体的最低要求与判断指引。两者共同支持客户信任和市场完整性。

应用到题干：分清题目在问价值原则、具体行为要求还是纪律程序。回到教材列出的准则用语，避免把个人偏好的理想行为当成明确强制要求。

排除干扰项：道德准则不可能列出所有场景，遵守最低规则也不消除在复杂情境中继续作出专业判断的责任。

相关知识点 / **Related concepts**

道德准则与行为标准的关系

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43, 45

题目与资料 / **Question and data**

2. 专门知识和技能、服务他人的承诺，以及共同的道德准则，最能体现以下哪一项的特征？

2. Specialized knowledge and skills, a commitment to serve others, and a shared code of ethics best characterize a(n):

A. 志业。

A. vocation.

B. 专业职业。

B. profession.

C. 一般职业。

C. occupation.

官方答案与解析 / **Official answer and explanation**

2. B正确。专业职业具有区别于一般职业或志业的若干特征，例如专门知识和技能、服务他人，以及成员共同遵循的道德准则。

2. B is correct. A profession has several characteristics that distinguish it from an occupation or vocation, such as specialized knowledge and skills, service to others, and a code of ethics shared by its members.

专业职业是一般职业发展的最高形态，源于卓越实务、精益求精的心态，以及对遵守道德准则和执业标准的预期。

A profession is the ultimate evolution of an occupation, resulting from excellence in practice, a mastery mindest, and expected adherence to a code of ethics and standards of practice.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：专门知识和技能、服务他人的承诺，以及共同的道德准则，最能体现以下哪一项的特征？

概念拆解：专业职业通常以专门知识、行为标准、能力维持和对社会的责任赢得信任。投资行业的信任来自客户相信专业人士既有能力，也会把客户利益放在适当位置。

应用到题干：从教育与能力、共同标准、职业监督和公共利益四个角度判断题干所述特征。长期声誉与信任会影响客户是否愿意委托资产。

排除干扰项：只有技术技能或市场盈利能力不足以构成完整的专业责任。职业标准的作用也不只是避免被处罚。

相关知识点 / **Related concepts**

职业专业性与公共信任

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-003

课后习题 3
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43, 45

题目与资料 / **Question and data**

3. 当不道德行为侵蚀人们对一家投资公司的信任时，该公司更可能面临：

3. When unethical behavior erodes trust in an investment firm, that firm is more likely to experience:

A. 仅收入下降。

A. lower revenues only.

B. 仅费用上升。

B. higher expenses only.

C. 收入下降且费用上升。

C. lower revenues and higher expenses.

官方答案与解析 / **Official answer and explanation**

3. C正确。不道德行为最终会损害投资公司。

3. C is correct. Unethical behavior ultimately harms investment firms.

如果客户怀疑公司存在不道德行为，就不会被其吸引，导致业务减少和收入下降。

Clients are not attracted if they suspect unethical behavior, leading to less business and lower revenues.

投资公司还可能面临更高的相对成本，因为监管机构更可能找到理由发起成本高昂的调查。

Investment firms may also experience higher relative costs because regulators are more likely to have cause to initiate costly investigations.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：当不道德行为侵蚀人们对一家投资公司的信任时，该公司更可能面临：

概念拆解：信任使客户愿意把资源交给专业人士。一次不当行为不仅损害当事人，还可能提高行业整体的信任成本；机构与职业团体共同维护标准具有相互依赖性。

应用到题干：从客户是否愿意委托、公司能否留住客户、市场资源配置能否有效三个层面追踪后果。短期收入增加不能抵消长期声誉和信任的损害。

排除干扰项：把不道德行为只看成个人受罚风险，会忽略对公司、其他从业者和市场的外溢影响。

相关知识点 / **Related concepts**

行业信任与长期价值

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43, 45

题目与资料 / **Question and data**

4. 高道德标准是以下哪类组织的显著特征？

4. High ethical standards are distinguishing features of which of the following bodies?

A. 手工业行会

A. Craft guilds

B. 行业协会

B. Trade bodies

C. 专业组织

C. Professional bodies

官方答案与解析 / **Official answer and explanation**

4. C正确。高道德标准使专业群体区别于手工业行会或行业协会。

4. C is correct. High ethical standards distinguish professions from the craft guilds or trade bodies.

与行业协会不同，专业组织通常还以服务社会及执行从业人员的专业行为规则为使命。

Unlike trade bodies, professional bodies also typically have a mission to serve society and enforce professional conduct rules for practitioners.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：高道德标准是以下哪类组织的显著特征？

概念拆解：专业职业通常以专门知识、行为标准、能力维持和对社会的责任赢得信任。投资行业的信任来自客户相信专业人士既有能力，也会把客户利益放在适当位置。

应用到题干：从教育与能力、共同标准、职业监督和公共利益四个角度判断题干所述特征。长期声誉与信任会影响客户是否愿意委托资产。

排除干扰项：只有技术技能或市场盈利能力不足以构成完整的专业责任。职业标准的作用也不只是避免被处罚。

相关知识点 / **Related concepts**

职业专业性与公共信任

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-005

课后习题 5
Practice Problem 5

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43, 45

题目与资料 / Question and data

5. 以下哪一类的成员最有可能恪守信义义务这一标准？

5. Fiduciary duty is a standard most likely to be upheld by members of a(n):

A. 雇主。

A. employer.

B. 专业群体。

B. profession.

C. 非营利组织。

C. not-for-profit body.

官方答案与解析 / Official answer and explanation

5. B正确。信义义务是指为他人利益行事时，须履行高标准谨慎义务的责任。

5. B is correct. Fiduciary duty is an obligation to deliver a high standard of care when acting for the benefit of another party.

专业人士必须以客户最佳利益行事，并展现合理程度的谨慎、技能和勤勉。

Professionals must act in the best interest of the client, exercising a reasonable level of care, skill, and diligence.

雇主、监管机构、行业协会和非营利组织等其他实体也可能支持某个行业，但它们并不等同于专业组织。

Other entities—including employers, regulators, trade associations, and not-for-profit bodies—may also support an industry but are not the same as professional bodies.

与专业群体不同，这些其他实体通常并非为了制定和维护专业标准而存在。

Unlike professions, these other entities generally do not exist to set and maintain professional standards.

补充解析 / Supplementary explanation

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪一类的成员最有可能恪守信义义务这一标准？

概念拆解：客户把资产和决策委托给专业人士，会产生较高的审慎与忠诚要求。责任的来源是受托关系及对他人资源的控制，而不只是监管数量或职业身份。

应用到题干：识别谁承担风险、谁依赖专业建议、谁从行动中受益，再检验行动是否以客户的正当利益为中心。面对团队压力时，这个责任顺序尤其重要。

排除干扰项：个人、同事和雇主获得好处并不必然是客户获益；遵守形式规则也不能替代应有的关怀。

相关知识点 / **Related concepts**

受托责任与客户利益

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-006

课后习题 6
Practice Problem 6

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43, 45

题目与资料 / **Question and data**

6. 以下哪项最能体现可能导致不良道德决策的内在特质？

6. Which of the following best identifies an internal trait that may lead to poor ethical decision-making?

A. 过度自信

A. Overconfidence

B. 对雇主的忠诚

B. Loyalty to employer

C. 金钱或声望的承诺

C. Promise of money or prestige

官方答案与解析 / **Official answer and explanation**

6. A正确。过度自信偏差可能使个人过分重视内在特质和动机，例如自认为诚实，从而导致错误决策。

6. A is correct. An overconfidence bias can lead individuals to put too much importance on internal traits and intrinsic motivations, such as their own perceptions of personal honesty, that can lead to faulty decision-making.

对雇主的忠诚以及金钱或声望的承诺，属于可能导致错误决策的情境影响。

Loyalty to an employer and promise of money or prestige are situational influences that can lead to faulty decision-making.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项最能体现可能导致不良道德决策的内在特质？

概念拆解：团队忠诚、奖金、从众、权威指令和短期目标会影响本来有道德意愿的人。识别这些影响有助于解释为什么仅靠“我是好人”不足以防止错误。

应用到题干：把个人性格因素与题目设置的激励和社会关系分开，再判断哪项因素在当前决定中最直接。可以通过暂停决策、独立复核和讨论冲突来降低压力。

排除干扰项：不能把团队利益自动当成客户利益；他人有迫切经济需求也不会改变对客户的责任。

相关知识点 / **Related concepts**

情境压力与行为偏差

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-007

课后习题 7
Practice Problem 7

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 43-45

题目与资料 / **Question and data**

7. 以下哪种情况下，决策中的情境影响最有可能降至最低？

7. Situational influences in decision-making will most likely be minimized if:

A. 建立了健全的合规制度。

A. strong compliance programs are in place.

B. 考虑了更长期的后果。

B. longer-term consequences are considered.

C. 个人相信自己真实且诚实。

C. individuals believe they are truthful and honest.

官方答案与解析 / **Official answer and explanation**

7. B正确。有意识地考虑长期后果，有助于抵消情境影响。

7. B is correct. Consciously considering long-term consequences will help offset situational influences.

我们更容易识别和考虑短期情境影响，而不是长期因素，因为长期因素的即时后果较少。

We more easily recognize and consider short-term situational influences than longer-term considerations because longer-term considerations have fewer immediate consequences than situational influences do.

当决策过分狭隘地聚焦短期因素时，我们往往忽视长期风险和后果，不良道德决策的可能性便会上升。

When decision-making is too narrowly focused on short-term factors, we tend to ignore longer-term risks and consequences, and the likelihood of poor ethical decision-making increases.

健全的合规政策是发展道德文化的良好第一步，但仅关注遵守规则可能并不足够。

A strong compliance policy is a good first step toward developing an ethical culture; a focus on rules adherence may not be sufficient.

强调合规可能无法促使决策者考虑全局，还可能使决策过程过度简化。

Emphasis on compliance may not encourage decision makers to consider the larger picture and can oversimplify decision-making.

走向极端时，强烈的合规文化可能变成另一种情境影响，使员工忽视其他重要考虑因素。

Taken to the extreme, a strong compliance culture can become another situational influence that blinds employees to other important considerations.

过度自信偏差可能使人过分重视内在特质和动机，例如“我很诚实，不会说谎”；但研究显示，在特定情境下，内在特质通常不是决定一个人是否会合乎道德行事的主要因素。

An overconfidence bias can place too much importance on internal traits and intrinsic motivations, such as “I’m honest and would not lie,” even though studies have shown that internal traits are generally not the main determinant of whether or not someone will behave ethically in a given situation.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪种情况下，决策中的情境影响最有可能降至最低？

概念拆解：团队忠诚、奖金、从众、权威指令和短期目标会影响本来有道德意愿的人。识别这些影响有助于解释为什么仅靠“我是好人”不足以防止错误。

应用到题干：把个人性格因素与题目设置的激励和社会关系分开，再判断哪项因素在当前决定中最直接。可以通过暂停决策、独立复核和讨论冲突来降低压力。

排除干扰项：不能把团队利益自动当成客户利益；他人有迫切经济需求也不会改变对客户的责任。

相关知识点 / **Related concepts**

情境压力与行为偏差

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-008

课后习题 8
Practice Problem 8

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 44, 46

题目与资料 / **Question and data**

8. 采用合规导向方法的决策者，最有可能：

8. Decision makers who use a compliance approach are most likely to:

A. 避免情境影响。

A. avoid situational influences.

B. 过度简化决策过程。

B. oversimplify decision-making.

C. 比采用道德决策方法时考虑更多因素。

C. consider more factors than when using an ethical decision-making approach.

官方答案与解析 / **Official answer and explanation**

8. B正确。合规导向的方法可能过度简化决策过程，也可能无法促使决策者考虑全局。

8. B is correct. A compliance approach can oversimplify decision-making and may not encourage decision makers to consider the larger picture.

强烈的合规文化可能是建立道德文化的良好开端，但也可能成为另一种情境影响，使员工未能考虑其他重要因素。

A strong compliance culture may be a good start in developing an ethical culture but can become another situational influence that may result in employees failing to consider other important factors.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：采用合规导向方法的决策者，最有可能：

概念拆解：框架帮助把事实、利益相关者、原则、冲突、可选行动及后果摆在一起，从而减少被压力或直觉牵着走。它是持续判断工具，不是机械替代个人责任的清单。

应用到题干：按识别事实与责任、考虑方案和外部建议、决定并行动、事后反思的顺序分析。特别检查短期奖励是否遮蔽长期损害。

排除干扰项：存在公司道德守则或法律规则，并不使框架失去意义。事后结果理想，也不代表决策过程没有伦理缺陷。

相关知识点 / **Related concepts**

伦理决策框架

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-009

课后习题 9
Practice Problem 9

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 44, 46

题目与资料 / **Question and data**

9. 为维持信任，投资管理专业群体必须与以下哪一方相互依存？

9. To maintain trust, the investment management profession must be interdependent with:

A. 监管机构。

A. regulators.

B. 雇主。

B. employers.

C. 投资公司。

C. investment firms.

官方答案与解析 / **Official answer and explanation**

9. C正确。投资管理专业群体与投资公司必须相互依存，才能维持信任。

9. C is correct. The investment management profession and investment firms must be interdependent to maintain trust.

雇主和监管机构有各自的标准和做法，可能与专业组织制定的规则及标准不同。

Employers and regulators have their own standards and practices, which may differ from regulations and standards set by professional bodies.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：为维持信任，投资管理专业群体必须与以下哪一方相互依存？

概念拆解：信任使客户愿意把资源交给专业人士。一次不当行为不仅损害当事人，还可能提高行业整体的信任成本；机构与职业团体共同维护标准具有相互依赖性。

应用到题干：从客户是否愿意委托、公司能否留住客户、市场资源配置能否有效三个层面追踪后果。短期收入增加不能抵消长期声誉和信任的损害。

排除干扰项：把不道德行为只看成个人受罚风险，会忽略对公司、其他从业者和市场的外溢影响。

相关知识点 / **Related concepts**

行业信任与长期价值

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-010

课后习题 10
Practice Problem 10

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 44, 46

题目与资料 / Question and data

10. 以下哪项活动可能合法，但被CFA协会视为不道德？

10. Which is an example of an activity that may be legal but that CFA Institute considers unethical?

A. 在营销材料中作出法律要求的披露

A. Making legally required disclosures in marketing materials

B. 在掌握重大非公开信息时交易

B. Trading while in possession of material nonpublic information

C. 员工揭露自己公司不诚实的活动

C. Disclosure by an employee of his or her own company's dishonest activity

官方答案与解析 / Official answer and explanation

10. B正确。投资行业存在可能合法、但被CFA协会认为不道德的行为。

10. B is correct. The investment industry has examples of conduct that may be legal but that CFA Institute considers unethical.

并非世界各地的法律都禁止在掌握重大非公开信息时交易，因此这种交易可能合法，但CFA协会认为它不道德。

Trading while in possession of material nonpublic information is not prohibited by law worldwide and can, therefore, be legal, but CFA Institute considers such trading unethical.

补充解析 / Supplementary explanation

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项活动可能合法，但被CFA协会视为不道德？

概念拆解：法律能够规定可执行的要求，但不会覆盖所有情境；伦理标准可能比当地法律更严格。监管设计还可能有滞后、适用范围及意外后果。

应用到题干：分别判断行为是否符合法律和是否符合伦理；若两者要求不同，应按适用准则选择更严格的行为边界。

排除干扰项：没有违法不等于没有道德问题，合乎道德的行动也不能自动推定在所有地区都合法。

相关知识点 / Related concepts

法律最低要求与伦理标准

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-011

课后习题 11
Practice Problem 11

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 44, 46

题目与资料 / Question and data

11. 道德决策框架最有可能：

11. An ethical decision-making framework will most likely:

A. 包含预先确定的统一顺序。

A. include a pre-determined, uniform sequence.

B. 只关注可以证实的事实和关系。

B. focus exclusively on confirmable facts and relationships.

C. 帮助避免作出产生未预见道德后果的决策。

C. help avoid a decision that has unanticipated ethical consequences.

官方答案与解析 / Official answer and explanation

11. C正确。持续使用道德决策框架，能够培养良好的判断力和决策技能，并避免作出产生未预见道德后果的决策。

11. C is correct. Using an ethical decision-making framework consistently will help you develop sound judgment and decision-making skills and avoid making decisions that have unanticipated ethical consequences.

决策过程往往需要反复进行，决策者可能在框架的不同阶段之间来回。

The decision-making process is often iterative, and the decision maker may move between phases of the framework.

决策者应考虑的不仅是可证实的事实和关系；例如，还应考虑情境影响和个人偏差。

A decision maker should consider more than confirmable facts and relationships; for example, the decision maker should consider situational influences and personal biases.

补充解析 / Supplementary explanation

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：道德决策框架最有可能：

概念拆解：框架帮助把事实、利益相关者、原则、冲突、可选行动及后果摆在一起，从而减少被压力或直觉牵着走。它是持续判断工具，不是机械替代个人责任的清单。

应用到题干：按识别事实与责任、考虑方案和外部建议、决定并行动、事后反思的顺序分析。特别检查短期奖励是否遮蔽长期损害。

排除干扰项：存在公司道德守则或法律规则，并不使框架失去意义。事后结果理想，也不代表决策过程没有伦理缺陷。

相关知识点 / **Related concepts**

伦理决策框架

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M01-PR-012

课后习题 12
Practice Problem 12

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 44, 46

题目与资料 / **Question and data**

12. 出现道德困境时，投资专业人士最应首先向以下哪一方提出问题？

12. When an ethical dilemma occurs, an investment professional should most likely first raise the issue with a:

A. 公司外部的导师。

A. mentor outside the firm.

B. 专业组织的热线。

B. professional body’s hotline.

C. 公司内部的资深人员。

C. senior individual in the firm.

官方答案与解析 / **Official answer and explanation**

12. C正确。出现困境时，先在公司内部向资深员工提出问题，往往是良好的起点，并能创造独立内部审查的机会。

12. C is correct. When a dilemma occurs, raising an issue internally with a senior employee is often a good starting place and creates an opportunity for an independent internal review.

保护客户和公司，可能优先于提出疑虑的个别专业人士自身的处境。

Protecting the client and the firm may take priority over the position of an individual professional raising a concern.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：出现道德困境时，投资专业人士最应首先向以下哪一方提出问题？

概念拆解：框架帮助把事实、利益相关者、原则、冲突、可选行动及后果摆在一起，从而减少被压力或直觉牵着走。它是持续判断工具，不是机械替代个人责任的清单。

应用到题干：按识别事实与责任、考虑方案和外部建议、决定并行动、事后反思的顺序分析。特别检查短期奖励是否遮蔽长期损害。

排除干扰项：存在公司道德守则或法律规则，并不使框架失去意义。事后结果理想，也不代表决策过程没有伦理缺陷。

> 相关知识点 / **Related concepts**

伦理决策框架

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

LM 2 · 道德准则与专业行为准则
Code of Ethics and Standards of Professional Conduct

10 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M02-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 62, 64

题目与资料 / **Question and data**

1. 以下哪项最准确地描述了专业行为计划程序的某个方面？

1. Which of the following statements best describes an aspect of the Professional Conduct Program process?

A. 不会因媒体提供的信息而启动调查。

A. Inquiries are not initiated in response to information provided by the media.

B. 每宗调查都会交由纪律审查委员会小组处理。

B. Investigations result in Disciplinary Review Committee panels for each case.

C. 调查可能包括要求会员或考生提交书面解释。

C. Investigations may include requesting a written explanation from the member or candidate.

官方答案与解析 / **Official answer and explanation**

1. C正确。启动调查后，专业行为团队开展的调查可能包括要求会员或考生提交书面解释。

1. C is correct. When an inquiry is initiated, the Professional Conduct staff conducts an investigation that may include requesting a written explanation from the member or candidate.

A错误，因为专业行为调查可以根据媒体提供的信息而启动。

A is incorrect because Professional Conduct inquiries can be initiated in response to information provided by the media.

CFA协会工作人员可能通过媒体、监管公告或其他公开来源，得知会员或考生可能存在问题的行为。

CFA Institute staff may become aware of questionable conduct by a member or candidate through the media, regulatory notices, or other public sources.

B错误，因为虽然纪律审查委员会（DRC）与专业行为计划（PCP）共同负责执行《道德准则与专业行为准则》，但只有在会员或考生不接受指控及拟议制裁时，案件才会提交由纪律审查委员会成员组成的小组。［译注：本章前文也说明，纪律审查小组会复核当事人接受的指控及制裁；此处将提交小组限于有争议案件，与前文表述存在差异。］

B is incorrect because although the Disciplinary Review Committee (DRC) is responsible for enforcement of the Code and Standards in conjunction with the Professional Conduct Program (PCP), only in the event that a member or candidate does not accept the charges and proposed sanction is the matter referred to a panel composed of DRC members.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：以下哪项最准确地描述了专业行为计划程序的某个方面？

概念拆解：调查启动和纪律裁决是不同阶段。调查人员可要求当事人书面说明、访谈相关人士并查阅文件；调查信息来源不限于客户正式投诉。

应用到题干：把“收集事实、决定是否进一步处理”和“纪律听证或制裁”分开。题目中绝对化的说法，如每个调查都必须进入听证，通常忽略了可能结案或采用其他处理的分支。

排除干扰项：不能把媒体报道或公开信息排除在调查线索之外，也不能把开始调查理解为已经证明违规。

相关知识点 / **Related concepts**

职业行为调查与纪律程序

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M02-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 62, 64

题目与资料 / **Question and data**

2. 现行《道德准则》中的某项原则以“促进诚信……”开头；其完整表述为：

2. A current Code of Ethics principle reads in full, “Promote the integrity:

A. “促进全球资本市场的诚信及持续运作能力。”

A. and viability of the global capital markets.”

B. “促进资本市场的诚信，并恪守管辖资本市场的规则。”

B. of and uphold the rules governing capital markets.”

C. “促进全球资本市场的诚信及持续运作能力，最终造福社会。”

C. and viability of the global capital markets for the ultimate benefit of society.”

官方答案与解析 / **Official answer and explanation**

2. C正确。《道德准则》的一项原则体现了资本市场对整个社会的作用。

2. C is correct. One of the principles in the Code of Ethics reflects the role that the capital markets have in society as a whole.

A错误，因为内容不完整，缺少体现资本市场对整个社会所起作用的补充文字。

A is incorrect because it is incomplete, missing the additional language to reflect the role that the capital markets have in society as a whole.

B错误，因为《道德准则》该项原则的原文体现的是资本市场对整个社会的作用。

B is incorrect because the principle as written in the Code of Ethics reflects the role of the capital markets in society as a whole.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

题目聚焦：现行《道德准则》中的某项原则以“促进诚信……”开头；其完整表述为：

概念拆解：道德准则给出职业的核心价值和责任，行为标准把原则转化为更具体的最低要求与判断指引。两者共同支持客户信任和市场完整性。

应用到题干：分清题目在问价值原则、具体行为要求还是纪律程序。回到教材列出的准则用语，避免把个人偏好的理想行为当成明确强制要求。

排除干扰项：道德准则不可能列出所有场景，遵守最低规则也不消除在复杂情境中继续作出专业判断的责任。

相关知识点 / **Related concepts**

道德准则与行为标准的关系

把规则、事实、利益相关者和后果分开核查，并回到本题给出的证据。

V10-M02-PR-003

课后习题 3
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 62, 64

题目与资料 / **Question and data**

3. 关于《专业行为准则》，以下哪项正确？

3. Which of the following is correct with regard to the Standards of Professional Conduct?

A. 它要求主管只关注发现和预防违规行为。

A. They require supervisors to focus only on the detection and prevention of violations.

B. 它对会员与考生的道德行为要求，自制定以来始终未变。

B. They set ethical conduct requirements for members and candidates that have remained unchanged since their creation.

C. 它涉及向客户提出的建议所包含的风险与限制。

C. They address the risks and limitations of recommendations being made to clients.

官方答案与解析 / **Official answer and explanation**

3. C正确。鉴于新型和复杂金融工具及策略不断发展，关于与客户沟通的准则隐含要求披露向客户提出的建议所涉及的风险和限制。

3. C is correct. Given the constant development of new and exotic financial instruments and strategies, the standard regarding communicating with clients includes an implicit requirement to disclose to clients the risks and limitations of recommendations being made to clients.

A错误，因为对于在公司内部监督或管理他人的会员与考生，准则强调的是超越发现和预防违规行为的更广泛合规要求。

A is incorrect because the standard for members and candidates with supervision or authority over others within their firms stresses broader compliance expectations beyond the detection and prevention aspects of violations.

B错误，因为准则不断演变，以继续体现最高水平的专业行为要求，并适应投资专业不断变化的性质。

B is incorrect because the standards have evolved over time to remain representative of the highest standards of professional conduct and relevant to the changing nature of the investment profession.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 V(B)（与客户及潜在客户沟通）。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M02-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 62, 64

题目与资料 / **Question and data**

4. 以下哪项最准确地描述了《专业行为准则》的某个方面？

4. Which of the following statements best describes an aspect of the Standards of Professional Conduct?

会员与考生必须：

Members and candidates are required to:

A. 确保投资组合的授权要求适合所有投资者。

A. ensure a portfolio mandate is suitable for all investors.

B. 及时披露可能对投资流程造成重大影响的变化。

B. promptly disclose changes that might materially affect investment processes.

C. 在决定客户保密事项时，具备合理且充分的依据。

C. have a reasonable and adequate basis for decisions about client confidentiality.

官方答案与解析 / **Official answer and explanation**

4. B正确。《专业行为准则》要求会员与考生及时披露可能对投资流程造成重大影响的任何变化。

4. B is correct. The Standards of Professional Conduct require members and candidates to promptly disclose any changes that might materially affect investment processes.

A错误，因为根据准则III(C)“适当性”，当会员与考生按照特定授权要求管理投资组合时，只能采取与组合既定目标一致的投资行动，而不必判断该授权是否适合所有投资者。

A is incorrect because under Standard III(C) Suitability, when members and candidates are responsible for managing a portfolio according to a specific mandate, they must take only investment actions that are consistent with the stated objectives of the portfolio and not be concerned with whether the mandate is suitable for all investors.

C错误，因为根据准则III(E)“保守秘密”，会员与考生必须对现有客户的信息保密，除非信息涉及客户违法活动、法律要求披露，或客户允许披露。

C is incorrect because under Standard III(E) Preservation of Confidentiality, members and candidates must keep information about current clients confidential unless the information concerns illegal activities on the part of the client, disclosure is required by law, or the client permits disclosure.

这里不要求以该标准对保密作出决策；“合理且充分的依据”属于准则V(A)“勤勉尽责与合理依据”的要求。

No decisions on confidentiality are required, with the “reasonable and adequate basis” criterion related to Standard V(A) Diligence and Reasonable Basis.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 V(B)（与客户及潜在客户沟通）。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M02-PR-005

课后习题 5
Practice Problem 5

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 62, 64-65

题目与资料 / **Question and data**

5. CFA协会会员或考生通过以下哪项行为，违反准则II(A)“重大非公开信息”？

5. A CFA Institute member or candidate violates Standard II(A) Material Nonpublic Information by:

A. 从事扭曲价格的行为。

A. conducting price distortion practices.

B. 不当促使他人采取行动。

B. inappropriately causing others to act.

C. 未充分维护投资记录。

C. inadequately maintaining investment records.

官方答案与解析 / **Official answer and explanation**

5. B正确。根据准则II(A)“重大非公开信息”，掌握可能影响投资价值的重大非公开信息的会员，不得促使他人依据该信息采取行动。

5. B is correct. Under Standard II(A) Material Nonpublic Information, members who possess material nonpublic information that could affect the value of an investment must not cause others to act on the information.

A错误，因为扭曲价格属于准则II(B)“市场操纵”，而非准则II(A)“重大非公开信息”。

A is incorrect because price distortion is mentioned in Standard II(B) Market Manipulation, not Standard II(A) Material Nonpublic Information.

C错误，因为维护适当记录以支持投资分析，属于准则V(C)“保存记录”，而非准则II(A)“重大非公开信息”。

C is incorrect because the maintenance of appropriate records to support investment analyses is noted in Standard V(C) Record Retention, not Standard II(A) Material Nonpublic Information.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

留存材料要足以重建建议的逻辑链：客户要求、原始数据、关键假设、分析和沟通。只保存最后的买卖指令，往往无法说明当时为何适合客户。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M02-PR-006

课后习题 6
Practice Problem 6

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 62, 65

题目与资料 / **Question and data**

6. 准则III(C)“适当性”要求与客户建立顾问关系的会员与考生：

6. Standard III(C) Suitability requires members and candidates in an advisory relationship with a client to:

A. 将客户利益置于自身利益之前。

A. place their client’s interests before their own interests.

B. 从客户整体投资组合的角度考虑投资。

B. consider investments in the context of the client's total portfolio.

C. 不得明知而就建议作出虚假陈述。

C. not knowingly make misrepresentations relating to recommendations.

官方答案与解析 / **Official answer and explanation**

6. B正确。准则III(C)"适当性"规定，当会员与考生与客户建立顾问关系时，必须从客户整体投资组合的角度判断投资的适当性。

6. B is correct. Standard III(C) Suitability states that when members and candidates are in an advisory relationship with a client, they must judge the suitability of investments in the context of the client's total portfolio.

A错误，因为该要求属于准则III(A)"忠诚、审慎与谨慎"，而非准则III(C)"适当性"。

A is incorrect because this requirement is addressed under Standard III(A) Loyalty, Prudence, and Care, not Standard III(C) Suitability.

C错误，因为该要求属于准则I(C)"虚假陈述"，而非准则III(C)"适当性"。

C is incorrect because this requirement is addressed under Standard I(C) Misrepresentation, not Standard III(C) Suitability.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(C)（适当性）。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M02-PR-007

课后习题 7
Practice Problem 7

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 63, 65

题目与资料 / **Question and data**

7. 准则III“对客户的责任”规定，会员与考生必须：

7. Standard III: Duties to Clients states that members and candidates must:

A. 在首次采取投资行动之后，记录客户的财务限制。

A. document client financial constraints after an initial investment action.

B. 对客户利益与雇主利益保持同等平衡。

B. maintain an equal balance of interests owed to their clients and employers.

C. 从事专业活动时，公平、客观地对待所有客户。

C. deal fairly and objectively with all clients when engaging in professional activities.

官方答案与解析 / **Official answer and explanation**

7. C正确。根据准则III(B)“公平对待”，会员与考生在提供投资分析、提出投资建议、采取投资行动或从事其他专业活动时，必须公平、客观地对待所有客户。

7. C is correct. Under Standard III(B) Fair Dealing, members and candidates must deal fairly and objectively with all clients when providing investment analysis, making investment recommendations, taking investment action, or engaging in other professional activities.

A错误，因为根据准则III(C)“适当性”，处于顾问关系的会员与考生，必须在采取投资行动之前而非之后合理了解客户的财务限制，并定期重新评估和更新。

A is incorrect because under Standard III(C) Suitability, members and candidates in an advisory relationship must make a reasonable inquiry into a client’s financial constraints prior to (not after) taking investment action and must reassess and update this regularly.

B错误，因为根据准则III(A)“忠诚、审慎与谨慎”，会员与考生必须为客户利益行事，将客户利益置于雇主或自身利益之前，而非与其保持同等平衡。

B is incorrect because under Standard III(A) Loyalty, Prudence, and Care, members and candidates must act for the benefit of their clients and place their clients’ interests before (not maintain an equal balance with) their employer’s or their own interests.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(B)（公平对待）。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M02-PR-008

课后习题 8
Practice Problem 8

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 63, 65

题目与资料 / **Question and data**

8. 准则IV“对雇主的责任”规定，会员与考生不得：

8. Standard IV: Duties to Employers states that members and candidates must not:

A. 接受任何可能损害自身独立性与客观性的礼物。

A. accept any gifts that might compromise their independence and objectivity.

B. 使雇主无法享有其与受雇工作有关的技能和能力带来的益处。

B. deprive their employer of their skills and abilities as related to their employment.

C. 在未取得雇主一方的书面同意时，接受与雇主利益相竞争的报酬。

C. accept compensation competing with their employer’s interest without the written consent of their employer only.

官方答案与解析 / **Official answer and explanation**

8. B正确。准则IV(A)“忠诚”规定，在与雇佣关系有关的事项中，会员与考生不得使雇主无法享有其技能和能力带来的益处。

8. B is correct. Standard IV(A) Loyalty states that members and candidates cannot deprive their employer of the advantage of their skills and abilities in matters related to their employment.

A错误，因为接受可能损害会员或考生独立性与客观性的礼物，属于准则I“专业精神”的范围，而非准则IV“对雇主的责任”。

A is incorrect because accepting gifts that might compromise a member's or candidate's independence and objectivity is addressed by Standard I: Professionalism, not Standard IV: Duties to Employers.

C错误，因为准则IV(B)“额外报酬安排”允许会员与考生在取得所有相关方的书面同意后，接受与雇主利益相竞争的报酬。

C is incorrect because Standard IV(B) Additional Compensation Arrangements permits members and candidates to accept compensation that competes with their employer's interest if they obtain written consent from all parties involved.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(A)（对雇主的忠诚）。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M02-PR-009

课后习题 9
Practice Problem 9

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 63, 65

题目与资料 / **Question and data**

9. 准则V“投资分析、建议与行动”规定，会员与考生必须：

9. Standard V: Investment Analysis, Recommendations, and Actions states that members and candidates must:

A. 在提出建议之前，找到适合客户的投资。

A. find an investment suitable for their client before making a recommendation.

B. 作出合理努力，确保业绩展示公允、准确且完整。

B. make reasonable efforts to ensure that performance presentation is fair, accurate, and complete.

C. 在展示投资分析和建议时，区分事实与意见。

C. distinguish between fact and opinion in the presentation of investment analysis and recommendations.

官方答案与解析 / **Official answer and explanation**

9. C正确。准则V(B)“与客户及潜在客户沟通”规定，会员与考生在展示投资分析和建议时，必须区分事实与意见。

9. C is correct. Standard V(B) Communication with Clients and Prospective Clients states that members and candidates must distinguish between fact and opinion in the presentation of investment analysis and recommendations.

A错误，因为这项标准在准则III“对客户的责任”中讨论。

A is incorrect because this standard is discussed in Standard III: Duties to Clients.

B错误，因为业绩展示在准则III“对客户的责任”中讨论。

B is incorrect because performance presentation is discussed in Standard III: Duties to Clients.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 V(B)（与客户及潜在客户沟通）。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / **Communication with Clients and Prospective Clients**

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M02-PR-010

课后习题 10
Practice Problem 10

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 63, 65

题目与资料 / Question and data

10. 准则VII“作为CFA协会会员或CFA考生的责任”明确规定了关于以下哪项的要求？

10. Standard VII: Responsibilities as a CFA Institute Member or CFA Candidate explicitly states a requirement regarding:

A. 忠诚。

A. loyalty.

B. 主管的责任。

B. responsibility of supervisors.

C. 提及CFA课程。

C. reference to the CFA Program.

官方答案与解析 / Official answer and explanation

10. C正确。准则VII(B)“提及CFA协会、CFA称号及CFA课程”明确规定了提及CFA协会、协会会员资格、CFA称号或CFA课程考生身份的恰当方式。

10. C is correct. Standard VII(B) Reference to CFA Institute, the CFA Designation, and the CFA Program explicitly states the appropriate manner to make reference to CFA Institute, CFA Institute membership, the CFA designation, or candidacy in the CFA Program.

A错误，因为准则VII“作为CFA协会会员或CFA考生的责任”未提及忠诚。

A is incorrect because Standard VII: Responsibilities as a CFA Institute Member or CFA Candidate does not refer to loyalty.

忠诚在另外两项准则中讨论，即准则III(A)“忠诚、审慎与谨慎”，以及准则IV“对雇主的责任”的一部分。

Loyalty is addressed in two other standards, Standard III(A) Loyalty, Prudence, and Care and as part of Standard IV: Duties to Employers.

B错误，因为准则VII未提及主管的责任。

B is incorrect because Standard VII does not refer to the responsibility of supervisors.

主管的责任在准则IV(C)“主管的责任”中讨论。

The responsibility of supervisors is addressed in Standard IV(C) Responsibility of Supervisors.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VII(B)（CFA称号、资格与项目的引用）。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / **Reference to CFA**

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

LM 3 · 准则I指引：专业精神
Guidance for Standard I: Professionalism

60 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M03-CA-007

例1：报告已知违规行为
Example 1: Notification of Known Violations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 73

题目与资料 / **Question and data**

例1：报告已知违规行为 Example 1: Notification of Known Violations

Allen在一家经纪公司工作，负责一项证券承销业务。

Allen works for a brokerage firm and is responsible for an underwriting of securities.

发行公司的一位高级管理人员向Allen提供信息，表明Allen向监管机构提交的财务报表高估了发行人的盈利。

A senior manager for an issuing company gives Allen information indicating that the financial statements Allen filed with the regulator overstate the issuer's earnings.

Allen向经纪公司的总法律顾问寻求建议；顾问表示，监管机构很难证明Allen参与了任何不当行为。

Allen seeks the advice of the brokerage firm's general counsel, who states that it would be difficult for the regulator to prove that Allen has been involved in any wrongdoing.

官方答案与解析 / **Official answer and explanation**

评述：虽然建议会员与考生寻求法律顾问意见，但依赖这些意见并不能免除其遵守法律法规的义务。

Comment: Although it is recommended that members and candidates seek the advice of legal counsel, the reliance on such advice does not absolve a member or candidate from the requirement to comply with the law or regulation.

Allen应向上司报告此事，寻求独立法律意见，并确定是否应将该错误通知监管机构。

Allen should report this situation to his supervisor, seek an independent legal opinion, and determine whether the regulator should be notified of the error.

补充解析 / **Supplementary explanation**

本案例"例1：报告已知违规行为"应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / Knowledge of the Law

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-008

例2：与违规行为划清界限
Example 2: Dissociating from a Violation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 73

题目与资料 / **Question and data**

例2：与违规行为划清界限 Example 2: Dissociating from a Violation

Brown的雇主是一家投资银行，是Courtney公司发行可转换公司债券的主承销商。

Brown’s employer, an investment banking firm, is the principal underwriter for an issue of convertible debentures by the Courtney Company.

Brown发现，Courtney公司隐瞒了其海外业务在第三季度的严重亏损。

Brown discovers that the Courtney Company concealed severe third-quarter losses in its foreign operations.

初步招股说明书已经发出。

The preliminary prospectus was already distributed.

官方答案与解析 / **Official answer and explanation**

评述：Brown知道初步招股说明书具有误导性，应将发现报告给公司适当的管理人员。

Comment: Knowing that the preliminary prospectus is misleading, Brown should report his findings to the appropriate supervisory persons in his firm.

如果问题没有得到纠正，而且雇主没有退出承销业务，Brown就必须切断自己与该承销业务的一切联系。

If the matter is not remedied and Brown’s employer does not dissociate from the underwriting, Brown must sever all his connections with the underwriting.

Brown还应寻求法律意见，以确定是否需要进一步报告或采取其他行动。

Brown should also seek legal advice to determine whether additional reporting or other action should be taken.

补充解析 / **Supplementary explanation**

本案例“例2：与违规行为划清界限”应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / Knowledge of the Law

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-009

例3：与违规行为划清界限
Example 3: Dissociating from a Violation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 73

题目与资料 / **Question and data**

例3：与违规行为划清界限 Example 3: Dissociating from a Violation

Washington所在公司通过展示客户账户组合的10年回报，宣传其历史业绩。

Washington's firm advertises its past performance record by showing the 10-year return of a composite of its client accounts.

但Washington发现，该组合遗漏了在这10年间离开公司的账户业绩，而组合说明却声称包括公司的所有账户。

Washington discovers, however, that the composite omits the performance of accounts that left the firm during the 10-year period, whereas the description of the composite indicates the inclusion of all firm accounts.

这一遗漏导致业绩数字被夸大。公司要求Washington在招揽业务时，使用包含错误业绩数字的宣传材料。

This omission led to an inflated performance figure. Washington is asked to use promotional material that includes the erroneous performance number when soliciting business for the firm.

官方答案与解析 / **Official answer and explanation**

评述：虚报业绩违反《道德准则与专业行为准则》。

Comment: Misrepresenting performance is a violation of the Code and Standards.

虽然业绩并非由Washington本人计算，但如果她在招揽客户时使用被夸大的业绩数字，就会构成协助违反准则I(A)。

Although she did not calculate the performance herself, Washington will assist in violating Standard I(A) if she were to use the inflated performance number when soliciting clients.

她必须与该活动划清界限。如果无法通过与责任人讨论来纠正误导性数字，她必须向上司或公司合规部门报告。

She must dissociate herself from the activity. If discussing the misleading number with the person responsible is not an option for correcting the problem, she must bring the situation to the attention of her supervisor or the compliance department at her firm.

如果公司不愿重新计算业绩，她必须避免使用该误导性宣传材料，并应向公司说明原因。

If her firm is unwilling to recalculate performance, she must refrain from using the misleading promotional material and should notify the firm of her reasons.

如果公司坚持要求她使用该材料，她应考虑，履行与违规活动划清界限的义务是否要求自己另寻工作。

If the firm insists that she use the material, she should consider whether her obligation to dissociate from the activity requires her to seek other employment.

补充解析 / **Supplementary explanation**

本案例“例3：与违规行为划清界限”应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / Knowledge of the Law

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-010

例4：遵守最高要求
Example 4: Following the Highest Requirements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 74

题目与资料 / **Question and data**

例4：遵守最高要求 Example 4: Following the Highest Requirements

Collins是一家华尔街大型经纪公司的投资分析师。

Collins is an investment analyst for a major Wall Street brokerage firm.

他在一个经济迅速现代化、资本市场不断发展的发展中国家工作。

He works in a developing country with a rapidly modernizing economy and a growing capital market.

当地证券法律无论形式还是内容都很有限，也没有对内幕交易规定惩罚性的禁止条款。

Local securities laws are minimal—in form and content—and include no punitive prohibitions against insider trading.

官方答案与解析 / **Official answer and explanation**

评述：Collins必须遵守比该发展中国家规则更严格的《道德准则与专业行为准则》。

Comment: Collins must abide by the requirements of the Code and Standards, which are stricter than the rules of the developing country.

处理所掌握的重大非公开信息时，他必须遵守准则II(A)“重大非公开信息”。

In handling material nonpublic information that comes into his possession, he must follow Standard II(A) Material Nonpublic Information.

补充解析 / **Supplementary explanation**

本案例“例4：遵守最高要求”应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / **Knowledge of the Law**

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-011

例5：遵守最高要求
Example 5: Following the Highest Requirements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 74

题目与资料 / **Question and data**

例5：遵守最高要求 Example 5: Following the Highest Requirements

Jameson供职于一家总部位于美国的跨国投资顾问公司。

Jameson works for a multinational investment adviser based in the United States.

Jameson居住在面积虽小但富裕的岛国Karramba，并作为注册投资顾问在那里工作。

Jameson lives and works as a registered investment adviser in the tiny but wealthy island nation of Karramba.

Karramba证券法规定，任何在该国注册并工作的投资顾问都不得参与首次公开募股（IPO）。

Karramba's securities laws state that no investment adviser registered and working in that country can participate in initial public offerings (IPOs).

Jameson认为，自己是为美国公司工作的美国公民，因此只应遵守美国法律，于是忽视了Karramba的这项法律。

Jameson, believing that, as a US citizen working for a US-based company, she should comply only with US law, ignored this Karrambian law.

此外，Jameson认为，作为持证人，只要遵守《道德准则与专业行为准则》的要求，在持有IPO股份构成利益冲突时向雇主和客户披露自己参与该IPO，就已经达到最高道德要求。

In addition, Jameson believes that as a charterholder, as long as she adheres to the Code and Standards requirement that she disclose her participation in any IPO to her employer and clients when such ownership creates a conflict of interest, she is meeting the highest ethical requirements.

官方答案与解析 / **Official answer and explanation**

评述：Jameson违反了准则I(A)。作为Karramba的注册投资顾问，无论其本国法律如何规定，Karramba证券法都禁止她参与IPO。

Comment: Jameson is in violation of Standard I(A). As a registered investment adviser in Karramba, Jameson is prevented by Karrambian securities law from participating in IPOs regardless of the law of her home country.

此外，由于工作所在国家的法律比《道德准则与专业行为准则》更严格，她必须遵守当地法律更严格的要求，而非仅遵守准则的要求。

In addition, because the law of the country where she works is stricter than the Code and Standards, she must follow the stricter requirements of the local law rather than the requirements of the Code and Standards.

补充解析 / **Supplementary explanation**

本案例"例5：遵守最高要求"应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / Knowledge of the Law

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-012

例6：未能持续了解法律
Example 6: Failure to Maintain Knowledge of the Law

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 74

题目与资料 / **Question and data**

例6：未能持续了解法律 Example 6: Failure to Maintain Knowledge of the Law

White通过社交媒体与客户及潜在客户沟通。

White communicates with clients and potential clients through social media.

她发布业绩报告、投资观点和建议等投资信息，也发布简短公告和意见，例如“XYZ公司未来增长前景看起来不错！#makingmoney4U”。

She posts investment information, including performance reports and investment opinions and recommendations, along with brief announcements and opinions (e.g., “Prospects for future growth of XYZ company look good! #makingmoney4U”).

在White开始使用社交媒体之前，当地监管机构已发布规范网上电子沟通的新要求和指引。

Prior to White’s use of social media, the local regulator issued new requirements and guidance governing online electronic communication.

White的沟通内容与近期监管公告冲突。

White’s communications conflict with the recent regulatory announcements.

官方答案与解析 / **Official answer and explanation**

评述：White违反了准则I(A)，因为她的沟通不符合现行适用的社交媒体使用规定。

Comment: White is in violation of Standard I(A) because her communications do not comply with the existing applicable regulation governing use of social media.

White必须了解金融服务行业中适用于自己的领域不断变化的法律要求。

White must be aware of the evolving legal requirements pertaining to areas of the financial services industry that apply to her.

除非她勤勉地跟进影响其专业责任的法律监管动态，否则应向适当、专业且可靠的来源寻求指导，例如公司合规部门、外部服务提供者或外部法律顾问。

She should seek guidance from appropriate, knowledgeable, and reliable sources, such as her firm's compliance department, external service providers, or outside counsel, unless she diligently follows legal and regulatory trends affecting her professional responsibilities.

对直接适用于自身专业活动的法律具备适当知识，也是准则I(E)"胜任能力"的要求。

Having appropriate knowledge of the laws directly applicable to her professional activities is also required by Standard I(E) Competence.

补充解析 / **Supplementary explanation**

本案例"例6：未能持续了解法律"应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

社交媒体也是专业沟通渠道。发布重要建议时应依照合理分发政策，避免只让某个小群体获得不公平优势；不同服务级别可存在，但应披露并确保其他客户的公平机会不受损害。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / **Knowledge of the Law**

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-013

例7：了解适用法律
Example 7: Knowledge of Applicable Law

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 75

题目与资料 / **Question and data**

例7：了解适用法律 Example 7: Knowledge of Applicable Law

Scherzer是National Investment Advisors（NIA）的投资组合经理。

Scherzer is a portfolio manager for National Investment Advisors (NIA).

他与NIA的许多其他员工一道，协助准备当地法规要求的公司年度财务报告审计。

He, along with many other NIA personnel, assists in preparing for the firm's annual audit of financial reports required by local regulations.

在收集和准备材料、协助首席财务官（CFO）Strasberg及其审计团队履行公司年度监管报告义务时，Scherzer疏于适当收集和披露法规要求的某些信息。

While gathering and preparing material to assist Strasberg, the firm's chief financial officer (CFO), and her audit team in fulfilling the firm's annual regulatory reporting requirements, Scherzer neglects to properly collect and disclose certain information required by the regulations.

官方答案与解析 / **Official answer and explanation**

评述：虽然Scherzer偶尔协助公司的财务审计，但其主要专业责任是管理客户账户的投资组合。

Comment: Although Scherzer occasionally assists with the firm's financial audit, his primary professional responsibilities relate to portfolio management of client accounts.

因此，准则I(A)不要求Scherzer详细掌握适用于公司的财务审计法规。

As such, Standard I(A) does not require Scherzer to have detailed knowledge of the financial audit regulations applicable to his firm.

Strasberg作为首席财务官及内部审计团队负责人，须根据准则I(A)理解并遵守审计法规。

Strasberg, as the CFO and the person responsible for the internal audit team, would be required by Standard I(A) to understand and comply with the audit regulations.

Scherzer可以依靠Strasberg了解法规要求提供哪些信息，并指导他如何适当收集和披露这些信息。

Scherzer can rely on Strasberg to understand what information is required by the regulations and give him advice on how to properly gather and disclose that information.

补充解析 / **Supplementary explanation**

本案例“例7：了解适用法律”应放在准则 I(A) 的具体要求下判断。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / **Knowledge of the Law**

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-CA-014

例1：差旅费用
Example 1: Travel Expenses

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 79

题目与资料 / **Question and data**

例1：差旅费用 Example 1: Travel Expenses

Bronson Brokers的矿业分析师Taylor获Precision Metals邀请，与一组同行参观美国西部数州的采矿设施。

Taylor, a mining analyst with Bronson Brokers, is invited by Precision Metals to join a group of his peers in a tour of mining facilities in several western US states.

公司安排包机让团队在各地点之间往返，并在矿区附近唯一提供住宿的连锁旅馆Spartan Motels安排三晚简朴住宿。

The company arranges for chartered group flights from site to site and for modest accommodations in Spartan Motels, the only chain with accommodations near the mines, for three nights.

Taylor与其他分析师都接受了Precision Metals支付费用；只有大型信托公司员工Adams例外，他坚持遵守本公司政策，自行支付酒店房费。

Taylor allows Precision Metals to pick up his tab, as do the other analysts, with one exception—Adams, an employee of a large trust company who insists on following his company's policy and paying for his hotel room himself.

官方答案与解析 / **Official answer and explanation**

评述：Adams所在公司的政策避免了哪怕只是表面上的利益冲突，与准则I(B)高度一致；但Taylor及其他分析师并不一定违反准则I(B)。

Comment: The policy of the company where Adams works complies closely with Standard I(B) by avoiding even the appearance of a conflict of interest, but Taylor and the other analysts did not necessarily violate Standard I(B).

一般而言，在此类情况下允许公司支付差旅和／或住宿费用时，会员与考生必须运用自身判断。

In general, when allowing companies to pay for travel and/or accommodations in these circumstances, members and candidates must use their judgment.

他们必须保持警惕，确保这些安排不会损害其独立性与客观性。

They must be on guard that such arrangements do not impinge on a member's or candidate's independence and objectivity.

本例中，行程完全出于业务目的，Taylor没有接受无关或奢华的款待。

In this example, the trip was strictly for business and Taylor was not accepting irrelevant or lavish hospitality.

行程需要使用包机，并不预期由分析师支付这笔费用。

The itinerary required chartered flights, for which analysts were not expected to pay.

住宿条件简朴。最终，会员与考生必须同时考虑自己是否能够保持客观，以及客户是否可能认为其诚信已受到损害。

The accommodations were modest. In the final analysis, members and candidates must consider both whether they can remain objective and whether their integrity might be perceived by their clients to have been compromised.

补充解析 / **Supplementary explanation**

本案例“例1：差旅费用”应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-015

例2：研究独立性
Example 2: Research Independence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 80

题目与资料 / **Question and data**

例2：研究独立性 Example 2: Research Independence

Dillon是一家投资服务公司企业融资部门的分析师，她在向潜在新业务客户演示时，承诺公司将为该客户提供全面研究覆盖。

Dillon, an analyst in the corporate finance department of an investment services firm, is making a presentation to a potential new business client that includes the promise that her firm will provide full research coverage of the potential client.

官方答案与解析 / **Official answer and explanation**

评述：Dillon可以同意提供研究覆盖，但不得承诺公司的研究部门会给出有利建议。

Comment: Dillon may agree to provide research coverage, but she must not commit her firm's research department to providing a favorable recommendation.

公司给出的有利、中性或不利建议，都必须以对该公司及其证券的独立、客观调查和分析为依据。

The firm's recommendation (favorable, neutral, or unfavorable) must be based on an independent and objective investigation and analysis of the company and its securities.

补充解析 / **Supplementary explanation**

本案例"例2：研究独立性"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-016

例3：研究独立性与公司内部压力
Example 3: Research Independence and Intrafirm Pressure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 80

题目与资料 / **Question and data**

例3：研究独立性与公司内部压力 Example 3: Research Independence and Intrafirm Pressure

Fritz是Hilton Brokerage负责矿业的股票分析师。

Fritz is an equity analyst at Hilton Brokerage who covers the mining industry.

他认为Metals & Mining的当前股价过高，但担心负面研究报告会损害该公司与自己公司投资银行部门之间的良好关系。

He has concluded that the stock of Metals & Mining is overpriced at its current level, but he is concerned that a negative research report will hurt the good relationship between Metals & Mining and the investment banking division of his firm.

事实上，Hilton Brokerage的一位高级管理人员刚给他发了一份建议书副本，内容是公司建议为Metals & Mining承销债券发行。

In fact, a senior manager of Hilton Brokerage just sent him a copy of a proposal his firm made to Metals & Mining to underwrite a debt offering.

Fritz需要立即出具报告，却对给出不够正面的评级感到担忧。

Fritz needs to produce a report right away and is concerned about issuing a less-than-favorable rating.

官方答案与解析 / **Official answer and explanation**

评述：Fritz对Metals & Mining的分析必须客观，且只能依据公司基本面。

Comment: Fritz's analysis of Metals & Mining must be objective and based solely on consideration of company fundamentals.

来自本公司其他部门的任何压力都是不当的。

Any pressure from other divisions of his firm is inappropriate.

如果Hilton Brokerage预先考虑到此次发行，并把Metals & Mining列入限制名单，这种冲突就可以消除。

This conflict could have been eliminated if, in anticipation of the offering, Hilton Brokerage had placed Metals & Mining on a restricted list.

补充解析 / **Supplementary explanation**

本案例"例3：研究独立性与公司内部压力"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

内部压力并不会改变分析师的专业责任。即便业务同事、主管或发行人希望维持评级，也应回到证据和估值；如无法诚实发表判断，应向合规升级或退出相关任务，而不是给出明知不合理的意见。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-017

例4：研究独立性与发行人关系压力
Example 4: Research Independence and Issuer Relationship Pressure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 80

题目与资料 / **Question and data**

例4：研究独立性与发行人关系压力 Example 4: Research Independence and Issuer Relationship Pressure

Fritz是Hilton Brokerage负责矿业的股票分析师。

Fritz is an equity analyst at Hilton Brokerage who covers the mining industry.

Fritz认为Metals & Mining当前股价被高估，但担心负面研究报告可能危及自己多年来与该公司首席执行官、首席财务官及投资者关系负责人建立的密切关系。

Fritz has concluded that Metals & Mining stock is overvalued at its current level, but he is concerned that a negative research report might jeopardize a close rapport that he has nurtured over the years with Metals & Mining's CEO, chief financial officer, and investment relations officer.

Fritz还担心负面报告引发管理层报复，例如不让他参加季度业绩发布电话会议、不允许他在会上提问，和 / 或拒绝他接触高层管理人员，以致无法安排Hilton Brokerage客户与Metals & Mining高层的团体会面。

Fritz is concerned that a negative report might also result in management retaliation—for instance, cutting him off from participating in conference calls when a quarterly earnings release is made, denying him the ability to ask questions on such calls, and/or denying him access to top management for arranging group meetings between Hilton Brokerage clients and top Metals & Mining managers.

官方答案与解析 / **Official answer and explanation**

评述：Fritz的分析必须客观，且只能依据公司基本面。

Comment: Fritz's analysis must be objective and based solely on consideration of company fundamentals.

Metals & Mining施加的任何压力都是不当的。为证明结论的诚信，Fritz应完整记录其工作，包括投资建议如何基于相对估值得出。

Any pressure from Metals & Mining is inappropriate. To support the integrity of his conclusions, Fritz should fully document his work, including how his investment recommendation is based on relative valuation.

补充解析 / **Supplementary explanation**

本案例"例4：研究独立性与发行人关系压力"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

内部压力并不会改变分析师的专业责任。即便业务同事、主管或发行人希望维持评级，也应回到证据和估值；如无法诚实发表判断，应向合规升级或退出相关任务，而不是给出明知不合理的意见。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-018

例5：研究独立性与销售压力
Example 5: Research Independence and Sales Pressure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 81

题目与资料 / **Question and data**

例5：研究独立性与销售压力 Example 5: Research Independence and Sales Pressure

Warner的工作是支持公司债部门的销售活动，为固定收益投资者提供信用方面的指引。

In her role supporting the sales effort of a corporate bond department, Warner offers credit guidance to fixed-income investors.

她的报酬与公司债部门的业绩密切相关。

Her compensation is closely linked to the performance of the corporate bond department.

临近季度末，Warner所在公司持有大量Milton, Ltd.债券库存，但因Milton最近宣布出现经营问题，这些债券一直卖不出去。

Near the quarter's end, Warner's firm has a large inventory position in the bonds of Milton, Ltd., and has been unable to sell the bonds because of Milton's recent announcement of an operating problem.

销售人员要求她联系大客户，推销这些债券。

Salespeople have asked her to contact large clients to push the bonds.

官方答案与解析 / **Official answer and explanation**

评述：不道德的销售做法很可能造成严重违反《道德准则与专业行为准则》的问题。

Comment: Unethical sales practices create significant potential violations of the Code and Standards.

Warner对Milton债券的看法，不得受到内部压力或报酬的影响。

Warner's opinion of the Milton bonds must not be affected by internal pressure or compensation.

本例中，Warner必须拒绝推销Milton债券，除非她能合理证明市场价格已反映该经营问题。

In this case, Warner must refuse to push the Milton bonds unless she is able to justify that the market price has already adjusted for the operating problem.

补充解析 / **Supplementary explanation**

本案例“例5：研究独立性与销售压力”应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

内部压力并不会改变分析师的专业责任。即便业务同事、主管或发行人希望维持评级，也应回到证据和估值；如无法诚实发表判断，应向合规升级或退出相关任务，而不是给出明知不合理的意见。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-019

例6：研究独立性与此前研究覆盖
Example 6: Research Independence and Prior Coverage

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 81

题目与资料 / **Question and data**

例6：研究独立性与此前研究覆盖 Example 6: Research Independence and Prior Coverage

Jorund是一位研究航空股票的证券分析师，也是公司的新星。

Jorund, a securities analyst following airline stocks, is a rising star at her firm.

她的上司一直给予International Airlines“买入”建议，并要求Jorund接手该航空公司的研究覆盖。

Her boss has been carrying a “buy” recommendation on International Airlines and asks Jorund to take over coverage of the airline.

上司告诉Jorund，无论如何都不得更改现有买入建议。

He tells Jorund that under no circumstances should the prevailing buy recommendation be changed.

官方答案与解析 / **Official answer and explanation**

评述：Jorund对International Airlines的分析必须独立、客观。

Comment: Jorund must be independent and objective in her analysis of International Airlines.

如果她认为上司的指示损害了自己的独立判断，有两种选择：告诉上司，自己无法在这些限制下覆盖该公司；或者接手研究，形成独立结论，若与上司意见冲突，则向上司或公司其他主管说明结论，以便他们提出适当建议。

If she believes that her boss's instructions have compromised her, she has two options: She can tell her boss that she cannot cover the company under these constraints, or she can take over coverage of the company, reach her own independent conclusions, and if they conflict with her boss's opinion, share the conclusions with her boss or other supervisors in the firm so that they can make appropriate recommendations.

Jorund只能发布反映其独立、客观意见的建议。

Jorund must issue only recommendations that reflect her independent and objective opinion.

补充解析 / **Supplementary explanation**

本案例"例6：研究独立性与此前研究覆盖"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

内部压力并不会改变分析师的专业责任。即便业务同事、主管或发行人希望维持评级，也应回到证据和估值；如无法诚实发表判断，应向合规升级或退出相关任务，而不是给出明知不合理的意见。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-020

例7：关联方的礼物和招待
Example 7: Gifts and Entertainment from Related Parties

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 81

题目与资料 / **Question and data**

例7：关联方的礼物和招待 Example 7: Gifts and Entertainment from Related Parties

Grant把大量佣金业务交给一家位于纽约的经纪公司。

Grant directs a large amount of his commission business to a New York–based brokerage house.

为感谢这些业务，该经纪公司赠送Grant两张南非世界杯门票、附近度假村两晚住宿、数次餐饮，以及乘坐豪华轿车前往赛场的接送服务。

In appreciation for all the business, the brokerage house gives Grant two tickets to the World Cup in South Africa, two nights at a nearby resort, several meals, and transportation via limousine to the game.

官方答案与解析 / **Official answer and explanation**

评述：Grant违反了准则I(B)，因为接受这些价值丰厚的礼物可能妨碍其独立性与客观性。

Comment: Grant violated Standard I(B) because accepting these substantial gifts may impede his independence and objectivity.

会员与考生不得索取或接受会影响其独立性与客观性，或可合理预期会影响其决策过程的礼物、捐款或其他报酬。

Members and candidates must not solicit or accept gifts, contributions, or other compensation that affects their independence and objectivity or that reasonably could be expected to influence their decision-making process.

最佳做法是避免那些在提出投资建议或采取投资行动时，可能导致或被认为会导致失去独立性或客观性的情境。

Best practice is to avoid situations that might cause or be perceived to cause a loss of independence or objectivity in recommending investments or taking investment action.

Grant接受这次旅行，造成了利益冲突，也使自己面临为回报经纪商而给予其优待的指责。

By accepting the trip, Grant created a conflict of interest and opened himself up to the accusation that he may give the broker favored treatment in return.

Grant至少必须向雇主和客户披露这一冲突。

At a minimum, Grant must disclose this conflict to his employer and clients.

补充解析 / **Supplementary explanation**

本案例“例7：关联方的礼物和招待”应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-021

例8：客户的礼物和招待
Example 8: Gifts and Entertainment from Clients

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 82

题目与资料 / **Question and data**

例8：客户的礼物和招待 Example 8: Gifts and Entertainment from Clients

Green为Tisbury Investments的客户Knowlden管理投资组合。

Green manages the portfolio of Knowlden, a client of Tisbury Investments.

Green为Knowlden取得的年度回报，一直高于双方此前约定的基准。

Green achieves an annual return for Knowlden that is consistently better than that of the benchmark she and the client previously agreed to.

作为奖励，Knowlden赠送Green两张温布尔登网球锦标赛门票，并让她在自己的伦敦公寓免费住一周。

As a reward, Knowlden offers Green two tickets to Wimbledon and the use of Knowlden's flat in London for a week.

Green向Tisbury的上司披露了这份礼物。

Green discloses this gift to her supervisor at Tisbury.

官方答案与解析 / **Official answer and explanation**

评述：Green符合准则I(B)，因为她披露了其中一位客户赠送的礼物。

Comment: Green is in compliance with Standard I(B) because she disclosed the gift from one of her clients.

会员与考生只要向雇主披露，就可以接受客户的奖金或礼物，因为客户关系中的礼物被认为比其他情形下的礼物较不容易影响其客观性与独立性。

Members and candidates may accept bonuses or gifts from clients as long as they disclose them to their employer because gifts in a client relationship are deemed less likely to affect a member's or candidate's objectivity and independence than gifts in other situations.

但仍必须披露，以便主管监督这些情况，防止员工偏袒送礼客户而损害其他付费客户，例如把更高比例的IPO股票分配给送礼客户的投资组合。

Disclosure is required, however, so that supervisors can monitor such situations to guard against employees favoring a gift-giving client to the detriment of other fee-paying clients (such as by allocating a greater proportion of IPO stock to the gift-giving client's portfolio).

补充解析 / **Supplementary explanation**

本案例"例8：客户的礼物和招待"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

把“对过去服务的感谢”与“为未来表现设定报酬”分开。前者仍需按政策向雇主披露，后者会改变未来激励并触及额外报酬的事前书面同意要求，不能用一次简单披露替代所有条件。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / **Independence and Objectivity**

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-022

例9：外部经理承担差旅费用
Example 9: Travel Expenses from External Managers

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 82

题目与资料 / **Question and data**

例9：外部经理承担差旅费用 Example 9: Travel Expenses from External Managers

Wayne是Franklin市雇员养老金计划的投资经理。

Wayne is the investment manager of the Franklin City Employee Pension Plan.

他最近成功完成了寻找公司管理该计划多元化投资组合中海外股票部分的工作。

He recently completed a successful search for a firm to manage the foreign equity allocation of the plan’s diversified portfolio.

他遵循计划的标准程序，邀请多家具备资格的公司作介绍，并基于Penguin Advisers的经验、明确的投资策略和业绩记录，建议董事会选用该公司。

He followed the plan’s standard procedure of seeking presentations from a number of qualified firms and recommended that his board select Penguin Advisers because of its experience, well-defined investment strategy, and performance record.

该公司宣称遵守全球投资业绩标准（GIPS®），且已接受验证。

The firm claims compliance with the Global Investment Performance Standards (GIPS®) and has been verified.

选定Penguin后，《Franklin City Record》的一名记者打电话询问：这一决定是否与Wayne年初参加的“亚洲投资考察之旅”有关，因为Penguin Advisers正是该行程的赞助方之一。

Following the selection of Penguin, a reporter from the Franklin City Record calls to ask whether there was any connection between this action and the fact that Penguin Advisers was one of the sponsors of an “investment fact-finding trip to Asia” that Wayne made earlier in the year.

这次旅行是Pension Investment Academy举办的多次考察之一；该机构安排团队在多个亚洲国家的主要城市，与经济界、政府及企业负责人会面。

The trip was one of several conducted by the Pension Investment Academy, which had arranged the itinerary of meetings with economic, government, and corporate officials in major cities in several Asian countries.

Pension Investment Academy从包括Penguin Advisers在内的多家投资管理机构获得旅行费用资助，再为参加行程的各养老金计划经理支付差旅费用，并提供所有餐饮和住宿。

The Pension Investment Academy obtains support for the cost of these trips from a number of investment managers, including Penguin Advisers; the Academy then pays the travel expenses of the various pension plan managers on the trip and provides all meals and accommodations.

Penguin Advisers的总裁也是同行者之一。

The president of Penguin Advisers was also one of the travelers on the trip.

官方答案与解析 / **Official answer and explanation**

评述：Wayne在选择外部投资组合经理及管理养老金计划的其他方面，或许可以充分运用旅途中获得的知识；但他参加了部分由Penguin Advisers付费的国际旅行，又每天与其总裁同行，因此可能形成利益冲突，使推荐Penguin Advisers的决定受到质疑。

Comment: Although Wayne can probably put to good use the knowledge he gained from the trip when selecting external portfolio managers and in other areas of managing the pension plan, his recommendation of Penguin Advisers may be tainted by the possible conflict incurred when he participated in the international trip partly paid for by Penguin Advisers and when he was in the daily company of the president of Penguin Advisers.

为避免违反准则I(B)，Wayne的基本交通和住宿费用应由雇主或养老金计划支付；与Penguin Advisers总裁的接触应仅限于信息交流或教育活动；旅行本身、组织者和赞助方也应公开记录。

To avoid violating Standard I(B), Wayne’s basic expenses for travel and accommodations should have been paid by his employer or the pension plan; contact with the president of Penguin Advisers should have been limited to informational or educational events only; and the trip, the organizer, and the sponsor should have been made a matter of public record.

补充解析 / **Supplementary explanation**

本案例“例9：外部经理承担差旅费用”应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-023

例10：研究独立性与报酬安排
Example 10: Research Independence and Compensation Arrangements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 83

题目与资料 / **Question and data**

例10：研究独立性与报酬安排 Example 10: Research Independence and Compensation Arrangements

Herrero最近离开了一家大型投资顾问公司的研究分析师岗位。

Herrero recently left his job as a research analyst for a large investment adviser.

在寻找新工作期间，一家投资者关系公司以承包形式聘请他，为该公司的一位客户——一家小型教育软件公司——撰写研究报告。

While looking for a new position, he was hired as a contractor by an investor relations firm to write a research report on one of its clients, a small educational software company.

这家投资者关系公司希望激发投资者对该科技公司的兴趣。

The investor relations firm hopes to generate investor interest in the technology company.

公司将向Herrero支付固定费用；如果有新投资者因其报告而购买该公司股票，还会额外支付奖金。

The firm will pay Herrero a flat fee plus a bonus if any new investors buy stock in the company as a result of Herrero's report.

官方答案与解析 / **Official answer and explanation**

评述：如果Herrero接受这种付款安排，就会违反准则I(B)，因为可以合理预期该报酬安排将损害其独立性与客观性。

Comment: If Herrero accepts this payment arrangement, he will be in violation of Standard I(B) because the compensation arrangement can reasonably be expected to compromise his independence and objectivity.

Herrero将因吸引投资者而获得奖金，这会使他有动机不顾事实地撰写正面报告，并忽略或淡化公司的负面信息。

Herrero will receive a bonus for attracting investors, which provides an incentive to draft a positive report regardless of the facts and to ignore or play down any negative information about the company.

Herrero只应接受不与报告结论或建议挂钩的固定费用。

Herrero should accept only a flat fee that is not tied to the conclusions or recommendations of the report.

在某些情况下，只要分析师采取措施保持客观性，并在报告中恰当披露潜在利益冲突，客观、无偏的发行人付费研究是可以接受的。

Issuer-paid research that is objective and unbiased is acceptable under certain circumstances as long as the analyst takes steps to maintain his or her objectivity and includes in the report proper disclosures regarding potential conflicts of interest.

补充解析 / **Supplementary explanation**

本案例“例10：研究独立性与报酬安排”应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-024

例11：影响经理甄选决定
Example 11: Influencing Manager Selection Decisions

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 83

题目与资料 / **Question and data**

例11：影响经理甄选决定 Example 11: Influencing Manager Selection Decisions

Mandel是ZZYY Capital Management的高级投资组合经理，领导一支管理工会养老金的投资专业团队。

Mandel is a senior portfolio manager for ZZYY Capital Management who oversees a team of investment professionals who manage labor union pension funds.

几年前，ZZYY参加了一项竞争性资产管理人遴选，争取管理United Doughnut and Pretzel Bakers Union（UDPBU）养老金中的大额资产配置。

A few years ago, ZZYY sought to win a competitive asset manager search to manage a significant allocation of the pension fund of the United Doughnut and Pretzel Bakers Union (UDPBU).

UDPBU投资委员会的主席Gomez是一位公认的重要决策者，也是工会的长期领导人。

UDPBU's investment board is chaired by Gomez, a recognized key decision maker and long-time leader of the union.

为提高ZZYY胜出的机会，Mandel向Gomez的工会连任竞选基金捐赠了大笔金钱。

To improve ZZYY's chances of winning the competition, Mandel made significant monetary contributions to Gomez's union reelection campaign fund.

即使ZZYY已被聘为养老金的主要管理人之一，Mandel仍觉得公司的地位不稳固。

Even after ZZYY was hired as a primary manager of the pension fund, Mandel believed that his firm's position was not secure.

Mandel继续向Gomez的连任竞选基金捐款，并经常在顶级餐厅豪华招待这位工会领导人及其家人。

Mandel continued to contribute to Gomez's reelection campaign fund and lavishly entertained the union leader and his family at top restaurants on a regular basis.

Mandel的所有支出都按惯例列作营销费用，通过ZZYY的费用账户报销；他向高层管理者披露，这些支出有助于与重要客户保持牢固而密切的关系。

All of Mandel's outlays were routinely handled as marketing expenses reimbursed by ZZYY's expense accounts and were disclosed to his senior management as being instrumental in maintaining a strong close relationship with an important client.

官方答案与解析 / **Official answer and explanation**

评述：Mandel不仅提出，而且实际提供了金钱礼物、利益和其他对价，可以合理预期这些安排会损害Gomez的客观性。

Comment: Mandel not only offered but actually gave monetary gifts, benefits, and other considerations that reasonably could be expected to compromise Gomez's objectivity.

因此，Mandel违反了准则I(B)。

Therefore, Mandel was in violation of Standard I(B).

补充解析 / **Supplementary explanation**

本案例"例11：影响经理甄选决定"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-025

例12：基金经理关系
Example 12: Fund Manager Relationships

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 83-84

题目与资料 / **Question and data**

例12：基金经理关系 Example 12: Fund Manager Relationships

Scott是一位业绩分析师，负责为公司分析外部经理的业绩。

Scott is a performance analyst who is responsible for analyzing the performance of external managers for her firm.

在完成季度分析时，Scott注意到某位经理报告的组合构建方式发生变化。

While completing her quarterly analysis, Scott notices a change in one manager's reported composite construction.

该变更把一个规模特别大的账户放入新的剩余账户组合，从而掩盖其糟糕表现。

The change concealed the bad performance of a particularly large account by placing that account into a new residual composite.

这一调整使该经理继续位居经理业绩排名前列。

This change allowed the manager to remain at the top of the list of manager performance.

Scott知道，公司向这位经理配置了大量资金，而且该基金经理是首席执行官的密友。

Scott knows her firm has a large allocation to this manager, and the fund's manager is a close personal friend of the CEO.

她需要提交最终报告，却对指出组合变更感到担忧。

She needs to deliver her final report but is concerned about pointing out the composite change.

官方答案与解析 / **Official answer and explanation**

评述：如果Scott未在最终报告中披露这一变更，就会违反准则I(B)。

Comment: Scott would be in violation of Standard I(B) if she did not disclose the change in her final report.

对经理业绩的分析，不得受到私人关系或向外部经理配置资金规模的影响。

The analysis of managers' performance must not be influenced by personal relationships or the size of the allocation to the outside managers.

如果Scott不纳入这一变更，就没有为公司提供关于业绩指标的独立分析。

By not including the change, Scott would not be providing an independent analysis of the performance metrics for her firm.

补充解析 / **Supplementary explanation**

本案例"例12：基金经理关系"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-026

例13：公司内部压力
Example 13: Intrafirm Pressure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 84

题目与资料 / **Question and data**

例13：公司内部压力 Example 13: Intrafirm Pressure

Stein是公司的业绩衡量负责人。上一季度，由于投资建议质量较差，公司研究部门的许多员工被解聘。

Stein is head of performance measurement for her firm. During the last quarter, many members of the organization's research department were removed because of the poor quality of their recommendations.

低质量研究使一位大额账户客户的业绩显著落后，导致其在季度结束后撤走资金。

The subpar research caused one larger account holder to experience significant underperformance, which resulted in the client withdrawing his money after the end of the quarter.

销售主管要求Stein将该账户从公司的业绩组合中移除，理由是业绩下滑应归咎于已离职的研究团队，而不是客户顾问。

The head of sales requests that Stein remove this account from the firm's performance composite because the performance decline can be attributed to the departed research team and not the client's adviser.

官方答案与解析 / **Official answer and explanation**

评述：来自公司其他内部部门的压力，可能造成使会员或考生违反《道德准则与专业行为准则》的情境。

Comment: Pressure from other internal departments can create situations that cause a member or candidate to violate the Code and Standards.

Stein必须保持独立性与客观性，并拒绝将特定账户从其本应归属的公司业绩组合中剔除。

Stein must maintain her independence and objectivity and refuse to exclude specific accounts from the firm's performance composites to which they belong.

只要客户的投资策略与该已定义组合的策略相似，就不能因为选股不佳导致业绩落后和资金撤出，而将其排除。

As long as the client invested under a strategy similar to that of the defined composite, it cannot be excluded because of the poor stock selections that led to the underperformance and asset withdrawal.

补充解析 / **Supplementary explanation**

本案例"例13：公司内部压力"应放在准则 I(B) 的具体要求下判断。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

内部压力并不会改变分析师的专业责任。即便业务同事、主管或发行人希望维持评级，也应回到证据和估值；如无法诚实发表判断，应向合规升级或退出相关任务，而不是给出明知不合理的意见。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-CA-027

例1：陈述公司的能力
Example 1: Representing the Firm's Abilities

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 88-89

题目与资料 / **Question and data**

例1：陈述公司的能力 Example 1: Representing the Firm's Abilities

Rogers是小型投资顾问公司Rogers and Black的合伙人。

Rogers is a partner at Rogers and Black, a small firm offering investment advisory services.

她向一位继承了价值100万美元投资组合的潜在客户保证："我们可以提供您所需的全部金融和投资服务。"

She assures a prospective client who inherited a portfolio worth US$1 million that "we can perform all the financial and investment services you need."

Rogers and Black有充分能力提供投资建议，但实际上无法提供税务规划等全套金融和投资服务。

Rogers and Black is well equipped to provide investment advice but, in fact, cannot provide a full array of financial and investment services, such as tax planning.

官方答案与解析 / **Official answer and explanation**

评述：Rogers以口头方式歪曲了公司能够向潜在客户提供的服务，违反准则I(C)。

Comment: Rogers violated Standard I(C) by orally misrepresenting the services her firm can perform for the prospective client.

使用"您所需的全部金融和投资服务"这类模糊、不精确、笼统的措辞，过度吹嘘并歪曲了她本人及公司能够提供的服务。

Using vague, imprecise, and general language such as "all the financial and investment services you need" oversells and misrepresents the services she and her firm can provide.

她必须仅描述Rogers and Black能够提供的投资顾问服务范围，并表示愿意协助客户从其他渠道获取公司无法提供的金融和投资服务。

She must limit herself to describing the range of investment advisory services Rogers and Black can provide and offer to help the client obtain elsewhere the financial and investment services that her firm cannot provide.

补充解析 / **Supplementary explanation**

本案例"例1：陈述公司的能力"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / **Misrepresentation**

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-028

例2：披露发行人付费研究
Example 2: Disclosure of Issuer-Paid Research

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 89

题目与资料 / **Question and data**

例2：披露发行人付费研究 Example 2: Disclosure of Issuer-Paid Research

McGuire是一位由发行人付费的分析师，受上市公司聘请，通过电子渠道推广其股票。

McGuire is an issuer-paid analyst hired by publicly traded companies to electronically promote their stocks.

McGuire建立了一个网站，将自己的研究工作宣传为看似独立的分析师研究。

McGuire creates a website that promotes his research efforts as a seemingly independent analyst.

他在网站上为每家公司发布简介和“强烈买入”建议，表示预计股价会上涨。

McGuire posts a profile and a strong buy recommendation for each company on the website, indicating that the stock is expected to increase in value.

他没有在网站、所发布的研究报告，或在网络聊天室对这些公司作出的陈述中，披露与研究覆盖公司之间的合约关系。

He does not disclose the contractual relationships with the companies he covers on his website, in the research reports he issues, or in the statements he makes about the companies in internet chatrooms.

官方答案与解析 / **Official answer and explanation**

评述：McGuire违反了准则I(C)，因为该网站对潜在投资者具有误导性。

Comment: McGuire violated Standard I(C) because the internet site is misleading to potential investors.

即使建议有效且有充分研究支持，他隐瞒自己与研究对象公司之间的真实关系，也构成虚假陈述。

Even if the recommendations are valid and supported with thorough research, his omissions regarding the true relationship between himself and the companies he covers constitute a misrepresentation.

McGuire没有披露其向这些公司提供服务并收取报酬的安排，因此也违反准则VI(A)“避免或披露利益冲突”。

McGuire also violated Standard VI(A) Avoid or Disclose Conflicts by not disclosing the existence of an arrangement with the companies from which he receives compensation in exchange for his services.

补充解析 / **Supplementary explanation**

本案例“例2：披露发行人付费研究”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-029

例3：纠正无意错误
Example 3: Correction of Unintentional Errors

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 89

题目与资料 / **Question and data**

例3：纠正无意错误 Example 3: Correction of Unintentional Errors

Yao负责制作和分发公司的营销材料，该公司宣称遵守GIPS标准。

Yao is responsible for the creation and distribution of the marketing materials for his firm, which claims compliance with the GIPS standards.

Yao为公司的亚洲股票组合制作并分发了一份业绩展示材料，声称该组合资产为¥350 billion（3,500亿）。

Yao creates and distributes a presentation of performance for the firm's Asian Equity Composite that states the composite has ¥350 billion in assets.

实际上，该组合资产只有¥35 billion（350亿）；展示材料中的较高数字源于排印错误。

In fact, the composite has only ¥35 billion in assets, and the higher figure on the presentation is a result of a typographical error.

然而，在Yao发现错误之前，错误材料已经分发给多位客户。

Nevertheless, the erroneous material is distributed to a number of clients before Yao catches the mistake.

官方答案与解析 / **Official answer and explanation**

评述：发现错误后，Yao必须采取措施停止分发错误材料，并通过通知已收到错误信息的人来纠正错误。

Comment: Once the error is discovered, Yao must take steps to cease distribution of the incorrect material and correct the error by informing those who have received the erroneous information.

不过，由于Yao并非明知而作出虚假陈述，他没有违反准则I(C)。

Because Yao did not knowingly make the misrepresentation, however, he did not violate Standard I(C).

由于公司宣称遵守GIPS标准，他也必须遵守GIPS标准关于重大错误处理的要求。

Since his firm claims compliance with the GIPS standards, he must also comply with the GIPS standards requirements addressing the treatment of material errors.

补充解析 / **Supplementary explanation**

本案例“例3：纠正无意错误”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

错误是否最初出于无意，主要影响起因，不改变发现之后的纠正责任。应停止继续分发错误版本、核实正确数据并通知受影响对象；明知不改会让后续陈述持续误导。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-030

例4：不纠正已知错误
Example 4: Not Correcting Known Errors

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 89-90

题目与资料 / **Question and data**

例4：不纠正已知错误 Example 4: Not Correcting Known Errors

Muhammad是一家投资管理公司的总裁。

Muhammad is the president of an investment management firm.

公司营销部门制作的宣传材料错误声称，Muhammad除了持有CFA称号，还拥有一所知名商学院的金融高等学位。

The promotional material for the firm, created by the firm’s marketing department, incorrectly claims that Muhammad has an advanced degree in finance from a prestigious business school in addition to the CFA designation.

虽然Muhammad曾短暂就读该校，但未获得学位。

Although Muhammad attended the school for a short period of time, he did not receive a degree.

多年来，Muhammad及公司其他人员把这份材料分发给了众多潜在客户和顾问。

Over the years, Muhammad and others in the firm have distributed this material to numerous prospective clients and consultants.

官方答案与解析 / **Official answer and explanation**

评析：即使 Muhammad 并非公司宣传资料中虚假表述其资历的直接责任人，但由于他在较长时期内多次使用这些资料，理应知晓其中的虚假陈述，因此违反了准则 I(C)。

Comment: Even though Muhammad may not have been directly responsible for the misrepresentation of his credentials in the firm's promotional material, he should have known of the misrepresentation because he used this material numerous times over an extended period, and therefore, he violated Standard I(C).

Muhammad 一旦发现宣传资料中的错误，就应纠正相关信息。

Once Muhammad became aware of the errors in the promotional material, he should have corrected the information.

最佳做法是，Muhammad 向所有收到错误资料的人提供正确信息。

Best practice would be for Muhammad to provide correct information to any recipients of the erroneous material.

补充解析 / **Supplementary explanation**

本案例"例4：不纠正已知错误"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

错误是否最初出于无意，主要影响起因，不改变发现之后的纠正责任。应停止继续分发错误版本、核实正确数据并通知受影响对象；明知不改会让后续陈述持续误导。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-031

例 5：剽窃
Example 5: Plagiarism

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 90

题目与资料 / **Question and data**

例 5：剽窃 Example 5: Plagiarism

Grant 是一家加拿大证券经纪公司的研究分析师，过去 10 年一直专门研究加拿大采矿业。

Grant, a research analyst for a Canadian brokerage firm, has specialized in the Canadian mining industry for the past 10 years.

她最近读到另一家公司分析师 Barton 撰写的一份关于 Jefferson Mining, Ltd. 的详尽研究报告。

She recently read an extensive research report on Jefferson Mining, Ltd., by Barton, an analyst at a different firm.

Barton 提供了大量统计资料，涉及矿产储量、生产能力、销售速率，以及影响 Jefferson 经营的市场营销因素。

Barton provided extensive statistics on the mineral reserves, production capacity, selling rates, and marketing factors affecting Jefferson's operations.

他还指出，一个新矿体尚未公开的初步钻探结果，可能显示存在可延长 Jefferson 主要矿山寿命的矿化带，但 Barton 没有引用有关初步钻探结果的具体数据。

He also noted that initial drilling results on a new ore body, which had not been made public, might show the existence of mineral zones that could increase the life of Jefferson's main mines, but Barton cited no specific data as to the initial drilling results.

Grant 致电 Jefferson 的一位高管，对方通过电话向她提供了初步钻探结果。

Grant called an officer of Jefferson, who gave her the initial drilling results over the telephone.

数据显示，主要矿山的预期寿命将延长至原来的三倍。

The data indicated that the expected life of the main mines would be tripled.

Grant 将这些统计数据加入 Barton 的报告，并以自己的报告名义在公司内部传阅。

Grant added these statistics to Barton's report and circulated it as her own report within her firm.

官方答案与解析 / **Official answer and explanation**

评析：Grant 在自己的报告中大量复制 Barton 的报告，却未注明来源，构成剽窃，因此违反了准则 I(C)。

Comment: Grant plagiarized Barton's report by reproducing large parts of it in her own report without acknowledgment and, therefore, violated Standard I(C).

补充解析 / **Supplementary explanation**

本案例"例 5：剽窃"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

外部资料的"可获得性"与"作者归属"是两件事。即使内容能免费下载或已在行业广泛流传，照搬独特分析、模型或表述时仍需要恰当注明来源；不能通过略改措辞掩盖借用。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-032

例 6：信息的虚假陈述
Example 6: Misrepresentation of Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 90

题目与资料 / **Question and data**

例 6：信息的虚假陈述 Example 6: Misrepresentation of Information

Marks 向公共养老金计划客户销售一种称为“纯利息剥离证券”（IO）的按揭支持衍生品时，将其描述为“由美国政府担保”。

When Marks sells mortgage-backed derivatives called “interest-only strips” (IOs) to public pension plan clients, she describes them as “guaranteed by the US government.”

但是，IO 的购买者仅有权获得按揭贷款产生的利息现金流，而无权获得名义本金本身。

Purchasers of the IOs are entitled only to the interest stream generated by the mortgages, however, not the notional principal itself.

某一市政当局的投资政策及当地法律要求，其公共养老金计划购买的证券必须由美国政府担保。

One particular municipality’s investment policies and local law require that securities purchased by its public pension plans be guaranteed by the US government.

虽然基础按揭贷款获得担保，但投资者投入的资金及 IO 的利息现金流均不受担保。

Although the underlying mortgages are guaranteed, neither the investor’s investment nor the interest stream on the IOs is guaranteed.

当利率下降导致按揭贷款提前还款增加时，IO 投资者获得的利息支付减少，投资者会损失部分投资。

When interest rates decline, causing an increase in prepayment of mortgages, interest payments to the IOs’ investors decline, and these investors lose a portion of their investment.

官方答案与解析 / **Official answer and explanation**

评析：Marks 虚假陈述了投资的条款与性质，违反了准则 I(C)。

Comment: Marks violated Standard I(C) by misrepresenting the terms and character of the investment.

补充解析 / **Supplementary explanation**

本案例“例 6：信息的虚假陈述”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

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V10-M03-CA-033

例 7：潜在的信息虚假陈述
Example 7: Potential Information Misrepresentation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 90-91

题目与资料 / **Question and data**

例 7：潜在的信息虚假陈述 Example 7: Potential Information Misrepresentation

Abdrabbo 为美国数位即将退休的高净值人士管理投资。

Abdrabbo manages the investments of several high-net-worth individuals in the United States who are approaching retirement.

Abdrabbo 建议他们将部分投资从股票转向银行发行的存款证及货币市场账户，使本金在一定金额以内获得“保障”。

Abdrabbo advises these individuals that a portion of their investments should be moved from equity to bank-sponsored certificates of deposit and money market accounts so that the principal will be “guaranteed” up to a certain amount.

利息则没有保障。

The interest is not guaranteed.

官方答案与解析 / **Official answer and explanation**

评析：虽然提供存款证及货币市场账户的机构可能破产，但在美国，这些账户由美国政府通过联邦存款保险公司提供保险保障。

Comment: Although there is risk that the institution offering the certificates of deposit and money market accounts could go bankrupt, in the United States, these accounts are insured by the US government through the Federal Deposit Insurance Corporation.

因此，如果金额不超过政府保险保障上限，在这一背景下使用“保障”一词是适当的。

Therefore, using the term “guaranteed” in this context is appropriate if the amount is within the government-insured limit.

Abdrabbo 必须向客户解释这些事实。

Abdrabbo must explain these facts to the clients.

> 补充解析 / **Supplementary explanation**

本案例“例 7：潜在的信息虚假陈述”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

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> 相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

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V10-M03-CA-034

例 8：剽窃
Example 8: Plagiarism

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 91

> 题目与资料 / **Question and data**

例 8：剽窃 Example 8: Plagiarism

Swanson 是 Ballard and Company 投资研究部门的资深分析师。

Swanson is a senior analyst in the investment research department of Ballard and Company.

Apex Corporation 请 Ballard 协助收购金融咨询公司 Campbell Company 的多数股权，并撰写一份报告，建议 Campbell 的股东同意该收购。

Apex Corporation has asked Ballard to assist in acquiring the majority ownership of stock in the Campbell Company, a financial consulting firm, and to prepare a report recommending that stockholders of Campbell agree to the acquisition.

另一家投资公司 Davis and Company 已经为 Apex 编制报告，分析 Apex 和 Campbell，并建议了换股比例。

Another investment firm, Davis and Company, had already prepared a report for Apex analyzing both Apex and Campbell and recommending an exchange ratio.

Apex 将 Davis 的报告交给 Ballard 的高管，后者又将报告转交给 Swanson。

Apex has given the Davis report to Ballard officers, who have passed it on to Swanson.

Swanson 审阅了 Davis 的报告，以及其他可获得的有关 Apex 和 Campbell 的资料。

Swanson reviews the Davis report and other available material on Apex and Campbell.

根据自己的分析，他认为 Campbell 和 Apex 的普通股在当前价格下都具有良好价值；但是，他认为 Davis 的报告没有考虑 Campbell 股东作出决定所需了解的全部因素。

From his analysis, he concludes that the common stocks of Campbell and Apex represent good value at their current prices; he believes, however, that the Davis report does not consider all the factors a Campbell stockholder would need to know to make a decision.

Swanson 向负责该项目的合伙人报告结论，对方却告诉他："拿 Davis 的报告改几个字，签上你的名字，然后发出去。"

Swanson reports his conclusions to the partner in charge, who tells him to "use the Davis report, change a few words, sign your name, and get it out."

官方答案与解析 / **Official answer and explanation**

评析：如果 Swanson 按要求行事，就会违反准则 I(C)。

Comment: If Swanson does as requested, he will violate Standard I(C).

他可以引用 Davis 报告中自己认同的部分，但须注明 Davis 是来源；之后可以加入自己的分析和结论，再署名并分发报告。

He could refer to those portions of the Davis report that he agrees with if he identifies Davis as the source; he could then add his own analysis and conclusions to the report before signing and distributing it.

补充解析 / **Supplementary explanation**

本案例"例 8：剽窃"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

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V10-M03-CA-035

例 9：剽窃
Example 9: Plagiarism

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 91

题目与资料 / **Question and data**

例 9：剽窃 Example 9: Plagiarism

Double Alpha, Inc. 的量化分析师 Browning 参加研讨会回来后十分兴奋。

Browning, a quantitative analyst for Double Alpha, Inc., is excited after returning from a seminar.

在研讨会上，一家全国性经纪公司知名的量化分析师 Jorrely 详细讨论了自己的一个新模型，Browning 对这些新概念产生了浓厚兴趣。

In that seminar, Jorrely, a well-publicized quantitative analyst at a national brokerage firm, discussed one of his new models in great detail, and Browning is intrigued by the new concepts.

他着手测试该模型，在保留基本概念的同时作了一些小幅修改，最终取得非常理想的结果。

He proceeds to test the model, making some minor changes but retaining the concepts, until he produces some very positive results.

Browning 很快向 Double Alpha 的主管宣布，自己发现了一个新模型，并称应将这一积极成果告知客户及潜在客户，作为 Double Alpha 持续创新及创造价值能力的进一步证明。

Browning quickly announces to his supervisors at Double Alpha that he has discovered a new model and that clients and prospective clients should be informed of this positive finding as ongoing proof of Double Alpha's continuing innovation and ability to add value.

官方答案与解析 / **Official answer and explanation**

评析：虽然 Browning 自行测试了 Jorrely 的模型，甚至作了轻微修改，但他仍必须注明这一思路的原始来源。

Comment: Although Browning tested Jorrely's model on his own and even slightly modified it, he must still acknowledge the original source of the idea.

Browning 当然可以将最终实际应用成果归于自己的工作，也可以用自己的测试支持结论。

Browning can certainly take credit for the final, practical results; he can also support his conclusions with his own test.

但是，创新思维的贡献必须归于 Jorrely。

The credit for the innovative thinking, however, must be given to Jorrely.

补充解析 / **Supplementary explanation**

本案例“例 9：剽窃”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

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V10-M03-CA-036

例 **10**：剽窃
Example 10: Plagiarism

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 91-92

题目与资料 / **Question and data**

例 10：剽窃 Example 10: Plagiarism

Zubia 希望在公司的营销资料中，以“浅显语言”解释各种概念，例如市盈率（P/E），以及为何用标准差衡量风险。

Zubia would like to include in his firm’s marketing materials some “plain-language” descriptions of various concepts, such as the price-to-earnings (P/E) multiple and why standard deviation is used as a measure of risk.

这些解释来自其他来源，但 Zubia 希望不注明原作者便直接使用。

The descriptions come from other sources, but Zubia wishes to use them without reference to the original authors.

官方答案与解析 / **Official answer and explanation**

评析：逐字复制任何材料却不注明来源，包括对市盈率和标准差的通俗解释，均违反准则 I(C)。

Comment: Copying verbatim any material without acknowledgment, including plain-language descriptions of the P/E multiple and standard deviation, violates Standard I(C).

即使这些概念属于一般知识，最佳做法仍是 Zubia 用自己的语言解释，或引用说明文字的来源。

Even though these concepts are general, best practice would be for Zubia to describe them in his own words or cite the sources from which the descriptions are quoted.

如果会员与考生负责制作未注明来源的营销资料，或明知材料是剽窃所得仍使用，就会违反准则 I(C)。

Members and candidates would be violating Standard I(C) if they either were responsible for creating marketing materials without attribution or knowingly used plagiarized materials.

补充解析 / **Supplementary explanation**

本案例“例 10：剽窃”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

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V10-M03-CA-037

例 **11**：剽窃
Example 11: Plagiarism

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 92

题目与资料 / **Question and data**

例 11：剽窃 Example 11: Plagiarism

Schneider 通过一家主流媒体得知一项研究，希望在自己的研究中引用。

Through a mainstream media outlet, Schneider learns about a study that she would like to cite in her research.

她不确定在使用该信息时，是否应同时注明作为中介来源的主流媒体，以及研究本身的作者。

She questions whether she should cite both the mainstream intermediary source and the author of the study itself when using that information.

官方答案与解析 / **Official answer and explanation**

评析：在所有情况下，会员或考生都必须注明信息的实际来源。

Comment: In all instances, a member or candidate must cite the actual source of the information.

对 Schneider 而言，最佳做法是在报告中引用之前，直接向作者取得资料并审阅。

Best practice for Schneider would be to obtain the information directly from the author and review it before citing it in a report.

在这种情况下，Schneider 无须说明自己最初如何获知这一信息。

In that case, Schneider would not need to report how she found out about the information.

例如，假设 Schneider 在《金融时报》上读到有关 CFA 协会发布的一项研究；最佳做法是向 CFA 协会取得研究副本，审阅后再在自己的报告中引用。

For example, suppose Schneider read in the Financial Times about a study issued by CFA Institute; best practice for Schneider would be to obtain a copy of the study from CFA Institute, review it, and then cite it in her report.

如果她未使用《金融时报》对研究报告的任何解读，且该报并未为报告本身增加价值，那么报纸仅是获取原始信息的渠道，无须引用。

If she does not use any interpretation of the report from the Financial Times and the newspaper does not add value to the report itself, the newspaper is merely a conduit to the original information and does not need to be cited.

如果 Schneider 没有取得报告并审阅信息，就可能依赖错误陈述事实的二手资料。

If she does not obtain the report and review the information, Schneider runs the risk of relying on second-hand information that may misstate facts.

例如，如果《金融时报》错误报道了 CFA 协会原始研究中的某些信息，而 Schneider 复制了这些错误信息，她就会在自己的研究中纳入不实内容。

If, for example, the Financial Times erroneously reported some information from the original CFA Institute study and Schneider copied that erroneous information, she would be including misinformation in her research.

为避免可能违反准则 I(C)，Schneider 必须向原作者取得完整研究并仅引用该作者，或者使用中介提供的信息并同时引用两个来源。

To avoid a potential violation of Standard I(C), Schneider must obtain the complete study from its original author and cite only that author or use the information provided by the intermediary and cite both sources.

补充解析 / **Supplementary explanation**

本案例“例 11：剽窃”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

外部资料的“可获得性”与“作者归属”是两件事。即使内容能免费下载或已在行业广泛流传，照搬独特分析、模型或表述时仍需要恰当注明来源；不能通过略改措辞掩盖借用。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-038

例 12：信息的虚假陈述
Example 12: Misrepresentation of Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 92

题目与资料 / **Question and data**

例 12：信息的虚假陈述 Example 12: Misrepresentation of Information

Ostrowski 经营一家只有两人的投资管理公司。

Ostrowski runs a two-person investment management firm.

其公司订阅了一家大型投资研究公司的服务，获得可由小型公司重新包装后提供给自己客户的研究报告。

His firm subscribes to a service from a large investment research firm that provides research reports that can be repackaged by smaller firms for those firms' clients.

Ostrowski 的公司将这些报告作为自己的研究成果分发给客户。

Ostrowski's firm distributes these reports to clients as its own work.

官方答案与解析 / **Official answer and explanation**

评析：Ostrowski 可以依赖具有合理且充分依据的第三方研究，但不得暗示自己是该研究的作者。

Comment: Ostrowski may rely on third-party research that has a reasonable and adequate basis, but he must not imply that he is the author of such research.

否则，Ostrowski 就是在虚假陈述自身工作的范围，并因此误导公司客户或潜在客户。

If he does, Ostrowski is misrepresenting the extent of his work in a way that misleads the firm's clients or prospective clients.

补充解析 / **Supplementary explanation**

本案例"例 12：信息的虚假陈述"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-039

例 13：信息的虚假陈述
Example 13: Misrepresentation of Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 92-93

题目与资料 / **Question and data**

例 13：信息的虚假陈述 Example 13: Misrepresentation of Information

Stafford 是 Appleton Investment Management 某团队的成员，该团队负责为 Open Air Bank 管理一组资产；Open Air Bank 向离岸客户销售结构性证券。

Stafford is part of a team at Appleton Investment Management responsible for managing a pool of assets for Open Air Bank, which distributes structured securities to offshore clients.

他发现，Open Air 在推广这些结构性证券时，将其风险描述得远低于自己及团队管理原始资产池所遵循投资管理政策的实际风险。

He becomes aware that Open Air is promoting the structured securities as a much less risky investment than the investment management policy followed by himself and the team to manage the original pool of assets.

此外，Open Air 为该资产池取得了一个独立评级，明显高估了投资质量。

Also, Open Air has procured an independent rating for the pool that significantly overstates the quality of the investments.

Stafford 向主管表达担忧，但主管回应称，产品属于 Open Air，全部营销及分销工作也由其负责。

Stafford communicates his concerns to his supervisor, who responds that Open Air owns the product and is responsible for all marketing and distribution.

Stafford 的主管还说，该产品不在 Appleton 所遵循的美国监管制度范围之内，而且产品的所有风险都已在招募说明书第 184 页底部披露。

Stafford's supervisor goes on to say that the product is outside the US regulatory regime that Appleton follows and that all risks of the product are disclosed at the bottom of page 184 of the prospectus.

官方答案与解析 / **Official answer and explanation**

评析：作为投资团队成员，Stafford 有能力识别描述投资组合的材料有多准确；他担忧 Appleton 可能对风险虚假陈述承担责任，是正确的。

Comment: As a member of the investment team, Stafford is qualified to recognize the degree of accuracy of the materials that characterize the portfolio, and he is correct to be concerned about Appleton's responsibility for a misrepresentation of the risks.

Stafford 必须继续向 Appleton 的合规人员及管理层跟进 Open Air 宣传不准确的问题。

Stafford must continue to pursue the issue of Open Air's inaccurate promotion with Appleton's compliance personnel and management.

如果 Stafford 参与推广、推荐或分发自己认为具有误导性的证券信息，就可能违反准则 I(C)。

Stafford cannot be part of promoting, recommending, or distributing information about securities that he considers misleading without potentially violating Standard I(C).

补充解析 / **Supplementary explanation**

本案例"例 13：信息的虚假陈述"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-040

例 **14**：虚假陈述投资组合群的构建方式
Example 14: Misrepresenting Composite Construction

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 93

题目与资料 / **Question and data**

例 14：虚假陈述投资组合群的构建方式 Example 14: Misrepresenting Composite Construction

Palmer 是一家投资管理机构的业绩负责人。

Palmer is head of performance for an investment manager.

在被要求向数据库提供业绩数据时，他没有披露公司从投资组合群中剔除了表现逊于基准的账户。

When asked to provide performance numbers to databases, he avoids disclosing that the firm excludes from composites accounts that have underperformed their benchmark.

向数据库报告的投资组合群收益率，对未跑输基准的账户而言虽然准确，却未真实反映投资管理人的历史业绩。

The composite returns reported to the databases, although accurate for the accounts that have not underperformed their benchmark, do not present a true representation of the investment manager's track record.

官方答案与解析 / **Official answer and explanation**

评析：在公开报告、向数据库提供的信息或向其他外部相关方提供的信息中，“挑选”有利账户纳入统计，不符合准则 I(C)。

Comment: "Cherry-picking" accounts to include in either published reports or information provided to databases or other external parties conflicts with Standard I(C).

在历史业绩中仅纳入表现最好的账户，会严重歪曲公司的投资组合群结果。

Selecting only the best-performing accounts to include in a track record materially misrepresents the firm's composite results.

Palmer 应与公司合作，加强有关投资组合群构建的报告做法，以避免虚假陈述公司的历史业绩，或所提供信息的质量。

Palmer should work with his firm to strengthen its reporting practices concerning composite construction to avoid misrepresenting the firm's track record or the quality of the information being provided.

补充解析 / **Supplementary explanation**

本案例“例 14：虚假陈述投资组合群的构建方式”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

绩效组合的构建决定比较是否公平。挑选表现最好账户、排除不利时期或改变归因方法却不说明，均可能把选择效果伪装成管理能力；应在一致范围和口径下报告。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / **Misrepresentation**

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-041

例 15：提供过时信息
Example 15: Presenting Out-of-Date Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 93

题目与资料 / **Question and data**

例 15：提供过时信息 Example 15: Presenting Out-of-Date Information

Finch 是一家商业银行的销售总监，负责指导银行客户顾问销售第三方共同基金。

Finch is a sales director at a commercial bank, where he directs the bank's client advisers in the sale of third-party mutual funds.

每个季度，他都会为整个部门举办培训，提供银行获准向客户销售的投资基金资料单。

Each quarter, he holds a division-wide training session where he provides fact sheets on investment funds the bank is allowed to offer to clients.

这些可转发给客户的资料单由共同基金公司制作，载有基金信息，包括投资策略及目标分派率。

These fact sheets, which can be redistributed to clients, are created by the mutual fund firms and contain information about the funds, including investment strategy and target distribution rates.

Finch 知道部分资料单已经过时；例如，一只只做多的基金上季度已获准大量使用杠杆来提高收益。

Finch knows that some of the fact sheets are out of date; for example, one long-only fund approved the use of significant leverage last quarter as a method to enhance returns.

但他继续向销售团队提供未更新的资料，因为银行无法控制共同基金公司发布的营销材料。

He continues to provide the sheets to the sales team without updates because the bank has no control over the marketing material released by the mutual fund firms.

官方答案与解析 / **Official answer and explanation**

评析：Finch 提供了虚假描述基金某些特征的信息，违反准则 I(C)。

Comment: Finch is violating Standard I(C) by providing information that misrepresents aspects of the funds.

他未向销售团队及最终客户提供最新信息，使用过时资料单，歪曲了这些基金的潜在风险。

By not providing the sales team and, ultimately, the clients with the updated information, he is misrepresenting the potential risks associated with the funds with outdated fact sheets.

Finch 必须指示销售团队向客户说明资料单的缺陷，并确保在接受任何基金投资订单之前，客户已取得最新基金文件。

Finch must instruct the sales team to clarify the deficiencies in the fact sheets with clients and ensure they have the most recent fund documents before accepting orders for investing in any fund.

补充解析 / **Supplementary explanation**

本案例“例 15：提供过时信息”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

错误是否最初出于无意，主要影响起因，不改变发现之后的纠正责任。应停止继续分发错误版本、核实正确数据并通知受影响对象；明知不改会让后续陈述持续误导。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-042

例 16：夸大 ESG 声明
Example 16: Overstating ESG Claims

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 94

题目与资料 / **Question and data**

例 16：夸大 ESG 声明 Example 16: Overstating ESG Claims

Lowery 管理 Majesty Fund，该基金于 2018 年成立，现已成为亚洲领先的环境、社会及治理（ESG）基金之一。

Lowery manages the Majesty Fund, which was established in 2018 and has become one of the leading Asian environmental, social, and governance (ESG) funds.

该基金的投资授权目标，是寻求可持续的财富创造。

The fund’s mandate is to seek sustainable wealth creation.

Lowery 使用第三方评级机构提供的 ESG 评分，评估基金的潜在投资。

Lowery uses ESG scores provided by third-party rating organizations to assess potential investments for the fund.

基金在宣传资料及客户协议中声称，会积极与持仓公司沟通，并行使代理投票权，以实现可持续增长。

The fund declares in promotional material and client agreements that it engages in proactive engagement and proxy voting for companies owned by the fund to create sustainable growth.

然而，Lowery 并未开展这两项活动中的任何一项。因此，该基金从未发布详细的股东参与报告，以说明其参与策略及成果。

However, Lowery has done neither of these activities. As a result, the fund has never published its detailed engagement reports that include its engagement strategy and its outcomes.

此外，基金也没有清楚说明其代理投票行为及其结果。

Moreover, there has been no clear communication by the fund regarding its proxy voting and its consequences.

官方答案与解析 / **Official answer and explanation**

评析：如果公司声称旗下某只基金考虑 ESG 因素，就必须清楚解释其含义，不得夸大基金在可持续性、社会影响或治理方面的资质和表现。

Comment: A firm that describes one of its funds as considering ESG factors must clearly describe what that means and not overstate the sustainability, social impact, or governance credentials of the fund.

Lowery 声称基金会积极与持仓公司的管理层沟通并行使代理投票权，以实现可持续增长，却未实际开展这些活动，因而虚假描述了基金，未符合准则 I(C)。

By stating that the fund would conduct proactive engagement with management and proxy voting for companies owned by the fund in order to create sustainable growth and failing to do so, Lowery misrepresented the fund and failed to meet Standard I(C).

补充解析 / **Supplementary explanation**

本案例“例 16：夸大 ESG 声明”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

ESG宣传要和实际研究、持仓、筛选方法及监控过程一致。把有限筛选包装成全面可持续性承诺，会使客户对服务产生错误印象；宽泛标签不能代替可核验的执行标准。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

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相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-043

例 17：误导性地描述服务
Example 17: Misleading Description of Services

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 94

题目与资料 / **Question and data**

例 17：误导性地描述服务 Example 17: Misleading Description of Services

多年来，Stafford 一直是 Lionsgate LLP 的合伙人。这是一家提供全面服务的大型会计师事务所，主要在投资业绩领域提供审计及其他服务。

For many years, Stafford was a partner at Lionsgate LLP, a large, full-service accounting firm that provides audit and other services, primarily in the area of investment performance.

她与一名初级员工一同离开 Lionsgate，成立了自己的公司 Angelwood Analytics。

She leaves Lionsgate, with a junior associate, to form her own firm, Angelwood Analytics.

Angelwood 的网站、社交媒体及印刷营销资料大力强调 Stafford 的专长和经验，并声称她会亲自参与所有客户工作。

Angelwood's website, social media, and print marketing heavily emphasize Stafford's expertise and experience and state that Stafford will be personally involved in all client work.

Angelwood 最初的客户规模较小，但后来 Stafford 吸引到了数家大客户。

Angelwood's clients are small at first, but eventually Stafford attracts several large clients.

为服务这些较大客户，她转为承担监督角色，并聘用新员工服务长期客户。

To service these larger clients, she transitions to an oversight role and hires new staff to work with her longtime clients.

业务发展十分成功，Stafford 开始聘用第三方承包人员，最终这些人员为 Angelwood 超过 50% 的工作提供支持。

Business becomes so successful that Stafford resorts to hiring third-party contractors that eventually provide support for over 50% of Angelwood's work.

她聘用的人员具备资格，行业惯例允许在此类工作中使用第三方承包人员，而且 Angelwood 的客户协议规定，公司有权自行决定每位客户的人员配置。

The staff she uses are qualified, industry practice allows use of third-party contractors for the work, and Angelwood's client agreement states that staffing decisions for each client are discretionary for the firm.

官方答案与解析 / **Official answer and explanation**

评析：Stafford 的沟通未能根据实际情况做到准确、完整，违反了准则 I(C)。

Comment: Stafford violated Standard I(C) since her communications were not accurate and complete given the circumstances.

Stafford 通过其公司提供的信息，未准确描述公司如何配置人员，以执行她所宣传的服务。

Stafford, through her firm, did not accurately describe how her firm was staffed to perform the services that she promoted.

Stafford 一方面声称客户可以获得她的知识和专长，另一方面却越来越依赖初级员工及第三方人员。

While stating that clients could expect her knowledge and expertise, Stafford increasingly relied on junior employees and third-party staffers.

这种人员安排本身可以接受，但她在宣传公司时，没有完整说明 Angelwood 将如何为客户提供投资服务。

While this was acceptable, she did not give a complete picture of how Angelwood will be providing investment services for clients when promoting the firm.

补充解析 / **Supplementary explanation**

本案例“例 17：误导性地描述服务”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

社交媒体也是专业沟通渠道。发布重要建议时应依照合理分发政策，避免只让某个小群体获得不公平优势；不同服务级别可存在，但应披露并确保其他客户的公平机会不受损害。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-044

例 18：不准确、过时的历史业绩
Example 18: Inaccurate, Dated Performance History

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 94-95

题目与资料 / **Question and data**

例 18：不准确、过时的历史业绩 Example 18: Inaccurate, Dated Performance History

过去二十年，Huggins 一直经营一家为零售客户及高净值人士服务的投资咨询公司。

For the past two decades, Huggins has managed an investment advisory firm catering to retail clients and high-net-worth individuals.

总体而言，公司过去五年的投资业绩令人满意，但自全球疫情开始以来，业绩已明显下降。

Overall, the investment performance history of the firm for the past five years has been satisfactory, but since the onset of the global pandemic, performance has dropped appreciably.

Huggins 在公司网站上展示基金五年的历史业绩，以说服潜在客户聘用公司提供咨询服务。

On the firm’s website, Huggins provides the five-year performance history of the fund as a way to convince potential clients to hire his firm for advisory services.

虽然相关信息已经可得，他却没有更新网站，说明疫情开始以来的业绩并不出色。

He does not update the information on the website to clarify that the performance history since the beginning of the pandemic has been less than stellar, even though that information is available.

官方答案与解析 / **Official answer and explanation**

评析：Huggins 在向潜在客户营销时，未提供准确、及时的信息，违反了准则 I(C)。

Comment: Huggins violated Standard I(C) by not providing accurate and timely information as part of his marketing to potential clients.

补充解析 / **Supplementary explanation**

本案例“例 18：不准确、过时的历史业绩”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

错误是否最初出于无意，主要影响起因，不改变发现之后的纠正责任。应停止继续分发错误版本、核实正确数据并通知受影响对象；明知不改会让后续陈述持续误导。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-045

例 **19**：信息不足或遗漏
Example 19: Insufficient, Omitted Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 95

题目与资料 / **Question and data**

例 19：信息不足或遗漏 Example 19: Insufficient, Omitted Information

Hamilton 是一家私募股权基金的研究分析师，该基金专注于 ESG 领域的影响力投资。

Hamilton is a research analyst for a private equity fund focused on impact investing in the ESG space.

Hamilton 编制了数份研究报告，分发给潜在投资者，大致展示并描述基金选择 ESG 投资时遵循的流程。

Hamilton creates several research reports to distribute to potential investors that generally demonstrate and describe the process the fund goes through when choosing ESG investments.

提供给潜在投资者的报告，不如投资者承诺投资基金后获得的研究报告详细。

The reports for potential investors are not as detailed as the research reports provided to investors once they commit to investing in the fund.

一位慈善基金会投资者在承诺向基金投入 5,000 万美元后，收到了更详细的报告。

After committing US$50 million to the fund, one investor, a charitable foundation, receives the more detailed reports.

该基金会的首席投资官感到不满，因为这只私募股权基金似乎过度配置尚在开发中的技术，因此投资风险高于 Hamilton 最初提供的一般信息所显示的水平。

The chief investment officer of the foundation is unhappy that the private equity fund seems overweighted in developing technology and therefore represents a riskier investment than was indicated by the more general information initially provided by Hamilton.

官方答案与解析 / **Official answer and explanation**

评析：会员与考生履行准则 I(C) 的责任时，提供的信息必须适合具体情况。

Comment: The information provided by members and candidates when meeting their responsibilities under Standard I(C) must be appropriate for the circumstances.

在某些情况下，对尚未成为客户的潜在投资者限制信息范围，同时向已建立客户关系的人提供更详细的披露及投资流程信息，可能是适当的。

In some circumstances, it may be appropriate to limit the information provided to potential investors, who are not yet clients, while providing more detailed disclosures and information about the investment process to those who have already entered into a client relationship.

但是，限制信息不得达到歪曲投资性质或风险的程度。

However, limiting information cannot rise to the level of misrepresenting the nature or risks of the investment.

在本例中，Hamilton 似乎仅就基金投资于尚在开发技术的程度提供了有限信息，因而不当地歪曲了投资的真实风险水平，违反准则 I(C)。

In this case, Hamilton appears to have provided only limited information about the extent to which the fund is invested in developing technology and therefore violated Standard I(C) by improperly misrepresenting the true level of risk of the investment.

补充解析 / **Supplementary explanation**

本案例“例 19：信息不足或遗漏”应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-046

例 20：误导性地描述服务、虚假陈述知识水平
Example 20: Misleading Description of Service, Misrepresenting Knowledge

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 95

题目与资料 / **Question and data**

例 20：误导性地描述服务、虚假陈述知识水平 Example 20: Misleading Description of Service, Misrepresenting Knowledge

某发展中国家的主权财富基金正在寻找投资管理人，管理基金的部分资产。

The sovereign wealth fund of a developing country is seeking an investment manager to manage a portion of the fund's assets.

基金董事认为，在投资流程中使用人工智能（AI）工具可以带来效率、创新及盈利能力提升，希望利用这些优势。

The fund's directors want to take advantage of the efficiencies, innovation, and increased profitability they believe are available through the use of artificial intelligence (AI) tools in the investment process.

因此，他们在发给潜在管理人的建议书征询文件（RFP）中，加入了数个有关人工智能使用情况的问题。

As such, they include several questions on the use of artificial intelligence on the request for proposal (RFP) sent out to potential managers.

AWZ Investment Advisers 的首席执行官 Al-Wazir 决心在此次管理人遴选中保持竞争力，尽管其公司才刚开始探索如何运用人工智能改善投资业绩。

Al-Wazir, CEO of AWZ Investment Advisers, is intent on being competitive in the fund's manager search, even though his firm is just beginning to explore AI to enhance investment performance.

为给出一个看似全面且专业的回答，他使用 ChatGPT 完成 RFP 中要求各应征管理人说明如何将 AI 纳入投资流程的部分。

Wanting to provide a seemingly thorough and knowledgeable answer, he uses ChatGPT to complete the portion of the RFP asking for a narrative of how each responding manager incorporates AI in its investment process.

官方答案与解析 / **Official answer and explanation**

评析：Al-Wazir 虚假陈述公司在投资流程中应用 AI 的能力，并用 ChatGPT 回答 RFP，以掩盖自己对该主题的浅薄了解，显得比实际更专业，因此违反了准则 I(C)。

Comment: Al-Wazir violated Standard I(C) by misrepresenting his firm's capabilities relating to AI in its investment process and using ChatGPT to respond to the RFP to hide his superficial knowledge of the topic and seem more knowledgeable than he is.

补充解析 / **Supplementary explanation**

本案例"例 20：误导性地描述服务、虚假陈述知识水平"应放在准则 I(C) 的具体要求下判断。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-CA-047

例 1：专业精神与胜任能力
Example 1: Professionalism and Competence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 97

题目与资料 / **Question and data**

例 1：专业精神与胜任能力 Example 1: Professionalism and Competence

Sasserman 是一个富裕小镇某家银行的信托投资主管。

Sasserman is a trust investment officer at a bank in a small, affluent town.

他喜欢每天与朋友在乡村俱乐部共进午餐，客户曾看到他在那里喝下多杯酒。

He enjoys lunching every day with friends at the country club, where his clients have observed him having numerous drinks.

午餐后回到工作岗位，他在作出投资决策时明显处于醉酒状态。

Back at work after lunch, he clearly is intoxicated while making investment decisions.

同事故意把与 Sasserman 有关的业务安排在上午，因为他们不信任他午餐后的判断。

His colleagues make a point of handling any business with Sasserman in the morning because they distrust his judgment after lunch.

官方答案与解析 / **Official answer and explanation**

评析：Sasserman 午餐时过量饮酒、随后醉酒工作，令人质疑其专业精神及胜任能力，因此违反准则 I(D)。

Comment: Sasserman's excessive drinking at lunch and subsequent intoxication at work constitute a violation of Standard I(D) because this conduct has raised questions about his professionalism and competence.

他的行为对自己、雇主及投资行业都造成了负面影响。

His behavior reflects poorly on him, his employer, and the investment industry.

补充解析 / **Supplementary explanation**

本案例"例 1：专业精神与胜任能力"应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以"不是投资业务"开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以"不是投资业务"开脱。

V10-M03-CA-048

例 2：欺诈与欺骗
Example 2: Fraud and Deceit

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 97

题目与资料 / **Question and data**

例 2：欺诈与欺骗 Example 2: Fraud and Deceit

Hoffman 是大型经纪公司 ATZ Brothers, Inc. 的证券分析师。在两年内，他向 ATZ 自筹资金的医疗保险计划提交了二十多张账单的报销申请，其中大多数账单经过篡改，以提高应付金额。

Hoffman, a security analyst at ATZ Brothers, Inc., a large brokerage house, submits reimbursement forms over a two-year period to ATZ's self-funded health insurance program for more than two dozen bills, most of which have been altered to increase the amount due.

公司员工福利主管调查后，发现了这一不当行为。

An investigation by the firm's director of employee benefits uncovers the inappropriate conduct.

随后，ATZ 解雇了 Hoffman，并通知 CFA 协会。

ATZ subsequently terminates Hoffman's employment and notifies CFA Institute.

官方答案与解析 / **Official answer and explanation**

评析：Hoffman 在工作场所故意实施欺诈与欺骗行为，损害了其诚信，因此违反了准则 I(D)。

Comment: Hoffman violated Standard I(D) because he engaged in intentional conduct involving fraud and deceit in the workplace that adversely reflected on his integrity.

补充解析 / **Supplementary explanation**

本案例"例 2：欺诈与欺骗"应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以"不是投资业务"开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以"不是投资业务"开脱。

V10-M03-CA-049

例 3：欺诈与欺骗
Example 3: Fraud and Deceit

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 98

题目与资料 / **Question and data**

例 3：欺诈与欺骗 Example 3: Fraud and Deceit

Brink 是一名覆盖汽车行业的分析师，也是一家非常成功的精品投资研究公司的首席执行官。

Brink, an analyst covering the automotive industry, is CEO of a very successful boutique investment research firm.

由于她是社区知名人士，又是拥有多年投资行业经验的 CFA 持证人，数家当地慈善机构邀请她加入董事会，她以志愿者身份接受了邀请。

Because she is a prominent member of the community and a CFA charterholder with years of experience in the investment industry, several local charities ask Brink to sit on their board, and she does so as a volunteer.

其中一家慈善机构的董事会决定购买五辆新厢式货车，为低收入老年人配送热午餐。

The board of one of the charitable institutions for which Brink serves on the board decides to buy five new vans to deliver hot lunches to low-income elderly people.

Brink 主动提出处理采购协议。为偿还欠一位经营汽车经销店朋友的长期债务，并补偿自己的辛劳，她同意以高于正常价格 20% 的价格采购，再与朋友瓜分加价部分。

Brink offers to handle purchasing agreements. To pay a long-standing debt to a friend who operates an automobile dealership—and to compensate herself for her trouble—she agrees to a price 20% higher than normal and splits the surcharge with her friend.

官方答案与解析 / **Official answer and explanation**

评析：就本准则而言，Brink 在慈善组织董事会的志愿工作属于职业活动，因为她是凭借资深投资分析师及 CFA 持证人的身份获邀任职。

Comment: Brink's volunteer work for the board of the charitable organization is a professional activity for the purposes of this standard since she serves on the board because of her status as an experienced investment analyst and CFA charterholder.

Brink 实施了涉及不诚实、欺诈及虚假陈述的不当行为，违反了准则 I(D)。

Brink engaged in misconduct involving dishonesty, fraud, and misrepresentation and violated Standard I(D).

补充解析 / **Supplementary explanation**

本案例“例 3：欺诈与欺骗”应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

志愿职位同样可能接触保密资料、资金或影响力。无偿服务不会免除诚信义务，职位获得的信息不能被挪用于个人利益或传播给无权获知者。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M03-CA-050

例 4：个人行为与诚信
Example 4: Personal Actions and Integrity

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 98

题目与资料 / **Question and data**

例 4：个人行为与诚信 Example 4: Personal Actions and Integrity

Garcia 管理一只致力于社会责任投资的共同基金。

Garcia manages a mutual fund dedicated to socially responsible investing.

她同时是一名环保活动人士。由于参与非暴力抗议活动，Garcia 多次因擅闯一家被指破坏环境的大型石化工厂的物业而遭逮捕。

She is also an environmental activist. As a result of her participation in nonviolent protests, Garcia has been arrested on numerous occasions for trespassing on the property of a large petrochemical plant that is accused of damaging the environment.

官方答案与解析 / **Official answer and explanation**

评析：一般而言，准则 I(D) 并非旨在涵盖为支持个人信念而实施公民抗命所导致的违法行为，因为此类行为不会对会员或考生的职业声誉、诚信或胜任能力产生负面影响。

Comment: Generally, Standard I(D) is not meant to cover legal transgressions resulting from acts of civil disobedience in support of personal beliefs, because such conduct does not reflect poorly on the member’s or candidate’s professional reputation, integrity, or competence.

补充解析 / **Supplementary explanation**

本案例“例 4：个人行为与诚信”应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M03-CA-051

例 5：作为 CFA 协会地方分会志愿者实施不当行为
Example 5: Misconduct as a CFA Institute Society Volunteer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 98

题目与资料 / Question and data

例 5：作为 CFA 协会地方分会志愿者实施不当行为 Example 5: Misconduct as a CFA Institute Society Volunteer

O'Hara 在当地分会担任志愿讲师，为当地 CFA 项目考生教授分会开设的 CFA 考试复习课程。

O'Hara volunteers at his local society as an instructor at the society's CFA exam review course for local candidates in the CFA Program.

O'Hara 对数名女性考生实施不当行为，包括发表带有性暗示的言论、进行不受欢迎的身体接触，以及在遭拒绝后仍反复邀请考生约会。

O'Hara engages in inappropriate behavior with several female candidates that includes making suggestive remarks, unwanted touching, and repeatedly asking candidates out on dates despite being rebuffed by them.

官方答案与解析 / Official answer and explanation

评析：O'Hara 实施性骚扰，对其职业声誉和诚信产生负面影响，违反了准则 I(D)。

Comment: O'Hara is in violation of Standard I(D) by engaging in sexual harassment that reflects poorly on his professional reputation and integrity.

虽然这些行为没有发生在工作场所，但它们发生于 O'Hara 为当地分会提供服务的过程中，并涉及使用其特许资格及组织会员身份，因此属于《道德准则与专业行为准则》所指的职业行为。

Although the actions do not take place in the workplace, O'Hara's actions are professional conduct within the meaning of the Code and Standards because the conduct takes place as part of his work with the local society and encompasses the use of his charter and membership in the organization.

补充解析 / Supplementary explanation

本案例"例 5：作为 CFA 协会地方分会志愿者实施不当行为"应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

志愿职位同样可能接触保密资料、资金或影响力。无偿服务不会免除诚信义务，职位获得的信息不能被挪用于个人利益或传播给无权获知者。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以"不是投资业务"开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M03-CA-052

例 6：表明 **CFA** 持证人身份
Example 6: Identification as a CFA Charterholder

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 98-99

题目与资料 / **Question and data**

例 6：表明 CFA 持证人身份 Example 6: Identification as a CFA Charterholder

Nehjer 曾在一家投资顾问机构担任经济学家，事业有成，最近退休后搬到自己的乡间庄园居住。

Nehjer recently retired from a successful career as an economist for an investment adviser to live at her country estate.

她仍维持 CFA 协会及当地分会的有效会员资格。

She maintains active CFA Institute membership with the organization and the local society.

一家跨国公司宣布，计划在距离其庄园 5 公里以内开设一家大型赌场。

A multinational firm has announced its intention to open a large casino within 5 km of her estate.

当地官员正在权衡赌场带来的积极经济影响，以及对社区特色产生的负面影响。

Local officials are balancing the positive economic impact of the casino with the negative effects it will have on the character of the community.

Nehjer 及邻居强烈反对赌场项目。

Nehjer and her neighbors strenuously object to the casino.

她发表公开信，声称研究显示，博彩场所的积极经济影响普遍被严重夸大。

She publishes an open letter stating that studies have shown that the positive economic impact of gambling venues is widely overblown.

她在信中引用了多项由自己编造或篡改的统计数据，以支持其论点。

She cites a number of statistics in her letter that she fabricated or altered to help make her point.

她在信末署名，并注明自己拥有博士学位，而且是 CFA 持证人。

She signs her name to the letter, indicating that she has a PhD and is a CFA charterholder.

官方答案与解析 / **Official answer and explanation**

评析：Nehjer 为支持自己对赌场问题的观点，使用捏造和篡改的统计数据，实施了欺诈、不诚实及欺骗行为，构成不当行为，违反准则 I(D)。

Comment: By engaging in fraud, dishonesty, and deceit in using fabricated and altered statistics in an effort to support her opinion on the casino issue, Nehjer engaged in misconduct and violated Standard I(D).

虽然已退休，但她在本例中表明 CFA 持证人身份，并明确利用该资格增强自己分析及观点的可信度，因此其行为属于本准则所指的职业行为。

Although she is retired, her actions in this case are professional conduct within the meaning of the standard because she identified herself as a CFA charterholder and explicitly used her charter in an attempt to give her analysis and opinions more credibility.

补充解析 / **Supplementary explanation**

本案例“例 6：表明 CFA 持证人身份”应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / Misconduct

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M03-CA-053

例 7：在工作场所或学术环境之外撰写投资内容
Example 7: Writing about Investments Outside the Workplace or Academia

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 99

题目与资料 / **Question and data**

例 7：在工作场所或学术环境之外撰写投资内容 Example 7: Writing about Investments Outside the Workplace or Academia

Mewis 是一家投资咨询公司的分析师，也是 CFA 考生。

Mewis is an analyst for an investment advisory firm and a candidate for the CFA designation.

她对环境保护及应对气候变化有浓厚兴趣。

She has a strong interest in environmental protection and combatting climate change.

她开设了一个博客，根据对公司环境、社会及治理（ESG）因素的评估，分析投资机会并推荐股票。

She starts a blog in which she provides analysis of investment opportunities and makes stock picks for companies based on her evaluation of their environmental, social, and governance (ESG) factors.

她为雇主开展的工作与 ESG 分析无关；雇主允许她创建博客，但条件是 ESG 相关工作须在个人时间完成，而且不得表明自己是该公司的分析师。

Her work with her employer is unrelated to ESG analysis, and her employer gives permission for her to create the blog if her ESG-related work is done on her own time and she does not identify herself as an analyst for the firm.

在一篇博客中，Mewis 严厉批评 JKL 公司在制造过程中严重破坏环境，并指责其管理层无能。

In one of her blog posts, Mewis severely criticizes JKL company for causing substantial harm to the environment in its manufacturing process and having incompetent management.

她在博客中声称，公司很可能很快面临监管行动及私人诉讼，严重影响 JKL 的盈利能力。

She posts on her blog that the company is likely soon to be the subject of regulatory action and private litigation that will greatly affect JKL's profitability.

Mewis 并不知道这些说法是否属实；她之所以想损害该公司，是因为与担任公司首席执行官的前夫存在私人纠纷。

Mewis has no knowledge that any of this is true but seeks to damage the company because of a personal dispute with her ex-husband, the CEO of the company.

官方答案与解析 / **Official answer and explanation**

评析：Mewis 实施了不诚实、欺诈及欺骗行为，并损害其职业声誉和诚信，违反了准则 I(D)。

Comment: Mewis violated Standard I(D) by engaging in dishonesty, fraud, and deceit and in conduct that reflects adversely on her professional reputation and integrity.

虽然这些行为与她在投资顾问机构的雇佣工作无关，但涉及她作为考生参与投资行业和证券市场的活动。

Although her actions are not related to her employment with the investment adviser, her conduct relates to the candidate's involvement in the investment profession and security markets.

补充解析 / **Supplementary explanation**

本案例"例 7：在工作场所或学术环境之外撰写投资内容"应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以"不是投资业务"开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / Misconduct

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M03-CA-054

例 8：与职业行为无关的行动
Example 8: Actions Unrelated to Professional Conduct

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 99

题目与资料 / **Question and data**

例 8：与职业行为无关的行动 Example 8: Actions Unrelated to Professional Conduct

Tan 是 CFA 考生，也是 QRS Advisers 的初级分析师，在雇主位于市中心的办公室工作。

Tan is a candidate for the CFA designation and a junior analyst working in the downtown office of his employer, QRS Advisers.

由于停车位极为有限，QRS 的大多数员工使用公共交通前往办公室。

Because parking is extremely limited, most QRS employees commute to the company offices using public transportation.

Tan 希望享受驾驶私家车上班的便利。

Tan wants the convenience of driving his own personal vehicle to work.

他向政府官员提交虚假文件，声称自己存在健康问题，符合残疾人士停车许可证的申请条件。

He submits false documentation to government officials indicating that he has health issues that make him eligible for a disabled person parking permit.

政府向他发放了许可证，他之后经常开车上班，并停在办公室附近的“残疾人士专用”车位。

The government issues his permit, and he regularly drives to work and parks at one of the “disabled person only” spots near his office.

官方答案与解析 / **Official answer and explanation**

评析：虽然 Tan 的行为涉及不诚实、欺诈、欺骗，以及向政府官员撒谎，但就《道德准则与专业行为准则》的适用而言，其行为不属于职业行为的定义范围。

Comment: While Tan’s actions involve dishonesty, fraud, deceit, and lying to government officials, his actions do not fall within the definition of professional conduct for the purposes of application of the Code and Standards.

他的行为与受雇工作最多只有间接关系，也不涉及其参与 CFA 项目，或与 CFA 协会的任何其他关联。

His conduct is, at most, tangential to his employment and does not implicate his participation in the CFA Program or any other affiliation with CFA Institute.

因此，虽然这种行为应受谴责，却不属于《道德准则与专业行为准则》适用的“职业”行为。

As a result, while his conduct is deplorable, it is not “professional” conduct to which the Code and Standards apply.

补充解析 / **Supplementary explanation**

本案例“例 8：与职业行为无关的行动”应放在准则 I(D) 的具体要求下判断。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M03-CA-055

例 1：保持胜任能力
Example 1: Maintaining Competence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 101

题目与资料 / **Question and data**

例 1：保持胜任能力 Example 1: Maintaining Competence

Lee 经营一家地缘政治咨询公司，分析国际政治、社会及经济问题和发展动态，为客户撰写研究报告；其中许多客户是投资管理公司。

Lee runs a geopolitical consulting firm where she analyzes international political, social, and economic issues and developments to produce research reports for her clients, many of which are investment management firms.

Lee 一直密切关注一项新的多国贸易协议的新闻，该协议可能显著促进世界某个地区各国之间的商业活动。

Lee has been closely monitoring news regarding a new multinational trade deal that has the potential to significantly boost commercial activity among countries in a certain region of the world.

贸易协议一经正式批准并公布，她便迅速下载协议副本并阅读，了解其条款和影响。

As soon as the trade deal was officially ratified and announced, she quickly downloaded a copy of the agreement and read it to understand its terms and impact.

她还咨询了该领域的专家，获取他们对贸易协议影响的看法，并核实自己对条款及其含义的理解。

She also consulted with experts in the field to obtain their opinions on the impacts of the trade deal and confirm her understanding of its terms and implications.

官方答案与解析 / **Official answer and explanation**

评析：Lee 满足了准则 I(E) 的要求。

Comment: Lee satisfied the requirement of Standard I(E).

Lee 通过新闻报道、专家咨询及研究贸易协议本身，及时掌握领域内的发展，确保知识保持更新，因此能够为客户撰写专业且信息充分的研究报告。

Lee was able to write a knowledgeable and informative research report for her clients by keeping abreast of developments in her field through news reports, consulting with experts, and studying the trade deal itself to ensure that her knowledge was up to date.

补充解析 / **Supplementary explanation**

本案例“例 1：保持胜任能力”应放在准则 I(E) 的具体要求下判断。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

面对新产品或新岗位，应先弥补与实际任务有关的知识缺口。客户追逐热点、同事的成功或担心失去客户，都不能替代对产品机制、风险与适当性的理解。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

V10-M03-CA-056

例 2：提高胜任能力
Example 2: Improving Competence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 102

题目与资料 / **Question and data**

例 2：提高胜任能力 Example 2: Improving Competence

Choe 是一家大型卖方机构的研究主管。

Choe is the director of research at a large sell-side firm.

Choe 的数位客户要求她在公司研究报告中纳入环境、社会及治理（ESG）评级。

Several of Choe's clients asked her to incorporate environmental, social, and governance (ESG) ratings into the research reports the firm produces.

此前，公司研究报告仅以传统量化指标为基础。

Until now, the firm's research reports have been based only on traditional quantitative metrics.

Choe 为团队聘请了一名经验丰富的 ESG 分析师，并要求包括自己在内的所有研究分析师参加 ESG 专题研讨会，并取得 ESG 投资专家证书。

Choe hires an experienced ESG analyst for her team, and she requires all research analysts, including herself, to attend ESG-focused seminars and obtain an ESG investment specialist certificate.

经过一段时间，Choe 及其团队开始将 ESG 因素纳入研究报告。

In due time, Choe and her team begin to incorporate ESG considerations into their research reports.

官方答案与解析 / **Official answer and explanation**

评析：在团队将 ESG 因素纳入公司研究报告之前，Choe 学习了与行业有关的新考量因素，并聘请具有 ESG 专长的人员填补知识和技能缺口，从而拓展了自己在该领域的胜任能力。

Comment: Choe extended her competence in her field by educating herself on new considerations relevant to her industry and by hiring someone with ESG expertise to fill a knowledge and skills gap before she and her team incorporated ESG considerations into the firm's research reports.

因此，Choe 满足了准则 I(E) 的要求。

As such, Choe satisfied the requirement of Standard I(E).

补充解析 / **Supplementary explanation**

本案例"例 2：提高胜任能力"应放在准则 I(E) 的具体要求下判断。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

面对新产品或新岗位，应先弥补与实际任务有关的知识缺口。客户追逐热点、同事的成功或担心失去客户，都不能替代对产品机制、风险与适当性的理解。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

V10-M03-CA-057

例 3：岗位变化
Example 3: Change in Role

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 102

题目与资料 / **Question and data**

例 3：岗位变化 Example 3: Change in Role

Glusker 是一家对冲基金的监管法律顾问。他凭借出色商业判断给高层留下深刻印象后，希望转任销售岗位。

Glusker is a regulatory attorney for a hedge fund who sought to transition to a sales role after impressing senior management with his strong business acumen.

销售岗位有持牌要求，个人必须先通过一项考试，才具备从事销售工作的资格。

There is a licensing requirement involving an examination that an individual must first pass before being qualified to serve in a sales function.

考试内容包括旨在确保公平对待客户及潜在客户的具体规则和法规，以及其他内容。

Among other things, the examination covers technical rules and regulations designed to ensure fairness when dealing with clients and prospects.

Glusker 不熟悉这些规则和法规，因为在担任监管法律顾问时，从未有人要求他就这些事项提供指引。

Glusker was not familiar with these rules and regulations because he was never asked to provide guidance on them as a regulatory attorney.

Glusker 没有学习相关材料，也没有为考试复习，而是依赖自身行业知识取得了及格成绩。

Glusker did not learn the material or study for the examination and instead relied on his industry knowledge to receive a passing score.

官方答案与解析 / **Official answer and explanation**

评析：Glusker 未满足准则 I(E) 的要求。

Comment: Glusker failed to satisfy the requirement of Standard I(E).

他的确通过了牌照资格考试，但单凭通过考试，不足以证明具备胜任能力。

He did receive a passing score on a licensing examination, but passing the examination, by itself, is not adequate to demonstrate competency.

Glusker 未学习有关公平对待客户及潜在客户的适用规则和法规，因此即使通过持牌考试，也不具备新岗位所需的知识。

Glusker's failure to learn the applicable rules and regulations relating to fairness when dealing with clients and prospects means that he does not possess the required knowledge to serve in his new role, despite passing the licensing examination.

补充解析 / **Supplementary explanation**

本案例"例 3：岗位变化"应放在准则 I(E) 的具体要求下判断。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

面对新产品或新岗位，应先弥补与实际任务有关的知识缺口。客户追逐热点、同事的成功或担心失去客户，都不能替代对产品机制、风险与适当性的理解。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

V10-M03-CA-058

例 4：监督责任
Example 4: Supervisory Responsibility

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 102

题目与资料 / **Question and data**

例 4：监督责任 Example 4: Supervisory Responsibility

Evans 是一家精品研究公司五人分析师团队的成员，该公司向买方机构提供独立研究。

Evans is one member of a five-person team of analysts at a boutique research firm providing independent research to buy-side firms.

Evans 主要覆盖能源及运输行业。

Evans primarily covers the energy and transportation sectors.

Evans 的上司离开公司重返学术界。公司管理层将 Evans 晋升为研究主管，并聘请两名初级分析师接替她原先的工作。

Evans's boss leaves the firm to return to academia. Firm management promotes Evans to director of research and hires two junior analysts to replace her.

Evans 现在负责监督四位分析师，并对公司的全部研究成果负责。

Evans now has supervisory responsibility for four analysts and is responsible for all research produced by the firm.

在晋升正式生效之前，Evans 花费大量时间和精力，了解公司中自己此前未参与的研究项目。

Prior to her promotion date, Evans spends a great deal of time and effort getting up to speed on the research projects of the firm that she was not involved in.

虽然过去从未直接管理他人，Evans 却没有花时间学习如何有效管理员工、领导团队，或了解与下属有关的合规要求。

Although she has never directly managed others in the past, Evans does not spend any time becoming familiar with effectively managing employees, leading teams, or compliance requirements relating to subordinates.

官方答案与解析 / **Official answer and explanation**

评析：Evans 违反了准则 I(E)。新职位要求她具备原岗位之外的其他技能、能力及知识。

Comment: Evans violated Standard I(E). Her new position demands competence in other skills, abilities, and knowledge beyond those needed for her previous position.

Evans 必须确保扩展自身的胜任能力，覆盖新岗位的全部责任。

Evans must ensure she extends her competence to cover all responsibilities of her new role.

她现在还必须掌握履行对其他分析师监督责任所需的技能和知识。

She also must now obtain the skills and knowledge needed for fulfilling her supervisory responsibility of the other analysts.

这可以包括参加会议或管理方面的专业发展课程、取得合规资格，以及接受有关监督责任的内部培训。

This could include attending conferences or taking professional development courses on management, earning compliance credentials, and internal training on supervisory responsibility.

补充解析 / **Supplementary explanation**

本案例“例 4：监督责任”应放在准则 I(E) 的具体要求下判断。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

V10-M03-CA-059

例 5：选择投资
Example 5: Choosing Investments

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 103

题目与资料 / **Question and data**

例 5：选择投资 Example 5: Choosing Investments

Mifune 为超过 150 位零售投资者提供财务规划服务。

Mifune is a financial planner for over 150 retail investors.

根据其中 40 位客户的投资目标、财务状况及风险承受能力，他建议他们购买 Vouchsafe Insurance Company 的人寿保险产品。

Based on the investment objectives, financial circumstances, and risk tolerance of 40 of his clients, he suggests they purchase life insurance products from Vouchsafe Insurance Company.

Mifune 研究了 Vouchsafe，之所以推荐该公司，是因为其信用评级高、财务稳健，并有长达十年提供价格合理且安全保险产品的历史。

Mifune researched Vouchsafe and recommended it because it has a high credit rating, strong financials, and a decade-long history of providing affordable, safe insurance products.

18 个月内，由于此前不为人知的首席财务官财务违规及欺诈行为，Vouchsafe 破产，数千名投保人的保险合同变得毫无价值。

Within 18 months, as the result of previously unknown financial impropriety and fraud by the company's chief financial officer, Vouchsafe goes bankrupt and the insurance contracts for thousands of policyholders become worthless.

Mifune 的客户声称，他推荐 Vouchsafe 保单的行为显示其不具备胜任能力。

Mifune's clients claim that he was incompetent in recommending the Vouchsafe policies.

官方答案与解析 / **Official answer and explanation**

评析：假设 Mifune 对 Vouchsafe 的研究全面且适当，那么他未能发现这家被推荐公司的欺诈做法，而该做法也误导了整个投资行业，这一事实本身并不能说明 Mifune 是一名不胜任的财务规划师，也不能说明他违反了准则 I(E)。

Comment: Assuming that Mifune's research of Vouchsafe was thorough and appropriate, his failure to uncover the fraudulent practices of the company he recommended, which had misled the investment industry as a whole, does not, by itself, indicate that Mifune is an incompetent financial planner or violated Standard I(E).

补充解析 / **Supplementary explanation**

本案例"例 5：选择投资"应放在准则 I(E) 的具体要求下判断。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

评价研究过程与评价投资结果要分开。已完成适当调查但仍遭遇无法合理预见的欺诈或市场变化，不自动说明失职；反之，偶然盈利也不能证明研究程序充分。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

V10-M03-CA-060

例 6：理解新的投资产品
Example 6: Understanding New Investment Products

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 103

题目与资料 / **Question and data**

例 6：理解新的投资产品 Example 6: Understanding New Investment Products

Halsey 为多位高净值人士担任投资组合经理。

Halsey is a portfolio manager for a number of high-net-worth individuals.

他的数位客户认为投资加密货币能在短期内获得可观收益，对此印象深刻。

Several of his clients are impressed by the significant gains in a short time frame that they believe can be achieved by investing in cryptocurrency.

他们催促 Halsey 将加密货币产品纳入投资组合。

They urge Halsey to include cryptocurrency products as part of their portfolios.

虽然 Halsey 大致知道加密货币，也在信誉良好的报纸上读过数篇有关加密货币投资趋势的文章，但他不熟悉这类资产的性质，也不了解众多加密货币产品之间的区别。

Although Halsey is generally aware of cryptocurrency and has read several articles about the cryptocurrency investment trend in reputable newspapers, Halsey is unfamiliar with the nature of the asset or the difference between the many cryptocurrency products.

Halsey 不想显得跟不上市场最新发展，不想失去客户，也不愿等到完成资产研究才作出投资决定，以免错过热门趋势，于是为数位客户购买了一款在社交媒体及网络广告中大力宣传的加密货币产品。

Not wanting to seem out of touch with current developments in the market, lose clients, or miss out on a hot market trend by delaying an investment decision until he completes research into the asset, Halsey purchases a cryptocurrency product that has been heavily promoted through social media and online advertising for several of his clients.

官方答案与解析 / **Official answer and explanation**

评析：鉴于知识有限，Halsey 并不具备替客户投资加密货币的胜任能力。

Comment: Given his limited knowledge, Halsey is not competent to invest in cryptocurrency for his clients.

Halsey 在不了解投资性质，或该投资对客户是否适当的情况下，仓促投资加密货币产品，违反了准则 I(E)。

By hastily investing in cryptocurrency products without understanding the nature of the investment or the suitability of the investment for his clients, Halsey violated Standard I(E).

补充解析 / **Supplementary explanation**

本案例“例 6：理解新的投资产品”应放在准则 I(E) 的具体要求下判断。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

面对新产品或新岗位，应先弥补与实际任务有关的知识缺口。客户追逐热点、同事的成功或担心失去客户，都不能替代对产品机制、风险与适当性的理解。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

V10-M03-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 104, 106

题目与资料 / **Question and data**

1. 一家投资管理公司获 ETV Corporation 聘请，协助该公司进行增发公开发行。

1. An investment management firm has been hired by ETV Corporation to work on an additional public offering for the company.

该公司的经纪部门目前对 ETV 给出“卖出”建议，但投资银行部负责人要求经纪部门负责人，将建议由“卖出”改为“买入”。

The firm’s brokerage unit now has a “sell” recommendation on ETV, but the head of the investment banking department has asked the head of the brokerage unit to change the recommendation from “sell” to “buy.”

根据准则，经纪部门负责人可以：

According to the Standards, the head of the brokerage unit would be permitted to:

A. 将建议最多上调一个级别，在本例中即改为“持有”。

A. increase the recommendation by no more than one increment (in this case, to a “hold” recommendation).

B. 将该公司列入限制名单，并只提供有关该公司的事实信息。

B. place the company on a restricted list and give only factual information about the company.

C. 指派一位新分析师，判断该股票是否值得更高评级。

C. assign a new analyst to decide whether the stock deserves a higher rating.

官方答案与解析 / **Official answer and explanation**

1. 正确答案是 B。本题涉及准则 I(B)“独立性与客观性”。

1. The correct answer is B. This question relates to Standard I(B) Independence and Objectivity.

当被要求为公司赢得业务而改变某只股票的建议时，经纪部门负责人必须拒绝，以保持提出建议时的独立性与客观性。

When asked to change a recommendation on a company stock to gain business for the firm, the head of the brokerage unit must refuse in order to maintain his independence and objectivity in making recommendations.

他不得屈从于公司投资银行部门的压力。

He must not yield to pressure by the firm’s investment banking department.

为避免看似存在利益冲突，公司应停止对该公司发布投资建议。

To avoid the appearance of a conflict of interest, the firm should discontinue issuing recommendations about the company.

选项 A 错误；以任何违背分析师意见的方式改变建议，都违反保持独立性与客观性的义务。

Answer A is incorrect; changing the recommendation in any manner that is contrary to the analyst’s opinion violates the duty to maintain independence and objectivity.

选项 C 错误，因为仅指派新分析师判断该股票是否值得更高评级，并不能解决利益冲突。

Answer C is incorrect because merely assigning a new analyst to decide whether the stock deserves a higher rating will not address the conflict of interest.

参见准则 I(B)：独立性与客观性。

See Standard I(B): Independence and Objectivity

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 I(B)（独立性与客观性）。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 104, 106

题目与资料 / **Question and data**

2. Grey 建议购买一只仅投资于美国长期国债的共同基金。

2. Grey recommends the purchase of a mutual fund that invests solely in long-term US Treasury bonds.

他向客户作出以下陈述：I.“这些债券的偿付由美国政府担保，因此债券的违约风险几乎为零。”

He makes the following statements to his clients: I. “The payment of the bonds is guaranteed by the US government; therefore, the default risk of the bonds is virtually zero.”

II.“根据市场历史表现，如果投资这只共同基金，你们将在未来数年中每年获得 10% 的收益率。”

II. “If you invest in the mutual fund, you will earn a 10% rate of return each year for the next several years based on historical performance of the market.”

Grey 的陈述是否违反 CFA 协会《道德准则与专业行为准则》？

Did Grey’s statements violate the CFA Institute Code and Standards?

A. 两项陈述均未违反《道德准则与专业行为准则》。

A. Neither statement violated the Code and Standards.

B. 只有陈述 I 违反《道德准则与专业行为准则》。

B. Only statement I violated the Code and Standards.

C. 只有陈述 II 违反《道德准则与专业行为准则》。

C. Only statement II violated the Code and Standards.

官方答案与解析 / **Official answer and explanation**

2. 正确答案是 C。本题涉及准则 I(C)“虚假陈述”。

2. The correct answer is C. This question involves Standard I(C) Misrepresentation.

陈述 I 是事实陈述，向客户及潜在客户准确披露了投资工具的条款信息。

Statement I is a factual statement that discloses to clients and prospects accurate information about the terms of the investment instrument.

陈述 II 保证共同基金取得特定收益率，将观点当作事实表述，因此违反准则 I(C)。

Statement II, which guarantees a specific rate of return for a mutual fund, is an opinion stated as a fact and, therefore, violates Standard I(C).

如果在陈述 II 中加入限定语，例如“在我看来，投资者可能获得……”，就不会违反准则。

If statement II were rephrased to include a qualifying statement, such as “in my opinion, investors may earn . . . , ” it would not be in violation of the Standards.

参见准则 I(C)：虚假陈述。

See Standard I(C): Misrepresentation

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 I(C)（禁止虚假陈述）。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / **Misrepresentation**

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-PR-003

课后习题 3
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 104, 106

题目与资料 / Question and data

3. 以下哪项正确说明了会员或考生根据《道德准则与专业行为准则》承担的义务？

3. Which of the following is a correct statement of a member's or candidate's duty under the Code and Standards?

A. 在没有具体适用法律或其他监管要求时，会员或考生的行为受《道德准则与专业行为准则》规范。

A. In the absence of specific applicable law or other regulatory requirements, the Code and Standards govern the member's or candidate's actions.

B. 会员或考生只须遵守适用的当地法律、规则、法规或惯例，即使《道德准则与专业行为准则》要求其承担更高程度的责任或更高义务，也不例外。

B. A member or candidate is required to comply only with applicable local laws, rules, regulations, or customs, even though the Code and Standards may impose a higher degree of responsibility or a higher duty on the member or candidate.

C. 如果某证券市场没有适用的当地法律或交易所规则规范重大非公开信息的使用，在该市场交易的会员或考生就可以根据重大非公开信息采取投资行动。

C. A member or candidate who trades securities in a securities market where no applicable local laws or stock exchange rules regulate the use of material nonpublic information may take investment action based on material nonpublic information.

官方答案与解析 / Official answer and explanation

3. 正确答案是 A，因为本题涉及准则 I(A)"知悉法律"，具体是《道德准则与专业行为准则》的全球适用。

3. The correct answer is A because this question relates to Standard I(A) Knowledge of the Law—specifically, global application of the Code and Standards.

在多个司法管辖区执业的会员与考生，可能受不同证券法律及法规约束。

Members and candidates who practice in multiple jurisdictions may be subject to various securities laws and regulations.

如果适用法律比《道德准则与专业行为准则》的要求更严格，会员与考生必须遵守适用法律；否则，必须遵守《道德准则与专业行为准则》。

If applicable law is more strict than the requirements of the Code and Standards, members and candidates must adhere to applicable law; otherwise, members and candidates must adhere to the Code and Standards.

因此，选项 A 正确。选项 B 错误，因为如果适用的当地法律较宽松，会员与考生就必须遵守《道德准则与专业行为准则》所规定的更高标准。

Therefore, answer A is correct. Answer B is incorrect because members and candidates must adhere to the higher standard set by the Code and Standards if local applicable law is less strict.

选项 C 错误，因为在没有适用法律时，会员与考生仍须遵守《道德准则与专业行为准则》，而该准则禁止使用重大非公开信息。

Answer C is incorrect because when no applicable law exists, members and candidates are required to adhere to the Code and Standards, and the Code and Standards prohibit the use of material nonpublic information.

参见准则 I(A)：知悉法律。

See Standard I(A): Knowledge of the Law

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(A)（知法守法）。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / **Knowledge of the Law**

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M03-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 104-106

题目与资料 / **Question and data**

4. Ward 计划访问 Evans Industries 的公司总部。

4. Ward is scheduled to visit the corporate headquarters of Evans Industries.

Ward 预计利用访问中取得的信息，完成其有关 Evans 股票的研究报告。

Ward expects to use the information he obtains there to complete his research report on Evans stock.

Ward 得知，Evans 打算承担此次访问的全部费用，包括餐饮、酒店住宿及机票。

Ward learns that Evans plans to pay all of Ward's expenses for the trip, including the costs of meals, his hotel room, and air transportation.

根据《道德准则与专业行为准则》，Ward 采取以下哪项行动最为适当？

Which of the following actions would be the best course for Ward to take under the Code and Standards?

A. 接受费用全包的访问安排，并撰写客观报告。

A. Accept the expense-paid trip, and write an objective report.

B. 自行支付全部差旅费用，包括餐饮及杂项开支。

B. Pay for all travel expenses, including the costs of meals and incidental items.

C. 接受费用全包的访问安排，但在报告中披露所接受服务的价值。

C. Accept the expense-paid trip, but disclose the value of the services accepted in the report.

官方答案与解析 / **Official answer and explanation**

4. 正确答案是 B。根据准则 I(B)"独立性与客观性"，最佳做法是尽可能避免利益冲突。

4. The correct answer is B. The best course of action under Standard I(B) Independence and Objectivity is to avoid a conflict of interest whenever possible.

因此，Ward 自行承担全部费用是正确答案。

Therefore, for Ward to pay for all his expenses is the correct answer.

选项 C 描述的是披露利益冲突的做法，但这一解决方式不如直接避免冲突适当。

Answer C details a course of action in which the conflict would be disclosed, but the solution is not as appropriate as avoiding the conflict of interest.

选项 A 不是最佳做法，因为它无法消除看似存在利益冲突的情况；即使报告实际上不受费用报销影响，也可能看起来受到影响。

Answer A would not be the best course because it would not remove the appearance of a conflict of interest; even though the report would not be affected by the reimbursement of expenses, it could appear to be.

参见准则 I(B)：独立性与客观性。

See Standard I(B): Independence and Objectivity

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 I(B)（独立性与客观性）。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M03-PR-005

课后习题 5
Practice Problem 5

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 105-106

题目与资料 / **Question and data**

5. Michelieu 对一位潜在客户说：“我可能还没有长期业绩记录，但我确信你会对我的建议和服务非常满意。

5. Michelieu tells a prospective client, “I may not have a long-term track record yet, but I’m sure that you’ll be very pleased with my recommendations and service.

在我入行的三年中，以股票投资为主的客户平均每年总收益率超过 26%。”

In the three years that I’ve been in the business, my equity-oriented clients have averaged a total return of more than 26% a year.”

这句话属实，但 Michelieu 只有少数客户，其中一位客户违背 Michelieu 的建议，大量买入了一只低价股，并取得巨额收益。

The statement is true, but Michelieu only has a few clients, and one of his clients took a large position in a penny stock (against Michelieu’s advice) and realized a huge gain.

这一笔高额收益，使 Michelieu 全部客户的平均年收益率超过 26%。

This large return caused the average of all of Michelieu’s clients to exceed 26% a year.

如果剔除这项投资，平均收益率仅为每年 8%。

Without this one investment, the average gain would have been 8% a year.

Michelieu 是否违反了准则？

Has Michelieu violated the Standards?

A. 没有，因为 Michelieu 并未承诺未来能够获得 26% 的收益率。

A. No, because Michelieu is not promising that he can earn a 26% return in the future.

B. 没有，因为该陈述真实、准确地描述了 Michelieu 的历史业绩。

B. No, because the statement is a true and accurate description of Michelieu's track record.

C. 违反了，因为该陈述歪曲了 Michelieu 的历史业绩。

C. Yes, because the statement misrepresents Michelieu's track record.

官方答案与解析 / **Official answer and explanation**

5. 正确答案是 C。本题涉及准则 I(C)"虚假陈述"。

5. The correct answer is C. This question relates to Standard I(C) Misrepresentation.

虽然 Michelieu 有关客户账户平均总收益率的陈述在技术上可能属实，但仍具有误导性，因为大部分收益来自一位客户违背 Michelieu 建议建立的大额头寸。

Although Michelieu's statement about the total return of his clients' accounts on average may be technically true, it is misleading because the majority of the gain resulted from one client's large position taken against Michelieu's advice.

因此，该陈述歪曲了这位会员实际负责取得的投资业绩。

Therefore, this statement misrepresents the investment performance the member is responsible for.

他没有采取措施，公平、准确且完整地呈现业绩。

He has not taken steps to present a fair, accurate, and complete presentation of performance.

因此，选项 B 错误。选项 A 错误，因为即使 Michelieu 未保证未来结果，他的措辞仍然虚假描述了历史业绩。

Answer B is thus incorrect. Answer A is incorrect because although Michelieu is not guaranteeing future results, his words are still a misrepresentation of his performance history.

参见准则 I(C)：虚假陈述。

See Standard I(C): Misrepresentation

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 I(C)（禁止虚假陈述）。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M03-PR-006

课后习题 6
Practice Problem 6

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 105, 107

题目与资料 / **Question and data**

6. Long 受邀在即将举行的一场投资会议上担任主讲嘉宾。

6. Long has been asked to be the keynote speaker at an upcoming investment conference.

会议由他的养老金基金目前使用的一家第三方投资管理机构主办。

The event is being hosted by one of the third-party investment managers currently used by his pension fund.

该管理机构提出承担 Long 的全部会议及差旅费用，并额外为其投资管理团队三名成员免除会议报名费。

The manager offers to cover all conference and travel costs for Long and make the conference registrations free for three additional members of his investment management team.

为确保会议吸引最优秀的演讲嘉宾，主办公司还安排在会议次日，到当地一座锦标赛级别球场参加专属高尔夫活动。

To ensure that the conference obtains the best speakers, the host firm has arranged for an exclusive golf outing for the day following the conference on a local championship-caliber course.

以下哪种做法最不可能违反准则 I(B)？

Which of the following is least likely to violate Standard I(B)?

A. Long 可以仅接受由主办公司支付其会议相关费用的安排。

A. Long may accept only the offer to have his conference-related expenses paid by the host firm.

B. Long 可以接受由主办公司支付会议相关费用，并由其出资参加专属高尔夫活动。

B. Long may accept the offer to have his conference-related expenses paid and may attend the exclusive golf outing at the expense of the hosting firm.

C. Long 可以接受为邀请他在会议上演讲而提供的全部激励安排。

C. Long may accept the entire package of incentives offered to speak at this conference.

官方答案与解析 / **Official answer and explanation**

6. 选项 A 正确。准则 I(B)“独立性与客观性”强调，会员与考生需要保持独立性与客观性。

6. Answer A is correct. Standard I(B) Independence and Objectivity emphasizes the need for members and candidates to maintain their independence and objectivity.

最佳做法是，公司采用严格政策，不接受他人支付差旅安排的费用。

Best practices dictate that firms adopt a strict policy not to accept compensation for travel arrangements.

不过，在某些情况下，接受对方承担差旅费用并不会损害个人的独立性与客观性。

At times, however, accepting paid travel would not compromise one's independence and objectivity.

选项 B 和 C 错误，因为额外利益，即为其他员工免除会议费用及为演讲者安排专属高尔夫活动，可能被视为与公司业务合作安排有关的诱因，而非仅与演讲活动有关。

Answers B and C are incorrect because the added benefits—free conference admission for additional staff members and an exclusive golf retreat for the speaker—could be viewed as inducements related to the firm's working arrangements and not solely related to the speaking engagement.

如果 Long 希望带其他团队成员参加会议，或参加高尔夫活动，他或其公司应承担相关费用。

Should Long wish to bring other team members or participate in the golf outing, he or his firm should be responsible for the associated fees.

参见准则 I(B)：独立性与客观性。

See Standard I(B): Independence and Objectivity

补充解析 / **Supplementary explanation**

正确选项为 **A**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 I(B)（独立性与客观性）。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

LM 4 · 准则 II 指引：资本市场的诚信
Guidance for Standard II: Integrity of Capital Markets

22 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M04-CA-006

例 1：依据非公开信息采取行动
Example 1: Acting on Nonpublic Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 115

题目与资料 / **Question and data**

例 1：依据非公开信息采取行动 Example 1: Acting on Nonpublic Information

服装连锁企业 SmartTown 的总裁兼控股股东 Barnes 决定接受一项要约，以接近公司股票市价两倍的价格出售家族企业。

Barnes, the president and controlling shareholder of the SmartTown clothing chain, decides to accept a tender offer and sell the family business at a price almost double the market price of its shares.

他把这项决定告诉姐姐，姐姐是 SmartTown 的财务主管；姐姐又告诉女儿，而女儿目前没有持有家族公司的股票；女儿随后告诉丈夫 Staple。

He describes this decision to his sister (SmartTown's treasurer), who conveys it to her daughter (who owns no stock in the family company at present), who tells her husband, Staple.

然而，Staple 把消息告诉其股票经纪人 Halsey，Halsey 随即为自己买入 SmartTown 股票。

Staple, however, tells his stockbroker, Halsey, who immediately buys SmartTown stock for himself.

官方答案与解析 / **Official answer and explanation**

评析：有关即将出售公司的信息既重大又非公开。

Comment: The information regarding the pending sale is both material and nonpublic.

Staple 将内幕信息传达给经纪人，违反了准则 II(A)。

Staple violated Standard II(A) by communicating the inside information to his broker.

Halsey 依据重大非公开信息买入股票，也违反了该准则。

Halsey also violated the standard by buying the shares on the basis of material nonpublic information.

补充解析 / **Supplementary explanation**

本案例"例 1：依据非公开信息采取行动"应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-007

例 2：控制非公开信息
Example 2: Controlling Nonpublic Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 115-116

题目与资料 / **Question and data**

例 2：控制非公开信息 Example 2: Controlling Nonpublic Information

Scotland and Pierce Incorporated 的分析师 Peter 正在协助公司为 Bright Ideas Lamp Company 进行一次后续发行。

Peter, an analyst with Scotland and Pierce Incorporated, is assisting his firm with a secondary offering for Bright Ideas Lamp Company.

Peter 通过视频会议，参加了由 Scotland and Pierce 投资银行员工及 Bright Ideas 首席执行官出席的会议。

Peter participates, via video conference call, in a meeting with Scotland and Pierce investment banking employees and Bright Ideas' CEO.

Peter 被告知，公司下一年度的盈利预测已大幅下调。

Peter is advised that the company's earnings projections for the next year have significantly dropped.

在整个视频会议期间，数名 Scotland and Pierce 的销售人员及投资组合经理不断进出 Peter 进行会议的办公室。

Throughout the video conference call, several Scotland and Pierce salespeople and portfolio managers walk in and out of Peter's office, where the call is taking place.

因此，他们得知了 Bright Ideas 预期盈利下降的情况。

As a result, they are aware of the drop in projected earnings for Bright Ideas.

会议尚未结束，公司人员便代表公司客户及公司自营账户，交易 Bright Ideas Lamp Company 的股票。

Before the call is concluded, firm personnel trade the stock of Bright Ideas Lamp Company on behalf of the firm's clients and the firm's proprietary account.

官方答案与解析 / **Official answer and explanation**

评析：Peter 未能防止重大非公开信息传递给公司其他人员并被滥用，因此违反了准则 II(A)。

Comment: Peter violated Standard II(A) because he failed to prevent the transfer and misuse of material nonpublic information to others in his firm.

Peter 所在公司本应建立信息屏障，防止非公开信息在公司各部门之间传播。

Peter's firm should have adopted information barriers to prevent the communication of nonpublic information between departments of the firm.

依据这些信息进行交易的公司人员，如属于会员或考生，也因内幕交易而违反了准则 II(A)。

Firm personnel who are members or candidates and who traded on the information also violated Standard II(A) by trading on inside information.

补充解析 / **Supplementary explanation**

本案例"例 2：控制非公开信息"应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把"非秘密"误当成"公开"；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-008

例 3：选择性披露重大信息
Example 3: Selective Disclosure of Material Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 116

题目与资料 / **Question and data**

例 3：选择性披露重大信息 Example 3: Selective Disclosure of Material Information

Levenson 是驻台北的分析师，为一家总部位于新加坡的公司负责台湾市场研究。

Levenson is an analyst based in Taipei who covers the Taiwanese market for her firm, which is based in Singapore.

她与某制造企业另外 10 位最大股东一起，获邀会见该公司的财务总监。

She is invited, together with the other 10 largest shareholders of a manufacturing company, to meet the finance director of that company.

会议期间，财务总监表示，公司预计员工将在下周五罢工，这将严重影响生产及分销。

During the meeting, the finance director states that the company expects its workforce to strike next Friday, which will cripple productivity and distribution.

Levenson 能否以此信息为依据，将公司的评级从“买入”改为“卖出”？

Can Levenson use this information as a basis to change her rating on the company from “buy” to “sell”?

官方答案与解析 / **Official answer and explanation**

评析：Levenson 必须首先确定该重大信息是否已公开。

Comment: Levenson must first determine whether the material information is public.

根据准则 II(A)，如果公司尚未公开该信息，她便不得使用；小范围会议不属于向公众传播信息的方法。

According to Standard II(A), if the company has not made this information public (a small group forum does not qualify as a method of public dissemination), she must not use the information.

补充解析 / **Supplementary explanation**

本案例“例 3：选择性披露重大信息”应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-009

例 4：判断重大性
Example 4: Determining Materiality

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 116

题目与资料 / Question and data

例 4：判断重大性 Example 4: Determining Materiality

Fechtman 管理的数只基金持有某油气勘探公司的股份，她正在决定继续持有还是出售。

Fechtman is trying to decide whether to hold or sell shares of an oil-and-gas exploration company that she owns in several of the funds she manages.

虽然该公司的表现已有一段时间落后于指数，但行业趋势显示，这类公司可能成为收购目标。

Although the company has underperformed the index for some time already, the trends in the industry sector signal that companies of this type might become takeover targets.

在她考虑决策时，平时偶尔关注市场的医生提到，她认为该公司很快会被一家大型跨国综合企业收购，现在买入股票是个好主意。

While she is considering her decision, her doctor, who casually follows the markets, mentions that she thinks that the company in question will soon be bought out by a large multinational conglomerate and that it would be a good idea to buy the stock right now.

Fechtman 咨询了多位投资专业人士对该公司的看法，并查看行业趋势，翌日决定增持该油气勘探公司的股票。

After talking to various investment professionals and checking their opinions on the company, as well as checking industry trends, Fechtman decides the next day to accumulate more stock in the oil-and-gas exploration company.

官方答案与解析 / Official answer and explanation

评析：虽然有关预期收购要约的信息一般可能属于重大非公开信息，但本例中信息来源不可靠，因此该信息不能被视为重大信息。

Comment: Although information on an expected takeover bid may be generally material and nonpublic, in this case, the source of information is unreliable, so the information cannot be considered material.

因此，并不禁止 Fechtman 依据该信息交易该股票。

Therefore, Fechtman is not prohibited from trading the stock based on this information.

补充解析 / Supplementary explanation

本案例“例 4：判断重大性”应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

重大性不是一个固定的金额门槛。要结合信息可靠性、具体程度、对公司价值的潜在影响以及合理投资者是否会据此改变决定来判断；越模糊的传言通常需要更谨慎地评价可信度。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-010

例 5：应用马赛克理论
Example 5: Applying the Mosaic Theory

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 116-117

题目与资料 / **Question and data**

例 5：应用马赛克理论 Example 5: Applying the Mosaic Theory

Teja 是负责家具行业的买方分析师。

Teja is a buy-side analyst covering the furniture industry.

为寻找值得向客户推荐的公司，他研读数家家具制造商的财务报告，并实地考察其业务，以进行分析。

Looking for an attractive company to recommend to clients, he analyzes several furniture makers by studying their financial reports and visiting their operations.

他还与一些设计师及零售商交流，了解哪些家具风格正流行并受到欢迎。

He also talks to some designers and retailers to find out which furniture styles are trendy and popular.

虽然他分析的公司中，没有一家明确值得推荐买入，但他发现，其中的 Swan Furniture Company（SFC）可能陷入财务困境。

Although none of the companies that he analyzes are clear buy recommendations, he discovers that one of them, Swan Furniture Company (SFC), may be in financial trouble.

SFC 花费巨资推出了奢华的新设计。

SFC's extravagant new designs have been introduced at substantial cost.

尽管这些设计最初吸引了关注，但公众目前更多地购买其他厂商风格较保守的家具。

Even though these designs initially attracted attention, the public is now buying more conservative furniture from other makers.

Teja 根据这些信息及损益分析，认为 SFC 下季度的盈利将大幅下降。

Based on this information and on a profit-and-loss analysis, Teja believes that SFC's next-quarter earnings will drop substantially.

他对 SFC 发出卖出建议。投资经理接到建议后，立即开始减少投资组合中持有的 SFC 股票。

He issues a sell recommendation for SFC. Immediately after receiving that recommendation, investment managers start reducing the SFC stock in their portfolios.

官方答案与解析 / **Official answer and explanation**

评析：虽然公司季度盈利数据属于重大非公开信息，但 Teja 对盈利下降的判断，是基于公开信息及一些非重大非公开信息，例如设计师和零售商的意见。

Comment: While company information on quarterly earnings data is material and nonpublic, Teja based his conclusion about the earnings drop on public information and pieces of nonmaterial nonpublic information (such as opinions of designers and retailers).

因此，依据 Teja 的正确结论进行交易，并不为准则 II(A) 所禁止。

Therefore, trading based on Teja's correct conclusion is not prohibited by Standard II(A).

补充解析 / **Supplementary explanation**

本案例"例 5：应用马赛克理论"应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

马赛克分析的合法性来自输入资料的性质，而不是最终结论是否重大。可以由公开与非重大非公开的小线索形成重要结论；如果某一输入本身已经是重大且非公开的信息，拼接其他资料也不能消除限制。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

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相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-011

例 6：应用马赛克理论
Example 6: Applying the Mosaic Theory

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 117

题目与资料 / **Question and data**

例 6：应用马赛克理论 Example 6: Applying the Mosaic Theory

Clement 是 Rivoli Capital 的高级金融分析师，专门研究欧洲汽车行业。

Clement is a senior financial analyst who specializes in the European automobile sector at Rivoli Capital.

由于多次被多家主要行业杂志和通讯提名为汽车行业“最佳分析师”，他被广泛视为该行业的权威。

Because he has been repeatedly nominated by many leading industry magazines and newsletters as a “best analyst” for the automobile industry, he is widely regarded as an authority on the sector.

Clement 与主要在亚太地区销售的欧洲汽车制造商 Turgot Chariots 的代表交谈，并访问销售人员、工会领袖、公司负责亚太地区的外汇分析师以及银行官员，随后对 Turgot Chariots 进行了分析。

After speaking with representatives of Turgot Chariots—a European auto manufacturer with sales primarily in the Asia-Pacific (APAC) region—and after conducting interviews with salespeople, labor leaders, his firm’s APAC currency analysts, and banking officials, Clement analyzed Turgot Chariots.

他得出以下结论：（1）该公司新推出的车型可能无法达到销售预期；（2）公司重组战略可能遭遇工会的强烈反对；（3）韩元贬值预计会对整个行业，尤其是 Turgot 所处细分市场的利润率构成压力；（4）在即将与公司进行的一轮信贷重新谈判中，银行可能采取比预期更强硬的立场。

He concluded that (1) its newly introduced model will probably not meet sales expectations, (2) its corporate restructuring strategy may face serious opposition from unions, (3) the depreciation of the South Korean won should lead to pressure on margins for the industry in general and Turgot’s market segment in particular, and (4) banks could take a tougher-than-expected stance in the upcoming round of credit renegotiations with the company.

基于这些理由，他将对公司的判断从“跑赢市场”改为“跑输市场”。

For these reasons, he changes his conclusion about the company from “market outperform” to “market underperform.”

Clement 保存了得出结论所依据的支持材料，以备日后出现疑问时查证。

Clement retains the support material used to reach his conclusion in case questions later arise.

官方答案与解析 / **Official answer and explanation**

评析：为判断公司的价值，Clement 汇集了多项影响 Turgot Chariots 的非重大信息或公开信息。

Comment: To reach a conclusion about the value of the company, Clement pieced together a number of nonmaterial or public bits of information that affect Turgot Chariots.

因此，根据马赛克理论，Clement 撰写该报告并未违反准则 II(A)。

Therefore, under the mosaic theory, Clement did not violate Standard II(A) in drafting the report.

补充解析 / **Supplementary explanation**

本案例“例 6：应用马赛克理论”应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

马赛克分析的合法性来自输入资料的性质，而不是最终结论是否重大。可以由公开与非重大非公开的小线索形成重要结论；如果某一输入本身已经是重大且非公开的信息，拼接其他资料也不能消除限制。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-012

例 7：分析师建议作为重大非公开信息
Example 7: Analyst Recommendations as Material Nonpublic Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 117

题目与资料 / **Question and data**

例 7：分析师建议作为重大非公开信息 Example 7: Analyst Recommendations as Material Nonpublic Information

翌日，Clement 准备接受一个全球财经电视新闻节目的采访，首次公开讨论他对 Turgot Chariots 更改后的建议。

The next day, Clement prepares to be interviewed on a global financial news television program where he will discuss publicly for the first time his changed recommendation on Turgot Chariots.

在准备节目时，他向节目制作人及即将采访他的记者 Zito 提及将要讨论的信息。

While preparing for the program, he mentions to the show's producers and Zito, the journalist who will be interviewing him, the information he will discuss.

就在节目播出之前，Zito 出售了自己持有的 Turgot Chariots 股票。

Just prior to going on the air, Zito sells her holdings in Turgot Chariots.

她还致电父亲告知消息，因为她知道父亲和其他家人都投资了 Turgot Chariots。

She also phones her father with the information because she knows that he and other family members have investments in Turgot Chariots.

官方答案与解析 / **Official answer and explanation**

评析：Zito 提前得知 Clement 改变观点时，即使不知道其背后的推理，也知道该消息会对股价产生重大影响。

Comment: When Zito receives advance notice of Clement's change of opinion, she knows it will have a material impact on the stock price, even if she is not aware of Clement's underlying reasoning.

她并非 Clement 的客户，却在信息发布之前提前取得了重大非公开信息。

She is not a client of Clement but obtains early access to the material nonpublic information prior to publication.

她的交易以重大非公开信息为依据，因此违反了准则 II(A)。

Her trades are based on material nonpublic information, thus she violated Standard II(A).

Zito 将信息转告父亲，也再次违反了该准则。

Zito further violated the standard by relaying the information to her father.

父亲或其他家人是否进行交易并不重要；提供该信息的行为本身就违反了准则 II(A)。

It would not matter if he or any other family member traded; the act of providing the information violated Standard II(A).

补充解析 / **Supplementary explanation**

本案例"例 7：分析师建议作为重大非公开信息"应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把"非秘密"误当成"公开"；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

尚未发布的研究建议本身可能影响市场，尤其是受关注分析师对流动性较差证券的建议。即使基础研究数据全是公开信息，抢先利用未发布建议仍有独立的保密与交易优先问题。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-013

例 8：依据非公开信息采取行动
Example 8: Acting on Nonpublic Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 118

题目与资料 / **Question and data**

例 8：依据非公开信息采取行动 Example 8: Acting on Nonpublic Information

Kellogg 是一位已退休的投资专业人士，目前自行管理个人投资组合。

Kellogg is a retired investment professional who manages his own portfolio.

他持有当地一家大型银行 National Savings 的股份。

He owns shares in National Savings, a large local bank.

其好友 Mayfield 是 National 的高级管理人员。

A close friend, Mayfield, is a senior executive at National.

National 的股价已大幅下跌，近几个月有关该银行的消息和前景均不乐观。

National has seen its stock price drop considerably, and the news and outlook for the bank have not been positive in recent months.

在一次讨论经济及银行业的谈话中，Mayfield 透露，National 几天后将公布出色的季度盈利，给投资界带来惊喜。

In a conversation about the economy and the banking industry, Mayfield relays the information that National will surprise the investment community in a few days when it announces excellent earnings for the quarter.

Kellogg 对这消息感到惊喜，并认为 Mayfield 作为高级管理人员了解法律，不会披露内幕信息，于是将自己在该银行的持仓增加了一倍。

Kellogg is pleasantly surprised by this information, and thinking that Mayfield, as a senior executive, knows the law and would not disclose inside information, he doubles his position in the bank.

随后，National 宣布营业盈利良好，但必须为预计贷款组合将出现的重大损失计提拨备。

Subsequently, National announces that it had good operating earnings but had to set aside reserves for anticipated significant losses on its loan portfolio.

这些消息综合起来，导致股价下跌 60%。

The combined news causes the stock to go down 60%.

官方答案与解析 / **Official answer and explanation**

评析：尽管 Kellogg 相信 Mayfield 不会违法披露内幕信息，但他增购 National 股票的行为仍违反了准则 II(A)。

Comment: Even though Kellogg believes that Mayfield would not break the law by disclosing inside information, Kellogg violated Standard II(A) by purchasing additional shares of National.

Kellogg 这次买入亏损，并不能免除其依据重大非公开信息交易的责任。

The fact that he lost money on the purchase does not absolve Kellogg for trading on material nonpublic information.

会员或考生有责任在采取投资行动之前，确保有关盈利的评论不属于重大非公开信息。

It is the member's or candidate's responsibility to make sure, before executing investment actions, that comments about earnings are not material nonpublic information.

补充解析 / **Supplementary explanation**

本案例"例 8：依据非公开信息采取行动"应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把"非秘密"误当成"公开"；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-014

例 9：判断重大性
Example 9: Materiality Determination

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 118

题目与资料 / **Question and data**

例 9：判断重大性 Example 9: Materiality Determination

共同基金交易员 Nadler 收到另一家公司的交易员发来的短信，两人已相识多年。

Nadler, a trader for a mutual fund, gets a text message from another firm's trader, whom he has known for years.

短信表示，该交易员认为某软件公司在两天后公开发布业绩时，将公布强劲盈利。

The message indicates that the trader believes a particular software company is going to report strong earnings when the firm publicly announces in two days.

Nadler 收到公司内部一位投资组合经理的买入指令，要求购入该股票数十万股。

Nadler has a buy order from a portfolio manager within his firm to purchase several hundred thousand shares of the stock.

Nadler 积极执行该经理的订单，并在翌日上午完成买入，比公司计划公布盈利的日期提前一天。

Nadler is aggressive in placing the portfolio manager's order and completes the purchases by the following morning, a day ahead of the firm's planned earnings announcement.

官方答案与解析 / **Official answer and explanation**

评析：在各类信息发布之前，市场上经常出现传闻和私下流传的预期数字。

Comment: There are often rumors and whisper numbers before a release of any kind.

另一位交易员的短信很可能被视为市场杂音。

The text message from the other trader would most likely be considered market noise.

除非 Nadler 知道该交易员与这家上市公司存在持续的业务关系，否则他没有理由怀疑自己收到的是重大非公开信息，从而不能完成投资组合经理的交易要求。

Unless Nadler knew that the trader had an ongoing business relationship with the public firm, he had no reason to suspect he was receiving material nonpublic information that would prevent him from completing the trading request of the portfolio manager.

补充解析 / **Supplementary explanation**

本案例"例 9：判断重大性"应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

重大性不是一个固定的金额门槛。要结合信息可靠性、具体程度、对公司价值的潜在影响以及合理投资者是否会据此改变决定来判断；越模糊的传言通常需要更谨慎地评价可信度。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-015

例 10：使用专家网络
Example 10: Using an Expert Network

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 118

题目与资料 / **Question and data**

例 10：使用专家网络 Example 10: Using an Expert Network

McCoy 是一家共同基金的高级药物分析师。公司聘用一项服务，协助她联系癌症治疗领域的专家。

McCoy is the senior drug analyst at a mutual fund. Her firm hires a service that connects her to experts in the treatment of cancer.

通过多次电话交流，McCoy 加深了对最新有效治疗方法的认识。

Through various phone conversations, McCoy enhances her understanding of the latest therapies for successful treatment.

这些信息对 McCoy 就生产相关药物的公司提出有充分依据的建议至关重要。

This information is critical to McCoy for making informed recommendations of the companies producing these drugs.

官方答案与解析 / **Official answer and explanation**

评析：McCoy 正在适当地运用专家网络，改善其评估过程。

Comment: McCoy is appropriately using the expert networks to enhance her evaluation process.

她既没有索取，也没有收到可能属于重大非公开信息的内容，例如初步试验结果。

She neither asked for nor received information that may be considered material and nonpublic, such as preliminary trial results.

McCoy 可以向其研究行业内的专业人士寻求意见。

McCoy is allowed to seek advice from professionals within the industry that she follows.

补充解析 / **Supplementary explanation**

本案例“例 10：使用专家网络”应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

专家网络只是信息渠道，付费不会改变保密义务。提问前可设边界，避免索取雇主尚未公开的重要经营数据；若意外收到此类信息，应停止追问并遵循限制交易和合规程序。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

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相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-016

例 11：使用专家网络
Example 11: Using an Expert Network

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 119

题目与资料 / **Question and data**

例 11：使用专家网络 Example 11: Using an Expert Network

Watson 是一家对冲基金的研究分析师。为掌握最新情况，他依靠外部专家获取科技和制药等经常出现新进展的行业信息。

Watson is a research analyst working for a hedge fund. To stay informed, Watson relies on outside experts for information on such industries as technology and pharmaceuticals, where new advancements occur frequently.

与行业专家的会面通常通过专家网络或中介安排，这些机构制定了特定政策和程序，以阻止交换重大非公开信息。

The meetings with the industry experts often are arranged through networks or placement agents that have specific policies and procedures in place to deter the exchange of material nonpublic information.

Watson 安排了一次通话，讨论基金现有持仓中某家科技公司的未来前景；该公司正在测试一款新半导体产品。

Watson arranges a call to discuss future prospects for one of the fund's existing technology company holdings, a company that was testing a new semiconductor product.

负责测试的科学家表示，对新半导体的表现感到失望。

The scientist leading the tests indicates his disappointment with the performance of the new semiconductor.

通话之后，Watson 将获得的见解转告基金其他人员。

Following the call, Watson relays the insights he received to others at the fund.

基金卖出其现有公司持仓，并买入大量看跌期权，因为市场预期新半导体会成功，而股价已反映市场的乐观情绪。

The fund sells its current position in the company and buys many put options because the market is anticipating the success of the new semiconductor and the share price reflects the market's optimism.

官方答案与解析 / **Official answer and explanation**

评析：Watson 传递了有关正在进行的产品测试的重大非公开信息，基金随后利用这些信息交易相关公司的证券和期权，因此他违反了准则 II(A)。

Comment: Watson violated Standard II(A) by passing along material nonpublic information concerning the ongoing product tests, which the fund used to trade in the securities and options of the related company.

Watson 不能仅依赖专家网络参与者签署的协议，便认定自己没有收到会使其交易活动受到禁止的信息。

Watson cannot simply rely on the agreements signed by individuals who participate in expert networks that state that he has not received information that would prohibit his trading activity.

他必须自行判断，通过这些安排取得的信息是否达到会影响其交易的重大性门槛。

He must make his own determination whether information he received through these arrangements reaches a materiality threshold that would influence his trading.

补充解析 / **Supplementary explanation**

本案例“例 11：使用专家网络”应放在准则 II(A) 的具体要求下判断。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

专家网络只是信息渠道，付费不会改变保密义务。提问前可设边界，避免索取雇主尚未公开的重要经营数据；若意外收到此类信息，应停止追问并遵循限制交易和合规程序。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

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相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-CA-017

例 1：独立分析与公司宣传
Example 1: Independent Analysis and Company Promotion

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 121

题目与资料 / **Question and data**

例 1：独立分析与公司宣传 Example 1: Independent Analysis and Company Promotion

Financial Information Services（FIS）的主要所有者与两家微型市值公司达成协议，为其股票进行宣传，以换取股票和现金报酬。

The principal owner of Financial Information Services (FIS) entered into an agreement with two microcap companies to promote the companies' stock in exchange for stock and cash compensation.

该主要所有者安排 FIS 群发电子邮件、设计并维护多个网站，以及分发在线投资通讯；所有这些内容都建议投资这两家公司。

The principal owner caused FIS to disseminate emails, design and maintain several websites, and distribute an online investment newsletter—all of which recommended investment in the two companies.

这些号称独立的分析和建议被系统地发布，其中含有不准确、高度宣传性和推测性的陈述，吸引公众增加对两家公司的投资，并导致股价大幅上涨。

The systematic publication of purportedly independent analyses and recommendations containing inaccurate and highly promotional and speculative statements increased public investment in the companies and led to dramatically higher stock prices.

官方答案与解析 / **Official answer and explanation**

评析：FIS 的主要所有者以独立分析为幌子，利用不准确的报道和误导性信息人为抬高公司股价，违反了准则 II(B)。

Comment: The principal owner of FIS violated Standard II(B) by using inaccurate reporting and misleading information under the guise of independent analysis to artificially increase the stock price of the companies.

补充解析 / **Supplementary explanation**

本案例“例 1：独立分析与公司宣传”应放在准则 II(B) 的具体要求下判断。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

为什么容易选错：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / **Market Manipulation**

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-CA-018

例 2：个人交易做法与价格
Example 2: Personal Trading Practices and Price

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 121

题目与资料 / **Question and data**

例 2：个人交易做法与价格 Example 2: Personal Trading Practices and Price

Gray 是比利时的一位私人投资者，几年前大量买入了 Fame Pharmaceuticals 的股票；这是一只平均交易量有限的德国小型股。

Gray is a private investor in Belgium who bought a large position several years ago in Fame Pharmaceuticals, a German small-cap security with limited average trading volume.

由于公司业绩不佳，他决定大幅减持。

He has decided to significantly reduce his holdings owing to the poor performance of the company.

Gray 担心，当他试图卖出大量持仓时，该股票低迷的交易量会使价格进一步下跌。

Gray is worried that the low trading volume for the stock may cause the price to decline further as he attempts to sell his large position.

Gray 将持仓分散到不同证券公司和私人银行的多个账户，账户以家人、朋友，甚至一家私人宗教机构的名义开立。

Gray divides his holdings into multiple accounts in different brokerage firms and private banks in the names of family members, friends, and even a private religious institution.

随后，他在各类博客和社交媒体平台上发起传闻宣传，为该公司造势。

He then creates a rumor campaign on various blogs and social media outlets promoting the company.

Gray 开始利用这些账户买卖股票，希望提高交易量和股价。

Gray begins to buy and sell the stock using the accounts in hopes of raising the trading volume and the price.

他通过多名经纪人按精心安排的时间表交易，每次卖出数量略高于买入数量；经过一段时间，他得以按计划减持，同时未对出售价格造成负面影响。

He conducts the trades through multiple brokers, selling slightly larger positions than he bought on a tactical schedule, and over time, he is able to reduce his holding as desired without negatively affecting the sale price.

官方答案与解析 / **Official answer and explanation**

评析：Gray 通过网络传闻，以欺诈方式营造投资者对该股票兴趣增加的假象，违反了准则 II(B)。

Comment: Gray violated Standard II(B) by fraudulently creating the appearance that there was greater investor interest in the stock through the online rumors.

此外，他的交易策略制造了该股票流动性高于实际水平的假象。

Additionally, through his trading strategy, he created the appearance that there was greater liquidity in the stock than actually existed.

他同时利用虚假信息与交易行为操纵价格。

He manipulated the price through both misinformation and trading practices.

补充解析 / **Supplementary explanation**

本案例“例 2：个人交易做法与价格”应放在准则 II(B) 的具体要求下判断。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

在交易型操纵中，要看交易是否产生真实经济暴露，还是仅为制造活跃成交或价格走势。先拉抬、再利用被误导投资者的买盘卖出，利益冲突与虚假信号是同一安排的两个部分。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

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相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / Market Manipulation

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-CA-019

例 3：制造人为价格波动
Example 3: Creating Artificial Price Volatility

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 122

题目与资料 / **Question and data**

例 3：制造人为价格波动 Example 3: Creating Artificial Price Volatility

Murphy 是 Divisadero Securities & Co. 的分析师，该公司最重要的经纪业务客户中有许多对冲基金。

Murphy is an analyst at Divisadero Securities & Co., which has a significant number of hedge funds among its most important brokerage clients.

其中一些对冲基金持有 Wirewolf Semiconductor 的空头头寸。

Some of the hedge funds hold short positions on Wirewolf Semiconductor.

在季末报告发布前两个交易日，Murphy 通知销售团队，他即将发布一份有关 Wirewolf 的研究报告，其中将包括以下观点：

Two trading days before the publication of a quarter-end report, Murphy alerts his sales force that he is about to issue a research report on Wirewolf that will include the following opinions:

- 季度收入很可能低于管理层指引。
- Quarterly revenues are likely to fall short of management's guidance.
- 每股盈利将比市场一致预期低多达 5 美分，或超过 10%。
- Earnings will be as much as 5 cents per share (or more than 10%) below consensus.
- Wirewolf 备受尊敬的首席财务官可能即将加入另一家公司。
- Wirewolf's highly respected chief financial officer may be about to join another company.

Murphy 知道 Wirewolf 已进入其宣布的业绩公布前季末“静默期”，因此不愿回应传闻，便特意安排研究报告的发布时间，夸大消息中的负面内容，以对 Wirewolf 股价造成显著下行压力，从而明显有利于 Divisadero 的对冲基金客户。

Knowing that Wirewolf has already entered its declared quarter-end "quiet period" before reporting earnings (and thus would be reluctant to respond to rumors), Murphy times the release of his research report specifically to sensationalize the negative aspects of the message in order to create significant downward pressure on Wirewolf's stock—to the distinct advantage of Divisadero's hedge fund clients.

报告的结论基于猜测，而非事实。

The report's conclusions are based on speculation, not on fact.

翌日，该研究报告向 Divisadero 的全部客户及通常使用的新闻通讯社发布。

The next day, the research report is broadcast to all of Divisadero's clients and to the usual newswire services.

在当季最后一个交易日，Wirewolf 的投资者关系部门尚未来得及评估损害并反驳 Murphy 的报告，公司股价便大幅低开，使 Divisadero 的客户得以回补空头并取得丰厚利润。

Before Wirewolf's investor relations department can assess the damage on the final trading day of the quarter and refute Murphy's report, its stock opens trading sharply lower, allowing Divisadero's clients to cover their short positions at substantial gains.

官方答案与解析 / **Official answer and explanation**

评析：Murphy 意图制造人为价格波动，以对发行人股价产生重大影响，因此违反了准则 II(B)。

Comment: Murphy violated Standard II(B) by aiming to create artificial price volatility designed to have a material impact on the price of an issuer's stock.

补充解析 / **Supplementary explanation**

本案例"例 3：制造人为价格波动"应放在准则 II(B) 的具体要求下判断。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

在交易型操纵中，要看交易是否产生真实经济暴露，还是仅为制造活跃成交或价格走势。先拉抬、再利用被误导投资者的买盘卖出，利益冲突与虚假信号是同一安排的两个部分。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

为什么容易选错：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / **Market Manipulation**

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-CA-020

例 **4**：个人交易与交易量
Example 4: Personal Trading and Volume

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 122

题目与资料 / **Question and data**

例 4：个人交易与交易量 Example 4: Personal Trading and Volume

Sekar 管理两只基金，一只是股票基金，另一只是平衡型基金，两者的股票部分按规定应使用相同模型管理。

Sekar manages two funds—an equity fund and a balanced fund—whose equity components are supposed to be managed in accordance with the same model.

按照该模型，两只基金持有的 Digital Design Inc.（DD）股票均超出了适当比例。

According to that model, the funds' holdings in stock of Digital Design Inc. (DD) are excessive.

然而，该股票流动性较低，因此减持 DD 并不容易。

Reduction of the DD holdings would not be easy, however, because the stock has low liquidity.

Sekar 决定开始在两只基金之间来回买卖较大数量的 DD 股票，以逐步提高股价；他相信市场参与者看到成交量增加、价格上涨后，会对该股票产生兴趣。

Sekar decides to start trading larger portions of DD stock back and forth between his two funds to slowly increase the price; he believes market participants will see growing volume and increasing price and become interested in the stock.

如果其他投资者因产生兴趣而愿意买入 DD 股票，Sekar 就能够在不引起价格下跌的情况下，卖出至少部分超配持仓。

If other investors are willing to buy the DD stock because of such interest, then Sekar will be able to get rid of at least some of his overweight position without inducing price decreases.

如此一来，即使产生额外的经纪佣金，整个交易也将有利于基金参与者。

In this way, the whole transaction will be for the benefit of fund participants, even if additional brokers' commissions are incurred.

官方答案与解析 / **Official answer and explanation**

评析：Sekar 的计划虽然有利于其基金参与者，但以人为扭曲 DD 股票的交易量及价格为基础，因此违反了准则 II(B)。

Comment: Sekar's plan would be beneficial for his funds' participants but is based on artificial distortion of both trading volume and the price of the DD stock and thus constitutes a violation of Standard II(B).

补充解析 / **Supplementary explanation**

本案例“例 4：个人交易与交易量”应放在准则 II(B) 的具体要求下判断。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

在交易型操纵中，要看交易是否产生真实经济暴露，还是仅为制造活跃成交或价格走势。先拉抬、再利用被误导投资者的买盘卖出，利益冲突与虚假信号是同一安排的两个部分。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

为什么容易选错：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / **Market Manipulation**

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-CA-021

例 5：制造人为价格波动
Example 5: Creating Artificial Price Volatility

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 122-123

题目与资料 / **Question and data**

例 5：制造人为价格波动 Example 5: Creating Artificial Price Volatility

Gordon 是一家专注研究的小型机构 Picador & Co. 聘用的家居用品行业分析师。根据她在拉丁美洲考察期间收集的信息，她认为大型个人护理用品销售商 Hygene, Inc. 在南美洲推出的新产品，带来了高于预期的销售。

Gordon, an analyst of household products companies, is employed by a research boutique, Picador & Co. Based on information that she has gathered during a trip through Latin America, she believes that Hygene, Inc., a major marketer of personal care products, has generated better-than-expected sales from its new product initiatives in South America.

Gordon 在 Hygene 的电子表格模型中，适度上调收入和毛利率预测后，估计其当年每股摊薄盈利 2.00 美元的预测可能低估了多达 5%。

After modestly boosting her projections for revenue and for gross profit margin in her worksheet models for Hygene, Gordon estimates that her earnings projection of US$2.00 per diluted share for the current year may be as much as 5% too low.

她联系 Hygene 的首席财务官（CFO），试图确认考察发现，并听取其对修订后模型的意见。

She contacts the chief financial officer (CFO) of Hygene to try to gain confirmation of her findings from her trip and to get feedback regarding her revised models.

首席财务官拒绝评论，并重申管理层最近给出的全年每股盈利 1.95–2.05 美元的指引。

The CFO declines to comment and reiterates management's most recent guidance of US$1.95–US$2.05 for the year.

Gordon 决定设法迫使公司回应，告诉 Picador & Co. 中采用动量投资风格的客户，市场对 Hygene 的一致盈利预测过低；她解释，自己正在考虑将已公布的预测大幅上调每股 0.15–2.15 美元。〔按前文 2.00 美元基数理解，应为上调 0.15 美元至 2.15 美元；原文标点如此。〕

Gordon decides to try to force a comment from the company by telling Picador & Co. clients who follow a momentum investment style that consensus earnings projections for Hygene are much too low; she explains that she is considering raising her published estimate by an ambitious US$0.15–US$2.15 per share.

她认为，当这一不切实际的高盈利预测传到 Hygene 的投资者关系部门时，公司会觉得有必要更新盈利指引。

She believes that when word of an unrealistically high earnings projection filters back to Hygene's investor relations department, the company will feel compelled to update its earnings guidance.

与此同时，Gordon 希望自己至少正确判断了盈利方向，并希望遵照她的见解和建议交易的客户能够迅速获利。

Meanwhile, Gordon hopes that she is correct at least with respect to the earnings direction and that she will help clients who act on her insights to profit from a quick gain by trading on her advice.

官方答案与解析 / **Official answer and explanation**

评析：Gordon 夸大盈利预测，试图推动 Hygene 股价快速上涨，违反了准则 II(B)。

Comment: By exaggerating her earnings projections in order to try to fuel a quick gain in Hygene's stock price, Gordon is in violation of Standard II(B).

不过，如果 Gordon 撰写的报告符合以下要求，则是可以接受的：

However, it would have been acceptable for Gordon to write a report that

- 将盈利预测表述为一系列可能结果所构成的区间；以及
- framed her earnings projection in a range of possible outcomes and
- 清楚列明 Hygene 模型所采用的假设，并将她在拉丁美洲考察期间的发现纳入考虑。
- outlined clearly the assumptions used in her Hygene models that took into consideration the findings from her trip through Latin America.

补充解析 / **Supplementary explanation**

本案例"例 5：制造人为价格波动"应放在准则 II(B) 的具体要求下判断。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

在交易型操纵中，要看交易是否产生真实经济暴露，还是仅为制造活跃成交或价格走势。先拉抬、再利用被误导投资者的买盘卖出，利益冲突与虚假信号是同一安排的两个部分。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

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相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / **Market Manipulation**

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-CA-022

例 6：拉高出货策略
Example 6: Pump and Dump Strategy

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 123

题目与资料 / **Question and data**

例 6：拉高出货策略 Example 6: Pump and Dump Strategy

为了推高自己持有的 Moosehead & Belfast Railroad Company 股票价格，Weinberg 登录多个投资者聊天室，散播传闻称该公司预期会获得一份大额木材运输合同，因此即将扩建铁路网络。

In an effort to pump up the price of his holdings in Moosehead & Belfast Railroad Company, Weinberg logs on to several investor chatrooms to start rumors that the company is about to expand its rail network in anticipation of receiving a large contract for shipping lumber.

官方答案与解析 / **Official answer and explanation**

评析：Weinberg 为误导市场参与者而散播有关 Moosehead & Belfast 的虚假信息，违反了准则 II(B)。

Comment: Weinberg violated Standard II(B) by disseminating false information about Moosehead & Belfast with the intent to mislead market participants.

补充解析 / **Supplementary explanation**

本案例“例 6：拉高出货策略”应放在准则 II(B) 的具体要求下判断。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

在交易型操纵中，要看交易是否产生真实经济暴露，还是仅为制造活跃成交或价格走势。先拉抬、再利用被误导投资者的买盘卖出，利益冲突与虚假信号是同一安排的两个部分。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

为什么容易选错：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / **Market Manipulation**

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 124, 126

题目与资料 / **Question and data**

1. 马赛克理论认为，分析师：

1. The mosaic theory holds that an analyst:

A. 如果不了解及遵守适用法律，就违反《道德准则与专业行为准则》。

A. violates the Code and Standards if the analyst fails to have knowledge of and comply with applicable laws.

B. 可以在分析中使用重大公开信息及非重大非公开信息。

B. can use material public information and nonmaterial nonpublic information in the analyst's analysis.

C. 应使用所有可获得的相关信息来支持投资建议。

C. should use all available and relevant information in support of an investment recommendation.

官方答案与解析 / **Official answer and explanation**

1. 正确答案为 B。本题涉及准则 II(A)"重大非公开信息"。

1. The correct answer is B. This question deals with Standard II(A) Material Nonpublic Information.

马赛克理论指出，分析师可以利用重大公开信息及非重大非公开信息，构建超越任何单项信息所呈现的整体图景；分析师所得结论只有在这些信息拼合之后，才具有重大性。

The mosaic theory states that an analyst may use material public information and nonmaterial nonpublic information in creating a larger picture than shown by any individual piece of information and the conclusions the analyst reaches become material only after the pieces are assembled.

A 和 C 都是有关《道德准则与专业行为准则》的正确陈述，但并未描述马赛克理论。

Answers A and C are accurate statements relating to the Code and Standards but do not describe the mosaic theory.

参见准则 II(A)：重大非公开信息。

See Standard II(A): Material Nonpublic Information

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

马赛克分析的合法性来自输入资料的性质，而不是最终结论是否重大。可以由公开与非重大非公开的小线索形成重要结论；如果某一输入本身已经是重大且非公开的信息，拼接其他资料也不能消除限制。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-PR-002

课后习题 **2**
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 124, 126

题目与资料 / **Question and data**

2. 证券公司的投资银行部门经常取得重大非公开信息，如果将这些信息用于为公司的经纪业务客户提供意见，可能具有相当大的价值。

2. An investment banking department of a brokerage firm often receives material nonpublic information that could have considerable value if used in advising the firm’s brokerage clients.

为符合《道德准则与专业行为准则》，以下哪项是该证券公司的最佳政策？

In order to conform to the Code and Standards, which one of the following is the best policy for the brokerage firm?

A. 永久禁止对投资银行部门客户的股票作出“买入”或“卖出”建议。

A. Permanently prohibit both “buy” and “sell” recommendations of the stocks of clients of the investment banking department.

B. 在公司内部建立实体及信息屏障，防止投资银行业务与经纪业务之间交换信息。

B. Establish physical and informational barriers within the firm to prevent the exchange of information between the investment banking and brokerage operations.

C. 监控投资银行部门与经纪业务部门之间的信息交换。

C. Monitor the exchange of information between the investment banking department and the brokerage operation.

官方答案与解析 / **Official answer and explanation**

2. 正确答案为 B。防止违反准则 II(A)“重大非公开信息”的最佳政策，是在公司内部设立信息隔离墙，防止内幕信息交换。

2. The correct answer is B. The best policy to prevent violation of Standard II(A) Material Nonpublic Information is the establishment of firewalls in a firm to prevent the exchange of insider information.

投资银行部门与经纪业务部门之间的实体及信息隔离墙，可防止投资银行部门向经纪业务侧可能正在撰写某公司股票建议的分析师提供信息。

The physical and informational barrier of a firewall between the investment banking department and the brokerage operation prevents the investment banking department from providing information to analysts on the brokerage side who may be writing recommendations on a company stock.

禁止推荐投资银行部门客户的股票，也是一个替代做法，但选项 A 表示此禁令是永久性的，因此并非最佳答案。

Prohibiting recommendations of the stock of companies that are clients of the investment banking department is an alternative, but answer A states that this prohibition would be permanent, which is not the best answer.

发行完成、投资银行部门取得的重大非公开信息公开后，恢复发布该股票的建议，并不违反《道德准则与专业行为准则》，因为投资银行部门的信息已不再使经纪业务部门在撰写报告时占有优势。

Once an offering is complete and the material nonpublic information obtained by the investment banking department becomes public, resuming publishing recommendations on the stock is not a violation of the Code and Standards, because the information of the investment banking department no longer gives the brokerage operation an advantage in writing the report.

C 不正确，因为投资银行部门与经纪业务部门本就不应交换这些信息，因此仅监控此类交换，并不是防止使用重大非公开信息的有效合规程序。

Answer C is incorrect because no exchange of information should be occurring between the investment banking department and the brokerage operation, so monitoring of such exchanges is not an effective compliance procedure for preventing the use of material nonpublic information.

参见准则 II(A)：重大非公开信息。

See Standard II(A): Material Nonpublic Information

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

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相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-PR-003

课后习题 3
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 124, 126

题目与资料 / **Question and data**

3. 私人财富经理 Andrews 正在为公司招聘新研究分析师，并进行面试。

3. Andrews, a private wealth manager, is conducting interviews for a new research analyst for his firm.

其中一位应聘者 Wright 是当地一家投资银行的分析师。

One of the candidates is Wright, an analyst with a local investment bank.

面试期间，Wright 在介绍自己的分析能力时，提到一项正在进行的合并，其公司担任该交易的顾问。

During the interview, while Wright is describing his analytical skills, he mentions a current merger in which his firm is acting as the adviser.

Andrews 曾听闻这两家公司可能合并的传言，但有关公司尚未发布任何公告。

Andrews has heard rumors of a possible merger between the two companies, but no releases have been made by the companies concerned.

Andrews 采取以下哪项行动最不可能违反《道德准则与专业行为准则》？

Which of the following actions by Andrews is least likely a violation of the Code and Standards?

A. 等到翌日才依据信息交易，让信息有时间公开。

A. Waiting until the next day before trading on the information to allow time for it to become public

B. 将新信息通知公司所有投资经理，以免任何客户处于不利地位。

B. Notifying all investment managers in his firm of the new information so none of their clients are disadvantaged

C. 将涉及该合并的证券列入公司的交易限制名单。

C. Placing the securities mentioned as part of the merger on the firm’s restricted trading list

官方答案与解析 / **Official answer and explanation**

3. C 正确。当公司掌握或可能掌握重大非公开信息时，应将相关证券加入限制名单。

3. Answer C is correct. Firms should add securities to a restricted list when the firm has or may have material nonpublic information.

Andrews 将这些证券加入名单，即是在遵守本项准则。

By adding these securities to this list, Andrews would uphold this standard.

等到翌日，并不能确保合并消息已经公开，因此 A 不正确。

Because waiting until the next day will not ensure that news of the merger is made public, answer A is incorrect.

两家公司的谈判可能持续更长时间，合并也可能永远不会发生。

Negotiations between the two companies may take much longer, and the merger may never happen.

Andrews 必须等到信息向市场传播之后，才能依据信息交易。

Andrews must wait until the information is disseminated to the market before he trades on that information.

B 不正确，因为 Andrews 不应向其他经理披露该信息；不得依据重大非公开信息交易。

Answer B is incorrect because Andrews should not disclose the information to other managers; no trading is allowed on material nonpublic information.

参见准则 II(A)：重大非公开信息。

See Standard II(A): Material Nonpublic Information

补充解析 / **Supplementary explanation**

正确选项为 **C**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

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相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M04-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 124-126

题目与资料 / Question and data

4. Local Bank 总裁 Pietro 聘请该银行股票的做市商 Vogt，寻找合并伙伴。

4. Pietro, president of Local Bank, has hired the bank's market maker, Vogt, to seek a merger partner.

Local 已在证券交易所上市，但尚未公布正在寻求战略选择。

Local is currently listed on a stock exchange and has not reported that it is seeking strategic alternatives.

Vogt 已与数家公司讨论合并的可能性，但这些公司都决定等下一期财务数据公布后再作考虑。

Vogt has discussed the possibility of a merger with several firms, but they have all decided to wait until after the next period's financial data are available.

潜在买方认为，下一期业绩将较往期差，从而让其能够以较低价格收购 Local Bank。

The potential buyers believe the results will be worse than the results of prior periods and will allow them to pay less for Local Bank.

Pietro 希望提高尽快达成合并交易的可能性。

Pietro wants to increase the likelihood of structuring a merger deal quickly.

以下哪项行动最可能违反《道德准则与专业行为准则》？

Which of the following actions would most likely be a violation of the Code and Standards?

A. Pietro 指示 Local Bank 发布新闻稿，宣布已委聘 Vogt 寻找合并伙伴。

A. Pietro could instruct Local Bank to issue a press release announcing that it has retained Vogt to find a merger partner.

B. Pietro 通过 Vogt 为自己的个人账户下达买入 2,000 股的订单，相当于平均每周成交量的四倍。

B. Pietro could place a buy order for 2,000 shares (or four times the average weekly volume) through Vogt for his personal account.

C. Pietro 与 Local 的首席财务官确认后，指示公司发布新闻稿，重申此前公布的整个财政年度盈利指引。

C. After confirming with Local's chief financial officer, Pietro could instruct Local to issue a press release reaffirming the firm's prior announced earnings guidance for the full fiscal year.

官方答案与解析 / Official answer and explanation

4. B 正确。Pietro 为个人账户下达远高于平均成交量的买单，违反了准则 II(B)"市场操纵"。

4. Answer B is correct. Through placing a personal purchase order that is significantly greater than the average volume, Pietro is violating Standard II(B) Market Manipulation.

他试图操纵股价上涨，从而促使买方加入谈判。

He is attempting to manipulate an increase in the share price and thus bring a buyer to the negotiating table.

潜在合并的消息，以及确认公司盈利指引，也可能有利于 Local Bank 的股价，但 Pietro 指示发布这些信息的行为，并不构成市场操纵违规。

The news of a possible merger and confirmation of the firm's earnings guidance may also have positive effects on the price of Local Bank, but Pietro's actions in instructing the release of the information does not represent a violation through market manipulation.

这类公告是让投资者了解情况的常见、实用做法。

Announcements of this nature are common and practical to keep investors informed.

因此，A 和 C 不正确。参见准则 II(B)：市场操纵。

Thus, answers A and C are incorrect. See Standard II(B): Market Manipulation

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 II(B)（市场操纵）。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

为什么容易选错：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / **Market Manipulation**

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M04-PR-005

课后习题 5
Practice Problem 5

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 125-126

题目与资料 / **Question and data**

5. 在打高尔夫球期间，Mega Retail 的首席财务官 Rodriguez 向当地投资顾问兼多年好友 Hart 提到，Mega 本季度的销售异常出色。

5. During a round of golf, Rodriguez, chief financial officer of Mega Retail, mentions to Hart, a local investment adviser and long-time personal friend, that Mega is having an exceptional sales quarter.

Rodriguez 预计业绩将比目前的估计高近 10%。

Rodriguez expects the results to be almost 10% above the current estimates.

翌日，Hart 开始为个人账户大量买入当地一只零售业交易所交易基金。

The next day, Hart initiates the purchase of a large stake in the local exchange-traded retail fund for her personal account.

A. Hart 投资了持有 Mega Retail 的交易所交易基金，因此违反了《道德准则与专业行为准则》。

A. Hart violated the Code and Standards by investing in the exchange-traded fund that included Mega Retail.

B. Hart 没有直接投资 Mega Retail 的证券，因此没有违反《道德准则与专业行为准则》。

B. Hart did not violate the Code and Standards, because she did not invest directly in securities of Mega Retail.

C. Rodriguez 对 Hart 所作评论并非旨在招揽其投资 Mega Retail，因此没有违反《道德准则与专业行为准则》。

C. Rodriguez did not violate the Code and Standards, because the comments made to Hart were not intended to solicit an investment in Mega Retail.

> 官方答案与解析 / **Official answer and explanation**

5. A 正确。Hart 投资零售业基金的决定，显然与 Rodriguez 对 Mega Retail 本季度出色表现的陈述直接相关，因此违反了准则 II(A)“重大非公开信息”。

5. Answer A is correct. Hart’s decision to invest in the retail fund appears directly correlated with Rodriguez’s statement about the successful quarter of Mega Retail and thus violates Standard II(A) Material Nonpublic Information.

Rodriguez 的信息会被视为重大信息，因为它将影响 Mega Retail 股价，也可能影响整个零售业交易所交易基金的价格。

Rodriguez’s information would be considered material because it would influence the share price of Mega Retail and probably influence the price of the entire exchange-traded retail fund.

因此，B 不正确。C 也不正确，因为 Rodriguez 分享的信息既重大又非公开。

Thus, answer B is incorrect. Answer C is also incorrect because Rodriguez shared information that was both material and nonpublic.

公司高管经常掌握此类有关自己公司的信息，这本身并不违规。

Company officers regularly have such knowledge about their firms, which is not a violation.

但分享这类信息，即使只是朋友间的谈话，也违反准则 II(A)。

The sharing of such information, however, even in a conversation between friends, does violate Standard II(A).

参见准则 II(A)：重大非公开信息。

See Standard II(A): Material Nonpublic Information

补充解析 / **Supplementary explanation**

正确选项为 **A**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

LM 5 · 准则 III 指引：对客户的责任
Guidance for Standard III: Duties to Clients

55 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M05-CA-013

例 1：确定客户身份——计划参与者
Example 1: Identifying the Client—Plan Participants

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 135

题目与资料 / **Question and data**

例 1：确定客户身份——计划参与者 Example 1: Identifying the Client—Plan Participants

First Country Bank 担任 Miller Company 养老金计划的受托人。

First Country Bank serves as trustee for the Miller Company's pension plan.

Newton, Inc. 正试图敌意收购 Miller。为抵御 Newton，Miller 的管理层说服 First Country Bank 的投资经理 Wiley，为员工养老金计划在公开市场大量购买 Miller 普通股。

Miller is the target of a hostile takeover attempt by Newton, Inc. In attempting to ward off Newton, Miller's managers persuade Wiley, an investment manager at First Country Bank, to purchase a significant amount of Miller common stock in the open market for the employee pension plan.

Miller 的高管表示，公司会欢迎这种行动，而且很可能将其他账户也交给该银行管理。

Miller's officials indicate that such an action would be favorably received and would probably result in other accounts being placed with the bank.

虽然 Wiley 认为该股票被高估，通常不会买入，但为了支持 Miller 管理层、维持 Miller 对银行的好感，以及取得更多新业务，他仍购买了该股票。

Although Wiley believes the stock is overvalued and would not ordinarily buy it, he purchases the stock to support Miller's managers, to maintain Miller's good favor toward the bank, and to realize additional new business.

大量买入令 Miller 股价升至 Newton 撤回收购要约的水平。

The heavy stock purchases cause Miller's market price to rise to such a level that Newton retracts its takeover bid.

官方答案与解析 / **Official answer and explanation**

评析：准则 III(A) 要求会员或考生在评估收购要约时，审慎地、完全为计划参与者及受益人的利益行事。

Comment: Standard III(A) requires that a member or candidate, in evaluating a takeover bid, act prudently and solely in the interests of plan participants and beneficiaries.

为满足此要求，会员或考生必须仔细比较公司的长期前景、收购要约提供的短期前景，以及将资金投资于其他地方的机会。

To meet this requirement, a member or candidate must carefully evaluate the long-term prospects of the company against the short-term prospects presented by the takeover offer and by the ability to invest elsewhere.

本例中，Wiley 代表担任养老金计划受托人的雇主行事，显然违反了准则 III(A)。

In this instance, Wiley, acting on behalf of his employer, which was the trustee for a pension plan, clearly violated Standard III(A).

他利用养老金计划巩固现有管理层，并使自己受益，可能因此损害计划参与者及公司股东。

He used the pension plan to perpetuate existing management, perhaps to the detriment of plan participants and the company's shareholders, and to benefit himself.

Wiley 对计划参与者及受益人的责任，必须优先于银行同公司管理层的任何关系，也必须优先于其个人利益。

Wiley's responsibilities to the plan participants and beneficiaries must take precedence over any ties of his bank to corporate managers and over his self-interest.

Wiley 有责任根据收购要约本身的利弊进行审查，并作出独立决定。

Wiley had a duty to examine the takeover offer on its own merits and to make an independent decision.

指导原则是该投资决策对养老金计划是否适当，而不是其是否有利于 Wiley 或聘用他的公司。

The guiding principle is the appropriateness of the investment decision to the pension plan, not whether the decision benefited Wiley or the company that hired him.

补充解析 / **Supplementary explanation**

本案例"例 1：确定客户身份——计划参与者"应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

名义签约人或发出指令的人不一定是最终应忠诚的对象。养老金、信托和代理安排中，要把发起人、受托人、账户持有人与受益人分清，再判断指令是否损害真正客户利益。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-014

例 2：客户佣金的使用
Example 2: Client Commission Practices

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 136

题目与资料 / **Question and data**

例 2：客户佣金的使用 Example 2: Client Commission Practices

Jackson 是 JNI 的首席执行官。JNI 是一家成功的投资顾问公司，为数家大型区域性公司的养老金计划担任投资经理。

Jackson is CEO of JNI, a successful investment counseling firm that serves as investment manager for the pension plans of several large regional companies.

JNI 的交易活动带来大量佣金业务。

JNI's trading activities generate a significant amount of commission-related business.

Jackson 使用多家公司的经纪与研究服务，但公司大部分交易经由大型证券公司 Thompson, Inc. 处理，因为两家公司的高管关系密切。

Jackson uses the brokerage and research services of many firms, but most of his company's trading activity is handled through one large brokerage company, Thompson, Inc., because the executives of the two firms have a close friendship.

与其他公司提供的类似经纪服务收费相比，Thompson 的佣金水平较高。

Thompson's commission structure is high in comparison with charges for similar brokerage services from other firms.

Jackson 认为 Thompson 的研究服务及交易执行能力只是一般。

Jackson considers Thompson's research services and execution capabilities average.

作为 JNI 将经纪业务交给 Thompson 的交换条件，Thompson 承担 JNI 的若干日常开支，包括租金。

In exchange for JNI directing its brokerage to Thompson, Thompson absorbs a number of JNI overhead expenses, including those for rent.

官方答案与解析 / **Official answer and explanation**

评析：Jackson 利用客户佣金支付对 JNI 客户没有益处的服务，而且没有为客户取得最佳价格及最佳执行，因而违反了其责任。

Comment: Jackson is breaching his responsibilities by using client brokerage for services that do not benefit JNI clients and by not obtaining best price and best execution for JNI clients.

Jackson 未履行忠诚义务，因此违反了准则 III(A)。

Because Jackson is not upholding his duty of loyalty, he is violating Standard III(A).

补充解析 / **Supplementary explanation**

本案例“例 2：客户佣金的使用”应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

客户佣金实质上是客户资产。分析时要追踪佣金购买了什么、谁得到好处、是否改善该客户的投资决策或执行；用它交换雇主广告、办公室或个人好处，不能因客户看不到费用而合理化。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-015

例 3：经纪安排
Example 3: Brokerage Arrangements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 136

题目与资料 / **Question and data**

例 3：经纪安排 Example 3: Brokerage Arrangements

Everett 是一位经营困难的独立投资顾问，为数家公司的养老金计划担任投资经理。

Everett, a struggling independent investment adviser, serves as investment manager for the pension plans of several companies.

其经纪商之一 Scott Company，正接近与潜在新客户敲定管理协议：由 Everett 管理新客户账户，并仅通过 Scott 进行交易。

One of her brokers, Scott Company, is close to finalizing management agreements with prospective new clients whereby Everett would manage the new client accounts and trade the accounts exclusively through Scott.

Everett 的现有客户之一 Crayton Corporation 已指示她，仅通过 Scott 为 Crayton 账户进行证券交易。

One of Everett’s existing clients, Crayton Corporation, has directed Everett to place security transactions for Crayton’s account exclusively through Scott.

为促使 Scott 更积极地转介新账户，Everett 在其他客户不知情的情况下，也将他们的交易交给 Scott。

To induce Scott to exert effort to send more new accounts to her, Everett also directs transactions to Scott from other clients without their knowledge.

官方答案与解析 / **Official answer and explanation**

评析：Everett 在任何时候都有义务，为所有交易寻求最佳价格及最佳执行。

Comment: Everett has an obligation at all times to seek best price and best execution on all trades.

只要 Everett 能取得最佳价格及执行，或者取得新客户的书面声明，明确要求她不必寻求最佳价格及执行，并确认客户明白这对账户的影响，她便可以将新客户的交易全部交给 Scott Company。

Everett may direct new client trades exclusively through Scott Company as long as Everett receives best price and execution on the trades or receives a written statement from new clients that she is not to seek best price and execution and that they are aware of the consequence for their accounts.

Everett 只有在其他账户获得最佳价格及执行，且该做法已向有关账户披露的情况下，才可以将这些账户的交易交给 Scott，作为其转介客户的回报。

Everett may trade other accounts through Scott as a reward for directing clients to Everett only if the accounts receive best price and execution and the practice is disclosed to the accounts.

Everett 没有披露该指定交易安排，因此违反了准则 III(A)。

Because Everett does not disclose the directed trading, Everett violated Standard III(A).

补充解析 / **Supplementary explanation**

本案例“例 3：经纪安排”应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

客户佣金实质上是客户资产。分析时要追踪佣金购买了什么、谁得到好处、是否改善该客户的投资决策或执行；用它交换雇主广告、办公室或个人好处，不能因客户看不到费用而合理化。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-016

例 4：经纪安排
Example 4: Brokerage Arrangements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 136-137

题目与资料 / **Question and data**

例 4：经纪安排 Example 4: Brokerage Arrangements

Rome 是 Paget Trust Company 的信托经理。其主管负责审查她的信托账户交易，以及每月个人股票交易报告。

Rome is a trust officer for Paget Trust Company. Rome's supervisor is responsible for reviewing Rome's trust account transactions and her monthly reports of personal stock transactions.

Rome 几乎一直仅使用经纪人 Gray，为信托账户进行经纪交易。

Rome has been using Gray, a broker, almost exclusively for trust account brokerage transactions.

Gray 为股票做市时，为 Rome 个人买入提供的价格，比为她管理的信托账户及其他投资者提供的价格更低；为她个人卖出提供的价格则更高。

When Gray makes a market in stocks, he has been giving Rome a lower price for personal purchases and a higher price for sales than he gives to Rome's trust accounts and other investors.

官方答案与解析 / **Official answer and explanation**

评析：Rome 仅因 Gray 为其个人账户提供优惠交易条件，就使用 Gray 执行经纪交易，违反了对银行信托账户的忠诚义务。

Comment: Rome is violating her duty of loyalty to the bank's trust accounts by using Gray for brokerage transactions simply because Gray trades Rome's personal account on favorable terms.

Rome 将个人利益置于客户利益之上。

Rome is placing her own interests before those of her clients.

补充解析 / **Supplementary explanation**

本案例"例 4：经纪安排"应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

客户佣金实质上是客户资产。分析时要追踪佣金购买了什么、谁得到好处、是否改善该客户的投资决策或执行；用它交换雇主广告、办公室或个人好处，不能因客户看不到费用而合理化。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

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相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

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V10-M05-CA-017

例 5：客户佣金的使用
Example 5: Client Commission Practices

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 137

题目与资料 / **Question and data**

例 5：客户佣金的使用 Example 5: Client Commission Practices

Parker 是 Provo Advisors 的分析师，负责南美洲股票研究。

Parker, an analyst with Provo Advisors, covers South American equities for her firm.

她喜欢前往自己负责的市场实地考察，并决定前往智利、阿根廷及巴西。

She likes to travel to the markets for which she is responsible and decides to go on a trip to Chile, Argentina, and Brazil.

行程由研究公司 SouthAM, Inc. 组织。SouthAM 旗下有一家小型经纪自营商附属公司，使用纽约一家较大证券公司的清算设施。

The trip is sponsored by SouthAM, Inc., a research firm with a small broker/dealer affiliate that uses the clearing facilities of a larger New York brokerage house.

SouthAM 专门为分析师安排南美洲考察交流行程，让他们有机会与央行官员、政府部长、当地经济学家及公司高管会面。

SouthAM specializes in arranging South American briefing trips for analysts, during which they can meet with central bank officials, government ministers, local economists, and senior executives of corporations.

SouthAM 接受以佣金抵付行程研究费用，佣金与现金费用的兑换比例为 2 比 1。

SouthAM accepts commission dollars at a ratio of 2 to 1 against the hard dollar costs of the research fee for the trip.

Parker 不确定 SouthAM 的交易执行是否有竞争力，但为了参加行程，她没有通知主管，便指示 Provo 交易台开始把佣金业务交给 SouthAM。

Parker is not sure that SouthAM's execution is competitive, but without informing her supervisor, she directs the trading desk at Provo to start giving commission business to SouthAM so she can take the trip.

SouthAM 恰好将考察安排在嘉年华季开始时，因此 Parker 还决定，在行程结束后于里约热内卢度假五天。

SouthAM has conveniently timed the briefing trip to coincide with the beginning of Carnival season, so Parker also decides to spend five days of vacation in Rio de Janeiro at the end of the trip.

Parker 用客户佣金支付这五天的酒店费用。

Parker uses commission dollars to pay for the five days of hotel expenses.

官方答案与解析 / **Official answer and explanation**

评析：Parker 没有履行对客户的忠诚义务，违反了准则 III(A)。

Comment: Parker is violating Standard III(A) by not exercising her duty of loyalty to her clients.

她必须确定，SouthAM 收取的佣金与该行程研究所带来的益处相比是否合理。

She must determine whether the commissions charged by SouthAM are reasonable in relation to the benefit of the research provided by the trip.

她还必须确定，SouthAM 能否提供最佳执行及价格。

She also must determine whether best execution and prices could be received from SouthAM.

此外，额外五天并不属于研究工作，因为这些活动无助于投资决策。

In addition, the five extra days are not part of the research effort, because they do not assist in the investment decision-making.

因此，不得用客户佣金支付这五天的酒店费用。

Thus, the hotel expenses for the five days must not be paid for with client commission dollars.

补充解析 / **Supplementary explanation**

本案例“例 5：客户佣金的使用”应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

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推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

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相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-018

例 6：过度交易
Example 6: Excessive Trading

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 137

题目与资料 / **Question and data**

例 6：过度交易 Example 6: Excessive Trading

Knauss 管理多名高净值人士的投资组合。

Knauss manages the portfolios of a number of high-net-worth individuals.

她收取的投资管理费中，很大一部分取决于交易佣金。

A major part of her investment management fee is based on trading commissions.

Knauss 为每位客户频繁交易，以确保达到公司规定的最低佣金水平。

Knauss engages in extensive trading for each of her clients to ensure that she attains the minimum commission level set by her firm.

虽然为客户买卖的证券本身适当，且属于客户可接受的资产类别，但各账户交易量均超过实现客户投资目标所需的水平。

Although the securities purchased and sold for the clients are appropriate and fall within the acceptable asset classes for the clients, the amount of trading for each account exceeds what is necessary to accomplish the client's investment objectives.

官方答案与解析 / **Official answer and explanation**

评析：Knauss 利用客户资产使公司及自己受益，违反了准则 III(A)。

Comment: Knauss violated Standard III(A) because she is using the assets of her clients to benefit her firm and herself.

补充解析 / **Supplementary explanation**

本案例"例 6：过度交易"应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

交易应有投资依据，而不是为了提高佣金或满足销售目标。即使单笔交易适合客户，过高交易频率也会通过成本和税负损害客户，因此需要在整体账户层面审视。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-019

例 7：管理家人账户
Example 7: Managing Family Accounts

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 137-138

题目与资料 / **Question and data**

例 7：管理家人账户 Example 7: Managing Family Accounts

Dill 最近加入 New Investments Asset Managers。为帮助他建立客户基础，父亲和兄弟都开立了新的付费账户。

Dill recently joined New Investments Asset Managers. To assist Dill in building a book of clients, both his father and brother opened new fee-paying accounts.

Dill 按照公司的全部程序，记录了与这些客户的亲属关系，并制定了他们的投资政策声明。

Dill followed all the firm's procedures in noting his relationships with these clients and in developing their investment policy statements.

数年后，Dill 的客户数量已增加，但他仍管理家人最初开立的账户。

After several years, the number of Dill's clients has grown, but he still manages the original accounts of his family members.

某项首次公开募股（IPO）即将上市，对他的许多客户，包括其兄弟而言，都是适当的投资。

An IPO is coming to market that is a suitable investment for many of his clients, including his brother.

Dill 未获配所申请的全部股票，因此为避免出现任何利益冲突的观感，他没有向兄弟的账户分配任何股份。

Dill does not receive the amount of stock he requested, so to avoid any appearance of a conflict of interest, he does not allocate any shares to his brother's account.

官方答案与解析 / **Official answer and explanation**

评析：Dill 未为兄弟的账户或其其他账户的利益行事，违反了准则 III(A)。

Comment: Dill violated Standard III(A) because he did not act for the benefit of his brother's account or his other accounts.

兄弟的账户是正常付费账户，与其他客户的账户具有可比性。

The brother's account is a regular fee-paying account comparable to the accounts of his other clients.

Dill 没有按比例向所有他认为适合参与该 IPO 的账户分配股份，令特定客户处于不利地位。

By not allocating the shares proportionately across all accounts for which he thought the IPO was suitable, Dill disadvantaged specific clients.

如果兄弟的账户并非按照公司的正常收费架构管理，那么 Dill 不向该账户分配股份才是正确做法。

Dill would have been correct in not allocating shares to his brother's account if that account was being managed outside the normal fee structure of the firm.

补充解析 / **Supplementary explanation**

本案例“例 7：管理家人账户”应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

家属关系需要进一步问“谁是受益人、是否是正常收费客户、是否使用非公开交易信息”。正常客户家属账户应公平对待；自己拥有受益权的账户则必须服从客户交易优先。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-020

例 8：确定客户身份
Example 8: Identifying the Client

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 138

题目与资料 / **Question and data**

例 8：确定客户身份 Example 8: Identifying the Client

Hensley 受一家律师事务所聘用，以专家证人身份作证。

Hensley has been hired by a law firm to testify as an expert witness.

虽然证词旨在提供公正意见，但她担心自己的工作可能对该律师事务所产生负面影响。

Although the testimony is intended to represent impartial advice, she is concerned that her work may have negative consequences for the law firm.

如果律师事务所是 Hensley 的客户，她如何确保自己的证词不违反对客户应负的忠诚、审慎与谨慎义务？

If the law firm is Hensley’s client, how does she ensure that her testimony will not violate the required duty of loyalty, prudence, and care to one’s client?

官方答案与解析 / **Official answer and explanation**

评析：在此情况下，律师事务所相当于 Hensley 的雇主，而“谁是客户”并未得到明确界定。

Comment: In this situation, the law firm represents Hensley's employer and the aspect of "who is the client" is not well defined.

担任专家证人时，Hensley 与独立研究分析师一样，受到独立性及客观性准则的约束。

When acting as an expert witness, Hensley is bound by the standard of independence and objectivity in the same manner that an independent research analyst would be bound.

Hensley 不得让律师事务所影响她在法律诉讼中提供的证词。

Hensley must not let the law firm influence the testimony she provides in the legal proceedings.

补充解析 / **Supplementary explanation**

本案例"例 8：确定客户身份"应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

名义签约人或发出指令的人不一定是最终应忠诚的对象。养老金、信托和代理安排中，要把发起人、受托人、账户持有人与受益人分清，再判断指令是否损害真正客户利益。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

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相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

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V10-M05-CA-021

例 9：确定客户身份
Example 9: Identifying the Client

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 138

题目与资料 / **Question and data**

例 9：确定客户身份 Example 9: Identifying the Client

Miller 是一只共同基金的投资组合经理，该基金专注于全球金融服务业。

Miller is a mutual fund portfolio manager. The fund is focused on the global financial services sector.

Spears 是与 Miller 居住在同一城市的私人财富经理，也是 Miller 的朋友。

Spears is a private wealth manager in the same city as Miller and is a friend of Miller.

在 CFA 协会地方分会的一次会议上，Spears 向 Miller 提及，自己的新客户投资了 Miller 的基金。

At a CFA Institute local society meeting, Spears mentions to Miller that her new client is an investor in Miller's fund.

她表示，他们两人现在共同对这位客户承担责任。

She states that the two of them now share a responsibility to this client.

官方答案与解析 / **Official answer and explanation**

评析：Spears 的说法并不完全准确。由于是她向新客户提供顾问服务，只有她对该客户负有忠诚义务。

Comment: Spears's statement is not entirely accurate. Because she provides the advisory services to her new client, she alone is bound by the duty of loyalty to this client.

Miller 的责任是根据基金的投资政策声明管理基金。

Miller's responsibility is to manage the fund according to the investment policy statement of the fund.

他的行动不得受到某位个别基金投资者需求的影响。

His actions must not be influenced by the needs of any particular fund investor.

补充解析 / **Supplementary explanation**

本案例"例 9：确定客户身份"应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

名义签约人或发出指令的人不一定是最终应忠诚的对象。养老金、信托和代理安排中，要把发起人、受托人、账户持有人与受益人分清，再判断指令是否损害真正客户利益。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

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相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-022

例 10：对客户的忠诚
Example 10: Client Loyalty

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 138

题目与资料 / **Question and data**

例 10：对客户的忠诚 Example 10: Client Loyalty

投资业绩分析师 Nguyen 已向对外业务部门提供客户账户的投资业绩，但在报告最终确定并发给客户之前，他发现报告系统遗漏了一笔交易。

After providing client account investment performance to external-facing departments but prior to it being finalized for release to clients, Nguyen, an investment performance analyst, notices the reporting system missed a trade.

纠正遗漏后，某客户账户出现重大亏损；该客户此前已因往期表现不佳，将公司列入可能终止委托的“观察”状态。

Correcting the omission resulted in a large loss for a client that had previously placed the firm on “watch” for potential termination owing to underperformance in prior periods.

Nguyen 知道这是坏消息，但仍通知有关人员，报告必须在发给客户之前更新。

Nguyen knows this news is unpleasant but informs the appropriate individuals that the report needs to be updated before releasing it to the client.

官方答案与解析 / **Official answer and explanation**

评析：Nguyen 的行动符合准则 III(A) 的要求。

Comment: Nguyen’s actions align with the requirements of Standard III(A).

虽然更正可能导致客户终止与公司的关系，但隐瞒错误信息不符合客户的最佳利益。

Even though the correction may lead to the firm’s termination by the client, withholding information on errors is not in the best interest of the client.

补充解析 / **Supplementary explanation**

本案例“例 10：对客户的忠诚”应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

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V10-M05-CA-023

例 11：仅执行交易的责任
Example 11: Execution-Only Responsibilities

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 139

题目与资料 / Question and data

例 11：仅执行交易的责任 Example 11: Execution-Only Responsibilities

Sulejman 最近成为 CFA® 课程的考生。

Sulejman recently became a candidate in the CFA® Program.

他是一名经纪人，为数位高净值人士执行客户指示的交易。

He is a broker who executes client-directed trades for several high-net-worth individuals.

Sulejman 不提供任何投资建议，只执行客户作出的交易决定。

Sulejman does not provide any investment advice and only executes the trading decisions made by clients.

他担心《道德准则与专业行为准则》会对其与客户的往来施加信义义务，于是向 CFA 协会道德咨询服务（ethics@cfainstitute.org）发送电子邮件，就此寻求指引。

He is concerned that the Code and Standards impose a fiduciary duty on him in his dealing with clients and sends an email to the CFA Institute Ethics Helpdesk (ethics@cfainstitute.org) to seek guidance on this issue.

官方答案与解析 / Official answer and explanation

评析：本例中，Sulejman 仅担任交易执行角色。

Comment: In this instance, Sulejman serves in an execution-only capacity.

他的忠诚、审慎与谨慎义务，主要体现为执行交易时运用的技能及勤勉程度，即寻求最佳执行，并在客户设定的数量、价格、时间等指令范围内进行交易。

His duty of loyalty, prudence, and care is centered on the skill and diligence used when executing trades—namely, by seeking best execution and making trades within the parameters set by the clients (instructions on quantity, price, timing, etc.).

为客户最佳利益行事，要求以能够为客户取得的最有利条件执行交易。

Acting in the best interests of the client dictates that trades are executed on the most favorable terms that can be achieved for the client.

鉴于其工作职能，《道德准则与专业行为准则》关于忠诚、审慎与谨慎的要求，显然并未对他施加信义义务。

Given this job function, the requirements of the Code and Standards for loyalty, prudence, and care clearly do not impose a fiduciary duty.

补充解析 / **Supplementary explanation**

本案例“例 11：仅执行交易的责任”应放在准则 III(A) 的具体要求下判断。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

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相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-CA-024

例 1：选择性披露
Example 1: Selective Disclosure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 143

题目与资料 / **Question and data**

例 1：选择性披露 Example 1: Selective Disclosure

Ames 是一位知名且受尊敬的分析师，负责计算机行业研究。

Ames, a well-known and respected analyst, follows the computer industry.

研究过程中，他发现一家规模小、知名度较低、股票在场外市场交易的公司，刚与他研究的数家公司签订重要合同。

In the course of his research, he finds that a small, relatively unknown company whose shares are traded over the counter has just signed significant contracts with some of the companies he follows.

经过大量调查，Ames 决定为这家小公司撰写研究报告，并建议买入其股份。

After a considerable amount of investigation, Ames decides to write a research report on the small company and recommend purchase of its shares.

在该公司核查报告事实准确性的同时，Ames 安排与几位最重要的客户共进午餐，讨论该公司。

While the report is being reviewed by the company for factual accuracy, Ames schedules a luncheon with several of his best clients to discuss the company.

午餐期间，他提到了计划于下周初向公司所有客户发送的买入建议。

At the luncheon, he mentions the purchase recommendation scheduled to be sent early the following week to all the firm's clients.

官方答案与解析 / **Official answer and explanation**

评析：Ames 比向全体客户发送建议提前一周，向共进午餐的客户透露买入建议，违反了准则 III(B)。

Comment: Ames violated Standard III(B) by disseminating the purchase recommendation to the clients with whom he had lunch a week before the recommendation is sent to all clients.

补充解析 / **Supplementary explanation**

本案例"例 1：选择性披露"应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把"非秘密"误当成"公开"；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / **Fair Dealing**

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-025

例 2：公平对待不同基金
Example 2: Fair Dealing between Funds

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 143-144

题目与资料 / **Question and data**

例 2：公平对待不同基金 Example 2: Fair Dealing between Funds

XYZ Corporation 总裁 Rivers 将公司以增长为目标的养老金交给某家银行，主要是因为该银行的集合基金在过去五年取得了出色投资业绩。

Rivers, president of XYZ Corporation, moves his company's growth-oriented pension fund to a particular bank primarily because of the excellent investment performance achieved by the bank's commingled fund for the prior five-year period.

后来，Rivers 将公司养老金的表现与银行集合基金的表现作比较。

Later, Rivers compares the results of his pension fund with those of the bank's commingled fund.

他惊讶地发现，尽管两个账户的投资目标相同、投资组合相似，公司养老金的表现却显著落后于银行集合基金。

He is startled to learn that, even though the two accounts have the same investment objectives and similar portfolios, his company's pension fund has significantly underperformed the bank's commingled fund.

Rivers 在下次会见养老金经理 Jackson 时提出质疑。Jackson 告知他，按照政策，当新证券加入推荐名单时，她会先为集合账户买入，然后才按比例为所有其他养老金账户买入。

Questioning this result at his next meeting with Jackson, the pension fund's manager, Rivers is told that, as a matter of policy, when a new security is placed on the recommended list, Jackson first purchases the security for the commingled account and then purchases it on a pro rata basis for all other pension fund accounts.

同样，当建议卖出某证券时，会先从集合账户出售，然后才按比例从其他账户出售。

Similarly, when a sale is recommended, the security is sold first from the commingled account and then sold on a pro rata basis from all other accounts.

Rivers 还了解到，如果银行无法取得足够股份，尤其是热门新股，向所有账户作有意义的分配，其政策便是只把新发行证券放入集合账户。

Rivers also learns that if the bank cannot get enough shares (especially of hot issues) to be meaningful to all the accounts, its policy is to place the new issues only in the commingled account.

Jackson 见 Rivers 对解释既不满意也不高兴，赶忙补充说，在买卖建议的处理顺序上，非全权委托养老金账户及个人信托账户的优先级，比全权委托养老金账户还低。

Seeing that Rivers is neither satisfied nor pleased by the explanation, Jackson quickly adds that nondiscretionary pension accounts and personal trust accounts have an even lower priority on purchase and sale recommendations than discretionary pension fund accounts.

此外，Jackson 表示，公司养老金原本有机会将最多 5% 的资产投向该集合基金。

Furthermore, Jackson states that the company's pension fund had the opportunity to invest up to 5% in the commingled fund.

官方答案与解析 / **Official answer and explanation**

评析：银行的政策没有公平对待所有客户；Jackson 将增长型集合基金置于其他基金之前，并将全权委托账户置于非全权委托账户之前，违反了对客户的义务。

Comment: The bank's policy does not treat all customers fairly, and Jackson violated her duty to her clients by giving priority to the growth-oriented commingled fund over all other funds and to discretionary accounts over nondiscretionary accounts.

Jackson 必须以系统性的方式执行订单，公平对待所有客户。

Jackson must execute orders on a systematic basis to be fair to all clients.

补充解析 / **Supplementary explanation**

本案例“例 2：公平对待不同基金”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

稀缺证券和部分成交需要预先合理的分配规则。可因适当性、账户规模和最小交易单位产生不同比例，但不应在知道结果后把有利交易指定给偏爱账户、把不利交易分给其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-026

例 3：公平对待与 IPO 分配
Example 3: Fair Dealing and IPO Distribution

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 144

题目与资料 / **Question and data**

例 3：公平对待与 IPO 分配 Example 3: Fair Dealing and IPO Distribution

Morris 在一家小型区域证券公司工作，负责企业融资及为机构客户投资。

Morris works for a small regional securities firm. His work consists of corporate finance activities and investing for institutional clients.

PickleDilly, Ltd. 计划上市。其合伙人已取得购买一支职业匹克球队特许经营权的权利，并计划利用发行所得完成收购。

PickleDilly, Ltd., is planning to go public. The partners have secured rights to buy a professional pickleball franchise and plan to use the funds from the issue to complete the purchase.

由于匹克球目前非常流行，Morris 认为自己手上是一只热门新股。

Because pickleball is the current rage, Morris believes he has a hot issue on his hands.

他私下为自己谈妥了一些期权，作为协助说服 PickleDilly 通过其证券公司融资的报酬。

He has quietly negotiated some options for himself for helping convince PickleDilly to do the financing through his securities firm.

当他征询认购意向时，机构投资者的申请令发行超额认购。

When he seeks expressions of interest, institutional buyers oversubscribe the issue.

Morris 认为机构有财力推动股价上涨，因此满足全部订单，包括自己的订单，但削减机构的获配数量。

Morris, assuming that the institutions have the financial clout to drive the stock up, fills all orders (including his own) but decreases the institutional blocks.

官方答案与解析 / **Official answer and explanation**

评析：Morris 没有公平对待所有客户，违反了准则 III(B)。

Comment: Morris violated Standard III(B) by not treating all customers fairly.

为履行本准则的义务，Morris 本应放弃自己获配任何股份，并按比例向客户分配股份，或采用其他能够公平对待客户的分配方法。

To meet his obligations under the standard, Morris needed to refrain from taking any shares himself and needed to prorate the distribution of the shares to clients or use some other distribution method for treating clients fairly.

此外，他不应寻求这些额外利益，从而避免期权带来的利益冲突。

In addition, he should have avoided the conflict of interest caused by the options by not seeking those additional benefits.

由于 Morris 没有避免冲突，便必须向公司及客户披露，自己作为该交易的一部分取得了期权。

Because Morris did not avoid the conflict, he must disclose to his firm and to his clients that he received options as part of the deal.

参见准则 VI(A)：披露利益冲突。

See Standard VI(A) Disclosure of Conflicts.

补充解析 / **Supplementary explanation**

本案例“例 3：公平对待与 IPO 分配”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

稀缺证券和部分成交需要预先合理的分配规则。可因适当性、账户规模和最小交易单位产生不同比例，但不应在知道结果后把有利交易指定给偏爱账户、把不利交易分给其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / **Fair Dealing**

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-027

例 4：公平对待与交易分配
Example 4: Fair Dealing and Transaction Allocation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 144

题目与资料 / **Question and data**

例 4：公平对待与交易分配 Example 4: Fair Dealing and Transaction Allocation

Preston 是中型资产管理公司 Porter Williams Investments（PWI）的首席投资官，一直试图留住客户 Colby Company。

Preston, the chief investment officer of Porter Williams Investments (PWI), a medium-size money management firm, has been trying to retain a client, Colby Company.

Colby 贡献了 PWI 近一半收入，其管理层最近告知 Preston，如果账户表现不改善，就会另聘资产管理人。

Management at Colby, which accounts for almost half of PWI's revenues, recently told Preston that if the performance of its account did not improve, it would find a new money manager.

在这番警告之后不久，Preston 为包括 Colby 在内的多个账户买入抵押贷款支持证券（MBS）。当天她忙于处理多笔交易，未能立即分配交易或填写交易单。

Shortly after this threat, Preston purchases mortgage-backed securities (MBSs) for several accounts, including Colby's. Preston is busy with a number of transactions that day, so she fails to allocate the trades immediately or write up the trade tickets.

几天后，Preston 分配交易时发现，部分 MBS 价格已显著上涨，另一些则下跌。

A few days later, when Preston is allocating trades, she notes that some of the MBSs have significantly increased in price and some have dropped.

Preston 决定把盈利交易分给 Colby，将亏损交易分散给 PWI 的几个其他账户。

Preston decides to allocate the profitable trades to Colby and spread the losing trades among several other PWI accounts.

官方答案与解析 / **Official answer and explanation**

评析：Preston 在采取这些投资行动时没有公平对待客户，违反了准则 III(B)。

Comment: Preston violated Standard III(B) by failing to deal fairly with her clients in taking these investment actions.

Preston 本应在执行订单前分配交易，或者采用系统性的分配方法，例如在交易执行后切实可行的最早时间按比例分配。

Preston should have allocated the trades prior to executing the orders, or she should have had a systematic approach to allocating the trades, such as pro rata, as soon as it was practical after they were executed.

补充解析 / **Supplementary explanation**

本案例“例 4：公平对待与交易分配”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

稀缺证券和部分成交需要预先合理的分配规则。可因适当性、账户规模和最小交易单位产生不同比例，但不应在知道结果后把有利交易指定给偏爱账户、把不利交易分给其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-028

例 5：选择性披露
Example 5: Selective Disclosure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 145

题目与资料 / **Question and data**

例 5：选择性披露 Example 5: Selective Disclosure

Saunders Industrial Waste Management（SIWM）公开向分析师表示，认可当季每股盈利 1.16 美元这一略令人失望的预测。

Saunders Industrial Waste Management (SIWM) publicly indicates to analysts that it is comfortable with the somewhat disappointing earnings-per-share projection of US$1.16 for the quarter.

Coffey Investments 的分析师 Roberts 确信，SIWM 管理层故意低报预期盈利，以使实际公布时出现“超预期惊喜”，推动 SIWM 股价上涨。

Roberts, an analyst at Coffey Investments, is confident that SIWM management understated the forecasted earnings so that the real announcement would cause an “upside surprise” and boost the price of SIWM stock.

经验丰富的分析师经过广泛研究并相互讨论后，私下流传的“预期数字”高于 1.16 美元。

The “whisper number” (rumored) estimate based on extensive research and discussed among knowledgeable analysts is higher than US$1.16.

Roberts 在发给 Coffey 全部客户的研究报告中仍使用 1.16 美元，但私下告诉大客户，他预计每股盈利会更高，因此 SIWM 值得买入。

Roberts repeats the US$1.16 figure in his research report to all Coffey clients but informally tells his large clients that he expects the earnings per share to be higher, making SIWM a good buy.

官方答案与解析 / **Official answer and explanation**

评析：Roberts 没有向所有客户分享盈利可能大幅超预期的看法，未公平对待所有客户，违反了准则 III(B)。

Comment: By not sharing his opinion regarding the potential for a significant upside earnings surprise with all clients, Roberts did not treat all clients fairly and violated Standard III(B).

补充解析 / **Supplementary explanation**

本案例“例 5：选择性披露”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

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相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-029

例 6：为部分客户提供额外服务
Example 6: Additional Services for Select Clients

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 145

题目与资料 / **Question and data**

例 6：为部分客户提供额外服务 Example 6: Additional Services for Select Clients

Weng 通过电子邮件向所有客户发布一项新建议。

Weng uses email to issue a new recommendation to all his clients.

随后，他致电三位最大的机构客户，详细讨论该建议；这些客户为这种个别联系服务支付费用。

He then calls his three largest institutional clients to discuss the recommendation in detail, and they compensate him for the personal outreach.

官方答案与解析 / **Official answer and explanation**

评析：Weng 没有违反准则 III(B)。在与少数客户讨论之前，他已经向全部客户广泛发布建议及信息。

Comment: Weng did not violate Standard III(B). He widely disseminated the recommendation and information to all his clients prior to discussing it with a select few.

Weng 最大的客户因为支付较高费用，获得了额外的个别服务。

Weng's largest clients received additional personal service because they pay higher fees.

如果 Weng 在向所有客户分发报告之前，先同选定客户群讨论报告，就会违反准则 III(B)。

If Weng had discussed the report with a select group of clients prior to distributing it to all his clients, he would have violated Standard III(B).

补充解析 / **Supplementary explanation**

本案例"例 6：为部分客户提供额外服务"应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

社交媒体也是专业沟通渠道。发布重要建议时应依照合理分发政策，避免只让某个小群体获得不公平优势；不同服务级别可存在，但应披露并确保其他客户的公平机会不受损害。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

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相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / **Fair Dealing**

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-030

例 7：最低交易单位的分配
Example 7: Minimum Lot Allocations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 145

题目与资料 / **Question and data**

例 7：最低交易单位的分配 Example 7: Minimum Lot Allocations

Hampton 是社区内备受尊敬的私人财富经理，客户群多元化。

Hampton is a well-respected private wealth manager in her community with a diversified client base.

她认为 Healthy Pharmaceuticals 即将发行的一只十年期新债券，适合其中五位客户。

She determines that a new 10-year bond being offered by Healthy Pharmaceuticals is appropriate for five of her clients.

三位客户各申请购买 10,000 美元，另外两位各申请购买 50,000 美元。

Three clients request to purchase US$10,000 each, and the other two request US$50,000 each.

最低交易单位为 5,000 美元，发行在配售时已超额认购。

The minimum lot size is established at US$5,000, and the issue is oversubscribed at the time of placement.

公司政策是避免分配零碎数量，尤其低于最低交易单位的数量，因为这可能影响证券日后出售时的流动性。

Her firm's policy is that odd-lot allocations, especially those below the minimum, should be avoided because they may affect the liquidity of the security at the time of sale.

Hampton 获通知，所有账户合计仅获配 55,000 美元。

Hampton is informed she will receive only US$55,000 of the offering for all accounts.

Hampton 如下分配债券：三位申请 10,000 美元的账户各获配 5,000 美元，两位申请 50,000 美元的账户各获配 20,000 美元。

Hampton distributes the bond investments as follows: The three accounts that requested US$10,000 are allocated US$5,000 each, and the two accounts that requested US$50,000 are allocated US$20,000 each.

官方答案与解析 / **Official answer and explanation**

评析：尽管并非完全按比例分配，但由于最低交易单位的要求，Hampton 没有违反准则 III(B)。

Comment: Hampton did not violate Standard III(B), even though the distribution is not on a completely pro-rata basis, because of the required minimum lot size.

在总获配额显著低于申请额的情况下，Hampton 确保每位客户至少获得最低交易单位，且实际获配额占申请额的比例相近。

With the total allocation being significantly below the amount requested, Hampton ensured that each client received at least the minimum lot size of the issue and that the filled allocations were close in percentage to the requested allocations.

这种方式让客户日后如有需要，可以有效地出售债券。

This approach allowed the clients to efficiently sell the bond later, if necessary.

补充解析 / **Supplementary explanation**

本案例“例 7：最低交易单位的分配”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

稀缺证券和部分成交需要预先合理的分配规则。可因适当性、账户规模和最小交易单位产生不同比例，但不应在知道结果后把有利交易指定给偏爱账户、把不利交易分给其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-031

例 8：过度交易
Example 8: Excessive Trading

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 146

题目与资料 / **Question and data**

例 8：过度交易 Example 8: Excessive Trading

Chan 管理多个养老金计划的账户，其中包括父亲雇主的养老金计划。

Chan manages the accounts for many pension plans, including the plan of his father’s employer.

Chan 为各客户制定了相似但并不相同的投资政策，因此投资组合很少完全一致。

Chan developed similar but not identical investment policies for each client, so the investment portfolios are rarely the same.

为了尽量降低父亲养老金计划的成本，他故意在其他客户账户中增加交易频率，以产生所需佣金，继续获得惠及所有养老金计划的免费研究服务。

To minimize the cost to his father’s pension plan, he intentionally trades more frequently in the accounts of other clients to ensure the required brokerage commissions are incurred to continue receiving free research that benefits all the pension plans.

官方答案与解析 / **Official answer and explanation**

评析：Chan 的交易行为使其他客户处于不利地位，以强化与受偏爱客户的关系，因此违反了准则 III(B)。

Comment: Chan is violating Standard III(B) because his trading actions are disadvantaging his clients to enhance a relationship with a preferred client.

所有客户都从研究服务中获益，因此应公平承担各自份额的成本。

All clients are benefiting from the research being provided and should incur their fair portion of the costs.

这并不意味着，只要某客户支付的佣金份额不足，就应增加交易；只有投资策略确有需要时，才应进行交易。

This does not mean that additional trading should occur if a client has not paid an equal portion of the commission; trading should occur only as required by the strategy.

补充解析 / **Supplementary explanation**

本案例“例 8：过度交易”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

交易应有投资依据，而不是为了提高佣金或满足销售目标。即使单笔交易适合客户，过高交易频率也会通过成本和税负损害客户，因此需要在整体账户层面审视。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-032

例 9：仅通过有限范围的社交媒体披露
Example 9: Limited Social Media Disclosures

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 146

题目与资料 / **Question and data**

例 9：仅通过有限范围的社交媒体披露 Example 9: Limited Social Media Disclosures

Burdette 最近获 Fundamental Investment Management（FIM）聘用，担任初级汽车行业分析师。

Burdette was recently hired by Fundamental Investment Management (FIM) as a junior auto industry analyst.

公司期望 Burdette 扩大 FIM 在社交媒体上的影响力，包括 Facebook、LinkedIn 和 X（原名 Twitter）。

Burdette is expected to expand the social media presence of the firm, including on Facebook, LinkedIn, and X (formerly known as Twitter).

Burdette 的主管 Graf 鼓励她寻找机会，提升 FIM 的网络影响力，以及向客户分享内容、沟通和传播信息的能力。

Burdette’s supervisor, Graf, encourages Burdette to explore opportunities to increase FIM’s online presence and ability to share content, communicate, and broadcast information to clients.

作为 FIM 汽车行业研究工作的一部分，Burdette 正在完成一份报告，分析 Sun Drive Auto Ltd. 用于小型汽车的新太阳能技术所产生的财务影响。

As part of her auto industry research for FIM, Burdette is completing a report on the financial impact of Sun Drive Auto Ltd.'s new solar technology for compact automobiles.

这将是她为 FIM 撰写的首份研究报告；她相信 Sun Drive 的技术可能彻底改变汽车行业。

This research report will be her first for FIM, and she believes Sun Drive's technology could revolutionize the auto industry.

兴奋之下，Burdette 向 FIM 的 LinkedIn 关注者发布简短消息，概述她对 Sun Drive Auto 股票的"买入"建议。

In her excitement, Burdette posts a brief message to FIM LinkedIn followers summarizing her "buy" recommendation for Sun Drive Auto stock.

官方答案与解析 / **Official answer and explanation**

评析：Burdette 在向所有客户分发建议之前，先发送给特定联系人群体，违反了准则 III(B)。

Comment: Burdette violated Standard III(B) by sending an investment recommendation to a select group of contacts prior to distributing it to all clients.

补充解析 / **Supplementary explanation**

本案例"例 9：仅通过有限范围的社交媒体披露"应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

社交媒体也是专业沟通渠道。发布重要建议时应依照合理分发政策，避免只让某个小群体获得不公平优势；不同服务级别可存在，但应披露并确保其他客户的公平机会不受损害。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-033

例 10：业绩分析
Example 10: Performance Analysis

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 146

题目与资料 / **Question and data**

例 10：业绩分析 Example 10: Performance Analysis

Alpha-Beta Investment Management 的业绩分析师 Rove，正向公司首席投资官（CIO）介绍他希望开发的两份新报告，以协助公司履行公平对待客户的义务。

Rove, a performance analyst for Alpha-Beta Investment Management, is describing to the firm's chief investment officer (CIO) two new reports he would like to develop to assist the firm in meeting its obligations to treat clients fairly.

由于许多客户的投资目标及投资组合相似，Rove 建议编制一份报告，详细列出多个客户账户持有的证券，以及各证券在组合中所占的比例。

Because many of the firm's clients have similar investment objectives and portfolios, Rove suggests a report detailing securities owned across several client accounts and the percentage of the portfolio each security represents.

第二份报告将比较采用类似策略的投资组合的每月业绩。

The second report would compare the monthly performance of portfolios with similar strategies.

每份报告中的异常值均会提交首席投资官审查。

The outliers in each report would be submitted to the CIO for review.

官方答案与解析 / **Official answer and explanation**

评析：作为业绩分析师，Rove 可能很少直接接触客户，因此差别对待客户的机会有限。

Comment: As a performance analyst, Rove likely has little direct contact with clients and thus has limited opportunity to treat clients differently.

这些建议中的报告符合准则 III(B)，同时帮助公司事后审查其顾问管理客户投资组合的有效程度。

The recommended reports comply with Standard III(B) while helping the firm conduct after-the-fact reviews of how effectively the firm's advisers are dealing with their clients' portfolios.

监控客户是否受到公平对待的报告，是确保公平对待客户的重要监督工具。

Reports that monitor the fair treatment of clients are an important oversight tool to ensure that clients are treated fairly.

补充解析 / **Supplementary explanation**

本案例“例 10：业绩分析”应放在准则 III(B) 的具体要求下判断。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / **Fair Dealing**

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-CA-034

例 1：投资适当性——风险状况
Example 1: Investment Suitability—Risk Profile

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 151

题目与资料 / **Question and data**

例 1：投资适当性——风险状况 Example 1: Investment Suitability—Risk Profile

投资顾问 Smith 有两位客户：60 岁的 Robertson 及 40 岁的 Lanai。

Smith, an investment adviser, has two clients: Robertson, who is 60 years old, and Lanai, who is 40 years old.

两人的薪酬大致相同，但 Robertson 资产基础雄厚、收入需求较低，因此风险承受能力高得多。

Both clients earn roughly the same salary, but Robertson has a much higher risk tolerance because he has a large asset base and low income needs.

Robertson 愿意以非常进取的方式投资部分资产；Lanai 则只希望以低波动取得稳定回报，以支付子女教育费用。

Robertson is willing to invest part of his assets very aggressively; Lanai wants only to achieve a steady rate of return with low volatility to pay for his children's education.

Smith 建议，两人的投资组合都将 20% 投入不派息的小型高科技股票。

Smith recommends investing 20% of both portfolios in zero-yield, small-cap, high-technology equity issues.

官方答案与解析 / **Official answer and explanation**

评析：考虑到 Robertson 的财务状况及进取的投资立场，该投资可能适当；但对 Lanai 并不适合。

Comment: In Robertson's case, the investment may be appropriate because of his financial circumstances and aggressive investment position, but this investment is not suitable for Lanai.

由于两位客户的财务状况和目标不同，Smith 将 Robertson 的投资策略应用于 Lanai，违反了准则 III(C)。

Smith violated Standard III(C) by applying Robertson's investment strategy to Lanai because the two clients' financial circumstances and objectives differ.

补充解析 / **Supplementary explanation**

本案例"例 1：投资适当性——风险状况"应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-035

例 2：投资适当性——整体投资组合
Example 2: Investment Suitability—Entire Portfolio

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 151

题目与资料 / **Question and data**

例 2：投资适当性——整体投资组合 Example 2: Investment Suitability—Entire Portfolio

投资顾问 McDowell 建议风险厌恶型客户 Crosby，在其股票组合中采用备兑看涨期权策略。

McDowell, an investment adviser, suggests to Crosby, a risk-averse client, that covered call options be used in his equity portfolio.

目的是增加 Crosby 的收入，并在股票市场或其他情况对持仓不利时，部分抵消组合价值在不利时机出现的下跌。

The purpose would be to enhance Crosby's income and partially offset any untimely depreciation in the portfolio's value should the stock market or other circumstances affect his holdings unfavorably.

McDowell 向 Crosby 解释所有可能结果，包括股价上涨导致股票被行权买走时可能产生额外税务负担的风险；反过来，也包括价格大跌时持仓失去充分下行保护的风险。

McDowell educates Crosby about all possible outcomes, including the risk of incurring an added tax liability if a stock rises in price and is called away and, conversely, the risk of his holdings losing protection on the downside if prices drop sharply.

官方答案与解析 / **Official answer and explanation**

评析：判断投资适当性时，应主要关注客户整体投资组合的特征，而不是逐项孤立地关注单一证券的特征。

Comment: When determining suitability of an investment, the primary focus should be the characteristics of the client's entire portfolio, not the characteristics of single securities on an issue-by-issue basis.

整个投资组合的基本特征，在很大程度上决定投资建议是否考虑了客户因素。

The basic characteristics of the entire portfolio will largely determine whether investment recommendations are taking client factors into account.

本例中，McDowell 从整体组合角度适当地考虑了该投资，并向客户作出全面解释。

In this case, McDowell properly considers the investment in the context of the entire portfolio and thoroughly explains the investment to the client.

补充解析 / **Supplementary explanation**

本案例“例 2：投资适当性——整体投资组合”应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-036

例 3：更新 IPS
Example 3: IPS Updating

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 151

题目与资料 / **Question and data**

例 3：更新 IPS Example 3: IPS Updating

Blue Chip Investment Advisers 的投资组合经理 Evans 得知，Jones 的生活最近发生了重大变化。

Evans, a portfolio manager at Blue Chip Investment Advisers, learns that some significant changes have recently taken place in Jones’s life.

一位富裕亲属给 Jones 留下遗产，使其净资产增至原来的四倍，达到 100 万美元。

A wealthy relative left Jones an inheritance that increased his net worth fourfold, to US$1 million.

官方答案与解析 / **Official answer and explanation**

评析：这笔遗产可能显著提高 Jones 承担风险的能力，也可能提高其意愿，并可能降低满足当前收入需求所需的平均收益率。

Comment: The inheritance may have significantly increased Jones’s ability (and possibly his willingness) to assume risk and perhaps has diminished the average yield required to meet his current income needs.

Jones 的财务状况已显著变化，因此 Evans 必须审查，并可能需要更新 Jones 的 IPS，以反映投资目标的变化。

Jones's financial circumstances have changed considerably, so Evans must review and potentially update Jones's IPS to reflect how his investment objectives have changed.

补充解析 / **Supplementary explanation**

本案例"例 3：更新 IPS"应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-037

例 4：遵循投资授权要求
Example 4: Following an Investment Mandate

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 152

题目与资料 / **Question and data**

例 4：遵循投资授权要求 Example 4: Following an Investment Mandate

Perkowski 管理一只高收益型共同基金。他买入一家金融服务公司不派息的股票，因为认为该股被低估，而且处于具有增长潜力的行业，因而很有吸引力。

Perkowski manages a high-income mutual fund. He purchases zero-dividend stock in a financial services company because he believes the stock is undervalued and is in a potential growth industry, which makes it an attractive investment.

官方答案与解析 / **Official answer and explanation**

评析：不派息股票似乎不符合 Perkowski 所管理基金的授权要求。

Comment: A zero-dividend stock does not seem to fit the mandate of the fund that Perkowski manages.

除非该投资符合授权要求，或属于基金在披露文件中明确允许的投资范围，否则 Perkowski 便违反了准则 III(C)。

Unless Perkowski's investment fits within the mandate or is in the realm of allowable investments the fund has made clear in its disclosures, Perkowski violated Standard III(C).

补充解析 / **Supplementary explanation**

本案例"例 4：遵循投资授权要求"应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-038

例 5：IPS 的要求与限制
Example 5: IPS Requirements and Limitations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 152

题目与资料 / **Question and data**

例 5：IPS 的要求与限制 Example 5: IPS Requirements and Limitations

Gubler 是一家大型金融集团旗下财产及意外险子公司的首席投资官，希望改善子公司投资组合的分散程度并提高回报。

Gubler, chief investment officer of a property/casualty insurance subsidiary of a large financial conglomerate, wants to improve the diversification of the subsidiary's investment portfolio and increase its returns.

子公司的 IPS 规定投资于流动性良好的资产，例如大型股，以及信用评级至少为 AA、期限不超过五年的政府、超国家机构及公司债券。

The subsidiary's IPS provides for liquid investments, such as large-cap equities and government, supranational, and corporate bonds with a minimum credit rating of AA and maturity of no more than five years.

在最近一次介绍会上，一家风险投资集团展示了旗下部分私募股权基金极具吸引力的预期回报；这些基金向创业项目提供种子资本。

In a recent presentation, a venture capital group offered very attractive prospective returns on some of its private equity funds that provide seed capital to ventures.

投资者必须遵守至少三年的锁定期，之后方可分阶段退出，每年最多退出所持份额的三分之一。

Investors would have to observe a minimum three-year lockup period and a subsequent laddered exit option for a maximum of one-third of their shares per year.

Gubler 不愿错过机会。为优化子公司现有组合中股权资产的回报，他经过广泛分析后，将 4% 投入该种子基金，而组合的总股权敞口仍明显低于上限。

Gubler does not want to miss this opportunity. In an effort to optimize the return on the equity assets in the subsidiary's current portfolio and after extensive analysis, he invests 4% in this seed fund, leaving the portfolio's total equity exposure still well below its upper limit.

官方答案与解析 / **Official answer and explanation**

评析：Gubler 违反了准则 III(C)。新投资将子公司的部分资产锁定至少三年，最长可达五年甚至更久。

Comment: Gubler violated Standard III(C). His new investment locks up part of the subsidiary's assets for at least three years and up to as many as five years or more.

IPS 要求投资具有高度流动性，并列明可接受的资产类别；设有锁定期的私募股权投资不属于授权范围。

The IPS requires investments in highly liquid investments and describes accepted asset classes; private equity investments with a lockup period would not fall within the mandate.

即使没有锁定期，某资产类别如果只有偶尔出现的交易市场，因而实际上缺乏流动性，也可能不适合该组合。

Even without a lockup period, an asset class with only an occasional and thus implicitly illiquid market may not be suitable for the portfolio.

补充解析 / **Supplementary explanation**

本案例“例 5：IPS 的要求与限制”应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-039

例 6：投资适当性——风险状况
Example 6: Investment Suitability—Risk Profile

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 152

题目与资料 / **Question and data**

例 6：投资适当性——风险状况 Example 6: Investment Suitability—Risk Profile

Snead 是 Thomas Investment Counsel, Inc. 的投资组合经理，专门管理公共退休基金及确定给付型养老金计划账户，所有账户均具有长期投资目标。

Snead, a portfolio manager for Thomas Investment Counsel, Inc., specializes in managing public retirement funds and defined benefit pension plan accounts, all of which have long-term investment objectives.

一年前，为激励并留住关键投资专业人士，Snead 的雇主推出奖金制度，根据投资组合经理相对于同业及某些基准指数的季度表现给予奖励。

A year ago, Snead's employer, in an attempt to motivate and retain key investment professionals, introduced a bonus compensation system that rewards portfolio managers on the basis of quarterly performance relative to their peers and to certain benchmark indexes.

为改善账户短期表现，Snead 改变了所管理退休基金的投资策略，为客户组合买入数只高贝塔股票。

In an attempt to improve the short-term performance of her accounts, Snead changes her investment strategy for the retirement funds she manages and purchases several high-beta stocks for client portfolios.

这些买入似乎违背了客户的 IPS。

These purchases are seemingly contrary to the clients' IPSs.

买入后，Snead 的养老金客户之一 Griffin Corporation 的一位高管询问，为何公司投资组合似乎由高贝塔股票主导，而这些股票经常出现在最活跃交易名单中。

Following their purchase, an officer of Griffin Corporation, one of Snead's pension fund clients, asks why Griffin Corporation's portfolio seems to be dominated by high-beta stocks of companies that often appear among the most actively traded issues.

这一年内，Snead 从未建议改变投资目标或策略。

No change in objective or strategy has been recommended by Snead during the year.

官方答案与解析 / **Official answer and explanation**

评析：Snead 将客户资产投入高贝塔股票，违反了准则 III(C)。

Comment: Snead violated Standard III(C) by investing the clients' assets in high-beta stocks.

这些高风险投资违背了客户 IPS 确立的长期风险状况。

These high-risk investments are contrary to the long-term risk profile established in the clients' IPSs.

Snead 改变客户投资策略，是为了取得公司新薪酬安排提供的短期奖励，而不是因客户 IPS 发生变化。

Snead has changed the investment strategy of the clients in an attempt to reap short-term rewards offered by her firm's new compensation arrangement, not in response to changes in clients' IPSs.

补充解析 / **Supplementary explanation**

本案例"例 6：投资适当性——风险状况"应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-040

例 7：限制条件
Example 7: Constraints

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 153

题目与资料 / **Question and data**

例 7：限制条件 Example 7: Constraints

DeVries 是 MPG 养老金的受托人。最近，基金对受益人的偏好进行了调查。

DeVries is trustee of the MPG pension fund. Recently, the fund conducted a survey on the preferences of the beneficiaries.

调查询问了若干问题，涉及在投资选择过程中纳入 ESG 议题，对回报及风险的影响。

The survey asked several questions about the return impact and risks associated with the incorporation of ESG issues into the investment selection process.

调查结果显示，受益人希望获得较高养老金给付，但同时认为，投资回报应在考虑 ESG 议题的情况下取得。

The results of the survey showed that the beneficiaries like high pension payouts, but the investment returns should be achieved while considering ESG issues.

DeVries 提出修订 IPS，将 ESG 框架纳入投资决策过程。

DeVries introduces an amendment to the IPS to incorporate an ESG framework into the investment decision-making process.

该 ESG 框架的具体要求之一，是限制投资于生产会损害消费者健康产品的企业。

Among the specific factors in the ESG framework is a restriction on investing in producers of products that negatively affect the health of consumers.

IPS 的修改获 MPG 养老金董事会批准，并传达给所有外部管理人。

The changes to the IPS are approved by the MPG pension board and communicated to all external managers.

收到 IPS 更新通知后，MPG 养老金的外部管理人 Van Cleef 买入一家烟草公司的股票。

After receiving communications on the update to the IPS, Van Cleef, an external manager for the MPG pension fund, purchases stock in a tobacco firm.

他认为，烟草虽然不健康，但具有吸引人的风险回报特征，有助于实现受益人期望的高养老金给付。

He reasons that tobacco, although not healthy, exhibits an attractive risk–return profile and will contribute to the high pension payouts that the beneficiaries so desire.

Van Cleef 认为，投资回报是他作为管理人的首要任务。

Van Cleef believes that investment return is his first priority as a manager.

官方答案与解析 / **Official answer and explanation**

评析：Van Cleef 未考虑养老金受益人的限制条件及特殊情况，违反了准则 III(C)。

Comment: Van Cleef violated Standard III(C) because he failed to consider the constraints and unique circumstances of the beneficiaries of the pension fund.

本例明确规定了在投资过程中纳入 ESG 议题的偏好。

In this case, a preference for incorporating ESG issues into the investment process is clearly mandated.

受托人有义务确保基金资产按照 IPS 进行投资。

The trustees have a duty to ensure that the fund's assets are invested in accordance with the IPS.

任何须遵守《道德准则与专业行为准则》的受托人，例如 DeVries，都需要确保 Van Cleef 卖出不适当的烟草证券。

Any trustee who is required to abide by the Code and Standards, such as DeVries, would need to ensure that Van Cleef sells the inappropriate tobacco securities.

补充解析 / **Supplementary explanation**

本案例“例 7：限制条件”应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-041

例 8：适当性因素
Example 8: Suitability Factors

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 153

题目与资料 / **Question and data**

例 8：适当性因素 Example 8: Suitability Factors

Kim 是一家家族办公室的投资组合经理。该家族办公室 IPS 的目标包括长期保全资本及降低下行风险。

Kim is the portfolio manager of a family office. The family office's IPS objectives include long-term capital preservation and mitigation of downside risk.

Kim 正考虑化工行业的两项投资：Park Inc. 和 Dong Inc.。仅根据财务报表分析，Park Inc. 更有吸引力。

Kim is considering two investments in the chemical industry: Park Inc. and Dong Inc. Solely on the basis of financial statement analysis, the Park Inc. investment is the most attractive.

进一步分析后，Kim 发现 Dong Inc. 在其他因素，包括 ESG 标准方面的评分，远高于 Park Inc.。

Upon further analysis, Kim finds that Dong Inc. scores much higher than Park Inc. on other factors, including ESG criteria.

Kim 认为，ESG 评分较高的公司通常管理质量更高、环境风险更低，例如较少面临可能导致代价高昂事故或监管罚款的风险。

Kim believes that companies scoring high on ESG factors typically have higher-quality management and reduced environmental risks, such as risks that might lead to costly accidents or regulatory fines.

这些因素最终有利于投资的预期回报及风险状况。

Such factors ultimately benefit the expected return and risk profile of the investment.

基于此，Kim 为家族办公室投资 Dong Inc.。

On that basis, Kim invests in Dong Inc. for the family office.

官方答案与解析 / **Official answer and explanation**

评析：Kim 有责任选择适合 IPS 目标的投资。

Comment: Kim has a responsibility to select investments that are suitable for the IPS objectives.

他可以在投资决策过程中纳入财务指标之外的标准，包括但不限于 ESG 议题。

He is permitted to incorporate criteria beyond financial metrics, including but not limited to ESG issues, into the investment decision-making process.

Kim 的行为与其作出有效适当性判断的义务并不冲突。

Kim's actions are not in conflict with his obligation to make effective suitability determinations.

补充解析 / **Supplementary explanation**

本案例"例 8：适当性因素"应放在准则 III(C) 的具体要求下判断。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-CA-042

例 1：业绩计算与时间长度
Example 1: Performance Calculation and Length of Time

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 155

题目与资料 / **Question and data**

例 1：业绩计算与时间长度 Example 1: Performance Calculation and Length of Time

Taylor Trust Company 的 Taylor 向潜在客户分发宣传册，声称公司资产持续实现"每年增长 25%"。

Taylor of Taylor Trust Company distributes a brochure to potential clients stating that the firm consistently achieves "25% annual growth" of assets.

Taylor Trust 的共同信托基金上一年的确增长了 25%，与整体市场涨幅相同。

Taylor Trust's common trust fund did increase 25% for the previous year, which mirrored the increase of the overall market.

但在去年之前，该基金从未实现过 25% 的年度增长率，而 Taylor Trust 所有账户过去五年的平均年增长率为 5%。

The fund never had an annual growth rate of 25% prior to last year, and the average rate of growth of all of Taylor Trust accounts for five years is 5% per year.

官方答案与解析 / **Official answer and explanation**

评析：Taylor 的宣传册违反了准则 III(D)。

Comment: Taylor's brochure is in violation of Standard III(D).

Taylor 必须披露，25% 的增长只发生在某一年，而且仅涉及公司的共同信托基金。

Taylor must disclose that the 25% growth occurred only in one year and only for the firm's common trust fund.

关于公司整体业绩的一般性声明，必须考虑所有类别账户的表现。

A general claim of firm performance must take into account the performance of all categories of accounts.

Taylor 声称客户可以预期稳定的 25% 年复合增长率，是将某个组合单一年度的实际业绩，虚假表述为预期业绩。

By stating that clients can expect a steady 25% annual compound growth rate, Taylor is misrepresenting one portfolio's single-year actual performance as expected performance.

补充解析 / **Supplementary explanation**

本案例“例 1：业绩计算与时间长度”应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-043

例 2：业绩计算与资产加权
Example 2: Performance Calculation and Asset Weighting

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 155

题目与资料 / **Question and data**

例 2：业绩计算与资产加权 Example 2: Performance Calculation and Asset Weighting

Alexander Capital Management 的高级合伙人 Judd，分发了资本增值账户 2008 至 2022 年的业绩报告。

Judd, a senior partner at Alexander Capital Management, circulates a performance report for the capital appreciation accounts for the years 2008 through 2022.

公司声称符合 GIPS 标准。然而，回报并未按 GIPS 要求计算，因为组合群回报没有按照各组合资产规模加权。

The firm claims compliance with the GIPS standards. Returns are not calculated in accordance with the requirements of the GIPS standards, however, because the composite returns are not calculated by asset weighting portfolio returns.

官方答案与解析 / **Official answer and explanation**

评析：Judd 违反了准则 III(D)。公司声称符合 GIPS 标准时，必须满足所有要求、作出强制披露，并满足适用于该公司具体情况的其他要求。

Comment: Judd violated Standard III(D). When claiming compliance with the GIPS standards, firms must meet all the requirements, make mandatory disclosures, and meet any other requirements that apply to that firm's specific situation.

GIPS 标准要求公司按资产规模加权各投资组合回报，以计算组合群回报。

The GIPS standards require firms to asset weight portfolio returns to calculate composite returns.

Judd 的违规并非源于滥用数据，而是因为发布的业绩报告包含公司符合 GIPS 标准的虚假声明。

Judd's violation is not from any misuse of the data but from publishing a performance report with her firm's false claim of GIPS compliance.

补充解析 / **Supplementary explanation**

本案例“例 2：业绩计算与资产加权”应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

绩效组合的构建决定比较是否公平。挑选表现最好账户、排除不利时期或改变归因方法却不说明，均可能把选择效果伪装成管理能力；应在一致范围和口径下报告。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / **Performance Presentation**

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-044

例 3：业绩展示与先前基金 / 雇主
Example 3: Performance Presentation and Prior Fund/Employer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 155-156

题目与资料 / **Question and data**

例 3：业绩展示与先前基金 / 雇主 Example 3: Performance Presentation and Prior Fund/Employer

McCoy 是新成立的 Mastermind Financial Advisers 股权投资部门的副总裁兼管理合伙人。

McCoy is vice president and managing partner of the equity investment group of Mastermind Financial Advisers, a new business.

Mastermind 招聘 McCoy，是因为他在 G&P Financial 拥有经证实的六年业绩记录。

Mastermind recruited McCoy because he had a proven six-year track record with G&P Financial.

在设计 Mastermind 的广告及营销活动时，McCoy 制作了一则广告，包含他在 G&P Financial 取得的股票投资业绩。

In developing Mastermind's advertising and marketing campaign, McCoy prepares an advertisement that includes the equity investment performance he achieved at G&P Financial.

Mastermind 的广告没有说明该股票业绩是在 G&P 任职期间取得的。广告被分发给 Mastermind 的现有及潜在客户。

The advertisement for Mastermind does not identify the equity performance as being earned while at G&P. The advertisement is distributed to existing clients and prospective clients of Mastermind.

官方答案与解析 / **Official answer and explanation**

评析：McCoy 分发的广告对 Mastermind 的历史业绩作出重大虚假陈述，违反了准则 III(D)。

Comment: McCoy violated Standard III(D) by distributing an advertisement that contains material misrepresentations about the historical performance of Mastermind.

准则 III(D) 要求会员与考生作出合理努力，确保业绩信息公平、准确、完整地反映个人或公司的表现。

Standard III(D) requires that members and candidates make reasonable efforts to ensure that performance information is a fair, accurate, and complete representation of an individual's or firm's performance.

一般而言，本准则不禁止将先前任职公司所管理账户的历史业绩作为业绩记录的一部分展示，只要适当披露业绩产生的机构，以及该人士在取得业绩过程中承担的具体角色。

As a general matter, this standard does not prohibit showing past performance of accounts managed at a prior firm as part of a performance track record as long as showing that record is accompanied by appropriate disclosures about where the performance took place and the person's specific role in achieving that performance.

如果 McCoy 选择在 Mastermind 广告中使用自己在 G&P 的过往业绩，就必须充分披露该历史业绩的来源。

If McCoy chooses to use his past performance from G&P in Mastermind's advertising, he must make full disclosure of the source of the historical performance.

补充解析 / **Supplementary explanation**

本案例"例 3：业绩展示与先前基金 / 雇主"应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

个人经验可以随人离职，雇主拥有的研究、客户资料和记录通常不能。若要展示旧业绩或使用旧研究，应有可验证记录、相应授权并准确交代角色和时间，不能把团队/机构成果据为己有。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-045

例 4：业绩展示与模拟结果
Example 4: Performance Presentation and Simulated Results

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 156

题目与资料 / **Question and data**

例 4：业绩展示与模拟结果 Example 4: Performance Presentation and Simulated Results

Davis 根据 2000 至 2015 年的历史信息，开发了一款共同基金筛选产品。

Davis developed a mutual fund selection product based on historical information from 2000 to 2015.

Davis 将其方法回溯应用于 2016 至 2022 年的数据进行测试，得到这些年度的模拟业绩。

Davis tests his methodology by applying it retroactively to data from the 2016–22 period, thus producing simulated performance results for those years.

2023 年 1 月，Davis 的雇主决定推出该产品，他开始通过行业刊物广告及直接向客户发送资料进行推广。

In January 2023, Davis's employer decides to offer the product and Davis begins promoting it through trade journal advertisements and direct dissemination to clients.

广告包含 2016 至 2022 年的业绩结果，却没有说明这些结果属于模拟。

The advertisements include the performance results for the 2016–22 period but do not indicate that the results were simulated.

官方答案与解析 / **Official answer and explanation**

评析：Davis 未明确标示模拟业绩结果，违反了准则 III(D)。

Comment: Davis violated Standard III(D) by failing to clearly identify simulated performance results.

准则 III(D) 禁止会员与考生作出任何歪曲自身或公司实际业绩的陈述，并要求尽一切合理努力，确保向客户展示的业绩信息公平、准确且完整。

Standard III(D) prohibits members and candidates from making any statements that misrepresent the performance achieved by them or their firms and requires members and candidates to make every reasonable effort to ensure that performance information presented to clients is fair, accurate, and complete.

Davis 使用模拟结果时，必须充分披露业绩数据的来源，包括说明 2016 至 2022 年的结果，是将模型回溯应用于该期间所得。

Davis's use of simulated results must be accompanied by full disclosure as to the source of the performance data, including the fact that the results from 2016 through 2022 are the result of applying the model retroactively to that time period.

补充解析 / **Supplementary explanation**

本案例"例 4：业绩展示与模拟结果"应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

回测或模拟结果受样本选择、事后信息、交易成本及执行假设影响。应明确标识为模拟，说明关键假设与限制，不能让读者误以为是实盘管理历史。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-046

例 5：业绩计算与仅选取部分账户
Example 5: Performance Calculation and Selected Accounts Only

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 156-157

题目与资料 / **Question and data**

例 5：业绩计算与仅选取部分账户 Example 5: Performance Calculation and Selected Accounts Only

在为潜在客户准备的演示资料中，Kilmer 展示了公司以“平衡”为目标的全权委托账户所组成“组合群”在五年期间取得的回报率。

In a presentation prepared for prospective clients, Kilmer shows the rates of return realized over a five-year period by a “composite” of his firm’s discretionary accounts that have a “balanced” objective.

然而，该组合群仅包含少数符合公司平衡标准的账户，剔除了资产规模低于某水平的账户而未披露，并纳入了一些没有平衡型授权要求的账户，因为这些账户能提高业绩结果。

This composite, however, consists of only a few of the accounts that met the balanced criterion set by the firm, excludes accounts under a certain asset level without disclosing the fact of their exclusion, and includes accounts that do not have the balanced mandate, because those accounts help increase the investment results.

此外，为取得更好结果，Kilmer 随时间更换组合群中的账户，操纵所纳入的有限账户范围。

In addition, to achieve better results, Kilmer manipulates the narrow range of accounts included in the composite by changing the accounts that make up the composite over time.

官方答案与解析 / **Official answer and explanation**

评析：Kilmer 在发给潜在客户的宣传材料中歪曲事实、扭曲公司业绩记录，并未作出可澄清展示内容的披露，违反了准则 III(D)。

Comment: Kilmer violated Standard III(D) by misrepresenting the facts in the promotional material sent to prospective clients, distorting his firm’s performance record, and failing to include disclosures that would have clarified the presentation.

补充解析 / **Supplementary explanation**

本案例“例 5：业绩计算与仅选取部分账户”应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

绩效组合的构建决定比较是否公平。挑选表现最好账户、排除不利时期或改变归因方法却不说明，均可能把选择效果伪装成管理能力；应在一致范围和口径下报告。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-047

例 6：更改业绩归因方法
Example 6: Performance Attribution Changes

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 157

题目与资料 / **Question and data**

例 6：更改业绩归因方法 Example 6: Performance Attribution Changes

Purell 正在审查即将发给客户的季度业绩归因报告。

Purell is reviewing the quarterly performance attribution reports for distribution to clients.

Purell 所在投资管理公司采用由下而上、以基本面为导向的投资过程，寻求通过选股增加价值。

Purell works for an investment management firm with a bottom-up, fundamentals-driven investment process that seeks to add value through stock selection.

其归因方法将每只股票的回报与所属板块回报比较。

The attribution methodology compares each stock's return with its sector return.

归因报告显示，本季度的增值来自资产配置，而选股对计算所得回报作出了负贡献。

The attribution report indicates that the value added this quarter came from asset allocation and that stock selection contributed negatively to the calculated return.

Purell 尝试数种不同方法后发现，如果先将各股票与所属行业比较，再将影响汇总到板块层面，就能让经理的选股表现看起来更好。

After trying several different approaches, Purell discovers that calculating attribution by comparing each stock with its industry and then rolling the effect to the sector level improves the appearance of the manager's stock selection activities.

由于归因术语由公司自行定义，而且新结果更能反映所述策略，Purell 建议客户报告采用修订后的方法。

Because the firm defines the attribution terms and the results better reflect the stated strategy, Purell recommends that the client reports should use the revised methodology.

官方答案与解析 / **Official answer and explanation**

评析：在未作适当披露的情况下修改归因方法，不符合准则 III(D) 的要求。

Comment: Modifying the attribution methodology without proper disclosure fails to meet the requirements of Standard III(D).

Purell 的建议完全是为了公司利益，让人们认为公司更有能力实现其所述投资策略。

Purell's recommendation is being done solely for the interest of the firm to improve its perceived ability to meet the stated investment strategy.

这类改变掩盖了公司实际能力的事实。

Such changes obscure the facts regarding the firm's abilities.

补充解析 / **Supplementary explanation**

本案例"例 6：更改业绩归因方法"应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

绩效组合的构建决定比较是否公平。挑选表现最好账户、排除不利时期或改变归因方法却不说明，均可能把选择效果伪装成管理能力；应在一致范围和口径下报告。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-048

例 7：披露业绩计算方法
Example 7: Performance Calculation Methodology Disclosure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 157

题目与资料 / **Question and data**

例 7：披露业绩计算方法 Example 7: Performance Calculation Methodology Disclosure

在为现有客户开发新的报告方案时，业绩分析师 Singh 发现，公司新系统会自动计算时间加权及资金加权回报。

While developing a new reporting package for existing clients, Singh, a performance analyst, discovers that her company's new system automatically calculates both time-weighted and money-weighted returns.

鉴于公司有多种投资策略，包括债券、股票、无杠杆证券及另类投资，她询问客户服务与保留部门负责人，偏好使用哪一种回报类型。

She asks the head of client services and retention which return type is preferred given that the firm has various investment strategies that include bonds, equities, securities without leverage, and alternatives.

对方要求 Singh 不要标明回报类型，以便公司可以展示当期回报最高的计算结果。

Singh is told not to label the returns so that the firm may show whichever performance calculation provides the highest return for the period.

官方答案与解析 / **Official answer and explanation**

评析：遵循这些指示将使 Singh 违反准则 III(D)。

Comment: Following these instructions would lead to Singh violating Standard III(D).

如果报告中使用不一致的回报类型，Singh 就没有向公司客户提供完整信息。

In reporting inconsistent return types, Singh would not be providing complete information to the firm's clients.

只有当客户掌握足够信息，能够判断公司创造的业绩时，才算提供了完整信息。

Complete information is provided when clients have sufficient information to judge the performance generated by the firm.

补充解析 / **Supplementary explanation**

本案例"例 7：披露业绩计算方法"应放在准则 III(D) 的具体要求下判断。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-CA-049

例 1：掌握机密信息
Example 1: Possessing Confidential Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 160

题目与资料 / **Question and data**

例 1：掌握机密信息 Example 1: Possessing Confidential Information

Connor 是 Johnson Investment Counselors, Inc. 的金融分析师，向 City Medical Center 的受托人提供投资建议。

Connor, a financial analyst employed by Johnson Investment Counselors, Inc., provides investment advice to the trustees of City Medical Center.

受托人向她提供了多份内部报告，涉及 City Medical 的建筑设施翻新及扩建需求。

The trustees have given her a number of internal reports concerning City Medical's needs for physical plant renovation and expansion.

他们要求 Connor 推荐能使捐赠基金实现资本增值的投资，以满足预计资本开支。

They have asked Connor to recommend investments that would generate capital appreciation in endowment funds to meet projected capital expenditures.

当地商人 Kasey 联系 Connor；他正在考虑向 City Medical Center 或另一家当地医院作出大额捐赠。

Connor is approached by a local businessman, Kasey, who is considering a substantial contribution either to City Medical Center or to another local hospital.

Kasey 希望在决定前了解两家机构的建设计划，但不想与受托人交谈。

Kasey wants to find out the building plans of both institutions before making a decision, but he does not want to speak to the trustees.

官方答案与解析 / **Official answer and explanation**

评析：受托人提供内部报告，是为了让 Connor 就捐赠基金的管理提供意见。

Comment: The trustees gave Connor the internal reports so she could advise them on how to manage their endowment funds.

报告中的信息显然具有机密性，而且属于保密关系的范围，因此准则 III(E) 禁止 Connor 向 Kasey 泄露这些信息。

Because the information in the reports is clearly both confidential and within the scope of the confidential relationship, Standard III(E) prohibits Connor from divulging the information to Kasey.

补充解析 / **Supplementary explanation**

本案例"例 1：掌握机密信息"应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-CA-050

例 2：披露机密信息
Example 2: Disclosing Confidential Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 160

题目与资料 / **Question and data**

例 2：披露机密信息 Example 2: Disclosing Confidential Information

Moody 是 Lester Trust Company 的投资经理。

Moody is an investment officer at the Lester Trust Company.

她的一位顾问客户曾与她讨论，拟捐约 50,000 美元给慈善机构，以减少所得税。

She has an advisory client who has talked to her about giving approximately US$50,000 to charity to reduce her income taxes.

Moody 同时担任 Home for Indigent Widows（HIW）的财务主管，该机构正筹备年度募捐活动。

Moody is also treasurer of the Home for Indigent Widows (HIW), which is planning its annual giving campaign.

HIW 希望扩大捐赠者名单，尤其希望增加有能力作出大额捐赠的人士。

HIW hopes to expand its list of donors, particularly those capable of substantial gifts.

Moody 建议 HIW 负责企业捐赠的副总裁拜访其客户，并请求约 50,000 美元的捐款。

Moody recommends that HIW's vice president for corporate gifts call on her client and ask for a donation in the US$50,000 range.

官方答案与解析 / **Official answer and explanation**

评析：虽然协助 Home for Indigent Widows 的动机良好，但 Moody 泄露了客户机密信息，违反了准则 III(E)。

Comment: Even though the attempt to help the Home for Indigent Widows was well intended, Moody violated Standard III(E) by revealing confidential information about her client.

补充解析 / **Supplementary explanation**

本案例"例 2：披露机密信息"应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-CA-051

例 3：披露可能的非法活动
Example 3: Disclosing Possible Illegal Activity

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 161

题目与资料 / **Question and data**

例 3：披露可能的非法活动 Example 3: Disclosing Possible Illegal Activity

Samuel 是 Garcia Company 养老金计划的投资组合经理。她从 Garcia 一位公司高管处得知，Garcia 的首席执行官可能向养老金计划收取过高及不当费用。

Samuel, the portfolio manager for Garcia Company's pension plan, has learned from one of Garcia's corporate officers that potentially excessive and improper charges were being made to the pension plan by the CEO of Garcia.

该高管告知她，Garcia 的公司报税表正在接受审计，养老金也正在被审查。

They tell her that Garcia's corporate tax returns are being audited and the pension fund is being reviewed.

Samuel 咨询雇主的总法律顾问，获告知 Garcia 很可能违反了税务及信义责任方面的法律法规。

Samuel consults her employer's general counsel and is advised that Garcia likely violated tax and fiduciary regulations and laws.

两天后，政府官员联系 Samuel，要求检查养老金记录。

Two days later, government officials contact Samuel with a request to examine pension fund records.

官方答案与解析 / **Official answer and explanation**

评析：Samuel 及其雇主应寻求法律顾问意见，确定应采取哪些适当措施，以保护养老金计划参与者及受益人的利益，并遵守回应政府监管机构的适用法律。

Comment: Samuel and her employer should seek the advice of legal counsel to determine the appropriate steps to take to protect the interests of the participants and beneficiaries of the pension plan and comply with applicable law for responding to government regulators.

Samuel 很可能有义务向政府提供公司持有的养老金记录。

Samuel may well have a duty to provide the pension fund records her firm possesses to the government.

补充解析 / **Supplementary explanation**

本案例“例 3：披露可能的非法活动”应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

涉及可能违法行为时，先查适用法律是否允许或要求披露，再确定披露对象和范围。不能把准则中的例外理解为可向任何人公开全部资料；法律顾问与合规部门可以帮助界定边界。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-CA-052

例 4：披露可能的非法活动
Example 4: Disclosing Possible Illegal Activity

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 161

题目与资料 / **Question and data**

例 4：披露可能的非法活动 Example 4: Disclosing Possible Illegal Activity

Bradford 为一家家族房地产开发公司管理资金。

Bradford manages money for a family-owned real estate development corporation.

他也管理数位家族成员及公司高管的个人投资组合，包括首席财务官（CFO）的组合。

He also manages the individual portfolios of several of the family members and officers of the corporation, including the chief financial officer (CFO).

根据公司财务记录，以及他观察到的首席财务官某些可疑做法，Bradford 认为该财务官正在挪用公司资金，存入个人投资账户。

Based on the financial records of the corporation and some questionable practices of the CFO that Bradford has observed, Bradford believes that the CFO is embezzling money from the corporation and putting it into his personal investment account.

官方答案与解析 / **Official answer and explanation**

评析：Bradford 应咨询公司合规部门或适当法律顾问，确定适用证券法规是否要求向当局报告该首席财务官的财务记录。

Comment: Bradford should check with his firm's compliance department or appropriate legal counsel to determine whether applicable securities regulations require reporting the CFO's financial records to authorities.

补充解析 / **Supplementary explanation**

本案例"例 4：披露可能的非法活动"应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

涉及可能违法行为时，先查适用法律是否允许或要求披露，再确定披露对象和范围。不能把准则中的例外理解为可向任何人公开全部资料；法律顾问与合规部门可以帮助界定边界。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-CA-053

例 5：意外披露机密信息
Example 5: Accidental Disclosure of Confidential Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 161

题目与资料 / **Question and data**

例 5：意外披露机密信息 Example 5: Accidental Disclosure of Confidential Information

Moody 是 Lester Trust Company（LTC）的投资经理。

Moody is an investment officer at the Lester Trust Company (LTC).

她负责管理大量独立管理的应税账户。

She has stewardship of a significant number of individually managed taxable accounts.

约十多位高净值人士向 Moody 表示，除了每季度书面报告外，也愿意通过社交媒体直接接收她有关整体经济及金融市场展望的信息。

In addition to receiving quarterly written reports, about a dozen high-net-worth individuals have indicated to Moody a willingness to receive communications about overall economic and financial market outlooks directly from her through social media.

在公司技术及合规部门指导下，她在现有 LTC 社交媒体平台上建立了专供其客户使用的新群组页面。

Under the direction of her firm's technology and compliance departments, she establishes a new group page on an existing LTC social media platform specifically for her clients.

在向客户提供的说明中，Moody 要求他们"加入"群组，以取得访问所发布内容的权限。

In the instructions provided to clients, Moody asks them to "join" the group so they may be granted access to the posted content.

说明还告知客户，该平台并非传达个人或机密信息的适当渠道。

The instructions also advise clients that the platform is not an appropriate method for communicating personal or confidential information.

六个月后的一月初，Moody 发布 LTC 的年末《市场展望》。

Six months later, in early January, Moody posts LTC's year-end "Market Outlook."

报告概述了公司将在新一年加入推荐范围的新资产配置策略。

The report outlines a new asset allocation strategy that the firm is adding to its recommendations in the new year.

Moody 在报告中表示，将在即将举行的会面中，分别与客户讨论这些变化。

In the report, Moody indicates that she will be discussing the changes with clients individually in their upcoming meetings.

Moody 的一位客户直接在群组页面回复，说其家庭财务状况最近发生重大变化。

One of Moody's clients responds directly on the group page that his family recently experienced a major change in their financial profile.

客户详细描述了该事件中高度私密及机密的信息。

The client describes highly personal and confidential details of the event.

遗憾的是，在 Moody 将评论删除之前，群组内所有客户都能够阅读这些详细内容。

Unfortunately, all clients that were part of the group are also able to read the detailed posting until Moody has the comment removed.

官方答案与解析 / **Official answer and explanation**

评析：Moody 已采取合理措施，在使用社交媒体平台的同时保护客户信息的机密性。

Comment: Moody has taken reasonable steps to protect the confidentiality of client information while using the social media platform.

她已提供说明，明确指出网站发布的所有信息会向所有群组成员显示，并警告不要通过这种方式传达机密信息。

She provided instructions clarifying that all information posted on the site would be publicly viewable to all group members and warned against using this method for communicating confidential information.

客户意外披露机密信息，不在 Moody 的控制之下。

The accidental disclosure of confidential information by a client is not under Moody's control.

她在发现后及时删除信息的行动，也进一步符合准则 III(E)。

Her actions to remove the information promptly once she became aware further align with Standard III(E).

补充解析 / **Supplementary explanation**

本案例"例 5：意外披露机密信息"应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

保密问题不仅来自故意泄露，也可能来自邮件误发、公开场合讨论或不当存储。发现后应限制扩散、通知合规并补救，同时改进访问权限与传输流程。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-CA-054

例 6：弱势投资者
Example 6: Vulnerable Investor

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 162

题目与资料 / **Question and data**

例 6：弱势投资者 Example 6: Vulnerable Investor

财务顾问 Gonzales 向多位私人财富客户提供投资建议。

Gonzales, a financial adviser, provides investment advice to a number of private wealth clients.

在所有客户安排开始时，Gonzales 都将指定第二联系人作为开户流程的一部分；如果她担心客户作出明智财务决定的能力，便可联系该人士。

At the beginning of all client arrangements, as a part of the onboarding process, Gonzales requires the client to designate a secondary contact who Gonzales can communicate with should she become concerned about the client's ability to make judicious financial decisions.

Gonzales 定期会见长期客户 Brennan，讨论其投资组合；Brennan 是一位寡妇。

Gonzales meets with a longtime client, Brennan, a widow, on a regular basis to discuss her portfolio.

Brennan 已指定儿子为她认知能力下降时的联系人。

Brennan has named her son as the person to contact in the event of her mental decline.

过去几个月，Brennan 忘记了最近三次会面，不得不重新安排后续会面，因此 Gonzales 越来越担心她的认知能力。

Gonzales has growing concerns about Brennan's mental capacity over the past several months because Brennan has forgotten the last three meetings and has had to reschedule follow-up meetings.

在这些会面中，Brennan 不仅对 Gonzales 知道她过去很容易理解的例行事项表现困惑，而且似乎连长期既定的投资目标也不清楚。

At those meetings, Brennan not only seems confused by routine matters that Gonzales knows she easily grasped in the past but also seems unclear about her long-established investment objectives.

Gonzales 试图轻描淡写地化解这些疏漏时，Brennan 却一反常态地对她表现烦躁。

When Gonzales tries to make light of these lapses, Brennan grows uncharacteristically irritable with her.

Gonzales 在档案中详细记录了这些会面及互动。

Gonzales details these meetings and interactions in her files.

下一次会面时，Brennan 指示 Gonzales 变现其投资组合的 50%。

At the next meeting, Brennan directs Gonzales to liquidate 50% of her portfolio.

Brennan 告诉 Gonzales，她想将这笔资金投入其物理治疗师即将开设的一项高度投机性的私人健身会所业务。

Brennan informs Gonzales that she wishes to invest that money in a highly speculative private health club venture being opened by her physical therapist.

Gonzales 与 Brennan 共事多年，而 Brennan 一向偏好广泛分散的投资组合。

Gonzales has been working with Brennan over many years, and she has always favored a widely diversified portfolio.

在执行 Brennan 的指示之前，Gonzales 联系了她的儿子，讨论相关情况。

Prior to acting on Brennan's directive, Gonzales contacts her client's son to discuss this situation with him.

她在 Brennan 的档案中记录了与 Brennan 及其儿子的谈话，以及披露机密信息的理由。

She documents in Brennan's file the conversation with both Brennan and her son and her reasons for disclosing confidential information.

官方答案与解析 / **Official answer and explanation**

评析：Gonzales 披露自己对客户可能处于弱势的顾虑，是保护 Brennan 利益的适当措施。

Comment: Gonzales has taken the appropriate steps to protect Brennan's interests by disclosing her concerns about the vulnerability of her client.

Brennan 之前已表示，如果对其认知能力出现顾虑，Gonzales 应联系其儿子。

Brennan previously indicated that in the event of concerns about her mental capacity, Gonzales should contact her son.

Gonzales 观察到 Brennan 认知能力下降，并担忧她对物理治疗师存在依赖关系，这些都是质疑突然变现大部分投资指示的合理理由。

Gonzales's observation of Brennan's mental decline and concern over the dependent relationship with her physical therapist are valid reasons to question the sudden instruction to liquidate a large portion of her investments.

因此，Gonzales 没有违反准则 III(E)"保守机密"。

Gonzales is thus not in violation of the Standard III(E) Preservation of Confidentiality.

补充解析 / **Supplementary explanation**

本案例"例 6：弱势投资者"应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

当客户可能受诈骗或认知能力下降时，保护客户与保密之间可能存在张力。应先遵循法律、公司程序和有效授权的联系人安排，不能简单把全部账户资料交给未经授权的亲属。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-CA-055

例 7：向家人披露机密信息
Example 7: Confidential Information to Family Members

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 162-163

题目与资料 / **Question and data**

例 7：向家人披露机密信息 Example 7: Confidential Information to Family Members

理财规划师 Smith-Pelley 接到长期客户 Carlson 的电话。Carlson 说，她最近与结婚 37 年的丈夫离婚，在国外度假时认识并嫁给了一名比她年轻 25 岁的男子。

Smith-Pelley, a financial planner, receives a call from longtime client, Carlson, who shares the news that, after a recent divorce from her husband of 37 years, she met and married a man 25 years her junior while on a holiday in another country.

该男子是当地公民，但将与 Carlson 一起搬回她的居住地。

The man is a citizen of that country but will be moving home with Carlson.

Carlson 要求 Smith-Pelley 变现其投资账户的一半，以便搬离公寓，与新丈夫搬入昂贵的乡间庄园。

Carlson asks Smith-Pelley to liquidate half of her investment account so she can move out of her flat and into an expensive country estate with her new husband.

Carlson 还指示 Smith-Pelley，将新丈夫的姓名加入所有投资账户文件。

Carlson also directs Smith-Pelley to add her new husband's name to all her investment account documents.

Carlson 按照指示办理。〔原文如此；按上下文应指顾问 Smith-Pelley 执行指示。〕在接下来六个月，账户不断被提取更多资金，大部分由 Carlson 的新丈夫提取。

Carlson does as directed. Over the next six months, more funds are withdrawn from the account, mostly by Carlson's new husband.

Carlson 与前夫所生子女也是 Smith-Pelley 的客户。他们联系他，要求冻结母亲账户，声称母亲的认知能力已下降，并正被新伴侣利用。

Carlson's children from her first marriage, also clients of Smith-Pelley, contact him to demand that their mother's accounts be frozen, claiming she has diminished mental capacity and is being taken advantage of by the new man in her life.

Smith-Pelley 没有采取行动，并拒绝与子女讨论 Carlson 的账户。

Smith-Pelley does nothing and refuses to discuss Carlson's accounts with her children.

官方答案与解析 / **Official answer and explanation**

评析：Smith-Pelley 没有按照 Carlson 子女的指示行动，也没有同他们讨论她的账户，并未违反其道德义务。

Comment: Smith-Pelley is not in violation of his ethical duties by failing to act on Carlson's children's directions or discussing her account with them.

虽然 Carlson 最近的决定突然且出人意料，可能引起警觉，但并不表明她丧失了决策能力。

Although Carlson's recent decisions may raise red flags because the changes were sudden and unexpected, they do not indicate a loss of Carlson's decision-making ability.

因此，他为客户利益服务、遵循她的指示，并对其投资信息保密，是正确的做法。

As such, he is right to act for the benefit of his client, follow her direction, and keep her investment information confidential.

补充解析 / **Supplementary explanation**

本案例“例 7：向家人披露机密信息”应放在准则 III(E) 的具体要求下判断。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

家属关系需要进一步问“谁是受益人、是否是正常收费客户、是否使用非公开交易信息”。正常客户家属账户应公平对待；自己拥有受益权的账户则必须服从客户交易优先。

当客户可能受诈骗或认知能力下降时，保护客户与保密之间可能存在张力。应先遵循法律、公司程序和有效授权的联系人安排，不能简单把全部账户资料交给未经授权的亲属。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

V10-M05-PR-001

课后习题 **1**
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 164, 168

题目与资料 / **Question and data**

1. 证券公司的研究分析师 Smith 决定，将 Green Company, Inc. 普通股的建议由“买入”改为“卖出”。

1. Smith, a research analyst with a brokerage firm, decides to change his recommendation for the common stock of Green Company, Inc., from a “buy” to a “sell.”

星期三，他将这项投资建议变更邮寄给公司所有客户。

He mails this change in investment advice to all the firm’s clients on Wednesday.

寄出后的翌日，一位客户来电，要求买入 500 股 Green Company 股票。

The day after the mailing, a client calls with a buy order for 500 shares of Green Company.

在此情况下，Smith 应：

In this circumstance, Smith should:

A. 接受订单。

A. accept the order.

B. 在接受订单之前，告知客户建议已变更。

B. advise the customer of the change in recommendation before accepting the order.

C. 因订单违背公司建议而拒绝接受。

C. not accept the order because it is contrary to the firm's recommendation.

官方答案与解析 / **Official answer and explanation**

1. 正确答案为 B。本题涉及准则 III(B)"公平对待"。

1. The correct answer is B. This question involves Standard III(B) Fair Dealing.

Smith 已向客户发送股票建议变更，但随后收到一位可能尚未收到新建议的客户提出相反的交易要求。

Smith disseminated a change in the stock recommendation to his clients but then received a request contrary to that recommendation from a client who probably had not yet received the recommendation.

在执行订单之前，Smith 应采取额外措施，确保客户已经收到变更后的建议。

Prior to executing the order, Smith should take additional steps to ensure that the customer has received the change of recommendation.

A 不正确，因为客户在收到建议之前下单，因此未能参考 Smith 最新的建议。

Answer A is incorrect because the client placed the order prior to receiving the recommendation and, therefore, does not have the benefit of Smith's most recent recommendation.

C 也不正确；客户的要求仅因与公司建议相反，并不意味着会员可以否决客户的直接指令。

Answer C is also incorrect; simply because the client request is contrary to the firm's recommendation does not mean a member can override a direct request by a client.

Smith 联系客户并确认其已收到变更后的建议之后，如果客户仍希望下单买入，Smith 有义务遵从客户指示。

After Smith contacts the client to ensure that the client has received the changed recommendation, if the client still wants to place a buy order for the shares, Smith is obligated to comply with the client's directive.

参见准则 III(B)：公平对待。

See Standard III(B): Fair Dealing

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(B)（公平对待）。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 164, 168

题目与资料 / **Question and data**

2. 以下哪项有关经理使用客户经纪佣金的说法，违反《道德准则与专业行为准则》？

2. Which statement about a manager's use of client brokerage commissions violates the Code and Standards?

A. 客户可以指示经理，使用该客户的经纪佣金，为该客户购买商品及服务。

A. A client may direct a manager to use that client's brokerage commissions to purchase goods and services for that client.

B. 客户经纪佣金应使客户受益，且金额应与取得的经纪及研究服务价值相称。

B. Client brokerage commissions should be used to benefit the client and should be commensurate with the value of the brokerage and research services received.

C. 客户经纪佣金可以用于支付投资经理的运营费用。

C. Client brokerage commissions may be directed to pay for the investment manager's operating expenses.

官方答案与解析 / **Official answer and explanation**

2. 正确答案为 C。本题涉及准则 III(A)"忠诚、审慎与谨慎"，具体是软美元或软佣金问题。

2. The correct answer is C. This question involves Standard III(A) Loyalty, Prudence, and Care and the specific topic of soft dollars or soft commissions.

C 正确，因为客户的经纪佣金不得用于支付投资经理的运营费用。

Answer C is the correct choice because client brokerage commissions may not be directed to pay for the investment manager's operating expenses.

B 描述会员与考生应如何决定经纪佣金的用途，即该用途是否符合客户最佳利益，以及是否与所提供服务的价值相称。

Answer B describes how members and candidates should determine how to use brokerage commissions—that is, if the use is in the best interests of clients and is commensurate with the value of the services provided.

A 描述的做法通常称为“指定经纪安排”。

Answer A describes a practice that is commonly referred to as “directed brokerage.”

由于经纪佣金是客户的资产，并用于惠及客户而非经理，这种做法不违反对客户的忠诚义务。

Because brokerage is an asset of the client and is used to benefit the client, not the manager, such practice does not violate a duty of loyalty to the client.

会员与考生在任何情况下，都有义务向客户披露使用客户经纪佣金的做法。

Members and candidates are obligated in all situations to disclose to clients their practices in the use of client brokerage commissions.

参见准则 III(A)：忠诚、审慎与谨慎。

See Standard III(A): Loyalty, Prudence, and Care

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

客户佣金实质上是客户资产。分析时要追踪佣金购买了什么、谁得到好处、是否改善该客户的投资决策或执行；用它交换雇主广告、办公室或个人好处，不能因客户看不到费用而合理化。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / **Loyalty, Prudence, and Care**

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-PR-003

课后习题 **3**
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 164, 168

题目与资料 / **Question and data**

3. Bronson 向某私立大学捐赠基金的受托人董事会提供投资建议。

3. Bronson provides investment advice to the board of trustees of a private university endowment fund.

受托人向 Bronson 提供了基金财务信息，包括计划开支。

The trustees have provided Bronson with the fund's financial information, including planned expenditures.

星期五下午，Bronson 接到知名校友 Murdock 的电话，要求他传真基金的全面财务信息。

Bronson receives a phone call on Friday afternoon from Murdock, a prominent alumnus, requesting that Bronson fax him comprehensive financial information about the fund.

Murdock 称自己找到一位潜在捐赠者，但需要当天取得资料才能敲定捐赠，而且无法联系到任何受托人。

According to Murdock, he has a potential contributor but needs the information that day to close the deal and cannot contact any of the trustees.

根据 CFA 协会准则，Bronson 应：

Based on the CFA Institute Standards, Bronson should:

A. 将信息发送给 Murdock，因为披露有利于客户。

A. send Murdock the information because disclosure would benefit the client.

B. 不向 Murdock 发送信息，以保守机密。

B. not send Murdock the information, to preserve confidentiality.

C. 向 Murdock 发送信息，但须及时通知受托人。

C. send Murdock the information, provided Bronson promptly notifies the trustees.

官方答案与解析 / **Official answer and explanation**

3. 正确答案为 B。本题涉及准则 III(A)"忠诚、审慎与谨慎"及准则 III(E)"保守机密"。

3. The correct answer is B. This question relates to Standard III(A) Loyalty, Prudence, and Care and Standard III(E) Preservation of Confidentiality.

本例中，会员管理的是私人捐赠基金。

In this case, the member manages funds of a private endowment.

客户，在这里即基金受托人，必须对会员与考生给予一定信任。

Clients—in this case, the trustees of the fund—must place some trust in members and candidates.

无论披露是否可能使基金受益，未经基金许可，Bronson 均不得向任何人披露机密财务信息。

Bronson cannot disclose confidential financial information to anyone without the permission of the fund, regardless of whether the disclosure may benefit the fund.

因此，A 不正确。C 不正确，因为 Bronson 必须在公开信息之前通知基金，并取得基金许可。

Therefore, answer A is incorrect. Answer C is incorrect because Bronson must notify the fund and obtain the fund's permission before publicizing the information.

参见准则 III(A)：忠诚、审慎与谨慎，以及准则 III(E)：保守机密。

See Standard III(A): Loyalty, Prudence, and Care and Standard III(E): Preservation of Confidentiality

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 164, 168

题目与资料 / **Question and data**

4. 作出新的投资建议时，以下哪项行动有助于确保证券公司客户得到公平对待？

4. Which one of the following actions will help ensure the fair treatment of brokerage firm clients when a new investment recommendation is made?

A. 事先通知公司所有人员，某项建议即将发布。

A. Informing all people in the firm in advance that a recommendation is to be disseminated

B. 先向机构客户分发建议，再向个人账户分发。

B. Distributing recommendations to institutional clients prior to individual accounts

C. 尽量缩短作出建议决定至发布建议之间的时间。

C. Minimizing the time between the decision and the dissemination of a recommendation

官方答案与解析 / **Official answer and explanation**

4. 正确答案为 C。本题涉及准则 III(B)“公平对待”，考查有助于会员与考生在作出投资建议时公平对待客户的程序。

4. The correct answer is C. This question, which relates to Standard III(B) Fair Dealing, tests the knowledge of the procedures that will assist members and candidates in treating clients fairly when making investment recommendations.

C 所列措施有助于确保客户受到公平对待。

The step listed in C will help ensure the fair treatment of clients.

A 可能对公平对待客户产生负面影响。

Answer A may have negative effects on the fair treatment of clients.

知道即将更改建议的人越多，就越可能有人在正式发布之前通知部分客户。

The more people who know about a pending change, the greater the chance that someone will inform some clients before the information's release.

公司应制定政策，限制提前知道某项建议即将发布的人数。

The firm should establish policies that limit the number of people who are aware in advance that a recommendation is to be disseminated.

B，即先向机构客户分发建议，再向个人账户分发，是根据资产规模及类别歧视客户，违反了准则 III(B)。

Answer B, distributing recommendations to institutional clients before distributing them to individual accounts, discriminates among clients on the basis of size and class of assets and is a violation of Standard III(B).

参见准则 III(B)：公平对待。

See Standard III(B): Fair Dealing

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(B)（公平对待）。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / **Fair Dealing**

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

V10-M05-PR-005

课后习题 **5**
Practice Problem 5

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 165, 169

题目与资料 / **Question and data**

5. Farnsworth 管理的全权委托账户之一，是 Jones Corporation 的员工利润分享计划。

5. One of the discretionary accounts managed by Farnsworth is the Jones Corporation employee profit-sharing plan.

公司总裁 Jones 最近要求 Farnsworth，利用利润分享计划所持股份投票，支持 Jones Corporation 提名的董事名单，并反对异议股东团体支持的董事。

Jones, the company president, recently asked Farnsworth to vote the shares in the profit-sharing plan in favor of the slate of directors nominated by Jones Corporation and against the directors sponsored by a dissident stockholder group.

Farnsworth 不想失去这个账户，因为他将该账户的所有交易交给一家证券公司，而该公司向他提供有关免税投资的有用信息。

Farnsworth does not want to lose this account, because he directs all the account's trades to a brokerage firm that provides Farnsworth with useful information about tax-free investments.

这些信息虽然无助于管理 Jones Corporation 的账户，却有助于管理其他几个账户。

Although this information is not of value in managing the Jones Corporation account, it does help in managing several other accounts.

提供信息的证券公司还收取最低的交易佣金，并提供最佳执行。

The brokerage firm providing this information also offers the lowest commissions for trades and provides best execution.

Farnsworth 调查了董事选举问题，认为管理层提名的名单较异议团体的名单更有利于公司的长期表现，并据此投票。

Farnsworth investigates the director issue, concludes that the management-nominated slate is better for the long-run performance of the company than the dissident group's slate, and votes accordingly.

Farnsworth：

Farnsworth:

A. 按 Jones 要求投票违反了准则，但将交易交给该证券公司并未违规。

A. violated the Standards in voting the shares in the manner requested by Jones but not in directing trades to the brokerage firm.

B. 按 Jones 要求投票以及将交易交给该证券公司，两者均未违反准则。

B. did not violate the Standards in voting the shares in the manner requested by Jones or in directing trades to the brokerage firm.

C. 将交易交给该证券公司违反了准则，但按 Jones 要求投票并未违规。

C. violated the Standards in directing trades to the brokerage firm but not in voting the shares as requested by Jones.

官方答案与解析 / **Official answer and explanation**

5. 正确答案为 B。本题涉及准则 III(A)“忠诚、审慎与谨慎”，具体是会员或考生在代理投票及客户佣金使用方面的责任。

5. The correct answer is B. This question relates to Standard III(A) Loyalty, Prudence, and Care—specifically, a member's or candidate's responsibility for voting proxies and the use of client brokerage.

根据题目所述事实，Farnsworth 没有违反准则 III(A)。

According to the facts stated in the question, Farnsworth did not violate Standard III(A).

虽然公司总裁要求 Farnsworth 按特定方式为 Jones Corporation 利润分享计划所持股份投票，但 Farnsworth 调查了议题，并独立判断出最佳投票方式。

Although the company president asked Farnsworth to vote the shares of the Jones Corporation profit-sharing plan a certain way, Farnsworth investigated the issue and concluded, independently, the best way to vote.

因此，即使他的决定恰与公司总裁的意愿一致，也没有违反对客户忠诚及谨慎的责任。

Therefore, even though his decision coincided with the wishes of the company president, Farnsworth is not in violation of his responsibility to be loyal and to provide care to his clients.

本例中，客户是利润分享计划的参与者及受益人，而非公司管理层。

In this case, the participants and the beneficiaries of the profit-sharing plan are the clients, not the company's management.

如果 Farnsworth 没有调查问题，或者屈从总裁意愿，投票支持他已判断不符合公司最佳利益的董事名单，便会违反对计划受益人的责任。

Had Farnsworth not investigated the issue or had he yielded to the president's wishes and voted for a slate of directors that he had determined was not in the best interest of the company, Farnsworth would have violated his responsibilities to the beneficiaries of the plan.

此外，证券公司为证券交易提供最低佣金及最佳执行，因此 Farnsworth 使用该证券公司已履行对客户的义务。

In addition, because the brokerage firm provides the lowest commissions and best execution for securities transactions, Farnsworth has met his obligations to the client in using this brokerage firm.

该证券公司还提供对产生佣金的账户无用的研究信息，并不影响结论，因为 Farnsworth 没有为这些信息额外支付客户资金。

It does not matter that the brokerage firm also provides research information that is not useful for the account generating the commission, because Farnsworth is not paying extra money of the client for that information.

参见准则 III(A)：忠诚、审慎与谨慎。

See Standard III(A): Loyalty, Prudence, and Care

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-PR-006

课后习题 6
Practice Problem 6

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 165, 169

题目与资料 / **Question and data**

6. Brown 在一家投资顾问公司工作。公司新客户 Green 正首次与 Brown 会面。

6. Brown works for an investment counseling firm. Green, a new client of the firm, is meeting with Brown for the first time.

Green 多年来一直使用另一家顾问公司的财务咨询服务，但现在将账户转到 Brown 的公司。

Green used another counseling firm for financial advice for years, but she has switched her account to Brown's firm.

花了几分钟相互认识后，Brown 向 Green 解释，自己发现了一只严重低估、潜在收益很大的股票。

After spending a few minutes getting acquainted, Brown explains to Green that she has discovered a highly undervalued stock that offers large potential gains.

她建议 Green 买入该股。Brown 的行为已违反准则。

She recommends that Green purchase the stock. Brown has committed a violation of the Standards.

她本应采取什么不同做法？

What should she have done differently?

A. 在推荐任何类型证券之前，Brown 应先确定 Green 的需求、目标及风险承受能力。

A. Brown should have determined Green's needs, objectives, and tolerance for risk before making a recommendation of any type of security.

B. Brown 应向 Green 全面解释公司的特征，包括公司所处行业的特点。

B. Brown should have thoroughly explained the characteristics of the company to Green, including the characteristics of the industry in which the company operates.

C. Brown 应解释自己的资格，包括教育、培训、经验，以及 CFA 称号的含义。

C. Brown should have explained her qualifications, including her education, training, and experience and the meaning of the CFA designation.

官方答案与解析 / **Official answer and explanation**

6. 正确答案为 A。题中 Brown 尚未了解客户财务状况、投资经验或投资目标，就提出投资建议。

6. The correct answer is A. In this question, Brown is providing investment recommendations before making inquiries about the client's financial situation, investment experience, or investment objectives.

因此，Brown 违反了准则 III(C)"适当性"。B 和 C 列出了会员与考生在关系开始时应与客户讨论的一些信息，但并不是这些因素的完整清单。

Brown is thus violating Standard III(C) Suitability. Answers B and C provide examples of information members and candidates should discuss with their clients at the outset of the relationship, but these answers do not constitute a complete list of those factors.

A 是最佳答案。参见准则 III(C)：适当性。

Answer A is the best answer. See Standard III(C): Suitability

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(C)（适当性）。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

V10-M05-PR-007

课后习题 7
Practice Problem 7

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 165, 169

题目与资料 / **Question and data**

7. Stewart 受 Goodner Industries, Inc. 聘用，管理其养老金。

7. Stewart has been hired by Goodner Industries, Inc., to manage its pension fund.

Stewart 的忠诚、审慎与谨慎义务，应向谁承担？

Stewart's duty of loyalty, prudence, and care is owed to:

A. Goodner 管理层。

A. the management of Goodner.

B. Goodner 养老金计划的参与者及受益人。

B. the participants and beneficiaries of Goodner's pension plan.

C. Goodner 股东。

C. the shareholders of Goodner.

官方答案与解析 / **Official answer and explanation**

7. 正确答案为 B。根据准则 III(A)"忠诚、审慎与谨慎"，管理公司养老金的会员与考生，应向养老金计划参与者及受益人承担这些义务，而非向公司管理层或股东承担。

7. The correct answer is B. Under Standard III(A) Loyalty, Prudence, and Care, members and candidates who manage a company's pension fund owe these duties to the participants and beneficiaries of the pension plan, not the management of the company or the company's shareholders.

准则 III(A)：忠诚、审慎与谨慎。

Standard III(A): Loyalty, Prudence, and Care

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / **Loyalty, Prudence, and Care**

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-PR-008

课后习题 8
Practice Problem 8

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 165-166, 169

题目与资料 / **Question and data**

8. Carter 在当地资产管理公司 Invest Today 工作。

8. Carter works for Invest Today, a local asset management firm.

一家通过客户佣金安排向 Carter 提供自有研究的经纪商，正推出新的交易服务。

A broker that provides Carter with proprietary research through client brokerage arrangements is offering a new trading service.

该经纪商提供低费用、仅执行交易的服务，作为传统交易执行加研究全套服务的补充。

The broker is offering low-fee, execution-only trades to complement its traditional full-service execution-and-research trades.

为吸引 Carter 及其他资产管理人带来更多业务，经纪商会把新服务产生的佣金计入此前全套服务安排所要求的佣金承诺额。

To entice Carter and other asset managers to send additional business its way, the broker will apply the commissions paid on the new service toward satisfying the brokerage commitment of the prior full-service arrangements.

Carter 一直满意其全套服务交易的执行情况；新低费率交易的费用，也与目前为禁止软佣金安排的账户所使用其他经纪商的费用相当。

Carter has always been satisfied with the execution provided on the full-service trades, and the fees of the new low-fee trades are comparable to those of other brokers currently used for the accounts that prohibit soft dollar arrangements.

A. Carter 可以使用新的低费用交易方案，为禁止软佣金安排的账户交易。

A. Carter can trade for his accounts that prohibit soft dollar arrangements under the new low-fee trading scheme.

B. Carter 不能使用新交易方案，因为这些佣金受账户软佣金限制所禁止。

B. Carter cannot use the new trading scheme because the commissions are prohibited by the soft dollar restrictions of the accounts.

C. Carter 应只通过新的低费用方案交易，并增加交易量，以满足其佣金承诺要求。

C. Carter should trade only through the new low-fee scheme and should increase his trading volume to meet his required commission commitment.

官方答案与解析 / **Official answer and explanation**

8. A 正确。本题涉及准则 III(A)“忠诚、审慎与谨慎”。

8. Answer A is correct. The question relates to Standard III(A) Loyalty, Prudence, and Care.

Carter 认为该经纪商的执行有效，费用与其他经纪商相当，因此可以为所有账户使用该经纪商。

Carter believes the broker offers effective execution at a fee that is comparable with those of other brokers, so he is free to use the broker for all accounts.

B 不正确，因为禁止软佣金安排的账户，不希望出资为 Carter 购买研究服务。

Answer B is incorrect because the accounts that prohibit soft dollar arrangements do not want to fund the purchase of research by Carter.

新交易方案不会向客户收取额外佣金，因此不违背该禁令。

The new trading scheme does not incur additional commissions from clients, so it would not go against the prohibitions.

C 不正确，因为 Carter 不应为满足软佣金安排的佣金承诺，对组合进行不必要或过度的频繁买卖，即过度交易。

Answer C is incorrect because Carter should not incur unnecessary or excessive “churning” of the portfolios (excessive trading) for the purpose of meeting the brokerage commitments of soft dollar arrangements.

准则 III(A)：忠诚、审慎与谨慎。

Standard III(A): Loyalty, Prudence, and Care

> 补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

客户佣金实质上是客户资产。分析时要追踪佣金购买了什么、谁得到好处、是否改善该客户的投资决策或执行；用它交换雇主广告、办公室或个人好处，不能因客户看不到费用而合理化。

交易应有投资依据，而不是为了提高佣金或满足销售目标。即使单笔交易适合客户，过高交易频率也会通过成本和税负损害客户，因此需要在整体账户层面审视。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

> 相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / **Loyalty, Prudence, and Care**

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-PR-009

课后习题 9
Practice Problem 9

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 166, 169

题目与资料 / **Question and data**

9. Stafford 是一只专门投资房地产的共同基金的投资组合经理。

9. Stafford is a portfolio manager for a specialized real estate mutual fund.

公司已在基金招募说明书中清楚说明软佣金政策。

Her firm clearly describes in the fund's prospectus its soft dollar policies.

Stafford 认为参加 CFA 课程能够提高投资决策能力，因此决定用基金软佣金账户支付 CFA 课程注册费及考试费。

Stafford decides that entering the CFA Program will enhance her investment decision-making skill and decides to use the fund's soft dollar account to pay the registration and exam fees for the CFA Program.

以下哪项说法最可能正确？

Which of the following statements is most likely correct?

A. Stafford 没有违反《道德准则与专业行为准则》，因为招募说明书已告知投资者基金的软佣金政策。

A. Stafford did not violate the Code and Standards because the prospectus informed investors of the fund's soft dollar policies.

B. Stafford 违反了《道德准则与专业行为准则》，因为提高其投资技能并非软佣金账户的合理用途。

B. Stafford violated the Code and Standards because improving her investment skills is not a reasonable use of the soft dollar account.

C. Stafford 违反了《道德准则与专业行为准则》，因为 CFA 课程不符合可以使用经纪佣金购买的研究服务定义。

C. Stafford violated the Code and Standards because the CFA Program does not meet the definition of research allowed to be purchased with brokerage commissions.

官方答案与解析 / **Official answer and explanation**

9. C 正确。根据准则 III(A)"忠诚、审慎与谨慎"，CFA 课程费用属于个人或公司开支，不应使用基金的经纪佣金支付。

9. Answer C is correct. According to Standard III(A) Loyalty, Prudence, and Care, the CFA Program would be considered a personal or firm expense and should not be paid for with the fund's brokerage commissions.

软佣金账户只应用于购买能直接协助投资经理作出投资决策的研究服务，而不应用于协助公司管理或进修教育。

Soft dollar accounts should be used only to purchase research services that directly assist the investment manager in the investment decision-making process, not to assist the management of the firm or to further education.

因此，A 不正确。B 不正确，因为问题不在于资金用途是否合理，而在于教育开支并非研究服务。

Thus, answer A is incorrect. Answer B is incorrect because the reasonableness of how the money is used is not an issue; the issue is that educational expense is not research.

准则 III(A)：忠诚、审慎与谨慎。

Standard III(A): Loyalty, Prudence, and Care

补充解析 / **Supplementary explanation**

正确选项为 **C**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

客户佣金实质上是客户资产。分析时要追踪佣金购买了什么、谁得到好处、是否改善该客户的投资决策或执行；用它交换雇主广告、办公室或个人好处，不能因客户看不到费用而合理化。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / **Loyalty, Prudence, and Care**

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M05-PR-010

课后习题 **10**
Practice Problem 10

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 166, 170

题目与资料 / **Question and data**

10. ABC Investment Management 新取得一个非常庞大的账户，其中有两项集中持仓。

10. ABC Investment Management acquires a new, very large account with two concentrated positions.

公司现行政策是，在管理满第一个完整月份之后，才将新账户纳入业绩计算。

The firm’s current policy is to add new accounts for the purpose of performance calculation after the first full month of management.

Cupp 负责计算公司的业绩回报。

Cupp is responsible for calculating the firm's performance returns.

首个月尚未结束，Cupp 发现新账户一项重要持仓的公司被另一家公司收购，令该投资价值翻倍。

Before the end of the initial month, Cupp notices that one of the significant holdings of the new accounts is acquired by another company, causing the value of the investment to double.

由于这项持仓，Cupp 决定自账户转入之日起就将新组合纳入计算，使 ABC Investment 得以受惠于该组合当月回报的正面影响。

Because of this holding, Cupp decides to account for the new portfolio as of the date of transfer, thereby allowing ABC Investment to reap the positive impact of that month's portfolio return.

以下哪项说法正确？

Which of the following statements is true?

A. Cupp 没有违反《道德准则与专业行为准则》，因为 GIPS 标准允许在发生大额外部现金流的日期更新组合群。

A. Cupp did not violate the Code and Standards, because the GIPS standards allow composites to be updated on the date of large external cash flows.

B. Cupp 没有违反《道德准则与专业行为准则》，因为公司可以自行决定何时将新账户纳入组合群计算。

B. Cupp did not violate the Code and Standards, because companies are allowed to determine when to incorporate new accounts into their composite calculation.

C. Cupp 违反了《道德准则与专业行为准则》，因为按公司已公布的政策，纳入新账户导致当月业绩计算不准确。

C. Cupp violated the Code and Standards because the inclusion of the new account produces an inaccurate calculation of the monthly results according to the firm's stated policies.

官方答案与解析 / **Official answer and explanation**

10. C 正确。Cupp 仅为计入持仓被收购带来的收益，而偏离公司已公布的政策，违反了准则 III(D)"业绩展示"。

10. Answer C is correct. Cupp violated Standard III(D) Performance Presentation when he deviated from the firm's stated policies solely to capture the gain from the holding being acquired.

A 不正确，因为公司并未声称符合 GIPS 标准，而且 GIPS 要求按照公司书面政策一致处理外部现金流。

Answer A is incorrect because the firm does not claim GIPS compliance and the GIPS standards require external cash flows to be treated in a manner consistent with the firm's documented policies.

B 不正确，因为公司并未表示正在更新组合群政策。

Answer B is incorrect because the firm does not state that it is updating its composite policies.

如果确实更改政策，就必须审查该月所有现金流，确保按新政策一致处理。

If such a change were to occur, all cash flows for the month would have to be reviewed to ensure their consistent treatment under the new policy.

参见准则 III(D)：业绩展示。

See Standard III(D): Performance Presentation

补充解析 / **Supplementary explanation**

正确选项为 **C**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 III(D)（业绩呈现）。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-PR-011

课后习题 **11**
Practice Problem 11

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 166-167, 170

题目与资料 / **Question and data**

11. Paper 最近被解雇；他原为某股票基金五人经理团队的成员之一。

11. Paper was recently terminated as one of a team of five managers of an equity fund.

该基金有两名专注价值投资的经理，为降低成本而解雇其中一人。

The fund had two value-focused managers and terminated one of them to reduce costs.

在寄给潜在雇主的信中，Paper 经公司书面许可，展示该基金的历史业绩，以证明自己过去的成功。

In a letter sent to prospective employers, Paper presents, with written permission of the firm, the performance history of the fund to demonstrate his past success.

以下哪项说法正确？

Which of the following statements is true?

A. Paper 没有违反《道德准则与专业行为准则》。

A. Paper did not violate the Code and Standards.

B. Paper 将整只基金的业绩声称为自己的业绩，违反了《道德准则与专业行为准则》。

B. Paper violated the Code and Standards by claiming the performance of the entire fund as his own.

C. Paper 纳入了前雇主的历史业绩，违反了《道德准则与专业行为准则》。

C. Paper violated the Code and Standards by including the historical results of his prior employer.

官方答案与解析 / **Official answer and explanation**

11. B 正确。Paper 没有披露所展示结果由一个经理团队共同取得，而他只是其中一员，因此违反了准则 III(D)“业绩展示”。

11. Answer B is correct. Paper has violated Standard III(D) Performance Presentation by not disclosing that he was part of a team of managers that achieved the results shown.

如果他同时列明自己直接管理部分的回报，就不会违反该准则。

If he had also included the return of the portion he directly managed, he would not have violated the standard.

因此，A 不正确。C 不正确，因为 Paper 已取得前雇主的书面许可，可以列示这些业绩。

Thus, answer A is incorrect. Answer C is incorrect because Paper received written permission from his prior employer to include the results.

参见准则 III(D)：业绩展示。

See Standard III(D): Performance Presentation

补充解析 / **Supplementary explanation**

正确选项为 **B**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 III(D)（业绩呈现）。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / Performance Presentation

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

V10-M05-PR-012

课后习题 **12**
Practice Problem 12

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 167, 170

题目与资料 / **Question and data**

12. Townsend 最近获任一个青少年高尔夫项目的董事；该项目是某全国性非营利组织的地方分支。

12. Townsend was recently appointed to the board of directors of a youth golf program that is the local chapter of a national not-for-profit organization.

该项目正开展新一轮筹款活动，以增加每年提供的奖学金数量。

The program is beginning a new fund-raising campaign to expand the number of annual scholarships it provides.

Townsend 相信，她的许多客户每年都作慈善捐款。

Townsend believes many of her clients make annual donations to charity.

下一周，她在发给所有客户的定期通讯中，加入一小段内容，介绍筹款活动及自己在该组织董事会的职务。

The next week in her regular newsletter to all clients, she includes a small section discussing the fund-raising campaign and her position on the organization's board.

以下哪项说法正确？

Which of the following statements is true?

A. Townsend 没有违反《道德准则与专业行为准则》。

A. Townsend did not violate the Code and Standards.

B. Townsend 通过通讯向客户募捐，违反了《道德准则与专业行为准则》。

B. Townsend violated the Code and Standards by soliciting donations from her clients through the newsletter.

C. Townsend 未在向客户募捐前取得该组织批准，违反了《道德准则与专业行为准则》。

C. Townsend violated the Code and Standards by not getting approval of the organization before soliciting her clients.

官方答案与解析 / **Official answer and explanation**

12. A 正确。Townsend 没有向高尔夫项目的负责人或管理人员提供任何客户信息，因此没有违反准则 III(E)"保守机密"。

12. Answer A is correct. Townsend has not provided any information about her clients to the leaders or managers of the golf program; thus, she has not violated Standard III(E) Preservation of Confidentiality.

如果她提供客户联络资料供直接邮寄募捐使用，就会构成违规。

Providing contact information about her clients for a direct-mail solicitation would have been a violation.

B 不正确，因为通讯中的通知并不违反准则 III(E)。

Answer B is incorrect because the notice in the newsletter does not violate Standard III(E).

C 不正确，因为高尔夫项目的筹款活动已经开始，因此介绍捐赠机会是适当的。

Answer C is incorrect because the golf program's fund-raising campaign had already begun, so discussing the opportunity to donate was appropriate.

参见准则 III(E)：保守机密。

See Standard III(E): Preservation of Confidentiality

补充解析 / **Supplementary explanation**

正确选项为 **A**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 III(E)（保守机密）。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / **Preservation of Confidentiality**

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

LM 6 · 准则 IV 指引：对雇主的责任
Guidance for Standard IV: Duties to Employers

24 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M06-CA-005

例 1：招揽现有及潜在客户
Example 1: Soliciting Current Clients and Prospects

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 175-176

题目与资料 / **Question and data**

例 1：招揽现有及潜在客户 Example 1: Soliciting Current Clients and Prospects

Magee 为 Trust Assets, Inc. 管理养老金账户。他对工作环境感到沮丧，并已获得 Fiduciary Management 的工作邀约。

Magee manages pension accounts for Trust Assets, Inc. He has become frustrated with the working environment and has been offered a position with Fiduciary Management.

在辞去 Trust Assets 工作之前，Magee 要求四个大客户离开该公司，并在 Fiduciary 开立账户。

Before resigning from Trust Assets, Magee asks four big accounts to leave that firm and open accounts with Fiduciary.

Magee 还说服数位潜在客户与 Fiduciary Management 签署协议。

Magee also persuades several prospective clients to sign agreements with Fiduciary Management.

此前，Magee 曾代表 Trust Assets 向这些潜在客户作介绍。

Magee previously made presentations to these prospects on behalf of Trust Assets.

官方答案与解析 / **Official answer and explanation**

评析：Magee 违反了雇佣关系中要求其完全为雇主利益行事的原则。

Comment: Magee violated the employer–employee principle requiring him to act solely for his employer's benefit.

只要 Magee 仍受雇于 Trust Assets，他就对该公司负有责任。

Magee's duty is to Trust Assets as long as he is employed there.

Magee 在仍受雇期间招揽 Trust Assets 的现有及潜在客户，属于不道德行为，并违反准则 IV(A)。

Magee's solicitation of Trust Assets' current clients and prospective clients while still employed by the firm is unethical and violates Standard IV(A).

补充解析 / **Supplementary explanation**

本案例“例 1：招揽现有及潜在客户”应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-006

例 2：前雇主的文件及档案
Example 2: Former Employer’s Documents and Files

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 176

题目与资料 / **Question and data**

例 2：前雇主的文件及档案 Example 2: Former Employer’s Documents and Files

Hightower 已在 Jason Investment Management Corporation 工作 15 年。

Hightower has been employed by Jason Investment Management Corporation for 15 years.

他最初担任分析师，随后承担越来越多职责，目前是高级投资组合经理，并为公司投资政策委员会成员。

He began as an analyst but assumed increasing responsibilities and is now a senior portfolio manager and a member of the firm’s investment policy committee.

Hightower 决定离开 Jason Investment，创办自己的投资管理业务。

Hightower has decided to leave Jason Investment and start his own investment management business.

他一直谨慎地不向 Jason Investment 的任何客户透露离职消息，因为不希望被指控在离职前招揽客户、违反对公司的责任。

He has been careful not to tell any of Jason Investment’s clients that he is leaving; he does not want to be accused of breaching his duty to Jason Investment by soliciting its clients before his departure.

Hightower 计划复制并带走其在 Jason Investment 任职期间开发或参与制作的以下文件和信息：（1）客户名单，包括地址、电话及其他相关客户资料；（2）客户账户报表；（3）向潜在客户展示、包含公司业绩记录的营销演示样本；（4）Jason Investment 的证券推荐名单；（5）为不同目标账户确定资产配置的计算机模型；（6）选股计算机模型；（7）他担任分析师时为主要公司投资建议制作的电子表格。

Hightower is planning to copy and take with him the following documents and information he developed or worked on while at Jason Investment: (1) the client list, with addresses, telephone numbers, and other pertinent client information; (2) client account statements; (3) sample marketing presentations to prospective clients containing the firm's performance record; (4) Jason Investment's recommended list of securities; (5) computer models to determine asset allocations for accounts with various objectives; (6) computer models for stock selection; and (7) spreadsheets for Hightower's major corporate recommendations, which he developed when he was an analyst.

官方答案与解析 / **Official answer and explanation**

评析：除非取得雇主同意，离职的会员与考生不得带走雇主财产，包括账簿、记录、报告及其他资料，因为带走这些材料可能影响雇主的业务机会。

Comment: Except with the consent of their employer, departing members and candidates may not take employer property, which includes books, records, reports, and other materials, because taking such materials may interfere with their employer's business opportunities.

带走任何雇主记录，即使记录由会员或考生本人制作，也违反准则 IV(A)。

Taking any employer records, even those the member or candidate prepared, violates Standard IV(A).

雇主记录包括纸质资料，以及存于任何其他媒介的内容，例如家用电脑、便携存储设备及手机。

Employer records include items stored in hard copy or any other medium (e.g., home computers, portable storage devices, cell phones).

补充解析 / **Supplementary explanation**

本案例“例 2：前雇主的文件及档案”应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

个人经验可以随人离职，雇主拥有的研究、客户资料和记录通常不能。若要展示旧业绩或使用旧研究，应有可验证记录、相应授权并准确交代角色和时间，不能把团队/机构成果据为己有。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-007

例 3：既往完成工作的所有权
Example 3: Ownership of Completed Prior Work

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 176

题目与资料 / **Question and data**

例 3：既往完成工作的所有权 Example 3: Ownership of Completed Prior Work

Madeline 刚大学毕业，也是 CFA 课程考生，暑期在 Murdoch and Lowell 担任无薪实习生。

Madeline, a recent college graduate and a candidate in the CFA Program, spends her summer as an unpaid intern at Murdoch and Lowell.

Murdoch 的高级管理人员正努力使公司符合 GIPS® 标准，Madeline 获派协助这项工作。

The senior managers at Murdoch are attempting to bring the firm into compliance with the GIPS® standards, and Madeline is assigned to assist in its efforts.

实习两个月后，Madeline 申请加入也计划遵守 GIPS 标准的 McMillan & Company。

Two months into her internship, Madeline applies for a job at McMillan & Company, which has plans to become GIPS compliant.

Madeline 接受了 McMillan 的工作。离开 Murdoch 前，她复制了自己参与开发的公司软件，因为认为这会帮助她胜任新岗位。

Madeline accepts the job with McMillan. Before leaving Murdoch, she copies the firm's software that she helped develop because she believes this software will assist her in her new position.

官方答案与解析 / **Official answer and explanation**

评析：虽然 Madeline 在 Murdoch 服务期间没有获得金钱报酬，但她使用公司资源开发软件，而且以工作经验和知识形式取得报酬及利益，因此被视为员工。

Comment: Even though Madeline does not receive monetary compensation for her services at Murdoch, she used firm resources in creating the software and is considered an employee because she receives compensation and benefits in the form of work experience and knowledge.

Madeline 未经许可复制软件，侵占了 Murdoch 的财产，违反了准则 IV(A)。

By copying the software, Madeline violated Standard IV(A) because she misappropriated Murdoch's property without permission.

补充解析 / **Supplementary explanation**

本案例“例 3：既往完成工作的所有权”应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

个人经验可以随人离职，雇主拥有的研究、客户资料和记录通常不能。若要展示旧业绩或使用旧研究，应有可验证记录、相应授权并准确交代角色和时间，不能把团队/机构成果据为己有。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-008

例 4：贬损雇主
Example 4: Disparaging Employer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 177

题目与资料 / **Question and data**

例 4：贬损雇主 Example 4: Disparaging Employer

Nash 获一家区域性投资顾问公司聘用，担任服务零售客户的投资顾问。

Nash is hired as an investment adviser working with retail clients for a regional investment advisory firm.

入职不久，Nash 发现公司顾问受到压力，需要在客户账户中频繁买卖投资，以产生费用。

Shortly after starting work, Nash realizes that the advisers at the firm are under pressure to churn investments in client accounts to generate fees.

他先后向直属经理、首席合规官，最终向公司高级管理层反映顾虑。

He brings his concerns to his immediate manager, the chief compliance officer, and ultimately to the senior managers of the firm.

他未能促使公司改变做法，于是在竞争公司找到另一份工作。

He is unsuccessful in getting the firm to change its practices and finds other employment at a competing firm.

提交辞呈后、正式离职前，他按照雇主指示，向自己服务的客户发出通知，告知即将离职，以及他们的账户将转由公司其他投资组合经理负责。

Upon handing in his resignation but prior to leaving his current employer, at the employer's direction, he sends notice to clients he worked with that he will be leaving the firm and informs them that their accounts will be transferred to other portfolio managers at the firm.

一位客户联系他，进一步询问离职情况。

One of his clients contacts him and inquires more about the circumstances of his departure.

Nash 详细描述公司的不道德做法，向客户提供新雇主的信息，并鼓励她转移账户，跟随自己加入新公司。

Nash describes in detail the unethical practices of his firm, gives the client information about his new employer, and encourages the client to transfer her account and follow Nash to his new firm.

官方答案与解析 / **Official answer and explanation**

评析：Nash 向客户贬损现任雇主，并为未来雇主招揽客户业务，违反了准则 IV(A)。

Comment: Nash violated Standard IV(A) by disparaging his current employer to his client and soliciting her business for his future employer.

即使客户转到新公司会更好，他的行为仍然违规。

His actions are a violation even if the client would be better off at the new firm.

离职后，Nash 可以告知原客户，自己对其所受待遇的顾虑，并建议更换投资经理。

After leaving the firm, Nash can inform his former clients of his concerns about their treatment and suggest they change investment managers.

补充解析 / **Supplementary explanation**

本案例“例 4：贬损雇主”应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-009

例 5：招揽原客户
Example 5: Soliciting Former Clients

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题目与资料 / **Question and data**

例 5：招揽原客户 Example 5: Soliciting Former Clients

Elliot 聘用了此前在竞争公司工作的 Chisolm。

Elliot has hired Chisolm, who previously worked for a competing firm.

Chisolm 在前公司工作 18 年后离职。

Chisolm left his former firm after 18 years of employment.

开始为 Elliot 工作时，Chisolm 希望联系原客户，因为他非常熟悉他们，并确信许多人会跟随他加入新雇主。

When Chisolm begins working for Elliot, he wants to contact his former clients because he knows them well and is certain that many will follow him to his new employer.

如果 Chisolm 联系原客户，是否违反准则 IV(A)？

Is Chisolm in violation of Standard IV(A) if he contacts his former clients?

官方答案与解析 / **Official answer and explanation**

评析：客户记录是公司财产，因此无论出于何种原因，使用未经许可从前雇主带走的客户名单或其他信息联系原客户，都违反准则 IV(A)。

Comment: Because client records are the property of the firm, contacting former clients for any reason through the use of client lists or other information taken from a former employer without permission is a violation of Standard IV(A).

仅仅知道原客户的姓名及其存在，不属于机密信息，正如员工在任职期间取得的技能或经验不属于“机密”或“受特权保护”的信息一样。

Simple knowledge of the names and existence of former clients is not confidential information, just as skills or experience that an employee obtains while employed are not “confidential” or “privileged” information.

《道德准则与专业行为准则》不禁止将在一位雇主处取得的经验或知识，运用于另一位雇主。

The Code and Standards do not impose a prohibition on the use of experience or knowledge gained at one employer from being used at another employer.

如果没有禁止此类行为的协议，《道德准则与专业行为准则》也不禁止离职员工联系原公司的客户。

The Code and Standards also do not prohibit former employees from contacting clients of their previous firm in the absence of an agreement that prohibits such conduct.

会员与考生离职后，可自由利用与原公司有关的公开信息联系原客户，而不违反准则 IV(A)。

Members and candidates are free to use public information about their former firm after departing to contact former clients without violating Standard IV(A).

如果不存在禁止此类行为的协议，只要 Chisolm 在加入 Elliot 公司之前仍履行对雇主的忠诚义务，在离开原公司之后才开始招揽客户，并在离职后不擅自使用前雇主材料，就不违反《道德准则与专业行为准则》。

In the absence of an agreement that prohibits such conduct, as long as Chisolm maintains his duty of loyalty to his employer before joining Elliot's firm, does not take steps to solicit clients until he has left his former firm, and does not use material from his former employer without its permission after he has left, he is not in violation of the Code and Standards.

补充解析 / **Supplementary explanation**

本案例"例 5：招揽原客户"应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-010

例 6：为离职作准备
Example 6: Preparation for Leaving Employer

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题目与资料 / **Question and data**

例 6：为离职作准备 Example 6: Preparation for Leaving Employer

Allen 目前在一家注册投资公司担任股票分析师。

Allen currently works at a registered investment company as an equity analyst.

她没有通知雇主，便向政府机关登记成立一家将与雇主竞争的投资公司，但尚未寻找客户。

Without notice to her employer, she registers with government authorities to start an investment company that will compete with her employer, but she does not seek clients.

向适当监管机构登记成立这家竞争公司，是否违反准则 IV(A)？

Does registration of this competing company with the appropriate regulatory authorities constitute a violation of Standard IV(A)?

官方答案与解析 / **Official answer and explanation**

评析：如果 Allen 是利用办公室以外的个人时间进行准备，而且在离开现任雇主之前不会为新业务招揽客户或以其他方式经营新公司，那么向监管机构登记筹备新业务，并不与其为雇主的工作冲突。

Comment: Allen's preparation for the new business by registering with the regulatory authorities does not conflict with the work for her employer if the preparations have been done on Allen's own time outside the office and if Allen will not be soliciting clients for the business or otherwise operating the new company until she has left her current employer.

补充解析 / **Supplementary explanation**

本案例"例 6：为离职作准备"应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-011

例 7：与现任雇主竞争
Example 7: Competing with Current Employer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 178

题目与资料 / **Question and data**

例 7：与现任雇主竞争 Example 7: Competing with Current Employer

数名员工计划数周后离职，并一直谨慎避免任何与对现任雇主义务相冲突的活动。

Several employees are planning to depart their current employer in a few weeks and have been careful to not engage in any activities that would conflict with their duty to their current employer.

他们刚得知，雇主的一位客户发出了征求建议书（RFP），以评估并可能聘用新的投资顾问。

They have just learned that one of their employer's clients has created a request for proposal (RFP) to review and possibly hire a new investment consultant.

RFP 已发给他们的雇主及所有竞争公司。

The RFP has been sent to the employer and all its competitors.

这群员工认为，拟成立的新实体具备回应 RFP 的资格，也有资格争取该业务。

The group believes that the new entity to be formed would be qualified to respond to the RFP and be eligible for the business.

RFP 的提交期限很可能在这些员工正式离职前结束。

The RFP submission period is likely to conclude before the employees' resignations are effective.

这些准备离职的员工，可以代表其计划成立的新公司回应 RFP 吗？

Is it permissible for the group of departing employees to respond to the RFP for their anticipated new firm?

官方答案与解析 / **Official answer and explanation**

评析：员工回应雇主也在回应的 RFP，会导致员工与雇主直接竞争。

Comment: A group of employees responding to an RFP that their employer is also responding to would lead to direct competition between the employees and the employer.

除非员工取得雇主许可，可以回应 RFP，否则该行为违反准则 IV(A)。

Such conduct violates Standard IV(A) unless the group of employees receives permission from their employer to respond to the RFP.

补充解析 / **Supplementary explanation**

本案例"例 7：与现任雇主竞争"应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

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为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-012

例 8：招揽原客户
Example 8: Soliciting Former Clients

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 178

题目与资料 / **Question and data**

例 8：招揽原客户 Example 8: Soliciting Former Clients

Crome 在过去八年一直担任 YBSafe Bank 的私人银行家。

Crome has been a private banker for YBSafe Bank for the past eight years.

期间她相当成功，建立了庞大的客户群，但对现任雇主最近声誉受损、继而令客户不安，感到极度沮丧。

She has been very successful and built a considerable client portfolio during that time but is extremely frustrated by the recent loss of reputation by her current employer and subsequent client insecurity.

一位当地知名招聘中介联系 Crome，为她提供竞争私人银行的一份优厚职位。

A locally renowned recruiting agent contacted Crome to offer her an attractive position with a competing private bank.

该银行会向自带客户群的顾问提供丰厚签约奖金。

This bank offers a substantial signing bonus for advisers with their own client portfolios.

Crome 相信自己能招揽至少 70% 的客户跟随她，因此欣然签订新雇佣合同。

Crome believes that she can solicit at least 70% of her clients to follow her and gladly enters into the new employment contract.

官方答案与解析 / **Official answer and explanation**

评析：Crome 与 YBSafe Bank 的雇佣关系终止后，可以联系原客户，但不得使用其以银行员工身份建立并持有的客户记录。

Comment: Crome may contact former clients upon termination of her employment with YBSafe Bank, but she is prohibited from using client records built and kept with her in her capacity as an employee of YBSafe Bank.

客户名单属于前雇主的专有信息，不得用于她本人或新雇主的利益。

Client lists are proprietary information of her former employer and must not be used for her or her new employer's benefit.

除公开可得的信息外，如果她利用前雇主的书面、电子或任何其他形式的记录，联系自己过去在YBSafe Bank服务的客户，就会违反准则IV(A)。

The use of written, electronic, or any other form of records from her prior employer, other than publicly available information, to contact her former clients at YBSafe Bank would be a violation of Standard IV(A).

补充解析 / **Supplementary explanation**

本案例“例 8：招揽原客户”应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

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为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-013

示例9：离开雇主
Example 9: Leaving an Employer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 179

题目与资料 / **Question and data**

示例9：离开雇主 Example 9: Leaving an Employer

Research Systems Inc.（RSI）解雇了其投资组合分析师Webb。

Research Systems Inc. (RSI) terminated the employment of Webb, one of its portfolio analysts.

Webb的雇佣合同包含禁止招揽协议，要求她等待两年后，才能就任何投资相关服务招揽RSI客户。

Webb’s employment contract included a nonsolicitation agreement that requires her to wait two years before soliciting RSI clients for any investment-related services.

在RSI任职期间，Webb通过LinkedIn与客户、其他业内人士及朋友建立联系。

While at RSI, Webb connected with clients, other industry associates, and friends through her LinkedIn network.

由于她将许多客户视为私人朋友，其业务关系与私人关系相互交织。

Her business and personal relationships were intermingled because she considered many of her clients to be personal friends.

Webb离职时，RSI通知了她的客户，并介绍了接替她的人员。

Upon Webb's departure, RSI informed her clients and introduced her replacement.

离开RSI数天后，Webb更新了LinkedIn个人资料。

Webb updated her LinkedIn profile several days after her departure from RSI.

LinkedIn自动向Webb的整个联系人网络发送了通知，说明她的就业状况发生变化。

LinkedIn automatically sent a notification to Webb's entire network that her employment status had changed.

官方答案与解析 / **Official answer and explanation**

评析：Webb的行为没有违反准则IV(A)。

Comment: Webb's actions did not violate Standard IV(A).

Webb在雇佣关系终止后，才更新LinkedIn个人资料。

Webb updated her LinkedIn profile only after her employment ended.

LinkedIn发送就业资料更新通知，不构成招揽客户。

The updated employment profile notification by LinkedIn does not amount to solicitation of clients.

最佳做法是，Webb应分别使用不同账户进行私人及专业社交媒体活动。

Best practice would dictate that Webb maintain separate accounts for her personal and professional social media activities.

至少，在离职前，Webb应与RSI讨论如何处理其社交媒体联系人网络中包含的客户信息。

At a minimum, prior to her departure from the firm, Webb should discuss with RSI how to address any client information contained in her social media networks.

补充解析 / **Supplementary explanation**

本案例"示例9：离开雇主"应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-014

示例10：公司机密信息
Example 10: Confidential Firm Information

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 179

题目与资料 / **Question and data**

示例10：公司机密信息 Example 10: Confidential Firm Information

Gupta是Naram Investment Management（NIM）的研究分析师。

Gupta is a research analyst at Naram Investment Management (NIM).

NIM采用团队研究流程，对团队成员覆盖的投资机会形成建议。

NIM uses a team-based research process to develop recommendations on investment opportunities covered by the team members.

Gupta与其他同事一样，通过公司博客向NIM客户提供评论；博客每周发布在需要密码访问的NIM网站上。

Gupta, like others, provides commentary for NIM's clients through the company blog, which is posted weekly on NIM's password-protected website.

按照NIM政策，网站上的每篇内容都必须在发布前获得公司合规部门批准。

According to NIM's policy, every contribution to the website must be approved by the company's compliance department before posting.

网站会说明，所有发表的观点均代表NIM的立场。

Any opinions expressed on the website are disclosed as representing the perspective of NIM.

Gupta还撰写个人博客，与亲友分享自己的经历。

Gupta also writes a personal blog to share his experiences with friends and family.

Gupta的个人博客向所有感兴趣的读者广泛开放。

Gupta's personal blog is widely available to interested readers.

有时，Gupta不同意NIM团队形成的研究观点，便在个人博客中表达自己的看法，作为对NIM网站评论的相反意见。

Occasionally, when he disagrees with the team-based research opinions of NIM, Gupta uses his personal blog to express his own opinions as a counterpoint to the commentary posted on the NIM website.

Gupta认为，这能使读者更全面地了解这些投资机会。

Gupta believes this provides his readers with a more complete perspective on these investment opportunities.

官方答案与解析 / **Official answer and explanation**

评析：Gupta通过个人博客披露公司机密信息，违反了准则IV(A)。

Comment: Gupta violated Standard IV(A) by disclosing confidential firm information through his personal blog.

公司博客向客户提供的建议，并非在互联网上自由公开，但他的个人博客帖子间接披露了公司的建议。

The recommendations on the firm's blog to clients are not freely available across the internet, but his personal blog post indirectly provides the firm's recommendations.

此外，Gupta在个人博客上发表研究评论，也是在利用公司资源谋取个人利益。

Additionally, by posting research commentary on his personal blog, Gupta is using firm resources for his personal advantage.

补充解析 / **Supplementary explanation**

本案例"示例10：公司机密信息"应放在准则 IV(A) 的具体要求下判断。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-CA-015

示例**1**：客户额外奖金的通知
Example 1: Notification of Client Bonus Compensation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 180

题目与资料 / **Question and data**

示例1：客户额外奖金的通知 Example 1: Notification of Client Bonus Compensation

Whitman是Adams Trust Company（ATC）的投资组合分析师，管理客户Cochran的账户。

Whitman, a portfolio analyst for Adams Trust Company (ATC), manages the account of Cochran, a client.

Whitman由雇主支付薪水，Cochran则按投资组合资产市值向ATC支付标准费用。

Whitman is paid a salary by his employer, and Cochran pays ATC a standard fee based on the market value of assets in her portfolio.

Cochran向Whitman提议："只要我的投资组合某年税前回报达到至少15%，你和妻子就可以由我出资飞往摩纳哥，并在一月第三周使用我的公寓。"

Cochran proposes to Whitman that “any year that my portfolio achieves at least a 15% return before taxes, you and your wife can fly to Monaco at my expense and use my condominium during the third week of January.”

Whitman没有将该安排告知雇主，并于次年一月作为Cochran的宾客前往摩纳哥度假。

Whitman does not inform his employer of the arrangement and vacations in Monaco the following January as Cochran’s guest.

官方答案与解析 / **Official answer and explanation**

评析：Whitman未以书面形式向雇主披露这项附带条件的额外报酬安排，违反了准则IV(B)。

Comment: Whitman violated Standard IV(B) by failing to inform his employer in writing of this supplemental, contingent compensation arrangement.

这种安排的性质可能使Whitman偏向Cochran的账户，从而影响他对ATC其他账户的管理表现。

The nature of the arrangement could result in partiality to Cochran’s account, which could detract from Whitman’s performance with respect to other accounts he handles for ATC.

Whitman必须取得雇主同意，才能接受此类额外报酬安排。

Whitman must obtain the consent of his employer to accept such a supplemental compensation arrangement.

补充解析 / **Supplementary explanation**

本案例“示例1：客户额外奖金的通知”应放在准则 IV(B) 的具体要求下判断。

规则如何作用于本题：外部报酬、客户奖金或其他利益若可能与雇主利益冲突，应在接受前取得所有相关方的书面同意。需要让雇主判断工作分配和客户公平性是否受到影响。

把“对过去服务的感谢”与“为未来表现设定报酬”分开。前者仍需按政策向雇主披露，后者会改变未来激励并触及额外报酬的事前书面同意要求，不能用一次简单披露替代所有条件。

推理顺序：明确报酬来源、条件、规模和服务时间，并在承诺或接受前完成书面同意。绩效挂钩的客户奖金尤其可能使受雇者偏向某一客户。

为什么容易选错：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

相关知识点 / **Related concepts**

Standard IV(B) — 额外报酬安排 / Additional Compensation Arrangements

相关边界：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

V10-M06-CA-016

示例**2**：外部报酬的通知
Example 2: Notification of Outside Compensation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 181

题目与资料 / **Question and data**

示例2：外部报酬的通知 Example 2: Notification of Outside Compensation

Jones是Clarksville Asset Management的高级投资组合经理，同时担任Exercise Unlimited, Inc.的董事。作为董事服务的回报，Jones及其家庭成员可以在Exercise Unlimited所有场所享受无限次会员权益。

Jones, a senior portfolio manager for Clarksville Asset Management, is on the board of directors of Exercise Unlimited, Inc. In return for his services on the board, Jones receives unlimited membership privileges for his family at all Exercise Unlimited facilities.

Jones向适合持有该股票的Clarksville客户账户，推荐买入Exercise Unlimited股票。

Jones recommends purchasing Exercise Unlimited stock for his Clarksville client accounts for which it is appropriate.

由于董事服务未带来现金报酬，Jones没有向雇主披露这一安排。

Jones does not disclose this arrangement to his employer because he does not receive monetary compensation for his services on the board.

官方答案与解析 / **Official answer and explanation**

评析：Jones未向雇主披露因担任董事而获得的利益，违反了准则IV(B)。

Comment: Jones violated Standard IV(B) by failing to disclose to his employer benefits received in exchange for his services on the board of directors.

Jones的董事身份造成利益冲突，因为他推荐Exercise Unlimited股票时具有个人激励。

Jones's service as a board director creates a conflict of interest because he has a personal incentive for recommending Exercise Unlimited stock.

非现金报酬与有偿担任董事一样，都可能造成利益冲突。

Nonmonetary compensation may create a conflict of interest in the same manner as being paid to serve as a director.

补充解析 / **Supplementary explanation**

本案例"示例2：外部报酬的通知"应放在准则 IV(B) 的具体要求下判断。

规则如何作用于本题：外部报酬、客户奖金或其他利益若可能与雇主利益冲突，应在接受前取得所有相关方的书面同意。需要让雇主判断工作分配和客户公平性是否受到影响。

把"对过去服务的感谢"与"为未来表现设定报酬"分开。前者仍需按政策向雇主披露，后者会改变未来激励并触及额外报酬的事前书面同意要求，不能用一次简单披露替代所有条件。

推理顺序：明确报酬来源、条件、规模和服务时间，并在承诺或接受前完成书面同意。绩效挂钩的客户奖金尤其可能使受雇者偏向某一客户。

为什么容易选错：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

相关知识点 / **Related concepts**

Standard IV(B) — 额外报酬安排 / Additional Compensation Arrangements

相关边界：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

V10-M06-CA-017

示例3：外部报酬的事先批准
Example 3: Prior Approval for Outside Compensation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 181

题目与资料 / **Question and data**

示例3：外部报酬的事先批准 Example 3: Prior Approval for Outside Compensation

Hollis是Specialty Investment Management覆盖油气公司的分析师。

Hollis is an analyst of oil-and-gas companies for Specialty Investment Management.

他目前建议买入ABC Oil Company股票，并已发布一份篇幅较长、经过周密思考的研究报告，以支持该建议。

He is currently recommending the purchase of ABC Oil Company shares and has published a long, well-thought-out research report to substantiate his recommendation.

报告发布数周后，Hollis接到ABC Oil投资者关系部门的电话，称公司首席执行官Andrews读过报告，并欣赏该分析师对行业及公司的理解。

Several weeks after publishing the report, Hollis receives a call from the investor relations office of ABC Oil saying that Andrews, CEO of the company, saw the report and likes the analyst's grasp of the business and his company.

投资者关系负责人邀请Hollis到访ABC Oil，进一步讨论行业情况。

The investor relations officer invites Hollis to visit ABC Oil to discuss the industry further.

ABC Oil提出派公司飞机接送Hollis，并安排访问期间的住宿。

ABC Oil offers to send a company plane to pick Hollis up and arrange for his accommodations while visiting.

Hollis取得适当批准后，同意与首席执行官会面，但拒绝了对方提供的旅行安排。

Hollis, after gaining the appropriate approvals, accepts the meeting with the CEO but declines the offered travel arrangements.

数周后，Andrews与Hollis会面，讨论石油行业及Hollis的报告。

Several weeks later, Andrews and Hollis meet to discuss the oil business and Hollis's report.

会后，Hollis与Andrews及投资者关系负责人，在ABC Oil总部附近的一家高档餐厅共进晚餐。

Following the meeting, Hollis joins Andrews and the investment relations officer for dinner at an upscale restaurant near ABC Oil's headquarters.

返回Specialty Investment Management后，Hollis向研究主管全面汇报会议情况，并披露参加晚餐一事。

Upon returning to Specialty Investment Management, Hollis provides a full review of the meeting to the director of research, including a disclosure of the dinner attended.

官方答案与解析 / **Official answer and explanation**

评析：Hollis的行为没有违反准则IV(B)。

Comment: Hollis's actions did not violate Standard IV(B).

Hollis在接受会面前取得批准，并拒绝对方提供的旅行安排，意在避免自己所在公司与ABC Oil之间的任何潜在利益冲突。

Through gaining approval before accepting the meeting and declining the offered travel arrangements, Hollis sought to avoid any potential conflicts of interest between his company and ABC Oil.

Hollis返回后披露晚餐，使Specialty Investment Management能够评估，这是否会影响他今后对ABC Oil发布的报告与建议。

By disclosing the dinner upon his return, Hollis enabled Specialty Investment Management to assess whether it has any impact on future reports and recommendations by Hollis related to ABC Oil.

补充解析 / **Supplementary explanation**

本案例"示例3：外部报酬的事先批准"应放在准则 IV(B) 的具体要求下判断。

规则如何作用于本题：外部报酬、客户奖金或其他利益若可能与雇主利益冲突，应在接受前取得所有相关方的书面同意。需要让雇主判断工作分配和客户公平性是否受到影响。

把"对过去服务的感谢"与"为未来表现设定报酬"分开。前者仍需按政策向雇主披露，后者会改变未来激励并触及额外报酬的事前书面同意要求，不能用一次简单披露替代所有条件。

推理顺序：明确报酬来源、条件、规模和服务时间，并在承诺或接受前完成书面同意。绩效挂钩的客户奖金尤其可能使受雇者偏向某一客户。

为什么容易选错：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

相关知识点 / **Related concepts**

Standard IV(B) — 额外报酬安排 / Additional Compensation Arrangements

相关边界：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

V10-M06-CA-018

例1：监督研究活动
Example 1: Supervising Research Activities

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 186

题目与资料 / **Question and data**

例1：监督研究活动 Example 1: Supervising Research Activities

Mattock是地区性经纪公司H&V, Inc.的高级副总裁兼研究主管。

Mattock is senior vice president and head of research at H&V, Inc., a regional brokerage firm.

她负责H&V与研究发布有关的合规程序。

She is responsible for H&V's compliance procedures related to dissemination of research.

Mattock决定将对Timber Products的建议由买入改为卖出。

Mattock has decided to change her recommendation for Timber Products from buy to sell.

按照H&V的合规程序，她在报告准备发布之前，先口头向其他高管说明拟采取的行动。

She orally advises other H&V executives of her proposed actions before the report is prepared for publication, as required by H&V's compliance procedures.

但Mattock没有实施相应程序，防止获知建议变更的人传播这些信息或据此交易。

However, Mattock did not implement procedures designed to prevent dissemination of or trading on the information by those who are informed of changed recommendations.

向Mattock汇报的H&V高管Frampton与她交谈后，立即在自己的账户及某些全权委托客户账户中卖出Timber股票。

As a result of Mattock's conversation with Frampton, one of the H&V executives reporting to Mattock, Frampton immediately sells Timber's stock from his own account and from certain discretionary client accounts.

此外，在新建议印制并向所有曾收到Timber研究报告的H&V客户分发之前，其他人员已将建议变更告知某些机构客户。

In addition, other personnel inform certain institutional customers of the changed recommendation before it is printed and disseminated to all H&V customers who have received previous Timber reports.

官方答案与解析 / **Official answer and explanation**

评述：Mattock未能合理、充分地监督向其负责人员的行为，违反准则IV(C)。

Comment: Mattock violated Standard IV(C) by failing to reasonably and adequately supervise the actions of those accountable to her.

作为高级副总裁兼研究主管，她必须确保公司建立程序，审查或记录任何涉及尚未公布建议变更的公司股票交易。

In her role as senior vice president and head of research, she must ensure that her firm has procedures for reviewing or recording any trading in the stock of a corporation that has been the subject of an unpublished change in recommendation.

如果已建立并遵循充分程序，下属就会被告知自身责任，从而有助于发现Frampton的不当卖出，并防止向部分客户选择性披露建议。

If adequate procedures had been established and followed, subordinates would have been informed of their duties, which would have facilitated detection of the improper sales by Frampton and prevented selected disclosure of the recommendation to clients.

补充解析 / **Supplementary explanation**

本案例“例1：监督研究活动”应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-CA-019

例2：监督交易活动
Example 2: Supervising Trading Activities

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 186

题目与资料 / **Question and data**

例2：监督交易活动 Example 2: Supervising Trading Activities

Edwards是全国性大型经纪公司Wheeler & Company的见习交易员；他帮助一位客户利用立即卖出同一批证券所预期获得的利润，支付购买Highland, Inc.证券的款项。

Edwards, a trainee trader at Wheeler & Company, a major national brokerage firm, assists a client in paying for the securities of Highland, Inc., by using anticipated profits from the immediate sale of the same securities.

尽管Highland不在Wheeler的推荐名单上，但大量该公司股票通过Wheeler以这种方式交易。

Despite the fact that Highland is not on Wheeler's recommended list, a large volume of the company's stock is traded through Wheeler in this manner.

Mason是Wheeler的副总裁，负责监督交易部门遵守证券法律。

Mason is a vice president at Wheeler, responsible for supervising compliance with the securities laws in the trading department.

她从Wheeler获得的部分报酬，以交易部门佣金收入为依据。

Part of her compensation from Wheeler is based on commission revenues from the trading department.

虽然她注意到交易活动增加，却没有采取任何调查或制止措施。

Although she notices the increased trading activity, she does nothing to investigate or halt it.

官方答案与解析 / **Official answer and explanation**

评述：Mason未充分审查和调查Edwards执行的Highland股票买单，也未监督该见习交易员的活动，违反准则IV(C)。

Comment: Mason's failure to adequately review and investigate purchase orders in Highland stock executed by Edwards and her failure to supervise the trainee's activities violate Standard IV(C).

主管必须特别留意自身利益与监督责任之间的实际或潜在冲突。

Supervisors must be especially sensitive to actual or potential conflicts between their own self-interests and their supervisory responsibilities.

补充解析 / **Supplementary explanation**

本案例"例2：监督交易活动"应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-CA-020

例3：监督交易活动与记录保存
Example 3: Supervising Trading Activities and Recordkeeping

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 187

题目与资料 / **Question and data**

例3：监督交易活动与记录保存 Example 3: Supervising Trading Activities and Recordkeeping

Tabbing是Crozet, Inc.的高级副总裁兼投资组合经理；该公司同时注册为投资顾问及经纪交易商。

Tabbing is senior vice president and portfolio manager for Crozet, Inc., a registered investment advisory and registered broker/dealer firm.

她向Crozet总裁Claudius汇报。Crozet是ABC和XYZ两只公募基金的投资顾问及主承销商。

She reports to Claudius, the president of Crozet. Crozet serves as the investment adviser and principal underwriter for ABC and XYZ public mutual funds.

两只基金的招募说明书允许Crozet为基金交易金融期货，但用途仅限于对冲市场风险。

The two funds' prospectuses allow Crozet to trade financial futures for the funds for the limited purpose of hedging against market risks.

Claudius对Tabbing过去两年的业绩印象极深，指派她担任这两只基金的投资组合经理。

Claudius, extremely impressed by Tabbing's performance in the past two years, directs Tabbing to act as portfolio manager for the funds.

为员工福利，Crozet还设立了Crozet员工利润分享计划（CEPSP），这是一项确定缴费型退休计划。

For the benefit of its employees, Crozet has also organized the Crozet Employee Profit-Sharing Plan (CEPSP), a defined contribution retirement plan.

Claudius指派Tabbing管理CEPSP资产的20%。

Claudius assigns Tabbing to manage 20% of the assets of CEPSP.

Tabbing对所负责CEPSP资产部分的投资目标是积极增长。

Tabbing's investment objective for her portion of CEPSP's assets is aggressive growth.

Claudius并不知情的是，Tabbing经常为两只基金和CEPSP提交标普500指数期货买卖订单，却未在下单前或下单同时，向接单的期货佣金商（FCM）指定该笔交易所属账户。

Unbeknownst to Claudius, Tabbing frequently places S&P 500 Index futures purchase and sale orders for the funds and the CEPSP without providing the futures commission merchants (FCMs) who take the orders with any prior or simultaneous designation of the account for which the trade has been placed.

Tabbing和Crozet其他人经常都没有填写内部交易单，以记录下单时间或订单拟归属的具体账户。

Frequently, neither Tabbing nor anyone else at Crozet completes an internal trade ticket to record the time an order was placed or the specific account for which the order was intended.

期货佣金商往往在交易完成后、Tabbing给出指示时，才指定具体账户。

FCMs often designate a specific account only after the trade, when Tabbing provides such designation.

Crozet没有关于期货交易的书面操作程序或合规手册，合规部门也不审查此类交易。

Crozet has no written operating procedures or compliance manual concerning its futures trading, and its compliance department does not review such trading.

观察市场走势后，Tabbing将成交价格较有利的标普500指数期货头寸分配给CEPSP，将价格较不利的头寸分配给两只基金。

After observing the market's movement, Tabbing assigns to CEPSP the S&P 500 positions with more favorable execution prices and assigns positions with less favorable execution prices to the funds.

> 官方答案与解析 / **Official answer and explanation**

评述：Claudius未充分监督Tabbing的标普500指数期货交易，违反准则IV(C)。

Comment: Claudius violated Standard IV(C) by failing to adequately supervise Tabbing with respect to her S&P 500 trading.

Claudius还未建立记录保存和报告程序，以防止或发现Tabbing的违规行为，因此进一步违反准则IV(C)。

Claudius further violated Standard IV(C) by failing to establish recordkeeping and reporting procedures to prevent or detect Tabbing's violations.

Claudius必须作出合理努力，确认覆盖所有员工交易活动的充分合规程序已建立、形成书面记录、传达并得到遵守。

Claudius must make a reasonable effort to determine that adequate compliance procedures covering all employee trading activity are established, documented, communicated, and followed.

补充解析 / **Supplementary explanation**

本案例"例3：监督交易活动与记录保存"应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-CA-021

例4：承担责任
Example 4: Accepting Responsibility

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 187

题目与资料 / **Question and data**

例4：承担责任 Example 4: Accepting Responsibility

Rasmussen在买方交易台工作，主要为投资管理公司一个团队管理的对冲基金子公司处理内部交易。

Rasmussen works on a buy-side trading desk and concentrates on in-house trades for a hedge fund subsidiary managed by a team at the investment management firm.

该对冲基金业绩非常成功，公司在全球推广这只基金。

The hedge fund has been very successful and is marketed globally by the firm.

Rasmussen负责该基金大量交易活动，因而已相当熟悉其策略、具体操作和业绩。

From her experience as the trader for much of the activity of the fund, Rasmussen has become quite knowledgeable about the hedge fund's strategy, tactics, and performance.

然而，当市场出现明显下跌、对冲基金策略涉及的许多证券大幅贬值时，Rasmussen发现该基金报告的业绩完全没有反映这一跌势。

When a distinct break in the market occurs and many of the securities involved in the hedge fund's strategy decline markedly in value, however, Rasmussen observes that the reported performance of the hedge fund does not at all reflect this decline.

根据她的经验，完全不受影响是极不可能的。

From her experience, this lack of an effect is a very unlikely occurrence.

她向上司兼交易主管Blair表达担忧，却被告知不要问任何问题；这只基金规模庞大且非常成功，不是她该操心的事。

She approaches Blair, her supervisor and the head of trading, about her concern and is told that she should not ask any questions and that the fund is too big and successful and is not her concern.

她确信有问题，于是联系公司合规负责人Saunders，却再次被告知不要追查该对冲基金的报告问题。

She is certain that something is not right, so she contacts Saunders, the firm's compliance officer, and is again told not to pursue the hedge fund reporting issue.

官方答案与解析 / **Official answer and explanation**

评述：Rasmussen怀疑公司可能存在不当行为，并向管理人员提出了疑虑。

Comment: Rasmussen has concerns about potential misconduct at her firm and brings them to the attention of supervisory personnel.

根据准则IV(C)，主管Blair和合规负责人Saunders有责任审查Rasmussen提出的问题。

Under Standard IV(C), Blair and Saunders, the supervisor and the compliance officer, have the responsibility to review the concerns brought forth by Rasmussen.

主管有责任在公司建立并鼓励道德文化，以及调查潜在不当行为。

Supervisors have the responsibility of establishing and encouraging an ethical culture in the firm and investigating potential misconduct.

无视Rasmussen的问题违反准则IV(C)，并损害公司合乎道德的运营。

The dismissal of Rasmussen's question violates Standard IV(C) and undermines the firm's ethical operations.

补充解析 / **Supplementary explanation**

本案例“例4：承担责任”应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-CA-022

例5：监督研究活动
Example 5: Supervising Research Activities

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 188

题目与资料 / **Question and data**

例5：监督研究活动 Example 5: Supervising Research Activities

Burdette被Fundamental Investment Management（FIM）聘为汽车行业初级分析师。

Burdette is hired by Fundamental Investment Management (FIM) as a junior auto industry analyst.

公司希望她扩大公司的社交媒体影响力。

She is expected to expand the social media presence of the firm.

Burdette的上司Graf鼓励她探索机会，扩大FIM的网络影响力，以及向客户分享内容、沟通和发布信息的能力。

Burdette's supervisor, Graf, encourages Burdette to explore opportunities to increase FIM's online presence and ability to share content, communicate, and broadcast information to clients.

Graf尚未为公司建立规范网上沟通的政策和程序。

Graf has not yet established policies and procedures for the firm that govern online communications.

作为FIM汽车行业研究工作的一部分，Burdette正在起草报告，分析Sun Drive Auto Ltd.用于小型汽车的新太阳能技术所产生的财务影响。

As part of her auto industry research for FIM, Burdette is drafting a report on the financial impact of Sun Drive Auto Ltd.'s new solar technology for compact automobiles.

这将是她在FIM的首份研究报告，她相信Sun Drive的技术可能彻底改变汽车行业。

This research report will be her first for FIM, and she believes Sun Drive's technology could revolutionize the auto industry.

Burdette十分兴奋，在个人社交媒体账户上发布了建议“买入”Sun Drive Auto股票的摘要。

In her excitement, Burdette posts a summary of her “buy” recommendation for Sun Drive Auto stock on her personal social media accounts.

官方答案与解析 / **Official answer and explanation**

评述：Graf未能合理监督Burdette的行为，违反准则IV(C)。

Comment: Graf violated Standard IV(C) by failing to reasonably supervise Burdette with respect to her actions.

他没有建立合理程序，防止未经授权通过社交媒体传播公司研究。

He did not establish reasonable procedures to prevent the unauthorized dissemination of company research through social media networks.

Graf必须确保所有员工定期接受有关FIM政策和程序的培训，包括如何适当地将个人社交媒体用于业务。

Graf must make sure all employees receive regular training about FIM’s policies and procedures, including the appropriate business use of personal social media networks.

补充解析 / **Supplementary explanation**

本案例“例5：监督研究活动”应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-CA-023

例6：监督分支机构员工
Example 6: Supervising Branch Employees

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 188

题目与资料 / **Question and data**

例6：监督分支机构员工 Example 6: Supervising Branch Employees

Sokol是Final Frontier Wealth Management（FFWM）地区分支机构的一位投资顾问。

Sokol is an investment adviser at a regional branch of Final Frontier Wealth Management (FFWM).

FFWM合规负责人Bartlett负责公司所有分支机构投资顾问的整体合规。

Bartlett, FFWM's compliance officer, is responsible for overall compliance of the firm's investment advisers at all the company's branches.

数年来，Sokol引导100多名零售客户投资一只联接基金；这只基金使客户能够间接投资另一只名为Alpha Fund的基金。

For several years, Sokol directs over 100 of his retail clients to invest in a Feeder Fund, which provides its clients access to invest in another fund, the Alpha Fund.

Alpha采用复杂期权策略和合成期货头寸，具有投机性、重大风险和高波动性。

Alpha's strategy uses complex option strategies and synthetic futures positions, which carry speculative and substantial risks with high volatility.

Sokol未充分评估产品是否适合客户，就建议他们投资该联接基金。

Sokol recommends that his clients invest in the Feeder Fund without adequately assessing whether the product is suitable for them.

结果，一些风险承受能力低、交易偏好保守的客户也投资了该联接基金。

Consequently, some of his clients with low risk tolerances and conservative trading preferences invest in the Feeder Fund.

由于股票市场剧烈波动，Alpha亏损约35%，使Frontier通过联接基金投资的客户蒙受约1,600万美元损失。

Due to extreme volatility in equity markets, Alpha loses about 35% of its value, resulting in losses of approximately $16 million for Frontier's clients who invested in the Feeder Fund.

官方答案与解析 / **Official answer and explanation**

评述：Bartlett的行为违反准则IV(C)。其政策、程序、培训和监督不足，使Sokol能够在未适当评估投资是否适合每位客户的情况下，推荐该联接基金。

Comment: Bartlett's actions violated Standard IV(C). Bartlett's inadequate policies, procedures, training, and supervision allowed Sokol to recommend the Feeder Fund without properly assessing whether the investment was suitable for each client.

Bartlett未能监督Sokol，也未为FFWM制定并实施书面政策和程序，以防止公司的投资顾问代表向客户推荐不适合他们的复杂金融产品。

Bartlett failed to supervise Sokol and failed to adopt and implement written policies and procedures for FFWM designed to prevent investment advisory representatives at FFWM from recommending complex financial products to clients when they are not suitable.

补充解析 / **Supplementary explanation**

本案例“例6：监督分支机构员工”应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-CA-024

例7：发现违规行为
Example 7: Detecting Violations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 189

题目与资料 / **Question and data**

例7：发现违规行为 Example 7: Detecting Violations

D’Addario是经纪交易商BOAC的交易员。他与BOAC的重要客户Amity Point Investments达成协议，为其提供人为抬高的抵押贷款支持证券报价，以换取该客户将证券交易业务交给BOAC的承诺。

D’Addario is a trader for a broker/dealer, BOAC. D’Addario enters into an agreement with Amity Point Investments, a significant customer of BOAC, to provide artificially inflated price quotes for mortgage-backed securities in return for the promise of security trades being sent to BOAC.

Amity Point利用这些报价高估其持有证券的价值，并为旗下数只基金报告虚高的月度估值和资产净值。

Amity Point uses those quotes to inflate the value of securities it holds and report inflated monthly valuations and net asset values for several of its funds.

按照该安排，Amity Point告诉D’Addario希望基金组合中的某些债券获得什么价格，D’Addario就提供其要求的估值。

As part of the arrangement, Amity Point tells D’Addario the prices it wants to receive for certain bonds in the funds’ portfolios, and D’Addario gives Amity Point the valuations it requests.

BOAC首席执行官Bartolucci负责公司的整体监督，同时也是D'Addario的上司；他知道D'Addario作为经纪业务的一部分，正在向BOAC客户提供报价。

Bartolucci, BOAC's chief executive officer, who is responsible for overall supervision at BOAC and is also D'Addario's supervisor, knows that D'Addario is providing price quotes to BOAC customers as part of the brokerage business.

但Bartolucci没有制定关于向客户提供报价的政策或程序。

However, Bartolucci does not develop policies or procedures concerning the provision of price quotes to clients.

官方答案与解析 / **Official answer and explanation**

评述：Bartolucci未制定、推广并培训员工遵守规范客户报价的充分政策，因此违反准则IV(C)。

Comment: Bartolucci's conduct violated Standard IV(C) by failing to develop, promote, and train employees on adequate policies governing the provision of price quotes to their customers.

Bartolucci未能监督D'Addario，以防止和发现其违法及不道德活动。

Bartolucci failed to supervise D'Addarrio to prevent and detect D'Addario's illegal and unethical activities.

补充解析 / **Supplementary explanation**

本案例"例7：发现违规行为"应放在准则 IV(C) 的具体要求下判断。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M06-PR-001

课后习题 **1**
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 190, 192

题目与资料 / **Question and data**

1. Jurgen是一位投资组合经理。公司的一位客户告诉她，将依据其投资组合每年的资本增值，在公司支付的报酬之外另行向她提供报酬。

1. Jurgen is a portfolio manager. One of her firm's clients has told Jurgen that he will compensate her beyond the compensation provided by her firm on the basis of the capital appreciation of his portfolio each year.

Jurgen应当：

Jurgen should:

A. 拒绝额外报酬，因为它会与其他客户账户的利益发生冲突。

A. turn down the additional compensation because it will result in conflicts with the interests of other clients' accounts.

B. 拒绝额外报酬，因为它会给她带来追求强劲短期业绩的不当压力。

B. turn down the additional compensation because it will create undue pressure on her to achieve strong short-term performance.

C. 在接受该报酬安排前取得雇主许可。

C. obtain permission from her employer prior to accepting the compensation arrangement.

官方答案与解析 / **Official answer and explanation**

1. 正确答案为C。本题涉及准则IV(B)"额外报酬安排"。

1. The correct answer is C. This question involves Standard IV(B) Additional Compensation Arrangements.

题述安排是Jurgen根据账户业绩，在公司报酬之外获得额外报酬；只要她以书面形式向雇主披露，并在达成该安排前取得雇主许可，就不违反准则。

The arrangement described in the question—whereby Jurgen would be compensated beyond the compensation provided by her firm, on the basis of an account's performance—is not a violation of the Standards as long as Jurgen discloses the arrangement in writing to her employer and obtains permission from her employer prior to entering into the arrangement.

A和B错误。虽然私人报酬安排可能与其他客户利益冲突，并带来短期业绩压力，但只要会员与考生向雇主披露安排并取得许可，就可以订立此类协议。

Answers A and B are incorrect; although the private compensation arrangement could conflict with the interests of other clients and lead to short-term performance pressures, members and candidates may enter into such agreements as long as they have disclosed the arrangements to their employer and obtained permission for the arrangement from their employer.

参见准则IV(B)：额外报酬安排。

See Standard IV(B): Additional Compensation Arrangements

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 IV(B)（额外报酬安排）。

规则如何作用于本题：外部报酬、客户奖金或其他利益若可能与雇主利益冲突，应在接受前取得所有相关方的书面同意。需要让雇主判断工作分配和客户公平性是否受到影响。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

推理顺序：明确报酬来源、条件、规模和服务时间，并在承诺或接受前完成书面同意。绩效挂钩的客户奖金尤其可能使受雇者偏向某一客户。

为什么容易选错：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

相关知识点 / **Related concepts**

Standard IV(B) — 额外报酬安排 / Additional Compensation Arrangements

相关边界：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

V10-M06-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 190, 192

题目与资料 / **Question and data**

2. Anderb是XYZ Investment Management Company的投资组合经理，三年前晋升到这一职位；XYZ是一家为投资公司和私人账户提供建议的注册投资机构。

2. Anderb, a portfolio manager for XYZ Investment Management Company—a registered investment organization that advises investment firms and private accounts—was promoted to that position three years ago.

她的上司Bates负责审查Anderb管理的投资组合账户交易，以及她按要求每月提交的个人股票交易报告。

Bates, her supervisor, is responsible for reviewing Anderb's portfolio account transactions and her required monthly reports of personal stock transactions.

Anderb几乎把投资组合账户的所有经纪交易，都交给经纪人Jonelli处理。

Anderb has been using Jonelli, a broker, almost exclusively for brokerage transactions for the portfolio account.

对于Jonelli所在公司做市的证券，Jonelli给予Anderb个人买入交易的价格，比给予其投资组合账户和其他投资者的价格更低；个人卖出交易的价格则更高。

For securities in which Jonelli's firm makes a market, Jonelli has been giving Anderb lower prices for personal purchases and higher prices for personal sales than Jonelli gives to Anderb's portfolio accounts and other investors.

Anderb只在没有个人交易的月份向Bates提交月报，这种情况大约每四个月才发生一次。

Anderb has been filing monthly reports with Bates only for those months in which she has no personal transactions, which is about every fourth month.

以下哪项最有可能违反《道德准则与专业行为准则》？

Which of the following is most likely to be a violation of the Code and Standards?

A. Anderb未向雇主披露个人交易。

A. Anderb failed to disclose to her employer her personal transactions.

B. Anderb持有与客户相同的证券。

B. Anderb owned the same securities as those of her clients.

C. Bates允许Anderb使用Jonelli作为个人交易的经纪人。

C. Bates allowed Anderb to use Jonelli as her broker for personal trades.

官方答案与解析 / **Official answer and explanation**

2. 正确答案为A。本题涉及三项准则。

2. The correct answer is A. This question involves three of the Standards.

投资组合经理Anderb的个人证券交易价格，优于她为客户取得的价格，违反准则III(A)“忠诚、审慎与谨慎”。

Anderb, the portfolio manager, has been obtaining more favorable prices for her personal securities transactions than she gets for her clients, which is a breach of Standard III(A) Loyalty, Prudence, and Care.

此外，她未遵守公司政策，并向公司隐瞒个人交易，违反准则I(D)“不当行为”。

In addition, she violated Standard I(D) Misconduct by failing to adhere to company policy and by hiding her personal transactions from her firm.

Anderb的上司Bates违反准则IV(C)“主管的责任”：虽然公司规定须报告个人交易，但Bates未充分执行这些要求。

Anderb’s supervisor, Bates, violated Standard IV(C) Responsibilities of Supervisors; although the company had requirements for reporting personal trading, Bates failed to adequately enforce those requirements.

B不构成违规，因为准则VI(B)“交易优先顺序”要求，个人对某只证券的交易，应在客户和雇主对该证券的交易之后进行。

Answer B does not represent a violation because Standard VI(B) Priority of Transactions requires that personal trading in a security be conducted after the trading in that security of clients and the employer.

《道德准则与专业行为准则》不禁止持有这类投资，但公司可以制定政策，限制会员与考生的投资机会。

The Code and Standards do not prohibit owning such investments, although firms may establish policies that limit the investment opportunities of members and candidates.

C不构成违规，因为《道德准则与专业行为准则》并未禁止员工为个人账户和客户账户使用同一经纪人。

Answer C does not represent a violation, because the Code and Standards do not contain a prohibition against employees using the same broker for their personal accounts that they use for their client accounts.

应向雇主披露这种安排，以便雇主判断是否存在利益冲突。

This arrangement should be disclosed to the employer so that the employer may determine whether a conflict of interest exists.

参见准则III(A)：忠诚、审慎与谨慎；准则I(D)：不当行为；以及准则IV(C)：主管的责任。

See Standard III(A): Loyalty, Prudence, and Care; Standard I(D): Misconduct; and Standard IV(C): Responsibilities of Supervisors

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / **Loyalty, Prudence, and Care**

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M06-PR-003

课后习题 **3**
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 190, 192

题目与资料 / **Question and data**

3. 根据《道德准则与专业行为准则》，以下哪项表述正确？

3. Which of the following statements is correct under the Code and Standards?

A. 禁止CFA协会会员与考生从事与雇主竞争的独立执业活动。

A. CFA Institute members and candidates are prohibited from undertaking independent practice in competition with their employer.

B. 若独立执业可能产生报酬或其他利益，并与会员或考生的雇主竞争，则必须取得雇主书面同意。

B. Written consent from the employer is necessary to permit independent practice that could result in compensation or other benefits in competition with a member's or candidate's employer.

C. 在终止与雇主关系之前，禁止会员与考生为开展竞争业务进行安排或准备。

C. Members and candidates are prohibited from making arrangements or preparations to go into a competitive business before terminating their relationship with their employer.

官方答案与解析 / **Official answer and explanation**

3. 正确答案为B。根据准则IV(A)“忠诚”，会员与考生只要取得雇主同意，就可以从事可能产生报酬或其他利益、并与雇主竞争的独立执业活动。

3. The correct answer is B. Under Standard IV(A) Loyalty, members and candidates may undertake independent practice that may result in compensation or other benefit in competition with their employer as long as they obtain consent from their employer.

C不符合准则，因为准则允许会员与考生为开展竞争业务作安排或准备，前提是这些安排不妨碍其对现任雇主的责任。

Answer C is not consistent with the Standards because the Standards allow members and candidates to make arrangements or preparations to go into competitive business as long as those arrangements do not interfere with their duty to their current employer.

A不符合准则，因为准则并未全面禁止独立执业。

Answer A is not consistent with the Standards because the Standards do not include a complete prohibition against undertaking independent practice.

参见准则IV(A)：忠诚。

See Standard IV(A): Loyalty

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 IV(A)（对雇主的忠诚）。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M06-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 190-192

题目与资料 / **Question and data**

4. 前对冲基金经理Jackman决定创办一家新的私人财富管理公司。

4. A former hedge fund manager, Jackman, has decided to launch a new private wealth management firm.

根据以往经验，他认为新公司第一年需要达到100万美元的资产管理规模。

From his prior experiences, he believes the new firm needs to achieve US$1 million in assets under management in the first year.

Jackman向任何带着至少20万美元已承诺投资加入公司的顾问，提供1万美元奖励。

Jackman offers a US$10,000 incentive to any adviser who joins his firm with the minimum of US$200,000 in committed investments.

Jackman在多个行业门户网站和求职网站发布招聘通知。

Jackman places notice of the opening on several industry web portals and career search sites.

根据《道德准则与专业行为准则》，以下哪项正确？

Which of the following is correct according to the Code and Standards?

A. 如果会员或考生能够安排足够多的现有客户转到新公司，并披露奖励费用，就有资格获得新职位和奖励。

A. A member or candidate is eligible for the new position and incentive if he or she can arrange for enough current clients to switch to the new firm and if the member or candidate discloses the incentive fee.

B. 会员或考生不得接受新公司的聘用，因为Jackman的奖励提议违反《道德准则与专业行为准则》。

B. A member or candidate may not accept employment with the new firm, because Jackman's incentive offer violates the Code and Standards.

C. 除非目前处于失业状态，否则会员或考生没有资格获得这一新职位，因为招揽现任雇主的客户是被禁止的。

C. A member or candidate is not eligible for the new position unless he or she is currently unemployed, because soliciting the clients of the member's or candidate's current employer is prohibited.

官方答案与解析 / **Official answer and explanation**

4. C正确。准则IV(A)"忠诚"讨论会员与考生离开现任雇主时可以开展的活动；招揽客户被严格禁止。

4. Answer C is correct. Standard IV(A) Loyalty discusses activities permissible to members and candidates when they are leaving their current employer; soliciting clients is strictly prohibited.

因此，即使作出了所要求的披露，A仍不符合《道德准则与专业行为准则》。

Thus, answer A is inconsistent with the Code and Standards even with the required disclosure.

B错误，因为这项提议并不直接违反《道德准则与专业行为准则》。

Answer B is incorrect because the offer does not directly violate the Code and Standards.

可能有失业的会员与考生，能够在不违反《道德准则与专业行为准则》的情况下取得所需的投资承诺。

There may be out-of-work members and candidates who can arrange the necessary commitments without violating the Code and Standards.

参见准则IV(A)：忠诚。

See Standard IV(A): Loyalty

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(A)（对雇主的忠诚）。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

LM 7 · 准则 V 指引：投资分析、建议与行动
Guidance for Standard V: Investment Analysis, Recommendations, and Actions

31 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M07-CA-004

例 1：充分的尽职调查
Example 1: Sufficient Due Diligence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 200

题目与资料 / **Question and data**

例 1：充分的尽职调查 Example 1: Sufficient Due Diligence

Hawke 负责管理 Sarkozi Securities, Ltd. 的企业融资部门。公司预计政府将很快堵塞一个税收漏洞；目前，石油及天然气勘探公司可利用该漏洞，将钻探费用转由某一类别股份的持有人承担。

Hawke manages the corporate finance department of Sarkozi Securities, Ltd. The firm is anticipating that the government will soon close a tax loophole that currently allows oil-and-gas exploration companies to pass on drilling expenses to holders of a certain class of shares.

由于目前市场对这一享有税收优惠的股份类别需求旺盛，Sarkozi 说服数家公司赶在漏洞被堵塞前，立即开展新股权融资。

Because market demand for this tax-advantaged class of stock is currently high, Sarkozi convinces several companies to undertake new equity financings at once, before the loophole closes.

时间十分紧迫，但 Sarkozi 没有足够资源对所有拟发行股票的公司开展充分研究。

Time is of the essence, but Sarkozi lacks sufficient resources to conduct adequate research on all the prospective issuing companies.

Hawke 决定根据各公司的相对规模估算首次公开募股价格，待员工有时间后再论证定价的合理性。

Hawke decides to estimate the IPO prices based on the relative size of each company and to justify the pricing later when her staff has time.

官方答案与解析 / **Official answer and explanation**

评析：Hawke 仅按大致规模对发行人分类，跳过了新股定价时必须考虑的所有其他相关方面的研究，因此未开展充分的尽职调查。

Comment: By categorizing the issuers by general size, Hawke bypassed researching all the other relevant aspects that must be considered when pricing new issues and thus did not perform sufficient due diligence.

Hawke 违反了准则 V(A)。

Hawke violated Standard V(A).

补充解析 / **Supplementary explanation**

本案例“例 1：充分的尽职调查”应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-005

例 2：及时向客户提供最新信息
Example 2: Timely Client Updates

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 201

题目与资料 / **Question and data**

例 2：及时向客户提供最新信息 Example 2: Timely Client Updates

Chandler 是大型全球投资咨询公司 Dalton Securities 伦敦办事处的一名投资顾问。

Chandler is an investment consultant in the London office of Dalton Securities, a major global investment consultant firm.

她的一家英国养老基金客户决定聘请一位专门管理美国股票的管理人。

One of her UK pension funds has decided to appoint a specialist US equity manager.

Dalton 的全球研究主管依赖当地顾问审查和评估所在地区的管理人，并在完成全面尽职调查后，将他们的意见和评级录入 Dalton 的管理人数据库。

Dalton’s global manager of research relies on local consultants to review and assess managers in their regions and, after conducting thorough due diligence, puts their views and ratings in Dalton’s manager database.

Chandler 登录 Dalton 的全球管理人研究数据库，按照是否符合客户期望的投资理念或风格、业绩及跟踪误差目标，对所有美国股票管理人进行筛选。

Chandler accesses Dalton’s global manager research database and conducts a screen of all US equity managers on the basis of a match with the client’s desired philosophy/style, performance, and tracking-error targets.

她选出符合这些标准的五家管理人，并将其列入提交给客户的简报。

She selects the five managers that meet these criteria and puts them in a briefing report that is delivered to the client.

在完成数据库检索之后、向客户交付报告之前，Chandler 发现，她建议客户考虑的其中一家公司失去了首席投资官、美国股票研究主管，以及美国股票产品的大多数投资组合经理；这些人员均已离职，成立了自己的公司。

Between the time of her database search and the delivery of the report to the client, Chandler discovers that one of the firms that she recommended for consideration lost its chief investment officer, the head of its US equity research, and the majority of its portfolio managers on the US equity product—all of whom have left to establish their own firm.

Chandler 没有根据这一最新信息修订报告。

Chandler does not revise her report with this updated information.

官方答案与解析 / **Official answer and explanation**

评析：Chandler 未更新报告以反映新信息，因此未满足准则 V(A) 的要求。

Comment: Chandler failed to satisfy the requirement of Standard V(A) because she did not update her report to reflect the new information.

补充解析 / **Supplementary explanation**

本案例“例 2：及时向客户提供最新信息”应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

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相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-006

例 3：集体研究意见
Example 3: Group Research Opinions

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 201

题目与资料 / **Question and data**

例 3：集体研究意见 Example 3: Group Research Opinions

Mastakis 是一名初级分析师，公司要求她撰写一份研究报告，预测未来六个月住宅按揭贷款利率的预期水平。

Mastakis is a junior analyst who has been asked by her firm to write a research report predicting the expected interest rate for residential mortgages over the next six months.

按照公司程序的要求，Mastakis 将报告提交给公司的固定收益投资委员会审阅。

Mastakis submits her report to the fixed-income investment committee of her firm for review, as required by the firm's procedures.

虽然部分委员支持 Mastakis 的结论，但多数委员并不同意，报告因而经过大幅修改，指出利率的上升幅度可能超过 Mastakis 最初的预测。

Although some committee members support Mastakis's conclusion, the majority of the committee disagrees with her conclusion, and the report is significantly changed to indicate that interest rates are likely to increase more than originally predicted by Mastakis.

Mastakis 要求在发布报告时删除她的署名。

Mastakis asks that her name be taken off the report when it is disseminated.

官方答案与解析 / **Official answer and explanation**

评析：一般而言，分析师必须撰写能够反映其自身观点的研究报告。

Comment: Generally, analysts must write research reports that reflect their own opinion.

但是，研究结果并非总能得出确定结论，不同的人可能根据同样的事实证据形成不同观点。

But the results of research are not always definitive, and different people may have different opinions based on the same factual evidence.

不过，当研究由团队共同完成时，并非所有团队成员都会认同报告的每个方面。

When research is a group effort, however, not all members of the team may agree with all aspects of the report.

在本例中，如果报告的结论具有合理且充分的依据，委员会就可能有正当理由发布一份与分析师原始研究不同的报告。

In this case, the committee may have valid reasons for issuing a report that differs from the analyst's original research if there is a reasonable and adequate basis for its conclusions.

最终，会员与考生可以要求从报告中删除其姓名；但如果确信该流程所得结果或结论具有合理且充分的依据，即使不同意报告内容，也无须与报告划清关系。

Ultimately, members and candidates can ask to have their names removed from the report, but if they are satisfied that the process has produced results or conclusions that have a reasonable and adequate basis, members and candidates do not have to dissociate from the report even when they do not agree with its contents.

如果 Mastakis 对该流程有信心，即使报告没有反映她的观点，她也不必与报告划清关系。

If Mastakis is confident in the process, she does not need to dissociate from the report even if it does not reflect her opinion.

补充解析 / **Supplementary explanation**

本案例“例 3：集体研究意见”应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

团队报告不要求每个成员在每个假设上完全一致。关键是整体结论是否有合理且充分的依据；若个人认为研究存在根本缺陷，应要求纠正或与报告脱离。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

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相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-007

例 4：依赖第三方研究
Example 4: Reliance on Third-Party Research

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 201

题目与资料 / **Question and data**

例 4：依赖第三方研究 Example 4: Reliance on Third-Party Research

McDermott 经营一家只有两人的投资管理公司。

McDermott runs a two-person investment management firm.

McDermott 的公司订阅了一家大型投资研究公司提供研究报告的服务。

McDermott’s firm subscribes to a service from a large investment research firm that provides research reports.

McDermott 的公司根据这些报告提出投资建议。

McDermott’s firm makes investment recommendations based on these reports.

官方答案与解析 / **Official answer and explanation**

评析：会员与考生可以依赖第三方研究，但必须作出合理且勤勉的努力，以确定这些研究是可靠的。

Comment: Members and candidates may rely on third-party research but must make reasonable and diligent efforts to determine that such research is sound.

如果 McDermott 定期开展尽职调查，确保该大型公司提供的研究客观且具有合理依据，那么他在向客户提出投资建议时，可以依赖这些研究。

If McDermott undertakes due diligence efforts on a regular basis to ensure that the research produced by the large firm is objective and reasonably based, McDermott may rely on that research when making investment recommendations to clients.

补充解析 / **Supplementary explanation**

本案例“例 4：依赖第三方研究”应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

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相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

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V10-M07-CA-008

例 5：选择次级顾问时的尽职调查
Example 5: Due Diligence in Subadviser Selection

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 202

题目与资料 / **Question and data**

例 5：选择次级顾问时的尽职调查 Example 5: Due Diligence in Subadviser Selection

Ostrowski 的业务在过去几年显著增长，部分客户希望进行国际分散投资。

Ostrowski’s business has grown significantly over the past few years, and some clients want to diversify internationally.

Ostrowski 决定寻找一位次级顾问，负责国际投资。

Ostrowski decides to find a subadviser to handle international investments.

由于这是他首次聘用次级顾问，Ostrowski 使用 CFA 协会的《建议书征询范本》，为此次遴选设计了一份问卷。

Because this will be his first subadviser, Ostrowski uses the CFA Institute Model Request for Proposal to design a questionnaire for his search.

截至规定期限，他收到七份填妥的问卷，来自希望赢得其业务的不同国内外公司。

By his deadline, he receives seven completed questionnaires from a variety of domestic and international firms trying to gain his business.

Ostrowski 审阅了所有申请，但觉得自己没有能力选出最合适的公司。

Ostrowski reviews all the applications but feels unqualified in choosing the best firm.

他决定选择收费最低的公司，因为这样对自己公司净利润的影响最小。

He decides to select the firm that charges the lowest fees because doing so will have the least impact on his firm's bottom line.

官方答案与解析 / **Official answer and explanation**

评析：选择外部顾问或次级顾问时，必须全面、完整地审查顾问的服务、历史业绩和成本结构。

Comment: The selection of an external adviser or subadviser must be based on a full and complete review of the adviser's services, performance history, and cost structure.

Ostrowski 仅依据收费结构作出决定，违反了准则 V(A)。

In basing the decision on the fee structure alone, Ostrowski violated Standard V(A).

补充解析 / **Supplementary explanation**

本案例"例 5：选择次级顾问时的尽职调查"应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

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相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-009

例 6：充分的尽职调查
Example 6: Sufficient Due Diligence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 202

题目与资料 / **Question and data**

例 6：充分的尽职调查 Example 6: Sufficient Due Diligence

Thompson 为公司固定收益部门的投资组合经理提供研究支持。

Thompson provides research for the portfolio manager of the fixed-income department at his firm.

该经理要求 Thompson 对证券化次级按揭贷款进行敏感性分析。

The manager asks Thompson to conduct sensitivity analysis on securitized subprime mortgages.

他已与经理讨论可用于计算预期收益的各种情景。

He has discussed with the manager possible scenarios to use to calculate expected returns.

此类计算的一个关键假设是房价升值率（HPA），因为它会影响“提前偿还”（按揭贷款的提前还款）以及潜在损失。

A key assumption in such calculations is housing price appreciation (HPA) because it drives “prepays” (prepayments of mortgages) and potential losses.

Thompson 对过去五年因次级按揭贷款资金供应增加而出现的房价大幅上涨感到担忧。

Thompson is concerned with the significant appreciation experienced over the previous five years as a result of the increased availability of funds from subprime mortgages.

为预测最坏情景，Thompson 坚持认为，分析应包括一种情景：假设第 1 年 HPA 为 –10%，第 2 年为 –5%，第 3 至第 5 年为 0%。

To project a worst-case scenario, Thompson insists that the analysis should include a scenario run with an assumed HPA of –10% for Year 1, –5% for Year 2, and 0% for Years 3 through 5.

经理回应称，这些假设过于悲观，因为在他们可用的数据库中，从未出现过 HPA 为负的时期。

The manager replies that these assumptions are too dire because there has never been a time in their available database when HPA was negative.

Thompson 开展研究，以更好地理解这些证券的内在风险，并在发生概率低但仍有可能出现的最坏情景下评估这些证券。

Thompson conducts research to better understand the risks inherent in these securities and evaluates these securities in the worst-case scenario, an unlikely but possible environment.

根据这些情景的分析结果，Thompson 不建议购买该项投资。

Based on the results of these scenarios, Thompson does not recommend the purchase of the investment.

官方答案与解析 / **Official answer and explanation**

评析：Thompson 理解，在历史资料有限的情况下，其模型对于准确预测市场环境转差时这些资金的表现存在局限。

Comment: Thompson understands the limitations of his model, when combined with the limited available historical information, to accurately predict the performance of the funds if market conditions change negatively.

Thompson 使用超出公司数据库所显示历史趋势的输入值进行情景测试，符合准则 V(A) 的原则。

Thompson's actions in running the scenario test with inputs beyond the historical trends available in the firm's databases adhere to the principles of Standard V(A).

补充解析 / **Supplementary explanation**

本案例"例 6：充分的尽职调查"应放在准则 V(A) 的具体要求下判断。

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量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

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相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-010

例 7：使用量化模型
Example 7: Use of Quantitatively Oriented Models

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 202-203

题目与资料 / **Question and data**

例 7：使用量化模型 Example 7: Use of Quantitatively Oriented Models

Liakos 在 Hellenica Securities 从事销售工作。该公司专门设计复杂的衍生品策略，以利用特定市场预期观点获利。

Liakos works in sales for Hellenica Securities, a firm specializing in developing intricate derivative strategies to profit from particular views on market expectations.

她的客户之一 Carapalis 坚信，未来几个月商品价格的波动会加剧。

One of her clients is Carapalis, who is convinced that commodity prices will become more volatile over the coming months.

Carapalis 要求 Liakos 尽快设计一种能够受益于该预期的策略。

Carapalis asks Liakos to quickly engineer a strategy that will benefit from this expectation.

Liakos 请 Hellenica 的模型团队落实这一要求。

Liakos turns to Hellenica's modeling group to fulfill this request.

由于截止期限紧迫，模型团队将部分工作外包给数家可信赖的第三方。

Because of the tight deadline, the modeling group outsources parts of the work to several trusted third parties.

各家公司每完成一个部分，Liakos 就实施该策略的相应组成部分。

Liakos implements the disparate components of the strategy as the firms complete them.

不到一个月，Carapalis 的判断就得到证实：多种商品的波动率大幅上升。

Within a month, Carapalis is proven correct: Volatility across a range of commodities increases sharply.

然而，她通过 Hellenica 建立的衍生品头寸遭受巨额损失，而且损失逐日扩大。

But her derivatives position with Hellenica suffers huge losses, and the losses increase daily.

Liakos 进行调查后发现，虽然该策略的各个组成部分均已分别通过验证，但从未作为一个完整整体进行评估。

Liakos investigates and realizes that although each of the various components of the strategy had been validated, they had never been evaluated as an integrated whole.

在极端情况下，模型的某些部分与其他部分相互抵触，导致整体策略严重失效。

In extreme conditions, portions of the model worked at cross-purposes with other portions, causing the overall strategy to fail dramatically.

> 官方答案与解析 / **Official answer and explanation**

评析：Liakos 违反了准则 V(A)。会员与考生必须理解所推荐模型结果的统计意义，并且必须能够向客户解释。

Comment: Liakos violated Standard V(A). Members and candidates must understand the statistical significance of the results of the models they recommend and must be able to explain them to clients.

Liakos 未尽到充分审慎义务，确保对整个模型进行全面审查；模型各组成部分仅接受了单独评估。

Liakos did not take adequate care to ensure a thorough review of the whole model; its components were evaluated only individually.

由于 Carapalis 明确打算将该策略作为整体实施，而非分别实施各部分，为遵守准则，Liakos 除了测试各部分单独运行时的表现之外，还应测试策略各部分之间的相互作用。

Because Carapalis clearly intended to implement the strategy as a whole rather than as separate parts, to comply with the standard, Liakos should have tested how the components of the strategy interacted in addition to how they performed individually.

> 补充解析 / **Supplementary explanation**

本案例"例 7：使用量化模型"应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-011

例 8：尽职调查得当，但投资失败
Example 8: Successful Due Diligence/Failed Investment

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 203

题目与资料 / **Question and data**

例 8：尽职调查得当，但投资失败 Example 8: Successful Due Diligence/Failed Investment

Newbury 是一位为高净值客户服务的投资顾问。

Newbury is an investment adviser to high-net-worth clients.

一位投资政策声明显示其风险偏好较激进的客户，询问投资 Top Shelf 对冲基金的事宜。

A client with an aggressive risk profile in his investment policy statement asks about investing in the Top Shelf hedge fund.

该基金在成立后的前三年报告了 20% 的收益率。

This fund has reported 20% returns for the first three years.

基金招募说明书指出，其策略涉及能源行业的多头及空头头寸，并大量使用杠杆。

The fund prospectus states that its strategy involves long and short positions in the energy sector and extensive leverage.

Newbury 分析了基金的历史业绩、参与管理基金的主要人员、收取的费用及基金风险特征后，向客户推荐该基金，并为客户买入了基金份额。

Based on his analysis of the fund's track record, the principals involved in managing the fund, the fees charged, and the fund's risk profile, Newbury recommends the fund to the client and secures a position in it.

六个月后，基金宣布其价值损失了 60%，并暂停运作及赎回，直至监管审查结束。

Six months later, the fund announces that it has suffered a loss of 60% of its value and is suspending operations and redemptions until after a regulatory review.

官方答案与解析 / **Official answer and explanation**

评析：Newbury 的行为符合准则 V(A)。

Comment: Newbury's actions were consistent with Standard V(A).

对投资进行分析并形成合理的推荐依据，并不保证该投资没有下行风险。

Analysis of an investment that results in a reasonable basis for recommendation does not guarantee that the investment has no downside risk.

Newbury 必须与客户讨论分析流程，同时提醒客户：过往业绩并不保证未来收益，且激进型投资组合出现亏损是应当预期到的。

Newbury must discuss the analysis process with the client while reminding the client that past performance does not lead to guaranteed future gains and that losses in an aggressive investment portfolio should be expected.

补充解析 / **Supplementary explanation**

本案例"例 8：尽职调查得当，但投资失败"应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

评价研究过程与评价投资结果要分开。已完成适当调查但仍遭遇无法合理预见的欺诈或市场变化，不自动说明失职；反之，偶然盈利也不能证明研究程序充分。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-012

例 9：量化模型的勤勉审查
Example 9: Quantitative Model Diligence

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 203

题目与资料 / **Question and data**

例 9：量化模型的勤勉审查 Example 9: Quantitative Model Diligence

Cannon 是 CityCenter Hedge Fund 的首席量化分析师。

Cannon is the lead quantitative analyst at CityCenter Hedge Fund.

他负责开发、维护及改进该基金用于管理投资者资产的专有模型。

He is responsible for the development, maintenance, and enhancement of the proprietary models the fund uses to manage its investors' assets.

Cannon 阅读多种高水平数学刊物和博客，以了解最新发展。

Cannon reads several high-level mathematical publications and blogs to stay informed of current developments.

一个由"Expert CFA"运营的博客发表了一些引人关注的研究，可能有助于改善 CityCenter 现有的一个模型。

One blog, run by "Expert CFA," presents some intriguing research that may benefit one of CityCenter's current models.

公司高管要求 Cannon 提高模型的预测能力，他承受着压力，于是将该网上研究讨论的因素纳入模型。

Cannon is under pressure from the firm's executives to improve the model's predictive abilities, and he incorporates the factors discussed in the online research.

更新后的模型输出向基金的投资组合经理推荐了数项新投资。

The updated output recommends several new investments to the fund's portfolio managers.

官方答案与解析 / **Official answer and explanation**

评析：Cannon 向投资组合经理提出的新建议缺乏合理依据，因此违反了准则 V(A)。

Comment: Cannon violated Standard V(A) by failing to have a reasonable basis for the new recommendations made to the portfolio managers.

在提供模型输出的建议之前，他需要勤勉研究纳入这些新因素所产生的影响。

He needed to diligently research the effect of incorporating the new factors before offering the output recommendations.

Cannon 可以从博客获得思路，但确定这些思路对公司专有模型的影响，是他的责任。

Cannon may use the blog for ideas, but it is his responsibility to determine the effect on the firm's proprietary models.

补充解析 / **Supplementary explanation**

本案例"例 9：量化模型的勤勉审查"应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-013

例 10：选择服务供应商
Example 10: Selecting a Service Provider

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 204

题目与资料 / **Question and data**

例 10：选择服务供应商 Example 10: Selecting a Service Provider

Stefansson 是 Artic Global Advisers 的业绩分析师，该公司为机构客户管理全球股票投资委托。

Stefansson is a performance analyst at Artic Global Advisers, a firm that manages global equity mandates for institutional clients.

她的主管要求她审查五种新的业绩归因系统，并推荐一种最能向客户解释公司投资策略的系统。

Her supervisor asks her to review five new performance attribution systems and recommend one that would best explain the firm's investment strategy to clients.

名单上的一个系统，让她想起自己曾在近期一次会议的展商展位上了解过它。

On the list is a system she recalls learning about when visiting an exhibitor booth at a recent conference.

该系统高度量化，但归因数值的计算方式不透明。

The system is highly quantitative and opaque in how it calculates the attribution values.

Stefansson 在展位上与公司代表的交流给她留下了深刻印象，因此在没有研究其他系统的情况下，就推荐了这一选择。

Stefansson recommends this option without researching the others on the basis of the impressive discussion she had at the exhibitor booth with company representatives.

官方答案与解析 / **Official answer and explanation**

评析：Stefansson 的行为违反准则 V(A)，因为她在审查业绩归因产品并建议选择该服务时，未体现出足够程度的勤勉。

Comment: Stefansson's actions violate Standard V(A) because they do not demonstrate a sufficient level of diligence in reviewing the performance attribution product to make a recommendation for selecting the service.

除了没有审查或考虑其他四种备选系统之外，她也未确定该归因流程是否符合公司的投资实务，包括公司对不同国家及不同货币的投资。

Besides not reviewing or considering the other four potential systems, she did not determine whether the attribution process aligns with the investment practices of the firm, including its investments in different countries and currencies.

在建议将任何软件或系统用作公司的归因系统之前，Stefansson 必须审查并理解其运行流程。

Stefansson must review and understand the process of any software or system before recommending its use as the firm's attribution system.

补充解析 / **Supplementary explanation**

本案例"例 10：选择服务供应商"应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-014

例 11：选择次级顾问
Example 11: Subadviser Selection

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 204

题目与资料 / **Question and data**

例 11：选择次级顾问 Example 11: Subadviser Selection

Jackson 在 Armaniams Partners, Inc. 工作，受命选择一家对冲基金次级顾问，以提高公司大型基金中基金产品的分散程度。

Jackson works for Armaniams Partners, Inc., and is assigned to select a hedge fund subadviser to improve the diversification of the firm's large fund-of-funds product.

该项配置必须在下一季度开始前落实。

The allocation must be in place before the start of the next quarter.

Jackson 使用顾问数据库，找出一批声称遵守 GIPS 标准的合适公司。

Jackson uses a consultant database to find a list of suitable firms that claim compliance with the GIPS standards.

他致电名单上超过 20 家公司，确认它们是否可能有意合作，并了解它们最近一个季度及最近一年的总收益率。

He calls more than 20 firms on the list to confirm their potential interest and to determine their most recent quarterly and annual total returns.

由于时间紧迫，Jackson 建议选择总收益率最高的公司。

Because of the short turnaround, Jackson recommends the firm with the greatest total returns for selection.

官方答案与解析 / **Official answer and explanation**

评析：Jackson 仅考虑业绩及是否遵守 GIPS 标准，没有对候选公司进行充分审查，因而未满足准则 V(A) 的要求。

Comment: By considering only performance and GIPS compliance, Jackson did not conduct sufficient review of potential firms to satisfy the requirements of Standard V(A).

Jackson 必须全面调查这些公司及其运作，以确保将其纳入后能够提高客户投资组合的分散程度，并且适合该基金中基金产品。

Jackson must thoroughly investigate the firms and their operations to ensure that their addition would increase the diversification of clients' portfolios and that they are suitable for the fund-of-funds product.

补充解析 / **Supplementary explanation**

本案例"例 11：选择次级顾问"应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-015

例 12：模型的技术要求
Example 12: Technical Model Requirements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 204-205

题目与资料 / **Question and data**

例 12：模型的技术要求 Example 12: Technical Model Requirements

Dupont 在 XYZ Asset Management 的信用研究团队工作，负责开发和更新信用风险模型。

Dupont works for the credit research group of XYZ Asset Management, where he is in charge of developing and updating credit risk models.

为了准确运行，他的模型需要定期使用最新市场数据更新。

In order to perform accurately, his models need to be regularly updated with the latest market data.

Dupont 不与公司的任何客户接触，也不直接为客户管理资金。

Dupont does not interact with or manage money for any of the firm's clients.

他与公司的美国公司债基金经理 Reichardt 保持联系，而 Reichardt 对该模型仅有非常粗浅的了解。

He is in contact with the firm's US corporate bond fund manager, Reichardt, who has only very superficial knowledge of the model.

Dupont 最近接到的任务目标是开发一个新的新兴市场公司信用风险模型。

Dupont's recently assigned objective is to develop a new emerging market corporate credit risk model.

公司计划进军新兴市场信用业务，开发这一模型是该过程中的关键步骤。

The firm is planning to expand into emerging credit, and the development of such a model is a critical step in this process.

由于 Reichardt 在制定客户投资策略时，似乎总是遵循模型建议，而不太关注模型质量，Dupont 决定把时间集中用于开发新的新兴市场模型，忽视了美国市场模型的更新。

Because Reichardt seems to follow the model's recommendations without much concern for its quality as he develops his clients' investment strategies, Dupont decides to focus his time on the development of the new emerging market model and neglects to update the US model.

连续数月未定期更新后，Dupont 的诊断统计结果开始显示，美国信用模型的质量存在令人警惕的问题。

After several months without regular updates, Dupont's diagnostic statistics start to show alarming signs with respect to the quality of the US credit model.

Dupont 没有进行耗时且复杂的数据更新，而是在模型中加入新的代码及少量新数据，作为一种快速"修补"。

Instead of conducting a long and complicated data update, Dupont introduces new codes into his model with some limited new data as a quick "fix."

他认为，这项修改可以解决问题，而无须完成全面的数据更新。

He thinks this change will address the issue without needing to complete the full data update.

几个月后，另一组诊断统计结果出现明显不合常理的结果，Dupont 意识到先前的修改含有错误。

Several months later, another set of diagnostic statistics reveals nonsensical results, and Dupont realizes that his earlier change contained an error.

他迅速纠正错误并通知 Reichardt，但 Reichardt 已根据错误模型的结果进行了交易。

He quickly corrects the error and alerts Reichardt, who has made trades based on the erroneous model's results.

官方答案与解析 / **Official answer and explanation**

评析：即使 Dupont 不交易证券，也不作出投资决策，他仍然违反了准则 V(A)。

Comment: Dupont violated Standard V(A) even if he does not trade securities or make investment decisions.

Dupont 的模型会给出投资建议，因此 Dupont 须对这些建议的质量负责。

Dupont's models give investment recommendations, and Dupont is accountable for the quality of those recommendations.

会员与考生必须作出合理努力，测试其使用的预先编程分析工具的输出结果。

Members and candidates must make reasonable efforts to test the output of preprogrammed analytical tools they use.

在将这些工具纳入决策流程之前，必须完成这种验证。

Such validation must occur before incorporating the tools into their decision-making process.

Reichardt 不理解其赖以管理资金的模型，因此违反了准则 V(A)。

Reichardt violated standard V(A) because he does not understand the model he is relying on to manage money.

会员与考生必须理解其投资建议所采用模型中使用的参数。

Members and candidates must understand the parameters used in models that are incorporated into their investment recommendations.

虽然不要求他们成为所用模型每个技术环节的专家，但他们必须理解这些模型固有的假设与局限，以及结果如何应用于决策流程。

Although they are not required to become experts in every technical aspect of the models they use, they must understand the assumptions and limitations inherent in these models and how the results are used in the decision-making process.

补充解析 / **Supplementary explanation**

本案例“例 12：模型的技术要求”应放在准则 V(A) 的具体要求下判断。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-CA-016

例 1：客户承担的服务费用
Example 1: Costs of Services to Clients

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 210

题目与资料 / **Question and data**

例 1：客户承担的服务费用 Example 1: Costs of Services to Clients

ABC Capital Private Equity Fund III 的投资性质，要求 ABC Capital 定期向基金投资的公司提供结构安排建议，ABC Capital 为此向这些公司收取费用。

The nature of ABC Capital Private Equity Fund III's investments requires ABC Capital to routinely provide structuring advice to the companies in which the fund invests, for which ABC Capital charges a fee to those companies.

ABC Capital 的政策是：如果对被投公司的投资价值下降，就将其提供结构安排建议所赚取的费用交给基金；如果投资价值上升，则保留这些费用。

The policy of ABC Capital is to remit the fees it earns for structuring advice to the fund if the investment in the underlying company decreases in value but to retain the fees if the investment increases in value.

私募备忘录没有披露这一安排，因为公司首席执行官 Alphonso 认为这是行业常见做法，并相信它能为投资者带来"双赢"。

The private placement memorandum does not disclose this arrangement, because the firm's CEO, Alphonso, views it as a common industry practice and believes it provides a "win-win" for investors.

ABC Capital 的服务为基金投资者获得的收益作出了重大贡献，同时 ABC Capital 也赚取了可观的费用。

ABC Capital's services contribute significantly to the returns enjoyed by the fund's investors, and ABC Capital earns a substantial fee.

官方答案与解析 / **Official answer and explanation**

评析：Alphonso 违反了准则 V(B)，因为 ABC Capital 获得的报酬未向作为基金投资者的客户披露。

Comment: Alphonso is in violation of Standard V(B) because the compensation received by ABC Capital has not been disclosed to clients who are investors in the fund.

Alphonso 不得以客户经验丰富，以及推定客户了解 ABC Capital 与被投公司之间收费安排的性质和细节为由，不提供本准则要求的信息。

Alphonso may not rely on the sophistication of clients and their assumed understanding of the nature and details of the fee arrangements with underlying companies in which ABC Capital invests as a reason for not providing the information required by this standard.

即使 ABC Capital Private Equity Fund III 的投资者从该安排中受益，也仍然如此。

This is true even though investors in ABC Capital Private Equity Fund III benefit from the arrangement.

补充解析 / **Supplementary explanation**

本案例“例 1：客户承担的服务费用”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-017

例 2：客户承担的服务费用
Example 2: Costs of Services to Clients

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 210-211

题目与资料 / **Question and data**

例 2：客户承担的服务费用 Example 2: Costs of Services to Clients

Jones 是一名投资顾问，受命为某位客户的投资组合完成管理人遴选。

Jones is an investment adviser tasked with completing a manager search for a client’s portfolio.

此次遴选任务是确定一份投资管理人候选名单，这些管理人须提供以客户投资政策声明所指定基准为管理参照的核心固定收益策略。

The search mandate is to identify a short list of investment managers who offer core fixed-income strategies managed to the benchmark identified in the client's investment policy statement.

Jones 按照公司管理人遴选流程政策规定的一组标准开始搜索。

Jones begins her search with a set of criteria defined by her firm's manager search process policy.

她找到了三位符合标准的候选管理人，但注意到排名第一的管理人收费明显高于名单上的其他候选人。

She identifies three candidates that fulfill these criteria but notices that her top-ranked manager has significantly higher fees than the other candidates on her list.

在公司的管理人排序标准中，费用相对于其他标准的重要性较低。

Her firm's search criteria list fees as less important relative to the other criteria to rank investment managers.

为按统一口径比较投资业绩，Jones 制作了一张费用比较表，列示每位管理人未扣费用的业绩。

To present investment performance for uniform comparison, Jones creates a fee comparison chart that lists each manager's performance on a gross-of-fees basis.

她展示了相同时间区间、相对于同一基准的未扣费用业绩。

She presents gross-of-fees performance over the same time periods and relative to the same benchmark.

她还计算了所列各业绩期间内原本需要支付的费用总额。

She also calculates the total amount of fees that would have been paid during each of the performance time periods presented.

最后，她列出每位管理人的收费表，以及在公布费用之外可能额外收取的任何费用。

Finally, she lists each manager's fee schedule and any fees that may be charged in addition to the published fees.

她向客户解释，在作出最终选择之前，投资管理人还须提交最终收费方案。

She explains to her client that prior to final selection, the investment managers will be required to present their final fee proposal.

官方答案与解析 / **Official answer and explanation**

评析：Jones 对管理人费用的展示是适当的，因为她按统一口径比较了管理人的服务。

Comment: Jones's presentation of manager fees is appropriate because she provided a uniform comparison of manager services.

她的展示符合准则 V(B)；该准则要求披露所提供服务的性质，以及这些服务相关的费用信息。

Her presentation adheres to Standard V(B), which requires disclosure about the nature of services provided, along with information about the costs associated with those services.

补充解析 / **Supplementary explanation**

本案例"例 2：客户承担的服务费用"应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-018

例 3：披露收费计算方法的变更
Example 3: Disclosure of Changed Fee Calculation Methodology

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 211

题目与资料 / **Question and data**

例 3：披露收费计算方法的变更 Example 3: Disclosure of Changed Fee Calculation Methodology

Maalouf 在一家大型财富管理公司的分支机构工作。

Maalouf works in a branch office for a large wealth management firm.

该公司按照每个客户账户中所管理资产价值的一定比例收取费用。

The firm’s fees are based on a percentage of the value of the assets managed in each client account.

公司对所有客户采用标准化的资产估值及费用计算方法，并在客户关系开始时向每位客户披露。

The firm has a standard method for valuing assets and calculating fees for all its clients, which is disclosed to each client at the outset of the relationship.

Maalouf 发现，随着时间推移，公司已转而：（1）使用账单周期结束时客户资产的市值，而非账户每日平均余额；（2）将此前排除在外的现金及现金等价物纳入费用计算。

Maalouf becomes aware that, over time, the firm has transitioned to (1) using the market value of client assets at the end of the billing cycle instead of the average daily balance of the account and (2) including cash and cash equivalents in the fee calculation, which were previously excluded.

官方答案与解析 / **Official answer and explanation**

评析：顾问费用是客户需要了解的关键信息。

Comment: Advisory fees are critical information that clients need to know.

当投资顾问就服务费用与客户建立并持续保持清晰、频繁且全面的沟通时，客户就能对投资作出充分知情的决定，包括是否聘用或继续聘用某位投资顾问。

When investment advisers develop and maintain clear, frequent, and thorough communication with clients about the costs of their services, clients can make well-informed decisions about their investments, including about whether to engage or retain an investment adviser.

Maalouf 及其公司可以随着时间推移，改变现有账户的顾问费计算方法与政策，但 Maalouf 必须让客户知悉任何此类变更。

Maalouf and his firm may change the advisory fee calculation methodology and policies over time for existing accounts, but Maalouf must make clients aware of any such changes.

Maalouf 违反了准则 V(B)；在未披露的情况下改变收费计算方法，即使导致费用下降，也是不恰当的。

Maalouf violated Standard V(B); it is improper to change the fee calculation methodology without disclosure even if it results in lower fees.

补充解析 / **Supplementary explanation**

本案例“例 3：披露收费计算方法的变更”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-019

例 4：充分披露投资系统
Example 4: Sufficient Disclosure of Investment System

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 211

题目与资料 / **Question and data**

例 4：充分披露投资系统 Example 4: Sufficient Disclosure of Investment System

Country Technicians, Inc. 的市场营销总监 Williamson 相信，她已经找到了增加公司收入并使产品种类更加多元化的完美方法。

Williamson, director of marketing for Country Technicians, Inc., is convinced that she has found the perfect formula for increasing Country Technicians' income and diversifying its product base.

Williamson 计划利用 Country Technicians 作为领先资金管理人的声誉，向高净值人士销售一份专属且价格昂贵的投资建议通讯。

Williamson plans to build on Country Technicians' reputation as a leading money manager by marketing an exclusive and expensive investment advice letter to high-net-worth individuals.

该计划面临的一个障碍，是 Country Technicians 的投资系统十分复杂：它将基于历史价格和成交量波动的技术交易规则，与旨在尽量降低风险的投资组合构建规则结合起来。

One hitch in the plan is the complexity of Country Technicians' investment system—a combination of technical trading rules (based on historical price and volume fluctuations) and portfolio construction rules designed to minimize risk.

为简化通讯内容，她决定每周只列出最推荐的五项“买入”和“卖出”建议，省略估值模型及投资组合构建方案的细节。

To simplify the newsletter, she decides to include only each week's top five "buy" and "sell" recommendations and to leave out details of the valuation models and the portfolio structuring scheme.

官方答案与解析 / **Official answer and explanation**

评析：Williamson 的通讯计划违反了准则 V(B)。

Comment: Williamson's plans for the newsletter violate Standard V(B).

为使建议得到有效实施，Williamson 无须详细描述投资系统，但必须告知客户 Country Technicians 的基本流程。

Williamson need not describe the investment system in detail in order to implement the advice effectively, but she must inform clients of Country Technicians' basic process.

如果不了解建议的依据，客户就无法评估其局限或内在风险。

Without understanding the basis for a recommendation, clients cannot evaluate its limitations or its inherent risks.

补充解析 / **Supplementary explanation**

本案例“例 4：充分披露投资系统”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-020

例 5：将观点作为事实提供
Example 5: Providing Opinions as Facts

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 211-212

题目与资料 / **Question and data**

例 5：将观点作为事实提供 Example 5: Providing Opinions as Facts

Dox 是 East Bank Securities 的矿业分析师。他刚完成关于 Boisy Bay Minerals 的报告。

Dox is a mining analyst for East Bank Securities. He has just finished his report on Boisy Bay Minerals.

报告中包含他对该公司土地上可能发现的矿产储量在地质范围方面的个人评估。

Included in his report is his own assessment of the geological extent of mineral reserves likely to be found on the company's land.

Dox 根据公司最新钻探取得的岩芯样本完成了这一计算。

Dox completed this calculation on the basis of the core samples from the company's latest drilling.

根据 Dox 的计算，公司在该地块上拥有超过 500,000 盎司的黄金。

According to Dox's calculations, the company has more than 500,000 ounces of gold on the property.

Dox 在研究报告结尾写道："基于该公司拥有 500,000 盎司可开采黄金这一事实，我给予强烈买入建议。"

Dox concludes his research report as follows: "Based on the fact that the company has 500,000 ounces of gold to be mined, I recommend a strong buy."

官方答案与解析 / **Official answer and explanation**

评析：Dox 违反了准则 V(B)。他根据公司近期钻探样本计算该地块黄金总储量，属于量化观点，而非事实。

Comment: Dox violated Standard V(B). His calculation of the total gold reserves for the property based on the company's recent sample drilling is a quantitative opinion, not a fact.

研究报告必须区分观点与事实。

Opinion must be distinguished from fact in research reports.

补充解析 / **Supplementary explanation**

本案例"例 5：将观点作为事实提供"应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

事实、假设和预测应在表达上清楚分开。即使分析师非常确信，未来收益或评级变化仍有不确定性；应说明依赖条件，避免确定语气让客户误以为结果有保证。

推理顺序：逐项核查"买什么、为什么、付多少、风险在哪里、有什么变化"。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-021

例 6：恰当描述证券
Example 6: Proper Description of a Security

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 212

题目与资料 / **Question and data**

例 6：恰当描述证券 Example 6: Proper Description of a Security

Thomas 是 Government Brokers, Inc. 的分析师，该经纪公司专门从事政府债券交易。她撰写了一份报告，描述一种旨在从预期美国利率下降中获益的投资策略。

Thomas, an analyst at Government Brokers, Inc., a brokerage firm specializing in government bond trading, has produced a report that describes an investment strategy designed to benefit from an expected decline in US interest rates.

公司的衍生产品团队设计了一项结构性产品，使公司客户能够利用该策略获利。

The firm's derivative products group has designed a structured product that will allow the firm's clients to benefit from this strategy.

Thomas 描述该策略的报告指出，在假设的各种利率下降情景下，有可能获得高收益。

Thomas's report describing the strategy indicates that high returns are possible if various scenarios for declining interest rates are assumed.

报告以策略所依托的结构性产品具有专有性质为由，没有详细说明公司如何能够提供这类收益，也未说明这些情景中的相关风险；此外，报告也没有讨论如果利率与预期相反而上升，该策略可能获得的收益。

Citing the proprietary nature of the structured product underlying the strategy, the report does not describe in detail how the firm may be able to offer such returns or the related risks in the scenarios, nor does the report address the likely returns of the strategy if, contrary to expectations, interest rates rise.

官方答案与解析 / **Official answer and explanation**

评析：Thomas 违反了准则 V(B)，因为她的报告未恰当描述该投资策略实际风险及隐含风险的基本特征，包括这一结构如何构建，以及其中嵌入杠杆的程度。

Comment: Thomas violated Standard V(B) because her report fails to describe properly the basic characteristics of the actual and implied risks of the investment strategy, including how the structure was created and the degree to which leverage was embedded in the structure.

报告必须平衡讨论该策略在利率上升及下降时的表现，最好举例说明在一组合理多样的利率和信用风险利差情景下，预期策略可能如何表现。

The report must include a balanced discussion of how the strategy would perform in the case of both rising and falling interest rates, preferably illustrating how the strategies might be expected to perform in the event of a reasonable variety of interest rate and credit risk–spread scenarios.

如果流动性问题与衍生品或标的证券的估值有关，Thomas 也必须讨论这些风险。

If liquidity issues are relevant to the valuation of either the derivatives or the underlying securities, Thomas must address those risks as well.

补充解析 / **Supplementary explanation**

本案例“例 6：恰当描述证券”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

事实、假设和预测应在表达上清楚分开。即使分析师非常确信，未来收益或评级变化仍有不确定性；应说明依赖条件，避免确定语气让客户误以为结果有保证。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-022

例 7：通知基金投资授权的变更
Example 7: Notification of Fund Mandate Change

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 212

题目与资料 / **Question and data**

例 7：通知基金投资授权的变更 Example 7: Notification of Fund Mandate Change

May & Associates 是一家激进成长型投资管理公司，自称专门投资美国小市值股票。

May & Associates is an aggressive growth manager that represents itself as a specialist at investing in small-cap US stocks.

May 的选股标准之一，是任何一家公司的市值均不得超过 20 亿美元。

One of May's selection criteria is a maximum capitalization of US$2 billion for any given company.

在连续多年取得优于同业的成功业绩后，May 的客户基础显著扩大，所管理资产现已超过 200 亿美元。

After a string of successful years of superior performance relative to its peers, May has expanded its client base significantly, to the point at which assets under management now exceed US$20 billion.

出于流动性考虑，May 的首席投资官 Clio 决定将允许的最高市值上限提高至 80 亿美元，并相应修改公司的销售及营销资料，以告知潜在客户和第三方顾问。

For liquidity purposes, May's chief investment officer, Clio, decides to lift the maximum permissible market-cap ceiling to US$8 billion and change the firm's sales and marketing literature accordingly to inform prospective clients and third-party consultants.

官方答案与解析 / **Official answer and explanation**

评析：虽然 Clio 适当地告知了潜在相关方投资流程的变化，但他还必须通知 May 的现有客户。

Comment: Although Clio appropriately informs potentially interested parties about the change in investment process, he must also notify May's existing clients.

这些现有客户中，可能有一些采用多管理人方式，既聘用了 May 作为小市值股票管理人，也聘用了专门管理中等市值股票的机构。

Among the latter group might be a number of clients who not only retained May as a small-cap manager but also retained mid-cap specialists in a multiple-manager approach.

这些客户可能将 May 修改标准视为投资风格变化，认为其扭曲了整体资产配置。

Such clients may regard May's change of criteria as a style change that distorts their overall asset allocations.

补充解析 / **Supplementary explanation**

本案例“例 7：通知基金投资授权的变更”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-023

例 8：通知基金投资授权的变更
Example 8: Notification of Fund Mandate Change

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 213

题目与资料 / **Question and data**

例 8：通知基金投资授权的变更 Example 8: Notification of Fund Mandate Change

除了将 May & Associates 投资范围的市值上限从 20 亿美元提高至 80 亿美元外，Clio 还扩大公司的小市值股票投资范围，将若干非美国公司纳入其中。

In addition to lifting the ceiling for May & Associates' universe from US$2 billion to US$8 billion, Clio extends the firm's small-cap universe to include a number of non-US companies.

官方答案与解析 / **Official answer and explanation**

评析：准则 V(B) 要求 Clio 将这一变化告知 May 的客户，因为部分客户可能正是看中该公司投资美国小市值股票的能力，才聘用它。

Comment: Standard V(B) requires Clio to advise May's clients of this change because the firm may have been retained by some clients specifically for its prowess at investing in US small-cap stocks.

Clio 必须向所有相关方披露投资流程的变更。

Clio must disclose changes in the investment process to all interested parties.

补充解析 / **Supplementary explanation**

本案例"例 8：通知基金投资授权的变更"应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核查"买什么、为什么、付多少、风险在哪里、有什么变化"。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-024

例 9：通知投资流程的变更
Example 9: Notification of Changes to the Investment Process

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 213

题目与资料 / **Question and data**

例 9：通知投资流程的变更 Example 9: Notification of Changes to the Investment Process

RJZ Capital Management 是一家采用主动价值风格的股票管理公司，通过组合使用四个多因子模型来选股。

RJZ Capital Management is an active value-style equity manager that selects stocks by using a combination of four multifactor models.

公司对自行设计的新股息折现模型，使用最近 10 年可获得的市场数据进行回测，发现结果良好。

The firm has found favorable results when backtesting the most recent 10 years of available market data in a new dividend discount model designed by the firm.

该模型以预测的通胀率、盈利增长率和利率为基础。

This model is based on projected inflation rates, earnings growth rates, and interest rates.

RJZ 的总裁 Rodriguez 决定，用新模型取代原先基于股价与过去 12 个月盈利之比的简单模型。

Rodriguez, the president of RJZ, decides to replace its simple model that uses price to trailing 12-month earnings with the new model.

官方答案与解析 / **Official answer and explanation**

评析：引入一种全新且不同的估值模型，构成投资流程的重大变更，因此 Rodriguez 必须将这一变化告知公司客户。

Comment: Because the introduction of a new and different valuation model represents a material change in the investment process, Rodriguez must communicate the change to the firm's clients.

RJZ 正在以一个至少部分依赖公司预测能力的新模型，取代一个以客观数据为基础的模型。

RJZ is replacing a model based on hard data with a new model that is at least partly dependent on the firm's forecasting skills.

这是重大变化，而非仅对 RJZ 流程进行细微改进。

This is a significant change rather than a mere refinement of RJZ's process.

补充解析 / **Supplementary explanation**

本案例“例 9：通知投资流程的变更”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-025

例 10：通知投资流程的变更
Example 10: Notification of Changes to the Investment Process

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 213

题目与资料 / **Question and data**

例 10：通知投资流程的变更 Example 10: Notification of Changes to the Investment Process

在 Fundamental Asset Management, Inc.，为公司“核准”名单选择股票的职责，近期从个别证券分析师转移给了一个由研究主管及三位资深投资组合经理组成的委员会。

At Fundamental Asset Management, Inc., the responsibility for selecting stocks for the firm's "approved" list recently shifted from individual security analysts to a committee consisting of the research director and three senior portfolio managers.

Fundamental Asset Management 的投资组合经理 Morales 认为，这项变化不够重要，无须向客户说明。

Morales, a portfolio manager with Fundamental Asset Management, believes this change is not important enough to communicate to her clients.

官方答案与解析 / **Official answer and explanation**

评析：准则 V(B) 要求 Morales 向所有客户披露这一流程变化，因为它是基金选股方式的根本性变更。

Comment: Standard V(B) requires Morales to disclose the process change to all her clients because this is a fundamental change to stock selection for the fund.

补充解析 / **Supplementary explanation**

本案例“例 10：通知投资流程的变更”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-026

例 11：充分披露投资系统
Example 11: Sufficient Disclosure of Investment System

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 213-214

题目与资料 / **Question and data**

例 11：充分披露投资系统 Example 11: Sufficient Disclosure of Investment System

Chinn 是 Diversified Asset Management 的投资总监，该公司管理一家慈善机构的捐赠基金。

Chinn is the investment director for Diversified Asset Management, which manages the endowment of a charitable organization.

由于近期有员工离职，Diversified 决定将直接投资的重点限定于大市值证券，并通过聘请外部基金管理人，补充小市值及中等市值投资管理方面的需求。

Because of recent staff departures, Diversified has decided to limit its direct investment focus to large-cap securities and supplement the needs for small-cap and mid-cap management by hiring outside fund managers.

在向该慈善机构说明拟议的策略变化时，Chinn 的更新信函写道：“作为投资总监，我将直接监督负责管理捐赠基金大市值配置的投资团队。

In describing the planned strategy change to the charity, Chinn’s update letter states, “As investment director, I will directly oversee the investment team managing the endowment’s large-capitalization allocation.

我将协调对负责其他类别配置的外部管理人的遴选及持续审查。”

I will coordinate the selection and ongoing review of external managers responsible for allocations to other classes.”

信函还说明了变更原因，以及外部管理人须具备哪些特征才会被纳入考虑。

The letter also describes the reasons for the change and the characteristics external managers must have to be considered.

官方答案与解析 / **Official answer and explanation**

评析：准则 V(B) 要求披露构建捐赠基金投资组合所采用的投资流程。

Comment: Standard V(B) requires the disclosure of the investment process used to construct the portfolio of the endowment fund.

将投资流程从公司内部管理全部投资类别，改为使用外部管理人，属于必须向客户传达的投资流程信息。

Changing the investment process from managing all classes of investments within the firm to the use of external managers is an example of information about the investment process that must be communicated to clients.

该慈善机构现在能够合理决定，Diversified Asset Management 是否仍是其捐赠基金的合适管理人。

The charity can now make a reasonable decision about whether Diversified Asset Management remains the appropriate manager for its endowment.

补充解析 / **Supplementary explanation**

本案例“例 11：充分披露投资系统”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-027

例 12：通知风险与局限
Example 12: Notification of Risks and Limitations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 214

题目与资料 / **Question and data**

例 12：通知风险与局限 Example 12: Notification of Risks and Limitations

量化分析师 Yakovlev 开发了一种根据量化信号选择小市值股票的投资策略。

Quantitative analyst Yakovlev has developed an investment strategy that selects small-cap stocks on the basis of quantitative signals.

Yakovlev 的策略通常只能识别出少量股票（10 至 20 只），而这些股票往往流动性不足；但根据其回测，该策略能够产生显著的风险调整后收益。

Yakovlev's strategy typically identifies only a small number of stocks (10–20) that tend to be illiquid, but according to his backtests, the strategy generates significant risk-adjusted returns.

Yakovlev 所在的 QSC Capital 的合伙人对这些结果印象深刻。

The partners at Yakovlev's firm, QSC Capital, are impressed by these results.

在全面审查该策略的风险、压力测试、历史回测及情景分析后，QSC 决定投入 1,000 万美元内部资本作为初始资金，让 Yakovlev 为该策略建立业绩记录。

After a thorough examination of the strategy's risks, stress testing, historical backtesting, and scenario analysis, QSC decides to seed the strategy with US$10 million of internal capital in order for Yakovlev to create a track record for the strategy.

两年后，该策略的业绩收益超过了适当基准，基金的夏普比率接近 1.0。

After two years, the strategy has generated performance returns greater than those of the appropriate benchmark and the Sharpe ratio of the fund is close to 1.0.

根据这些结果，QSC 决定积极向大型机构投资者推介该基金。

On the basis of these results, QSC decides to actively market the fund to large institutional investors.

在编制发售资料时，Yakovlev 告知营销团队，该策略的容量有限。

While creating the offering materials, Yakovlev informs the marketing team that the capacity of the strategy is limited.

这一限制的具体程度难以精确确定；它取决于市场流动性，以及模型中其他可能随时间变化的因素。

The extent of the limitation is difficult to ascertain with precision; it depends on market liquidity and other factors in his model that can evolve over time.

Yakovlev 指出，根据当前市场状况，基金资本规模超过 30 亿美元后，实施投资可能会变得更加困难，并对基金预期收益产生负面影响。

Yakovlev indicates that given the current market conditions, investments in the fund beyond US$3 billion of capital could become more difficult and negatively affect expected fund returns.

营销团队负责人 Wellard 是一位拥有 30 年营销经验的合伙人，他向 Yakovlev 解释，这些复杂的技术问题会使营销信息变得含混。

Wellard, the manager of the marketing team and a partner with 30 years of marketing experience, explains to Yakovlev that these are complex technical issues that will muddy the marketing message.

Wellard 认为，发售资料应仅聚焦基金优异的历史业绩。

According to Wellard, the offering material should focus solely on the great track record of the fund.

Yakovlev 没有提出异议，因为基金只有 1 亿美元资本，距离 30 亿美元的门槛还很远。

Yakovlev does not object because the fund has only US$100 million of capital, very far from the US$3 billion threshold.

官方答案与解析 / **Official answer and explanation**

评析：Yakovlev 和 Wellard 未恰当披露该投资产品的一项重大局限。

Comment: Yakovlev and Wellard have not appropriately disclosed a significant limitation associated with the investment product.

Yakovlev 认为，一旦达到这一容量限制，基金收益就会受到重大影响。

Yakovlev believes this limitation, once reached, will materially affect the returns of the fund.

尽管基金目前距离 30 亿美元的规模还很远，仍必须让现有及潜在投资者知悉这一容量问题。

Although the fund is currently far from the US$3 billion mark, current and prospective investors must be made aware of this capacity issue.

补充解析 / **Supplementary explanation**

本案例“例 12：通知风险与局限”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / **Communication with Clients and Prospective Clients**

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-028

例 13：通知风险与局限
Example 13: Notification of Risks and Limitations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 214

题目与资料 / **Question and data**

例 13：通知风险与局限 Example 13: Notification of Risks and Limitations

Brickell Advisers 主要向南美洲客户提供投资咨询服务。

Brickell Advisers offers investment advisory services mainly to South American clients.

Brickell 的风险分析师 Ramon 向客户说明，公司如何使用风险价值（VaR）分析来跟踪其策略的风险。

Ramon, a risk analyst at Brickell, describes to clients how the firm uses value at risk (VaR) analysis to track the risk of its strategies.

Ramon 向客户保证，公司采用事前蒙特卡洛模拟方法、以 20 天持有期和 99% 置信水平计算 VaR 的流程极为有效。

Ramon assures clients that the firm's process of calculating a VaR at a 99% confidence level, using a 20-day holding period, and applying a methodology based on an ex ante Monte Carlo simulation is extremely effective.

公司从未发生超过这项 VaR 分析所预测水平的损失。

The firm has never had losses greater than those predicted by this VaR analysis.

官方答案与解析 / **Official answer and explanation**

评析：Ramon 未充分传达与投资流程有关的风险，因而未满足准则 V(B) 的要求。

Comment: Ramon has not sufficiently communicated the risks associated with the investment process to satisfy the requirements of Standard V(B).

VaR 分析所预测的损失在很大程度上取决于模型使用的输入值。

The losses predicted by a VaR analysis depend greatly on the inputs used in the model.

损失的规模及发生概率，可能与单一模型的预测存在显著差异。

The size and probability of losses can differ significantly from what an individual model predicts.

Ramon 必须披露输入值如何选取，以及与投资策略有关的潜在局限和风险。

Ramon must disclose how the inputs were selected and the potential limitations and risks associated with the investment strategy.

补充解析 / **Supplementary explanation**

本案例“例 13：通知风险与局限”应放在准则 V(B) 的具体要求下判断。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-CA-029

例 1：记录保留与投资政策声明中的目标及建议
Example 1: Record Retention and IPS Objectives and Recommendations

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 216

题目与资料 / **Question and data**

例 1：记录保留与投资政策声明中的目标及建议 Example 1: Record Retention and IPS Objectives and Recommendations

Lindstrom 的一位客户对其股票投资组合出现负收益感到不满。

One of Lindstrom’s clients is upset by the negative investment returns of his equity portfolio.

该客户的投资政策声明（IPS）要求投资组合经理采用基准导向的方法。

The investment policy statement (IPS) for the client requires that the portfolio manager follow a benchmark-oriented approach.

该客户的基准包含对科技行业 35% 的投资配置。

The benchmark for the client includes a 35% investment allocation to the technology sector.

客户承认这一配置是适当的，但过去三年科技股遭受了严重损失。

The client acknowledges that this allocation was appropriate, but over the past three years, technology stocks have suffered severe losses.

客户向投资经理抱怨，不该向这个行业配置这么多资金。

The client complains to the investment manager for allocating so much money to this sector.

官方答案与解析 / **Official answer and explanation**

评析：对 Lindstrom 而言，保留适当记录十分重要，以证明过去三年基准指数中的科技股比重为 35%，与客户投资政策声明的规定一致。

Comment: For Lindstrom, having appropriate records is important to show that over the past three years, the portion of technology stocks in the benchmark index was 35%, as called for in the client's IPS.

为遵守准则 V(C)，Lindstrom 必须保留客户的投资政策声明，其中说明该基准适合客户的投资目标。

To comply with Standard V(C), Lindstrom would have been required to retain the client's IPS stating that the benchmark was appropriate for the client's investment objectives.

他还必须保存记录，证明已向客户恰当解释投资流程，并定期更新投资政策声明。

He would also have had to keep records indicating that the investment process was explained appropriately to the client and that the IPS was updated on a regular basis.

采取这些行动后，Lindstrom 就符合准则 V(C)。

By taking these actions, Lindstrom would have been in compliance with Standard V(C).

补充解析 / **Supplementary explanation**

本案例"例 1：记录保留与投资政策声明中的目标及建议"应放在准则 V(C) 的具体要求下判断。

规则如何作用于本题：应保存支持研究、建议、投资行动和客户沟通的记录，使他人能够理解决策依据。资料形式可包括纸质、电子、模型输入和交流记录。

留存材料要足以重建建议的逻辑链：客户要求、原始数据、关键假设、分析和沟通。只保存最后的买卖指令，往往无法说明当时为何适合客户。

推理顺序：根据法律、监管和公司政策确定保留要求；没有其他适用规定时，教材建议至少保存七年。离职时明确资料归属并遵守雇主的记录政策。

为什么容易选错：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

相关知识点 / **Related concepts**

Standard V(C) — 记录保存 / **Record Retention**

相关边界：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

V10-M07-CA-030

例 2：记录保留与研究流程
Example 2: Record Retention and Research Process

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 217

题目与资料 / **Question and data**

例 2：记录保留与研究流程 Example 2: Record Retention and Research Process

Young 是一名研究分析师，撰写了大量对奢侈品零售行业公司进行评级的报告。

Young is a research analyst who writes numerous reports rating companies in the luxury retail industry.

他的报告以多种来源为依据，包括与公司管理人员、制造商及经济学家的访谈、对公司的实地考察、客户调查，以及覆盖相关行业的分析师所做的二手研究。

His reports are based on a variety of sources, including interviews with company managers, manufacturers, and economists; on-site company visits; customer surveys; and secondary research from analysts covering related industries.

官方答案与解析 / **Official answer and explanation**

评析：Young 必须记录并保留所有纳入其报告的信息副本，包括其他分析师的二手研究或第三方研究。

Comment: Young must document and keep copies of all the information that goes into his reports, including the secondary or third-party research of other analysts.

未保存此类档案将违反准则 V(C)。

Failure to maintain such files would violate Standard V(C).

补充解析 / **Supplementary explanation**

本案例“例 2：记录保留与研究流程”应放在准则 V(C) 的具体要求下判断。

规则如何作用于本题：应保存支持研究、建议、投资行动和客户沟通的记录，使他人能够理解决策依据。资料形式可包括纸质、电子、模型输入和交流记录。

留存材料要足以重建建议的逻辑链：客户要求、原始数据、关键假设、分析和沟通。只保存最后的买卖指令，往往无法说明当时为何适合客户。

推理顺序：根据法律、监管和公司政策确定保留要求；没有其他适用规定时，教材建议至少保存七年。离职时明确资料归属并遵守雇主的记录政策。

为什么容易选错：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

相关知识点 / **Related concepts**

Standard V(C) — 记录保存 / **Record Retention**

相关边界：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

V10-M07-CA-031

例 3：记录属于公司财产，而非员工财产
Example 3: Records as Firm, Not Employee, Property

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 217

题目与资料 / **Question and data**

例 3：记录属于公司财产，而非员工财产 Example 3: Records as Firm, Not Employee, Property

Blank 在受雇于 Buku Investment Management, LLP 期间开发了一个分析模型。

Blank develops an analytical model while he is employed by Buku Investment Management, LLP.

在该公司工作时，他系统记录了构成模型的各项假设，以及作出这些假设的理由。

While at the firm, he systematically documents the assumptions that make up the model and his reasoning behind the assumptions.

由于模型取得成功，Blank 获聘为 Buku 的一家竞争对手的研究部主管。

As a result of the success of his model, Blank is hired as the head of the research department of one of Buku's competitors.

Blank 将支持其模型的记录副本带到了新公司。

Blank takes copies of the records supporting his model to his new firm.

官方答案与解析 / **Official answer and explanation**

评析：Blank 为支持其在 Buku 开发的研究模型而制作的记录，属于 Buku 的记录。

Comment: The records created by Blank supporting the research model he developed at Buku are the records of Buku.

未经 Buku 许可将这些文件带到新雇主处，违反了准则 V(C)。

Taking the documents with him to his new employer without Buku's permission violates Standard V(C).

若要今后使用该模型，Blank 必须在新公司重新建立支持模型的记录。

To use the model in the future, Blank must recreate the records supporting his model at the new firm.

补充解析 / **Supplementary explanation**

本案例"例 3：记录属于公司财产，而非员工财产"应放在准则 V(C) 的具体要求下判断。

规则如何作用于本题：应保存支持研究、建议、投资行动和客户沟通的记录，使他人能够理解决策依据。资料形式可包括纸质、电子、模型输入和交流记录。

个人经验可以随人离职，雇主拥有的研究、客户资料和记录通常不能。若要展示旧业绩或使用旧研究，应有可验证记录、相应授权并准确交代角色和时间，不能把团队/机构成果据为己有。

推理顺序：根据法律、监管和公司政策确定保留要求；没有其他适用规定时，教材建议至少保存七年。离职时明确资料归属并遵守雇主的记录政策。

为什么容易选错：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

相关知识点 / **Related concepts**

Standard V(C) — 记录保存 / Record Retention

相关边界：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

V10-M07-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 218-219

题目与资料 / **Question and data**

1. Willier 是负责跟踪 X 公司的研究分析师。他积累并记录的全部信息均显示，该公司新产品的前景不佳，因此该股票应获偏弱的“持有”评级。

1. Willier is the research analyst responsible for following Company X. All the information he has accumulated and documented suggests that the outlook for the company’s new products is poor, so the stock should be rated a weak “hold.”

然而，在午餐期间，Willier 无意中听到另一家公司一位他所尊重的金融分析师发表意见，其观点与 Willier 的预测和预期相冲突。

During lunch, however, Willier overhears a financial analyst from another firm whom he respects offer opinions that conflict with Willier’s forecasts and expectations.

回到办公室后，Willier 向公众发布了强烈“买入”建议。

Upon returning to his office, Willier releases a strong “buy” recommendation to the public.

Willier：

Willier:

A. 违反了准则，因为他在建议中未区分事实与观点。

A. violated the Standards by failing to distinguish between facts and opinions in his recommendation.

B. 违反了准则，因为他的建议缺乏合理且充分的依据。

B. violated the Standards because he did not have a reasonable and adequate basis for his recommendation.

C. 完全符合准则。

C. was in full compliance with the Standards.

官方答案与解析 / **Official answer and explanation**

1. 正确答案是 B。本题涉及准则 V(A)“勤勉尽责与合理依据”。

1. The correct answer is B. This question relates to Standard V(A) Diligence and Reasonable Basis.

另一位金融分析师的意见，不足以构成 Willier 改变建议的充分依据。

The opinion of another financial analyst is not an adequate basis for Willier's action in changing the recommendation.

因此，选项 C 错误。选项 A 也错误，因为虽然会员与考生在建议中确实必须区分事实与观点，但题目并未展示此类违规。

Answer C is thus incorrect. Answer A is incorrect because, although it is true that members and candidates must distinguish between facts and opinions in recommendations, the question does not illustrate a violation of that nature.

如果 Willier 听到的意见促使他开展进一步研究和调查，并据此合理改变观点，那么改变建议就是适当的。

If the opinion overheard by Willier had sparked him to conduct additional research and investigation that justified a change of opinion, then a changed recommendation would be appropriate.

参见准则 V(A)：勤勉尽责与合理依据。

See Standard V(A): Diligence and Reasonable Basis

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 V(A)（勤勉与合理依据）。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M07-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 218-219

题目与资料 / **Question and data**

2. Scott 在一家区域性证券经纪公司工作。他估计 Walkton Industries 将在下一年把每股股息增加 1.50 美元。

2. Scott works for a regional brokerage firm. He estimates that Walkton Industries will increase its dividend by US$1.50 a share during the next year.

他知道，这一增加取决于尚待通过的立法；该法案若获通过，将给予 Walkton 大幅税收减免。

He realizes that this increase is contingent on pending legislation that would, if enacted, give Walkton a substantial tax break.

Walkton 所在选区的美国众议员告诉 Scott，尽管她正积极游说支持该法案，且法案通过的前景良好，但美国国会对联邦赤字的担忧，可能导致这项税收法案被否决。

The US representative for Walkton's home district has told Scott that, although she is lobbying hard for the bill and prospects for its passage are favorable, concern of the US Congress over the federal deficit could cause the tax bill to be voted down.

Walkton Industries 尚未就改变股息政策发表任何声明。

Walkton Industries has not made any statements about a change in dividend policy.

Scott 在研究报告中写道："我们预计，到年底 Walkton 的股价将至少每股上涨 8.00 美元，因为每股股息将增加 1.50 美元。

Scott writes in his research report, "We expect Walkton's stock price to rise by at least US$8.00 a share by the end of the year because the dividend will increase by US$1.50 a share.

现在买入该股票的投资者，应预期获得至少 15% 的股票总回报。"

Investors buying the stock at the current time should expect to realize a total return of at least 15% on the stock."

根据准则：

According to the Standards:

A. Scott 违反了准则，因为他使用了重大内幕信息。

A. Scott violated the Standards because he used material inside information.

B. Scott 违反了准则，因为他未区分观点与事实。

B. Scott violated the Standards because he failed to separate opinion from fact.

C. Scott 违反了准则，因为他的研究建立在对未来政府行动的不确定预测之上。

C. Scott violated the Standards by basing his research on uncertain predictions of future government action.

官方答案与解析 / **Official answer and explanation**

2. 正确答案是 B。本题涉及准则 V(B)“与客户及潜在客户沟通”。

2. The correct answer is B. This question relates to Standard V(B) Communication with Clients and Prospective Clients.

Scott 发布研究报告称，他预计 Walkton Industries 的股价将每股上涨 8 美元，“因为股息将增加”每股 1.50 美元。

Scott has issued a research report stating that he expects the price of Walkton Industries stock to rise by US$8 a share “because the dividend will increase” by US$1.50 per share.

他作出这一表述时，知道只有国会通过某项立法，股息才会增加，而该立法能否通过尚不确定。

He has made this statement knowing that the dividend will increase only if Congress enacts certain legislation, an uncertain prospect.

Scott 断言股息将增加，未区分事实与观点。

By stating that the dividend will increase, Scott failed to separate fact from opinion.

有关立法通过的信息并非重大非公开信息，因为它属于推测，而且题目未说明该众议员是否以保密方式向 Scott 表达对立法通过的看法。

The information regarding passage of legislation is not material nonpublic information because it is conjecture, and the question does not state whether the US representative gave Scott her opinion on the passage of the legislation in confidence.

她可能会向任何提出询问的人表达这一观点。

She could have been offering this opinion to anyone who asked.

因此，选项 A 错误。将对未来事件的预期作为建议的部分依据，即使这些事件尚不确定，也可能是可以接受的。

Therefore, answer A is incorrect. It may be acceptable to base a recommendation, in part, on an expectation of future events, even though they may be uncertain.

因此，选项 C 错误。参见准则 V(B)：与客户及潜在客户沟通。

Therefore, answer C is incorrect. See Standard V(B): Communication with Clients and Prospective Clients

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 V(B)（与客户及潜在客户沟通）。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：逐项核查“买什么、为什么、付多少、风险在哪里、有什么变化”。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M07-PR-003

课后习题 3
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 218-219

题目与资料 / **Question and data**

3. Cannan 一直在周末居家工作，偶尔会将与客户的通信及已完成的报告保存在家用电脑上。

3. Cannan has been working from home on weekends and occasionally saves correspondence with clients and completed reports on her home computer.

由于市场环境恶化，Cannan 成为公司裁减的数名员工之一。

Because of worsening market conditions, Cannan is one of several employees released by her firm.

在寻找新工作期间，Cannan 使用保存在家中的文件，向以前的客户索取推荐信。

While Cannan is looking for a new job, she uses the files she saved at home to request letters of recommendation from former clients.

她还向潜在客户提供了其中一些报告，以展示自己的能力。

She also provides to prospective clients some of the reports as examples of her abilities.

以下哪项陈述正确？

Which of the following statements is true?

A. Cannan 违反了《道德准则与专业行为准则》，因为她未获得原雇主许可，在雇佣关系结束后保留或使用这些文件。

A. Cannan violated the Code and Standards because she did not receive permission from her former employer to keep or use the files after her employment ended.

B. Cannan 没有违反《道德准则与专业行为准则》，因为这些文件是她在自己的时间内、用自己的电脑制作并保存的。

B. Cannan did not violate the Code and Standards, because the files were created and saved on her own time and computer.

C. Cannan 违反了《道德准则与专业行为准则》，因为她不得在家用电脑上保存文件。

C. Cannan violated the Code and Standards because she is prohibited from saving files on her home computer.

官方答案与解析 / **Official answer and explanation**

3. 选项 A 正确。根据准则 V(C)“记录保留”，Cannan 在雇佣关系结束后继续在家中保存这些文件，需要获得雇主许可。

3. Answer A is correct. Under to Standard V(C) Record Retention, Cannan needed the permission of her employer to maintain the files at home after her employment ended.

未经许可，她应当删除这些文件。

Without that permission, she should have deleted the files.

作为会员或考生职业活动一部分而制作的所有文件，均属于公司财产，即使是在正常工作时间之外制作的也不例外。

All files created as part of a member's or candidate's professional activity are the property of the firm, even those created outside normal work hours.

因此，选项 B 错误。选项 C 错误，因为《道德准则与专业行为准则》并不禁止使用个人电脑为雇主完成工作。

Thus, answer B is incorrect. Answer C is incorrect because the Code and Standards do not prohibit using one's personal computer to complete work for one's employer.

参见准则 V(C)：记录保留。

See Standard V(C): Record Retention

补充解析 / **Supplementary explanation**

正确选项为 **A**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 V(C)（记录保存）。

规则如何作用于本题：应保存支持研究、建议、投资行动和客户沟通的记录，使他人能够理解决策依据。资料形式可包括纸质、电子、模型输入和交流记录。

个人经验可以随人离职，雇主拥有的研究、客户资料和记录通常不能。若要展示旧业绩或使用旧研究，应有可验证记录、相应授权并准确交代角色和时间，不能把团队/机构成果据为己有。

留存材料要足以重建建议的逻辑链：客户要求、原始数据、关键假设、分析和沟通。只保存最后的买卖指令，往往无法说明当时为何适合客户。

推理顺序：根据法律、监管和公司政策确定保留要求；没有其他适用规定时，教材建议至少保存七年。离职时明确资料归属并遵守雇主的记录政策。

为什么容易选错：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

相关知识点 / **Related concepts**

Standard V(C) — 记录保存 / **Record Retention**

相关边界：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

LM 8 · 准则 VI 指引：利益冲突
Guidance for Standard VI: Conflicts of Interest

20 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M08-CA-005

例 1：利益冲突与业务关系
Example 1: Conflict of Interest and Business Relationships

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 225

题目与资料 / **Question and data**

例 1：利益冲突与业务关系 Example 1: Conflict of Interest and Business Relationships

Weiss 是 Williamsburg Company 的研究分析师，该公司从事经纪及投资银行业务。

Weiss is a research analyst with Williamsburg Company, a broker and investment banking firm.

过去 20 年，Williamsburg 的并购部门一直在综合企业 Jimco 的所有收购交易中担任其顾问。

Williamsburg's merger and acquisition department has represented Jimco, a conglomerate, in all of Jimco's acquisitions for the last 20 years.

Williamsburg 的高管不时在 Jimco 不同子公司的董事会任职。

From time to time, Williamsburg officers sit on the boards of directors of various Jimco subsidiaries.

Weiss 正在撰写有关 Jimco 的研究报告。

Weiss is writing a research report on Jimco.

官方答案与解析 / **Official answer and explanation**

评析：Weiss 必须在研究报告中披露 Williamsburg 与 Jimco 的特殊关系。

Comment: Weiss must disclose in his research report Williamsburg's special relationship with Jimco.

经纪交易商主办及参与公开发行的情况，必须在研究报告中披露。

Broker/dealer management of and participation in public offerings must be disclosed in research reports.

担任某家公司的承销商，意味着与作为投资建议对象的该公司存在特殊的过去关系，以及潜在的未来关系，这会威胁报告撰写者的独立性与客观性，因此必须披露。

Because the position of underwriter to a company entails a special past and potential future relationship with a company that is the subject of investment advice, it threatens the independence and objectivity of the report writer and must be disclosed.

补充解析 / **Supplementary explanation**

本案例“例 1：利益冲突与业务关系”应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-006

例 2：利益冲突与企业持股
Example 2: Conflict of Interest and Business Stock Ownership

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 225

题目与资料 / **Question and data**

例 2：利益冲突与企业持股 Example 2: Conflict of Interest and Business Stock Ownership

投资管理公司 Dover & Roe 将其合伙企业 25% 的权益出售给跨国银行控股公司 First of New York。

The investment management firm of Dover & Roe sells a 25% interest in its partnership to a multinational bank holding company, First of New York.

交易完成后，Dover & Roe 的总裁 Hobbs 立即将对 First of New York 普通股的建议由“卖出”改为“买入”，并将 First of New York 的商业票据加入 Dover & Roe 的核准购买名单。

Immediately after the sale, Hobbs, president of Dover & Roe, changes her recommendation for First of New York’s common stock from “sell” to “buy” and adds First of New York’s commercial paper to Dover & Roe’s approved list for purchase.

官方答案与解析 / **Official answer and explanation**

评析：最佳做法是，Hobbs 停止对 First of New York 的研究覆盖，因为这项新的股权关系造成了利益冲突。

Comment: Best practice would be for Hobbs to discontinue research coverage of First of New York because the new ownership interest in this company creates a conflict of interest.

Hobbs 至少必须向 Dover & Roe 的所有客户披露与 First of New York 的新关系。

At minimum, Hobbs must disclose the new relationship with First of New York to all Dover & Roe clients.

Hobbs 还必须要求公司的投资组合经理，在就 First of New York 的证券提出具体投资建议或采取投资行动时，向客户披露这项股权关系。

Hobbs must also require the ownership interest to be disclosed to clients by the firm's portfolio managers when they make specific investment recommendations or take investment actions with respect to First of New York's securities.

补充解析 / **Supplementary explanation**

本案例"例 2：利益冲突与企业持股"应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-007

例 3：利益冲突与个人持股
Example 3: Conflict of Interest and Personal Stock Ownership

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 225

题目与资料 / **Question and data**

例 3：利益冲突与个人持股 Example 3: Conflict of Interest and Personal Stock Ownership

Fargmon 是一名跟踪办公设备生产商的研究分析师。由于 Kincaid Printing 推出了创新复印机产品系列，他一直建议买入该公司的股票。

Fargmon, a research analyst who follows firms producing office equipment, has been recommending the purchase of stock in Kincaid Printing because of its innovative new line of copiers.

在他发布首次研究报告后，Fargmon 的妻子从一位远亲处继承了价值 300 万美元的 Kincaid 股票。

After his initial report on the company, Fargmon's wife inherits from a distant relative US$3 million of Kincaid stock.

首次报告发表一年后，Fargmon 被要求撰写一份关于 Kincaid 的跟进报告。

One year after his initial report on the company, Fargmon is asked to write a follow-up report on Kincaid.

官方答案与解析 / **Official answer and explanation**

评析：Fargmon 至少必须向雇主披露其妻子持有 Kincaid 股票的情况，并在跟进报告中披露。

Comment: At minimum, Fargmon must disclose his wife's ownership of Kincaid stock to his employer and in his follow-up report.

最佳做法是请求雇主指派另一位分析师撰写跟进报告，以避免该利益冲突。

Best practice is to avoid the conflict by asking his employer to assign another analyst to draft the follow-up report.

补充解析 / **Supplementary explanation**

本案例"例 3：利益冲突与个人持股"应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-008

例 **4**：利益冲突与个人持股
Example 4: Conflict of Interest and Personal Stock Ownership

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 225-226

题目与资料 / **Question and data**

例 4：利益冲突与个人持股 Example 4: Conflict of Interest and Personal Stock Ownership

Roberts 用自己的账户投机买卖低价股，以每股 0.30 美元买入了 100,000 股 Drew Mining, Inc. 股票。

Roberts is speculating in penny stocks for her own account and purchases 100,000 shares of Drew Mining, Inc., for US$0.30 a share.

她打算一旦该股出现大幅上涨迹象，就出售这些股份。

She intends to sell these shares at the sign of any substantial upward price movement of the stock.

一周后，雇主要求她撰写一份有关矿业低价股的报告，计划于两周后发布。

A week later, her employer asks her to write a report on penny stocks in the mining industry to be published in two weeks.

即使没有持有 Drew 股票，Roberts 也会在报告中给予该股“买入”建议。

Even without owning the Drew stock, Roberts would recommend it in her report as a “buy.”

报告发布后，该股价格很可能大涨至 2 美元左右。

A surge in the price of the stock to the US$2 range is likely to result once the report is issued.

官方答案与解析 / **Official answer and explanation**

评析：Roberts 必须向雇主披露利益冲突，并应考虑拒绝承担有关 Drew Mining 的研究任务。

Comment: Roberts must disclose the conflict to her employer and should consider declining the research assignment on Drew Mining.

如果雇主在知悉冲突后仍让 Roberts 撰写报告，她必须在报告中披露这一冲突。

If Roberts’s employer has her write the report despite the conflict, Roberts must disclose the conflict in her report.

补充解析 / **Supplementary explanation**

本案例“例 4：利益冲突与个人持股”应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-009

例 5：利益冲突与薪酬安排
Example 5: Conflict of Interest and Compensation Arrangements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 226

题目与资料 / **Question and data**

例 5：利益冲突与薪酬安排 Example 5: Conflict of Interest and Compensation Arrangements

Snead 是 Thomas Investment Counsel, LLC 的投资组合经理，专门管理公共退休基金和确定给付型养老金计划账户，这些账户均具有长期投资目标。

Snead, a portfolio manager for Thomas Investment Counsel, LLC, specializes in managing public retirement funds and defined benefit pension plan accounts, all of which have long-term investment objectives.

一年前，为激励并留住核心投资专业人员，Snead 的雇主引入了一项奖金制度，根据投资组合经理相对于同业及特定基准指数的季度业绩给予奖励。

A year ago, Snead's employer, in an attempt to motivate and retain key investment professionals, introduced a bonus compensation system that rewards portfolio managers on the basis of quarterly performance relative to their peers and to certain benchmark indexes.

为改善所管理账户的短期业绩，Snead 改变投资策略，为客户投资组合买入了数只高贝塔股票。

To improve the short-term performance of her accounts, Snead changes her investment strategy and purchases several high-beta stocks for client portfolios.

这些买入行为似乎与客户的投资政策声明（IPS）不符。

These purchases are seemingly contrary to the clients' investment policy statements (IPSs).

Snead 在这一年中并未建议改变投资目标或策略。

No change in objective or strategy has been recommended by Snead during the year.

官方答案与解析 / **Official answer and explanation**

评析：Snead 未向客户说明其与雇主之间薪酬安排的变更，而这种变更导致其薪酬与客户投资政策声明之间产生利益冲突，因此违反了准则 VI(A)。

Comment: Snead violated Standard VI(A) by failing to inform her clients of the changes in her compensation arrangement with her employer, which created a conflict of interest between her compensation and her clients' IPSs.

公司可以根据业绩向员工支付薪酬，但 Thomas Investment Counsel 施加的短期业绩目标压力，与只能采取符合 Snead 所管理账户目标的投资行动这一要求发生了冲突。

Firms may pay employees based on performance, but pressure by Thomas Investment Counsel to achieve short-term performance goals conflicts with the requirement to take only investment actions that are consistent with the objectives of Snead's accounts.

补充解析 / **Supplementary explanation**

本案例“例 5：利益冲突与薪酬安排”应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-010

例 6：利益冲突与薪酬安排
Example 6: Conflict of Interest and Compensation Arrangements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 226

题目与资料 / **Question and data**

例 6：利益冲突与薪酬安排 Example 6: Conflict of Interest and Compensation Arrangements

Carter 是注册经纪交易商 Bengal International 的一名代表。

Carter is a representative with Bengal International, a registered broker/dealer.

Badger Company 的一位股票推广人提出，如果 Carter 向自己的客户销售 Badger Company 股票，就向他支付额外报酬。

A stock promoter for Badger Company offers to pay Carter additional compensation for sales of Badger Company’s stock to Carter’s clients.

Carter 接受了股票推广人的提议，但未向客户或雇主披露这一安排。

Carter accepts the stock promoter’s offer but does not disclose the arrangement to his clients or to his employer.

Carter 向客户销售了 Badger 股票。

Carter sells shares of Badger stock to his clients.

官方答案与解析 / **Official answer and explanation**

评析：Carter 未向客户披露，自己因推荐并销售 Badger 股票而获得额外报酬，因此违反了准则 VI(A)。

Comment: Carter violated Standard VI(A) by failing to disclose to clients that he is receiving additional compensation for recommending and selling Badger stock.

Carter 至少必须向客户披露与 Badger 的安排，让客户能够评估其买入 Badger 的建议是否受到该安排影响。

At minimum, Carter must disclose the arrangement with Badger to his clients so they can evaluate whether Carter's recommendations to buy Badger were affected by this arrangement.

最佳做法是，Carter 拒绝 Badger Company 提供额外报酬的提议，从而完全避免这一利益冲突。

Best practice is for Carter to avoid this conflict of interest altogether by declining the offer of additional compensation from Badger Company.

补充解析 / **Supplementary explanation**

本案例"例 6：利益冲突与薪酬安排"应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-011

例 7：利益冲突与人情请求
Example 7: Conflict of Interest and Requested Favors

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 227

题目与资料 / **Question and data**

例 7：利益冲突与人情请求 Example 7: Conflict of Interest and Requested Favors

Papis 是所在州退休基金的首席投资官。

Papis is the chief investment officer of his state's retirement fund.

该基金一直通过外部管理人管理房地产配置，而且所有基金沟通资料均清楚说明这一情况。

The fund has always used external managers for the real estate allocation, and this information is clearly presented in all fund communications.

Nagle 是一位知名卖方研究分析师，也是 Papis 的商学院同学。他最近离开任职的投资银行，成立了自己的资产管理公司 Accessible Real Estate。

Nagle, a recognized sell-side research analyst and Papis's business school classmate, recently left the investment bank he worked for to start his own asset management firm, Accessible Real Estate.

Nagle 正努力扩大管理资产规模，于是联系 Papis，希望获得该退休基金的部分房地产配置。

Nagle is trying to build his assets under management, and he contacts Papis about gaining some of the retirement fund's real estate allocation.

过去几年，该退休基金的房地产投资表现与基金基准一致，但并不出众。

In the previous few years, the performance of the retirement fund's real estate investments was in line with the fund's benchmark but was not extraordinary.

Papis 决定将房地产配置转交 Accessible，既帮助老朋友，也寻求更高收益。

Papis decides to help out his old friend and also to seek better returns by moving the real estate allocation to Accessible.

关于更换管理人的唯一通知，是下一份年报外部管理人名单中的变化。

The only notice of the change in managers appears in the next annual report in the listing of external managers.

官方答案与解析 / **Official answer and explanation**

评析：Papis 未向雇主披露自己与 Nagle 的私人关系，违反了准则 VI(A)。

Comment: Papis violated Standard VI(A) by not disclosing to his employer his personal relationship with Nagle.

披露与 Nagle 的过往关系，可以让其所在机构判断，这项冲突是否可能损害 Papis 在决定更换外部管理人时的独立性。

Disclosure of his history with Nagle would allow his firm to determine whether the conflict may have impaired Papis's independence in deciding to change external managers.

补充解析 / **Supplementary explanation**

本案例"例 7：利益冲突与人情请求"应放在准则 VI(A) 的具体要求下判断。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-CA-012

例 1：个人交易
Example 1: Personal Trading

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 230

题目与资料 / **Question and data**

例 1：个人交易 Example 1: Personal Trading

研究分析师 Long 没有建议雇主的养老金账户买入某只普通股，因为他想先为自己买入，不愿等到建议获批、雇主买入该股之后再交易。

Long, a research analyst, does not recommend purchase of a common stock for his employer's pension account, because he wants to purchase the stock personally and does not want to wait until the recommendation is approved and the stock is purchased by his employer.

官方答案与解析 / **Official answer and explanation**

评析：Long 在雇主有机会利用相关信息获益之前，先利用自己对股票价值的了解为个人获利，违反了准则 VI(B)。

Comment: Long violated Standard VI(B) by taking advantage of his knowledge of the stock's value before allowing his employer to benefit from that information.

补充解析 / **Supplementary explanation**

本案例"例 1：个人交易"应放在准则 VI(B) 的具体要求下判断。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M08-CA-013

例 2：为家庭成员账户交易
Example 2: Trading for a Family Member’s Account

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 230

题目与资料 / **Question and data**

例 2：为家庭成员账户交易 Example 2: Trading for a Family Member’s Account

Baker 是一只激进成长型共同基金的投资组合经理，她在数家经纪公司以丈夫的名义开设账户。该基金以及 Baker 的若干其他个人客户，与这些经纪公司均有大量业务往来。

Baker, the portfolio manager of an aggressive growth mutual fund, maintains an account in her husband’s name at several brokerage firms with which the fund and a number of Baker’s other individual clients conduct a substantial amount of business.

每当有热门新股可以认购时，她就指示经纪商为丈夫的账户买入。

Whenever a hot issue becomes available, she instructs the brokers to buy it for her husband’s account.

由于这类发行通常供不应求，Baker 经常能够取得热门新股，而她的客户却无法参与。

Because such issues normally are scarce, Baker often acquires shares in hot issues but her clients are not able to participate in them.

官方答案与解析 / **Official answer and explanation**

评析：Baker 违反了准则 VI(B)。为遵守准则，Baker 必须先为共同基金取得股份，再为丈夫的账户取得股份。

Comment: Baker violated Standard VI(B). To comply with the standard, Baker must acquire shares for her mutual fund first before acquiring them for her husband’s account.

她还必须向雇主披露为丈夫账户进行交易的情况，因为这种活动造成其个人利益与雇主利益之间的冲突。

She also must disclose the trading for her husband’s account to her employer because this activity creates a conflict between her personal interests and her employer’s interests.

补充解析 / **Supplementary explanation**

本案例“例 2：为家庭成员账户交易”应放在准则 VI(B) 的具体要求下判断。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

家属关系需要进一步问“谁是受益人、是否是正常收费客户、是否使用非公开交易信息”。正常客户家属账户应公平对待；自己拥有受益权的账户则必须服从客户交易优先。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M08-CA-014

例 3：平等对待家庭成员账户
Example 3: Family Accounts as Equals

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 230

题目与资料 / **Question and data**

例 3：平等对待家庭成员账户 Example 3: Family Accounts as Equals

Toffler 是 Esposito Investments 的投资组合经理，负责管理父母在该公司设立的退休账户。

Toffler, a portfolio manager at Esposito Investments, manages the retirement account established with the firm by her parents.

每当有首次公开募股可参与时，她先向所有适合该投资的其他客户分配股份，然后，如果该发行也适合父母，就将任何剩余份额放入父母的账户。

Whenever IPOs become available, she first allocates shares to all her other clients for whom the investment is appropriate; then, she places any remaining portion in her parents' account, if the issue is appropriate for them.

她采取这一程序，是为了避免有人指责她偏袒父母。

She adopted this procedure so that no one can accuse her of favoring her parents.

官方答案与解析 / **Official answer and explanation**

评析：Toffler 仅因家庭关系而将父母与其他账户区别对待，违反了对父母的职责，因此违反准则 VI(B)。

Comment: Toffler violated Standard VI(B) by breaching her duty to her parents by treating them differently from her other accounts simply because of the family relationship.

作为 Esposito Investments 的付费客户，Toffler 的父母有权获得与公司其他任何客户相同的待遇。

As fee-paying clients of Esposito Investments, Toffler's parents are entitled to the same treatment as any other client of the firm.

但是，如果 Toffler 对该账户具有实益拥有权，而且 Esposito Investments 对个人交易设有事前批准及报告要求，她可能必须事先取得交易批准，并向 Esposito 报告这些交易。

If Toffler has beneficial ownership in the account, however, and Esposito Investments has preclearance and reporting requirements for personal transactions, she may have to preclear the trades and report the transactions to Esposito.

补充解析 / **Supplementary explanation**

本案例"例 3：平等对待家庭成员账户"应放在准则 VI(B) 的具体要求下判断。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

家属关系需要进一步问"谁是受益人、是否是正常收费客户、是否使用非公开交易信息"。正常客户家属账户应公平对待；自己拥有受益权的账户则必须服从客户交易优先。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M08-CA-015

例 4：个人交易与披露
Example 4: Personal Trading and Disclosure

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 230-231

题目与资料 / **Question and data**

例 4：个人交易与披露 Example 4: Personal Trading and Disclosure

Michaels 是一家主动型投资管理公司的初级员工，同时为研究部门和投资管理部门工作。

Michaels is an entry-level employee who works for both the research department and the investment management department of an active investment management firm.

投资管理部主管 George 负责监督所有员工的个人股票交易。他发现，Michaels 在股票即将被加入公司推荐"买入"名单之前买入，并取得了可观投资收益。

George, the director of the investment management department, who has responsibility for monitoring the personal stock transactions of all employees, discovers that Michaels has made substantial investment gains by purchasing stocks just before they were put on the firm's recommended "buy" list.

Michaels 经常拒绝填写公司的季度个人交易申报表。

Michaels regularly declined to complete the firm's quarterly personal transaction form.

官方答案与解析 / **Official answer and explanation**

评析：Michaels 将个人交易置于客户交易之前，违反了准则 VI(B)。

Comment: Michaels violated Standard VI(B) by placing personal transactions ahead of client transactions.

此外，George 未要求 Michaels 填写季度个人交易申报表，违反了准则 IV(C)"主管的责任"。

In addition, George violated Standard IV(C) Responsibilities of Supervisors by not requiring Michaels to complete the quarterly personal transaction form.

补充解析 / **Supplementary explanation**

本案例"例 4：个人交易与披露"应放在准则 VI(B) 的具体要求下判断。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M08-CA-016

例 5：报告发布前进行交易
Example 5: Trading Prior to Report Dissemination

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 231

题目与资料 / **Question and data**

例 5：报告发布前进行交易 Example 5: Trading Prior to Report Dissemination

Wilson 是一家经纪公司的保险业分析师，她通过内部视频会议向公司遍布全国的分支机构作介绍。

Wilson, a brokerage's insurance analyst, makes an internal video conference presentation to her firm's branches around the country.

在会议中，她对保险行业一家大型公司发表了负面看法。

During the broadcast, she includes negative comments about a major company in the insurance industry.

第二天，Wilson 的后续书面报告印发给销售团队及公众客户。

The following day, Wilson's follow-up written report is printed and distributed to the sales force and public customers.

报告建议短线交易者和中期投资者卖出该保险公司的股票，获利了结。

The report recommends that both short-term traders and intermediate investors take profits by selling the insurance company's stock.

然而，在视频会议结束仅七分钟后，公司交易部负责人 Riley 就平掉了该股票的看涨期权多头头寸。

Seven minutes after the video conference, however, Riley, the head of the firm's trading department, closed out a long "call" position in the stock.

不久后，Riley 又建立了相当规模的看跌期权头寸。

Shortly thereafter, Riley established a sizable "put" position in the stock.

当被问及这些操作时，Riley 声称是为配合预期中的机构客户卖出交易。

When asked about her activities, Riley claimed she took the actions to facilitate anticipated sales by institutional clients.

官方答案与解析 / **Official answer and explanation**

评析：Riley 在公司自身交易之前，没有给予客户在期权市场买卖的机会，违反了准则 VI(B)。

Comment: Riley violated Standard VI(B) by not giving customers an opportunity to buy or sell in the options market before the firm itself did.

由于在报告发布之前采取行动，Riley 所在公司可能压低了看涨期权价格，并推高了看跌期权价格。

By taking action before the report was disseminated, Riley's firm may have depressed the price of the calls and increased the price of the puts.

Riley 本应等到客户有机会收到并理解 Wilson 的建议后，再为公司自有账户交易，以避免利益冲突。

Riley should have avoided the conflict of interest by waiting to trade for the firm's own accounts until its clients had an opportunity to receive and assimilate Wilson's recommendations.

补充解析 / **Supplementary explanation**

本案例"例 5：报告发布前进行交易"应放在准则 VI(B) 的具体要求下判断。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

> 相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M08-CA-017

例 1：披露转介安排与外部相关方
Example 1: Disclosure of Referral Arrangements and Outside Parties

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 232

> 题目与资料 / **Question and data**

例 1：披露转介安排与外部相关方 Example 1: Disclosure of Referral Arrangements and Outside Parties

经纪交易商 Brady Securities, Inc. 与投资管理公司 Lewis Brothers, Ltd. 建立了一项转介安排。

Brady Securities, Inc., a broker/dealer, has established a referral arrangement with Lewis Brothers, Ltd., an investment management firm.

根据该安排，Brady Securities 将所有潜在免税账户，包括养老金、利润分享及捐赠基金账户，转介给 Lewis Brothers。

In this arrangement, Brady Securities refers all prospective tax-exempt accounts, including pension, profit-sharing, and endowment accounts, to Lewis Brothers.

作为回报，Lewis Brothers 定期向 Brady Securities 提供其研究人员的证券建议及报告，供 Brady Securities 的注册代表在服务客户时使用。

In return, Lewis Brothers makes available to Brady Securities on a regular basis the security recommendations and reports of its research staff, which registered representatives of Brady Securities use in serving customers.

此外，Lewis Brothers 每月为 Brady Securities 的员工提供经济及市场回顾，并将转介账户产生的全部股票佣金业务交给 Brady Securities。

In addition, Lewis Brothers conducts monthly economic and market reviews for Brady Securities personnel and directs all stock commission business generated by referral accounts to Brady Securities.

Lewis Brothers 的合伙人 White 计算，充当 Brady Securities 研究部门所产生的额外成本，每年为 200,000 美元。

White, a partner at Lewis Brothers, calculates that the incremental costs involved in functioning as the research department of Brady Securities are US$200,000 annually.

去年，Brady Securities 的转介为 Lewis Brothers 带来了 180 万美元费用收入；而将全部股票交易交由 Brady Securities 执行，使 Lewis Brothers 的客户额外承担了 100,000 美元成本。

Referrals from Brady Securities last year resulted in fee income of US$1.8 million for Lewis Brothers, and directing all stock trades through Brady Securities resulted in additional costs to Lewis Brothers' clients of US$100,000.

Maxwell Inc. 的首席财务官 Branch 正为公司的利润分享计划寻找投资管理人，于是联系 White，了解 Lewis Brothers 的投资管理服务。

Branch, the chief financial officer of Maxwell Inc., is seeking an investment manager for Maxwell's profit-sharing plan and contacts White about Lewis Brothers' investment management services.

她告诉 White，在 Brady Securities 任职的朋友 Hill 毫无保留地推荐了 Lewis Brothers。

She tells White that her friend at Brady Securities, Hill, recommended Lewis Brothers without qualification.

White 成功将 Maxwell 发展为新客户，但未披露其公司与 Brady Securities 之间的转介安排。

White secures Maxwell as a new client but does not disclose his firm's referral arrangement with Brady Securities.

官方答案与解析 / **Official answer and explanation**

评析：White 未告知潜在客户，通过向 Brady Securities 支付佣金形成的转介费安排，违反了准则 VI(C)。

Comment: White violated Standard VI(C) by failing to inform the prospective customer of the referral fee arrangement with commissions paid to Brady Securities.

如果作出这一披露，Branch 可能会重新审视 Hill 的推荐，并更审慎地评估 Lewis Brothers 的服务。

Such disclosure could have caused Branch to reassess Hill's recommendation and make a more critical evaluation of Lewis Brothers' services.

补充解析 / **Supplementary explanation**

本案例"例 1：披露转介安排与外部相关方"应放在准则 VI(C) 的具体要求下判断。

规则如何作用于本题：就推荐客户、产品或服务收取或支付的费用及其他利益，应向雇主以及客户或潜在客户作适当披露，使其能够评价推荐的客观性和实际费用。

转介利益不只是一笔现金佣金，也可能是业务互换、折扣或部门间安排。客户需要在决定是否接受服务前了解推荐者获得什么，才能评价推荐的独立性和服务总成本。

推理顺序：列清安排的性质、金额或价值、支付方式和持续性，并在客户订立服务关系前披露。部门间非现金转介利益也可能造成同类冲突。

为什么容易选错：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

相关知识点 / **Related concepts**

Standard VI(C) — 推荐费 / Referral Fees

相关边界：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

V10-M08-CA-018

例 2：披露部门之间的转介安排
Example 2: Disclosure of Interdepartmental Referral Arrangements

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 233

题目与资料 / **Question and data**

例 2：披露部门之间的转介安排 Example 2: Disclosure of Interdepartmental Referral Arrangements

Handley 在 Central Trust Bank 的信托部门工作。

Handley works for the trust department of Central Trust Bank.

他每次将客户转介给 Central Trust 的经纪部门或个人财务管理部门，只要促成销售，就会获得报酬。

He receives compensation for each referral he makes to Central Trust's brokerage department and personal financial management department that results in a sale.

他将数位客户转介给个人财务管理部门，但未向客户披露 Central Trust 内部的这一安排。

He refers several of his clients to the personal financial management department but does not disclose the arrangement at Central Trust to his clients.

官方答案与解析 / **Official answer and explanation**

评析：Handley 未向客户披露 Central Trust Bank 内部的转介安排，违反了准则 VI(C)。

Comment: Handley violated Standard VI(C) by not disclosing the referral arrangement at Central Trust Bank to his clients.

准则 VI(C) 不区分两类转介款项：第三方为获取转介客户而支付的款项，以及公司内部为给旗下机构吸引新业务而支付的款项。

Standard VI(C) does not distinguish between referral payments paid by a third party for referring clients to the third party and internal payments paid within a firm to attract new business to a subsidiary.

会员与考生必须披露所有此类转介费。

Members and candidates must disclose all such referral fees.

因此，Handley 必须在转介时披露 Central Trust Bank 各部门之间已有的任何转介费协议。

Therefore, Handley is required to disclose, at the time of referral, any referral fee agreement in place among Central Trust Bank's departments.

披露必须包括利益的性质及价值。

The disclosure must include the nature and the value of the benefit.

补充解析 / **Supplementary explanation**

本案例"例 2：披露部门之间的转介安排"应放在准则 VI(C) 的具体要求下判断。

规则如何作用于本题：就推荐客户、产品或服务收取或支付的费用及其他利益，应向雇主以及客户或潜在客户作适当披露，使其能够评价推荐的客观性和实际费用。

转介利益不只是一笔现金佣金，也可能是业务互换、折扣或部门间安排。客户需要在决定是否接受服务前了解推荐者获得什么，才能评价推荐的独立性和服务总成本。

推理顺序：列清安排的性质、金额或价值、支付方式和持续性，并在客户订立服务关系前披露。部门间非现金转介利益也可能造成同类冲突。

为什么容易选错：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

相关知识点 / **Related concepts**

Standard VI(C) — 推荐费 / Referral Fees

相关边界：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

V10-M08-CA-019

例 3：披露转介安排并告知公司
Example 3: Disclosure of Referral Arrangements and Informing Firm

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 233

题目与资料 / **Question and data**

例 3：披露转介安排并告知公司 Example 3: Disclosure of Referral Arrangements and Informing Firm

Roberts 是 Katama Investments 的投资组合经理，该顾问公司专门为高净值人士管理资产。

Roberts is a portfolio manager at Katama Investments, an advisory firm specializing in managing assets for high-net-worth individuals.

Katama 的交易部门通过多家经纪公司，代表客户执行交易。

Katama’s trading desk uses a variety of brokerage houses to execute trades on behalf of its clients.

Roberts 要求交易部门将大部分佣金交给 Naushon, Inc.，这是一家由 Roberts 的商学院同学经营的小型经纪交易商。

Roberts asks the trading desk to direct a large portion of its commissions to Naushon, Inc., a small broker/dealer run by one of Roberts’s business school classmates.

Katama 的交易员发现 Naushon 的报价缺乏竞争力；虽然 Naushon 为交易客户提供一些研究，但 Katama 的其他分析师认为，其大多数研究并无特别用处。

Katama’s traders have found that Naushon is not very competitive on pricing, and although Naushon generates some research for its trading clients, Katama’s other analysts have found most of Naushon’s research to be not especially useful.

尽管如此，交易员仍按 Roberts 的要求行事。作为获得 Katama 大量业务的回报，Naushon 向其最富裕的客户推荐 Roberts 和 Katama 的投资服务。

Nevertheless, the traders do as Roberts asks, and in return for receiving a large portion of Katama's business, Naushon recommends the investment services of Roberts and Katama to its wealthiest clients.

这一安排既未向 Katama 披露，也未向 Naushon 转介的客户披露。

This arrangement is not disclosed to either Katama or the clients referred by Naushon.

官方答案与解析 / **Official answer and explanation**

评析：Roberts 未将转介安排告知雇主及客户，违反了准则 VI(C)。

Comment: Roberts is violating Standard VI(C) by failing to inform her employer and clients of the referral arrangement.

补充解析 / **Supplementary explanation**

本案例"例 3：披露转介安排并告知公司"应放在准则 VI(C) 的具体要求下判断。

规则如何作用于本题：就推荐客户、产品或服务收取或支付的费用及其他利益，应向雇主以及客户或潜在客户作适当披露，使其能够评价推荐的客观性和实际费用。

转介利益不只是一笔现金佣金，也可能是业务互换、折扣或部门间安排。客户需要在决定是否接受服务前了解推荐者获得什么，才能评价推荐的独立性和服务总成本。

推理顺序：列清安排的性质、金额或价值、支付方式和持续性，并在客户订立服务关系前披露。部门间非现金转介利益也可能造成同类冲突。

为什么容易选错：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

相关知识点 / **Related concepts**

Standard VI(C) — 推荐费 / Referral Fees

相关边界：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

V10-M08-CA-020

例 4：披露转介安排与外部相关方
Example 4: Disclosure of Referral Arrangements and Outside Parties

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 233-234

题目与资料 / **Question and data**

例 4：披露转介安排与外部相关方 Example 4: Disclosure of Referral Arrangements and Outside Parties

某州雇员养老金计划正在寻找一家公司，管理该计划的新兴市场配置。

The state employee pension plan is seeking to hire a firm to manage the pension plan's emerging market allocation.

为协助评审，该计划聘请 Arronski 担任顾问，向多家投资顾问机构征集方案。

To assist in the review process, the plan hires Arronski as a consultant to solicit proposals from various advisers.

该计划与 Arronski 签订合同，要求他在选择最合适的新管理人时代表计划的最佳利益。

Arronski is contracted by the plan to represent its best interest in selecting the most appropriate new manager.

遴选过程顺利进行，Overseas Investments 获选为新的管理人。

The process runs smoothly, and Overseas Investments is selected as the new manager.

次年，人们发现，如果 Arronski 推荐的投资管理人获得新的养老金配置，他就会向其收费。

The following year, it comes to light that Arronski charges fees to investment managers that he recommends if they are awarded new pension allocations.

虽然计划对 Overseas 接管新兴市场资金以来的表现满意，仍决定对各方案及遴选流程进行独立审查，确保 Overseas 是符合其需求的合适公司。

Although the plan is happy with the performance of Overseas since it has been managing the plan's emerging market funds, the plan still decides to have an independent review of the proposals and the selection process to ensure that Overseas is the appropriate firm for its needs.

审查确认，尽管 Arronski 同时收取计划和 Overseas 的报酬，推荐 Overseas 看起来仍然客观、适当。

This review confirms that, even though Arronski was paid by both the plan and Overseas, the recommendation of Overseas appeared to be objective and appropriate.

官方答案与解析 / **Official answer and explanation**

评析：Arronski 未披露 Overseas 向其支付的费用，违反了准则 VI(C)。

Comment: Arronski violated Standard VI(C) because he did not disclose the fee being paid by Overseas.

Arronski 隐瞒了被其推荐的公司在获得业务后会向其付费这一信息，意味着他推荐 Overseas 时可能缺乏客观性。

Withholding the information that firms pay Arronski once they are awarded business based on his recommendations implies a potential lack of objectivity in the recommendation of Overseas by Arronski.

补充解析 / **Supplementary explanation**

本案例“例 4：披露转介安排与外部相关方”应放在准则 VI(C) 的具体要求下判断。

规则如何作用于本题：就推荐客户、产品或服务收取或支付的费用及其他利益，应向雇主以及客户或潜在客户作适当披露，使其能够评价推荐的客观性和实际费用。

转介利益不只是一笔现金佣金，也可能是业务互换、折扣或部门间安排。客户需要在决定是否接受服务前了解推荐者获得什么，才能评价推荐的独立性和服务总成本。

推理顺序：列清安排的性质、金额或价值、支付方式和持续性，并在客户订立服务关系前披露。部门间非现金转介利益也可能造成同类冲突。

为什么容易选错：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

相关知识点 / **Related concepts**

Standard VI(C) — 推荐费 / Referral Fees

相关边界：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

V10-M08-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 235-236

题目与资料 / **Question and data**

1. Jamison 是经纪及投资银行公司 Howard & Howard 的初级研究分析师。

1. Jamison is a junior research analyst with Howard & Howard, a brokerage and investment banking firm.

过去 20 年，Howard & Howard 的并购部门一直在 Britland Company 的全部收购交易中担任其顾问。

Howard & Howard's mergers and acquisitions department has represented the Britland Company in all of its acquisitions for the past 20 years.

Howard & Howard 的两位高级管理人员，同时担任 Britland 多家子公司的董事。

Two of Howard & Howard's senior officers are directors of various Britland subsidiaries.

Jamison 被要求撰写有关 Britland 的研究报告。

Jamison has been asked to write a research report on Britland.

她应采取的最佳做法是什么？

What is the best course of action for her to follow?

A. Jamison 可以撰写报告，但由于两家公司存在特殊关系，必须避免表达任何观点。

A. Jamison may write the report but must refrain from expressing any opinions because of the special relationships between the two companies.

B. Jamison 不应撰写报告，因为 Howard & Howard 的两位高管在 Britland 的子公司担任董事。

B. Jamison should not write the report because the two Howard & Howard officers serve as directors for subsidiaries of Britland.

C. 如果 Jamison 披露两家公司之间的董事任职关系，就可以撰写报告。

C. Jamison may write the report if she discloses the director relationship between the two companies.

官方答案与解析 / **Official answer and explanation**

1. 正确答案是 B。本题涉及准则 VI(A)“避免或披露利益冲突”。

1. The correct answer is B. This question involves Standard VI(A) Avoid or Disclose Conflicts.

题目设定了这样一种利益冲突：分析师 Jamison 被要求为其雇主的一家客户公司撰写研究报告。

The question establishes a conflict of interest in which an analyst, Jamison, is asked to write a research report on a company that is a client of her employer.

此外，该公司的两位董事还是 Jamison 雇主的高级管理人员。

In addition, two directors of the company are senior officers of Jamison's employer.

最佳做法是避免利益冲突，不为 Howard & Howard 的客户公司，或与其存在董事任职关系的公司提供研究报告。

Best practice would be to avoid the conflicts of interest by not providing a research report on companies that are clients of or have a director relationship with Howard & Howard.

如果没有避免这些冲突，Jamison 就必须在研究报告中同时披露客户关系及董事任职关系。

If the conflicts are not avoided, both the client relationship and director relationship must be disclosed by Jamison in her research report.

选项 C 错误，因为 Jamison 仅披露了其中一种冲突。

Answer C is incorrect because Jamison would be disclosing only one of the conflicts.

选项 A 错误，因为 Jamison 是否在报告中表达任何观点，与其披露所有利益冲突的义务无关。

Answer A is incorrect because whether Jamison expresses any opinions in the report is irrelevant to her duty to disclose all conflicts of interest.

不表达观点，并不会免除分析师披露两家公司特殊关系的责任。

Not expressing opinions does not relieve the analyst of the responsibility to disclose the special relationships between the two companies.

参见准则 VI(A)：避免或披露利益冲突。

See Standard VI(A): Avoid or Disclose Conflicts

> 补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 VI(A)（避免或披露利益冲突）。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界：“客户应该知道”或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 235-236

题目与资料 / **Question and data**

2. Smith 是 XYZ Brokerage Firm 的金融分析师。

2. Smith is a financial analyst with XYZ Brokerage Firm.

她正准备对 JNI Corporation 提出买入建议。

She is preparing a purchase recommendation on JNI Corporation.

以下哪种情况最可能构成 Smith 必须避免或披露的利益冲突？

Which of the following situations is most likely to represent a conflict of interest for Smith that would have to be avoided or disclosed?

A. Smith 经常购买 JNI 生产的产品。

A. Smith frequently purchases items produced by JNI.

B. XYZ 的自营账户持有相当数量的 JNI 普通股。

B. XYZ holds for its own account a substantial common stock position in JNI.

C. Smith 的姻亲兄弟是 JNI 的供应商。

C. Smith’s brother-in-law is a supplier to JNI.

官方答案与解析 / **Official answer and explanation**

2. 正确答案是 B。本题涉及准则 VI(A)“避免或披露利益冲突”，具体涉及分析师的雇主持有公司股票的情形。

2. The correct answer is B. This question involves Standard VI(A) Avoid or Disclose Conflicts—specifically, the holdings of an analyst’s employer in company stock.

XYZ 持有研究报告对象公司的股票，产生了必须在研究报告中披露的利益冲突。

XYZ ownership of the stock of the company that is the subject of the research report creates a conflict of interest that must be disclosed in the research report.

XYZ 可以不让 Smith 为 JNI，或任何其他 XYZ 持有权益的公司编制推荐意见，以避免冲突。

XYZ could avoid the conflict by not having Smith prepare a recommendation for JNI or any other company in which XYZ has an ownership interest.

选项 A 和 C 均未描述 Smith 必须避免或披露的利益冲突。

Answers A and C do not describe conflicts of interest that Smith would have to avoid or disclose.

选项 A 描述使用公司产品的情况，这通常不会产生利益冲突，因此不属于必须披露的事项。

Answer A describes the use of a firm's products, which would not be a required disclosure because it will likely not create a conflict of interest.

在选项 C 中，分析师通过亲属与公司建立的关系过于间接，尚不足以形成需要披露的利益冲突。

In answer C, the relationship between the analyst and the company through a relative is so tangential that it does not create a conflict of interest necessitating disclosure.

参见准则 VI(A)：避免或披露利益冲突。

See Standard VI(A): Avoid or Disclose Conflicts

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 VI(A)（避免或披露利益冲突）。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M08-PR-003

课后习题 3
Practice Problem 3

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 235-236

题目与资料 / **Question and data**

3. 以下哪项陈述是准则 VI(C)"转介费"明确列出的披露目的？

3. Which of the following statements is a stated purpose of disclosure in Standard VI(C) Referral Fees?

A. 披露将使客户能够要求服务费折扣。

A. Disclosure will allow the client to request discounted service fees.

B. 披露有助于客户评估服务推荐中可能存在的任何偏向。

B. Disclosure will help the client evaluate any possible partiality shown in the recommendation of services.

C. 披露是指在正式客户关系建立后，告知潜在客户有关转介安排。

C. Disclosure means advising a prospective client about the referral arrangement once a formal client relationship has been established.

官方答案与解析 / **Official answer and explanation**

3. 正确答案是 B。选项 B 给出了《手册》在准则 VI(C)"转介费"下列示的、向客户披露转介费的两个主要原因之一。

3. The correct answer is B. Answer B gives one of the two primary reasons listed in the Handbook for disclosing referral fees to clients under Standard VI(C) Referral Fees.

另一个原因是使客户及雇主能够评估服务的全部成本。

(The other is to allow clients and employers to evaluate the full cost of the services.)

选项 A 错误，因为准则 VI(C) 并不要求会员或考生在收到转介费时，相应降低自己收取的费用。

Answer A is incorrect because Standard VI(C) does not require members or candidates to discount their fees when they receive referral fees.

选项 C 不符合准则 VI(C)，因为要使转介费披露有效，就应在与潜在客户建立正式客户关系之前作出披露。

Answer C is inconsistent with Standard VI(C) because disclosure of referral fees, to be effective, should be made to prospective clients before entering into a formal client relationship with them.

参见准则 VI(C)：转介费。

See Standard VI(C): Referral Fees

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 VI(C)（推荐费）。

规则如何作用于本题：就推荐客户、产品或服务收取或支付的费用及其他利益，应向雇主以及客户或潜在客户作适当披露，使其能够评价推荐的客观性和实际费用。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

转介利益不只是一笔现金佣金，也可能是业务互换、折扣或部门间安排。客户需要在决定是否接受服务前了解推荐者获得什么，才能评价推荐的独立性和服务总成本。

推理顺序：列清安排的性质、金额或价值、支付方式和持续性，并在客户订立服务关系前披露。部门间非现金转介利益也可能造成同类冲突。

为什么容易选错：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

相关知识点 / **Related concepts**

Standard VI(C) — 推荐费 / Referral Fees

相关边界：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

V10-M08-PR-004

课后习题 4
Practice Problem 4

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 235-236

题目与资料 / **Question and data**

4. Rose 是一家本地投资咨询公司的投资组合经理，计划出售部分个人投资组合，以支付子女的学费。

4. Rose, a portfolio manager for a local investment advisory firm, is planning to sell a portion of his personal investment portfolio to cover the costs of his child's academic tuition.

Rose 想出售部分 Household Products 股票，但其公司最近刚把该股评级上调至“强烈买入”。

Rose wants to sell a portion of his holdings in Household Products, but his firm recently upgraded the stock to "strong buy."

根据《道德准则与专业行为准则》，以下哪项描述了 Rose 可以采取的行动？

Which of the following describes Rose's options under the Code and Standards?

A. 由于公司给出了“买入”建议，Rose 不能出售股份，否则就是不当地利用被夸大的推荐评级获利。

A. Based on his firm's "buy" recommendation, Rose cannot sell the shares because he would be improperly prospering from the inflated recommendation.

B. 在适当告知公司其意图后，Rose 可以出售个人持仓。

B. Rose is free to sell his personal holdings once his firm is properly informed of his intentions.

C. Rose 可以出售个人持仓，但只有当公司某位客户下单买入 Household 股票时才可以。

C. Rose can sell his personal holdings but only when a client of the firm places an order to buy shares of Household.

官方答案与解析 / **Official answer and explanation**

4. 正确答案是 B。只要卖出不会使现有客户处于不利地位，准则 VI(B)“交易优先顺序”就不会限制公司员工进行与当前建议不同的交易。

4. The correct answer is B. Standard VI(B) Priority of Transactions does not limit transactions of company employees that differ from current recommendations as long as the sale does not disadvantage current clients.

因此，选项 A 错误。选项 C 错误，因为该准则并不要求将个人交易与客户交易相匹配。

Thus, answer A is incorrect. Answer C is incorrect because the Standard does not require the matching of personal and client trades.

参见准则 VI(B)：交易优先顺序。

See Standard VI(B): Priority of Transactions

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 VI(B)（交易优先顺序）。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

LM 9 · 准则 VII 指引：作为 CFA 协会会员或 CFA 考生的责任 Guidance for Standard VII: Responsibilities as a CFA Institute Member or CFA Candidate

18 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M09-CA-003

例 1：分享考题
Example 1: Sharing Exam Questions

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 239-240

题目与资料 / **Question and data**

例 1：分享考题 Example 1: Sharing Exam Questions

CFA 考生 Nero 最近找到了一份看似 CFA 二级考试试卷副本的材料。

Nero, a candidate for the CFA designation, recently found what appears to be a copy of the Level II CFA exam.

虽然无法确定是否真实，他仍在其他 CFA 考生经常访问的在线聊天室里发布了部分题目。

Although he is not sure whether it is authentic, he posts some of the questions in an online chatroom frequented by other candidates for the CFA designation.

聊天室里的另外两位二级考生要求 Nero 再发布更多题目，他照做了。

Two other Level II candidates in the chatroom ask Nero to post more questions, which he does.

三人都使用这些题目准备即将到来的考试。

All three use the questions to prepare for their upcoming exam.

官方答案与解析 / **Official answer and explanation**

评析：Nero 和另外两位考生均违反了准则 VII(A)。

Comment: Nero and the two candidates violated Standard VII(A).

Nero 向两位考生提供 CFA 考题信息，给予了他们不公平的优势，并削弱了 CFA 二级考试作为准确衡量取得 CFA 称号使用资格所需知识、技能和能力之工具的诚信与有效性。

By giving information about the CFA exam questions to two candidates, Nero provided an unfair advantage to the two candidates and undermined the integrity and validity of the Level II CFA exam as an accurate measure of the knowledge, skills, and abilities necessary to earn the right to use the CFA designation.

另外两位考生索取并接受这些信息，也损害了 CFA 二级考试的诚信与有效性，并破坏了作为 CFA 资格关键组成部分的道德框架。

By soliciting and accepting the information, the two other candidates also compromised the integrity and validity of the Level II CFA exam and undermined the ethical framework that is a key part of the designation.

补充解析 / **Supplementary explanation**

本案例“例 1：分享考题”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-004

例 2：提交虚假延期申请以推迟考试日期
Example 2: Filing a Fraudulent Deferral Request to Postpone Exam Date

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 240

题目与资料 / **Question and data**

例 2：提交虚假延期申请以推迟考试日期 Example 2: Filing a Fraudulent Deferral Request to Postpone Exam Date

Chiu 是 CFA 考生，已报名在即将开放的考试窗口参加 CFA 一级考试。

Chiu is a candidate for the CFA designation and is registered to take the Level I CFA exam during the upcoming open exam window.

随着考试日期临近，Chiu 意识到自己尚未准备好。

As the date gets closer, Chiu realizes that she is not prepared to take the exam.

根据当时有效的 CFA 协会政策，Chiu 可以申请付费延期；但她注意到紧急延期选项免费，于是以叔叔去世为由，提交紧急延期申请。

According to CFA Institute policies in effect at the time, Chiu can request a Paid Deferral, but she notices that the Emergency Deferral option is free, so she files an Emergency Deferral request claiming that her uncle died.

CFA 协会拒绝了该申请，因为根据当时规则，叔叔去世不属于紧急延期的有效理由。

CFA Institute denies her request since the death of an uncle is not a valid basis for an Emergency Deferral under the current rules.

随后，Chiu 又提交第二份申请，声称母亲去世。

In response, Chiu files a second request claiming that her mother died.

她随新申请提交的死亡证明，与第一次申请中的证明完全相同，只是死者姓名被改过。

The death certificate she submits with her new request is identical to her first request, except the name of the deceased has been changed.

后来，Chiu 承认没有人去世，她修改文件是为了取得紧急延期资格并节省费用。

Later, Chiu admits that there had been no deaths and that the documentation was altered in an attempt to obtain an Emergency Deferral to save money.

官方答案与解析 / **Official answer and explanation**

评析：Chiu 提交欺诈性的紧急延期申请，违反了 CFA 项目规则，并损害了 CFA 考试的诚信。

Comment: By filing a fraudulent request for an Emergency Deferral, Chiu violated rules of the CFA Program and compromised the integrity of the CFA exam.

因此，她的行为既违反准则 I(C)“虚假陈述”，也违反准则 VII(A)。

As a result, her conduct violated Standard VII(A), in addition to Standard I(C) Misrepresentation.

补充解析 / **Supplementary explanation**

本案例“例 2：提交虚假延期申请以推迟考试日期”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试延期申请中的事实应真实且可核验。即使申请人有学习压力或其他理由，也不能伪造医疗、家庭或其他支持材料来取得本不符合条件的待遇。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-005

例 3：在考点实施扰乱秩序的行为
Example 3: Disruptive Conduct at Test Center

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 240

题目与资料 / **Question and data**

例 3：在考点实施扰乱秩序的行为 Example 3: Disruptive Conduct at Test Center

Hermosa 是 CFA 考生，已报名在所在城市的一处考点参加 CFA 三级考试。

Hermosa is a candidate for the CFA designation and is registered to take the Level III CFA exam at a test center in his city.

在预约的考试当天，他到达考点。

On his scheduled exam day, he arrives at the test center.

签到时，监考人员要求他展示裤袋为空，但他拒绝配合。

During the check-in process, he refuses to cooperate with the proctor when asked to show that his pants pockets are empty.

他情绪激动，大声辱骂，将护照扔向监考人员，并威胁要伤害她。

He becomes agitated, shouts profanity, throws his passport at the proctor, and threatens her with bodily harm.

当时在考点的其他几位 CFA 考生投诉称，该事件打断了他们的考试，并表示 Hermosa 的行为令他们担忧自身安全。

Several other CFA candidates in the test center at the time complain that the incident interrupted their testing experience and that they were concerned for their safety as a result of Hermosa's conduct.

官方答案与解析 / **Official answer and explanation**

评析：Hermosa 违反了考试规则，并损害 CFA 考试的诚信与安全，因此其行为违反准则 VII(A)。

Comment: Hermosa's conduct violated Standard VII(A) because he violated testing rules and compromised the integrity and security of the CFA exam.

补充解析 / **Supplementary explanation**

本案例"例 3：在考点实施扰乱秩序的行为"应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试中心行为规则服务于公平和秩序。争议应通过合适渠道处理，不能以情绪、个人困难或对规则不满为理由干扰其他考生。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-006

例 4：将书面材料带入机考考点
Example 4: Bringing Written Material into Computer-Based Testing Centers

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 240-241

题目与资料 / **Question and data**

例 4：将书面材料带入机考考点 Example 4: Bringing Written Material into Computer-Based Testing Centers

Yu 是 CFA 考生，已报名参加 CFA 一级考试。

Yu is a candidate for the CFA designation and is registered to take the Level I CFA exam.

她难以记住公式，因此在进入计算机考试（CBT）考点之前，将若干公式写在一张纸上，并藏进一只衣袖。

She has difficulty remembering formulas, so prior to entering the computer-based testing (CBT) center, she writes several formulas on a piece of paper and hides it in one of her shirt sleeves.

考试期间，一名监考人员看到 Yu 从衣袖中取出这张纸。

During the exam, a proctor notices Yu removing the paper from her sleeve.

监考人员走到 Yu 身旁，没收了纸张。

The proctor approaches Yu and confiscates the paper.

官方答案与解析 / **Official answer and explanation**

评析：Yu 将书面信息带入机考考场，违反了考试规则，并损害 CFA 考试的安全与诚信，以及其考试成绩的有效性。

Comment: Because Yu took written information into the CBT exam room, her conduct violated the testing rules and compromised the security and integrity of the CFA exam and the validity of her exam performance.

因此，她违反了准则 VII(A)。

Therefore, she violated Standard VII(A).

补充解析 / **Supplementary explanation**

本案例“例 4：将书面材料带入机考考点”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-007

例 5：机考期间查看其他考位的屏幕
Example 5: Looking at Other Workstation Screens during CBT Exams

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 241

题目与资料 / **Question and data**

例 5：机考期间查看其他考位的屏幕 Example 5: Looking at Other Workstation Screens during CBT Exams

Sharma 是 CFA 考生，正在机考考点参加 CFA 二级考试。

Sharma is a candidate for the CFA designation. He is at a CBT center taking the Level II CFA exam.

考试规则禁止查看其他考生的屏幕。

The testing rules prohibit looking at other candidates' screens.

Sharma 在考试时走神，短暂回想起过去采用纸笔考试、而非计算机考试的时期。

Sharma's mind wanders during the exam, and he briefly reminisces about the past—when the exams were on paper instead of on a computer.

他想知道自己的试卷是否与旁边同样参加 CFA 二级考试的考生相同。

He wonders if his test is the same as that of the test taker sitting next to him, who is also taking the Level II CFA exam.

他多次查看邻座考生的计算机屏幕。

He looks multiple times at the computer screen of the test taker next to him.

一名机考监考人员观察到了他的行为，监控录像也记录下来。

His conduct is observed by a CBT proctor and is captured by video surveillance.

官方答案与解析 / **Official answer and explanation**

评析：Sharma 违反了考试规则，并损害 CFA 考试的有效性、诚信与安全，因此其行为违反准则 VII(A)。

Comment: Sharma's conduct violated Standard VII(A) because he violated testing rules and compromised the validity, integrity, and security of the CFA exam.

补充解析 / **Supplementary explanation**

本案例"例 5：机考期间查看其他考位的屏幕"应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-008

例 6：分享考试内容
Example 6: Sharing Exam Content

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 241

题目与资料 / **Question and data**

例 6：分享考试内容 Example 6: Sharing Exam Content

完成 CFA 二级考试后，Rossi 在网上发帖，谈及自己的考试经历。

After completing the Level II CFA exam, Rossi posts online about her experience.

帖子写道："二级考完了！我觉得自己考得还不错。

Her post reads, "Level II is complete! I think I did fairly well on the exam.

考试真的很难，但很公平。我觉得衍生品题目答得特别好。

It was really difficult but fair. I think I did especially well on the derivatives questions.

而且题目非常多！我记得数了 18 道！道德题真的很难。

And there were tons of them! I think I counted 18! The ethics questions were really hard.

真庆幸我花了那么多时间学习《道德准则与专业行为准则》。

I’m glad I spent so much time on the Code and Standards.

让我吃惊的是，竟然完全没有涉及首次公开募股分配的题目。

I was surprised to see there were no questions at all about IPO allocations.

我原本以为至少会有几道。好了，我要去庆祝终于考完了。

I expected there to be a couple. Well, off to celebrate getting through it.

今晚见？”

See you tonight?”

官方答案与解析 / **Official answer and explanation**

评析：Rossi 谈论自己觉得考试有多难，或认为自己发挥得如何，并不违反准则 VII(A)。

Comment: Rossi did not violate Standard VII(A) when she wrote about how difficult she found the exam or how well she thinks she may have done.

但是，她透露了考试所涉及的部分内容及未涉及的领域，因此违反了准则 VII(A)。

By revealing portions of the exam content covered on the exam and areas not covered, however, she did violate Standard VII(A).

视发布评论的时间而定，Rossi 不仅可能帮助未来考生，还可能让尚未参加同一场考试的考生获得不公平优势，从而损害考试的诚信与有效性。

Depending on the time frame in which the comments were posted, Rossi not only may have assisted future candidates but also may have provided an unfair advantage to candidates yet to sit for the same exam, thereby undermining the integrity and validity of the exam.

补充解析 / **Supplementary explanation**

本案例“例 6：分享考试内容”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-009

例 7：分享考试内容
Example 7: Sharing Exam Content

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 241

题目与资料 / **Question and data**

例 7：分享考试内容 Example 7: Sharing Exam Content

一级考生 Gagne 经常访问一个专为 CFA 考生设立的互联网论坛。

Level I candidate Gagne has been a frequent visitor to an internet forum designed specifically for candidates for the CFA designation.

完成 CFA 一级考试后的那一周，Gagne 和其他几人在论坛上发起讨论，谈论最有挑战性的题目，并试图确定正确答案。

The week after completing the Level I CFA exam, Gagne and several others begin a discussion thread on the forum about the most challenging questions and attempt to determine the correct answers.

官方答案与解析 / **Official answer and explanation**

评析：Gagne 提供了保密考试信息，损害考试流程的诚信，因此违反准则 VII(A)。

Comment: Gagne violated Standard VII(A) by providing confidential exam information, which compromises the integrity of the exam process.

在试图确定具体题目的正确答案时，小组讨论包含了被视为保密信息的题目细节。

In trying to determine correct answers to specific questions, the group's discussion included question-specific details considered to be confidential.

补充解析 / **Supplementary explanation**

本案例"例 7：分享考试内容"应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-010

例 8：分享考试内容
Example 8: Sharing Exam Content

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 242

题目与资料 / **Question and data**

例 8：分享考试内容 Example 8: Sharing Exam Content

CFA4Sure 是一家为 CFA 项目考生制作备考材料的公司。

CFA4Sure is a company that produces test-preparation materials for CFA Program candidates.

许多考生注册并使用该公司的产品。

Many candidates register for and use the company's products.

CFA 考试结束后的第二天，CFA4Sure 向所有客户发送电子邮件，请他们分享考试中最难的题目，以便公司更好地帮助客户准备下一次考试。

The day after the CFA exam, CFA4Sure sends an email to all its customers asking them to share with the company the hardest questions from the exam so that CFA4Sure can better prepare its customers for the next exam administration.

Pena 通过电子邮件发送了自己认为考试中最难题目的摘要。

Pena emails a summary of the questions she found most difficult on the exam.

官方答案与解析 / **Official answer and explanation**

评析：Pena 披露考题，违反了准则 VII(A)。

Comment: Pena violated Standard VII(A) by disclosing exam questions.

在 CFA 协会公开发布之前，这些信息均属保密内容。

The information provided is considered confidential until publicly released by CFA Institute.

CFA4Sure 很可能利用此类反馈，改进为未来考生提供的复习材料。

CFA4Sure is likely to use such feedback to refine its review materials for future candidates.

Pena 分享具体题目，损害了考试诚信，同时可能使未来考生更容易通过考试。

Pena's sharing of the specific questions undermined the integrity of the exam while potentially making the exam easier for future candidates.

如果参与索取 CFA 项目保密信息的 CFA4Sure 员工是 CFA 协会会员或考生，他们也违反了准则 VII(A)。

If the CFA4Sure employees who participated in the solicitation of confidential CFA Program information are CFA Institute members or candidates, they also violated Standard VII(A).

补充解析 / **Supplementary explanation**

本案例“例 8：分享考试内容”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-011

例 9：讨论考试评分指引与结果
Example 9: Discussion of Exam Grading Guidelines and Results

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 242

题目与资料 / **Question and data**

例 9：讨论考试评分指引与结果 Example 9: Discussion of Exam Grading Guidelines and Results

作为参与 CFA 考试评分的条件，Whitcomb 同意，除 CFA 协会员工或其他阅卷人员外，不向任何人透露或讨论考试材料。

As a condition of participating in grading CFA exams, Whitcomb agrees not to reveal or discuss the exam materials with anyone except CFA Institute staff or other graders.

CFA 考试评分工作结束几周后，Whitcomb 告诉数位正在备考 CFA 的同事，自己评阅了哪道题。

Several weeks after the conclusion of the CFA exam grading process, Whitcomb tells several colleagues who are candidates for the CFA designation which question he graded.

他还讨论了评分参考答案，并补充说，很少有考生在该题上取得高分。

He also discusses the guideline answer and adds that few candidates scored well on the question.

官方答案与解析 / **Official answer and explanation**

评析：Whitcomb 披露了考试中某道具体题目的相关信息，损害考试流程的诚信，因此违反了准则 VII(A)。

Comment: Whitcomb violated Standard VII(A) by disclosing information related to a specific question on the exam, which compromised the integrity of the exam process.

补充解析 / **Supplementary explanation**

本案例“例 9：讨论考试评分指引与结果”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

考试完整性需要区分抽象学习讨论与具体考试信息。允许谈自己的总体感受，不代表可以透露题目、答案、具体考点是否出现、题量或保密评分材料；考试结束也不终止此限制。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-012

例 10：以志愿者身份损害 CFA 协会诚信
Example 10: Compromising CFA Institute Integrity as a Volunteer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 242

题目与资料 / **Question and data**

例 10：以志愿者身份损害 CFA 协会诚信 Example 10: Compromising CFA Institute Integrity as a Volunteer

Ramirez 为数家希望获得更多投资者关注的小公司担任投资者关系顾问。

Ramirez is an investor relations consultant for several small companies that are seeking greater exposure to investors.

他同时担任工作所在城市的 CFA 协会当地分会活动项目主席。

He is also the program chair for the CFA Institute local society in the city where he works.

Ramirez 只安排自己的客户公司向分会作介绍，而排除其他公司。

Ramirez schedules only companies that are his clients to make presentations to the society and excludes other companies.

官方答案与解析 / **Official answer and explanation**

评析：Ramirez 利用在 CFA 协会的志愿者职位，为自己及客户谋利，损害了 CFA 协会的声誉与诚信，因此违反准则 VII(A)。

Comment: By using his volunteer position at CFA Institute to benefit himself and his clients, Ramirez is compromising the reputation and integrity of CFA Institute and thus is violating Standard VII(A).

补充解析 / **Supplementary explanation**

本案例“例 10：以志愿者身份损害 CFA 协会诚信”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

志愿职位同样可能接触保密资料、资金或影响力。无偿服务不会免除诚信义务，职位获得的信息不能被挪用于个人利益或传播给无权获知者。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-013

例 11：以志愿者身份损害 CFA 协会诚信
Example 11: Compromising CFA Institute Integrity as a Volunteer

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 242-243

题目与资料 / **Question and data**

例 11：以志愿者身份损害 CFA 协会诚信 Example 11: Compromising CFA Institute Integrity as a Volunteer

Warrenski 是 CFA 协会 GIPS 标准技术委员会成员，该委员会负责技术监督，并指导 GIPS® 标准的发展。

Warrenski is a member of the CFA Institute GIPS Standards Technical Committee, which provides technical oversight and guides development of the GIPS® standards.

作为委员会成员，她能够提前知悉有关 GIPS 标准的保密信息，包括委员会正在考虑的任何新增或修订标准。

As a member of the committee, she has advance knowledge of confidential information regarding the GIPS standards, including any new or revised standards the committee is considering.

她告诉客户，自己的委员会成员身份将使她能够更好地帮助他们掌握 GIPS 标准的变化，并协助其遵守这些变化。

She tells her clients that her committee membership will allow her to better assist them in keeping up with changes to the GIPS standards and facilitating their compliance with the changes.

官方答案与解析 / **Official answer and explanation**

评析：Warrenski 利用与 GIPS 标准技术委员会的关联关系，向客户及潜在客户推介公司的服务。

Comment: Warrenski used her association with the GIPS Standards Technical Committee to promote her firm's services to clients and potential clients.

Warrenski 声称其在 CFA 协会的志愿者职位带来相对于竞争公司的战略业务优势，并向客户暗示会利用保密信息促进其利益，损害了 CFA 协会的声誉与诚信，因此违反准则 VII(A)。

In stating that her volunteer position at CFA Institute provides a strategic business advantage over competing firms and implying to clients that she would use confidential information to further their interests, Warrenski compromised the reputation and integrity of CFA Institute and thus violated Standard VII(A).

她可以如实说明自己参与委员会，但不能暗示这种参与会为客户带来任何特殊优势。

She may factually state her involvement with the committee but cannot infer any special advantage to her clients from such participation.

补充解析 / **Supplementary explanation**

本案例“例 11：以志愿者身份损害 CFA 协会诚信”应放在准则 VII(A) 的具体要求下判断。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

志愿职位同样可能接触保密资料、资金或影响力。无偿服务不会免除诚信义务，职位获得的信息不能被挪用于个人利益或传播给无权获知者。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M09-CA-014

例 1：连续应考并通过考试
Example 1: Passing Exams in Consecutive Attempts

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 246

题目与资料 / **Question and data**

例 1：连续应考并通过考试 Example 1: Passing Exams in Consecutive Attempts

Zonder 为自己的公司 AZ Investment Advisers 撰写并发布广告，声称公司所有主要负责人均为 CFA 持证人，而且三个级别考试均在首次应考时通过。

Zonder drafts and publishes an advertisement for her firm, AZ Investment Advisers, which states that all the firm's principals are CFA charterholders and all passed the three examinations on their first attempt.

广告醒目地将这一事实与 AZ 旗下共同基金取得优异业绩的说法联系起来。

The advertisement prominently links this fact to the notion that AZ's mutual funds have achieved superior performance.

官方答案与解析 / **Official answer and explanation**

评析：只要属实，Zonder 可以说明 AZ 所有主要负责人均首次通过三个级别考试，但不得将这一事实与业绩联系起来，也不得暗示其能力更高。

Comment: Zonder may state that all AZ principals passed the three examinations on the first try as long as this statement is true, but it must not be linked to performance or imply superior ability.

暗示（1）CFA 持证人能够取得更好的投资结果，或（2）首次应考即通过的人可能比未能如此的人更成功，均违反准则 VII(B)。

Implying that (1) CFA charterholders achieve better investment results and (2) those who pass the exams on the first try may be more successful than those who do not violates Standard VII(B).

补充解析 / **Supplementary explanation**

本案例“例 1：连续应考并通过考试”应放在准则 VII(B) 的具体要求下判断。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / **Reference to CFA**

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

V10-M09-CA-015

例 2：使用 CFA 称号的权利
Example 2: Right to Use CFA Designation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 246

题目与资料 / Question and data

例 2：使用 CFA 称号的权利 Example 2: Right to Use CFA Designation

获得 CFA 特许资格五年后，Vasseur 辞去投资分析师职位，并在随后两年到海外旅行。

Five years after receiving his CFA charter, Vasseur resigns his position as an investment analyst and spends the next two years traveling abroad.

由于未积极从事投资行业，他没有向 CFA 协会提交填妥的《专业行为声明》，也没有缴纳 CFA 协会会费。

Because he is not actively engaged in the investment profession, he does not file a completed Professional Conduct Statement with CFA Institute and does not pay his CFA Institute membership dues.

因此，他的 CFA 协会会员资格失效。旅行结束后，Vasseur 成为自雇分析师，以独立承包人的身份承接工作。

As a result, his CFA Institute membership has lapsed. At the conclusion of his travels, Vasseur becomes a self-employed analyst accepting assignments as an independent contractor.

在未恢复 CFA 协会会员资格的情况下，他印制了名片，并在姓名后标注“CFA”。

Without reinstating his CFA Institute membership, he prints business cards that display “CFA” after his name.

官方答案与解析 / Official answer and explanation

评析：Vasseur 已不再是具有 CFA 称号使用权的 CFA 协会会员，却虚假表述自己的持证人身份，违反了准则 VII(B)。

Comment: Vasseur violated Standard VII(B) by misrepresenting his status as a charterholder because he is no longer a CFA Institute member with the right to use the CFA designation.

因此，他已不能声称或暗示自己是 CFA 持证人。

Therefore, he no longer is able to state or imply that he is a CFA charterholder.

如果希望恢复会员资格，他需要完成适当程序，并满足 CFA 协会规定的恢复资格要求。

If he wants to reinstate his membership, he needs to complete the appropriate process and meet the requirements for reinstatement established by CFA Institute.

补充解析 / Supplementary explanation

本案例“例 2：使用 CFA 称号的权利”应放在准则 VII(B) 的具体要求下判断。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

> 相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / Reference to CFA

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

V10-M09-CA-016

例 3：“退休”CFA 协会会员身份
Example 3: “Retired” CFA Institute Membership Status

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 246

> 题目与资料 / **Question and data**

例 3：“退休”CFA 协会会员身份 Example 3: “Retired” CFA Institute Membership Status

经过 25 年的职业生涯，Simpson 从公司退休。由于不再积极从事投资行业，他没有向 CFA 协会提交填妥的《专业行为声明》，也没有缴纳 CFA 协会会费。

After a 25-year career, Simpson retires from his firm. Because he is not actively engaged in the investment profession, he does not file a completed Professional Conduct Statement with CFA Institute and does not pay his CFA Institute membership dues.

Simpson 设计了一张不带公司标志的普通名片，向朋友提供新的联系方式，并继续在姓名后标注“CFA”。

Simpson designs a plain business card (without a corporate logo) to hand out to friends with his new contact details, and he continues to put “CFA” after his name.

> 官方答案与解析 / **Official answer and explanation**

评析：Simpson 虚假表述自己的持证人身份，违反了准则 VII(B)。

Comment: By misrepresenting his status as a charterholder, Simpson violated Standard VII(B).

由于未满足 CFA 协会规定的会员要求，他的会员资格已失效，也已失去 CFA 称号的使用权。

Because he failed to meet the requirements for membership established by CFA Institute, his membership lapsed and he has given up the right to use the CFA designation.

不过，CFA 协会设有程序，可以将会员及持证人重新归类为“退休”身份，并降低年度会费。

CFA Institute has procedures, however, for reclassifying a member and charterholder as “retired” and reducing the annual dues.

如果希望取得退休身份，他需要完成适当程序，并满足 CFA 协会规定的退休身份要求。

If he wants to obtain retired status, he needs to complete the appropriate process and meet the requirements for retired status established by CFA Institute.

补充解析 / **Supplementary explanation**

本案例“例 3：“退休”CFA 协会会员身份”应放在准则 VII(B) 的具体要求下判断。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / Reference to CFA

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

V10-M09-CA-017

例 4：如实陈述有关 CFA 称号的信息
Example 4: Stating Facts about the CFA Designation

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 247

题目与资料 / **Question and data**

例 4：如实陈述有关 CFA 称号的信息 Example 4: Stating Facts about the CFA Designation

Reese 自 2000 年起一直是 CFA 持证人。在与一位考虑报名成为 CFA 考生的朋友交谈时，她说自己在 CFA 备考期间学到了很多知识，而且许多公司要求员工成为 CFA 持证人。

Reese has been a CFA charterholder since 2000. In a conversation with a friend who is considering enrolling to be a candidate for the CFA designation, she states that she learned a great deal as a CFA candidate and that many firms require their employees to be CFA charterholders.

她会向任何打算在投资管理领域发展的人推荐 CFA 项目。

She would recommend the CFA Program to anyone pursuing a career in investment management.

官方答案与解析 / **Official answer and explanation**

评析：Reese 的评论符合准则 VII(B)。她的陈述涉及事实：取得 CFA 称号增加了她的知识，而且许多公司确实要求投资专业人员拥有 CFA 称号。

Comment: Reese's comments comply with Standard VII(B). Her statements refer to facts: Earning her CFA designation enhanced her knowledge, and many firms require the CFA designation for their investment professionals.

补充解析 / **Supplementary explanation**

本案例"例 4：如实陈述有关 CFA 称号的信息"应放在准则 VII(B) 的具体要求下判断。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / Reference to CFA

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

V10-M09-CA-018

例 5：使用虚构姓名
Example 5: Use of Fictitious Name

正文案例 / Case · 原版 PDF 页码 / Source PDF pages: 247

题目与资料 / **Question and data**

例 5：使用虚构姓名 Example 5: Use of Fictitious Name

Glass 是 CityCenter Hedge Fund 的首席量化分析师。

Glass is the lead quantitative analyst at CityCenter Hedge Fund.

Glass 负责开发、维护及改进该基金用于管理投资者资产的专有模型。

Glass is responsible for the development, maintenance, and enhancement of the proprietary models the fund uses to manage its investors' assets.

Glass 想对某投资者博客上的一篇文章发表评论。

Glass wants to comment on an article posted on an investor blog.

评论将包含与其工作有关、且他认为对投资者有帮助的信息。

His comment will contain information related to his work that he believes will be helpful to investors.

但他不想透露真实身份，因此以“Expert, CFA”署名发表评论。

However, he does not want to reveal his identity, so he publishes the comment with the signature line, “Expert, CFA.”

官方答案与解析 / **Official answer and explanation**

评析：一边使用虚构姓名或化名隐藏真实身份，一边声称自己是持证人，属于虚假陈述和不当使用该称号。

Comment: Using a fictitious name or pseudonym to hide one’s true identity while still claiming to be a charterholder is a misrepresentation and an improper use of the designation.

Glass 使用“Expert, CFA”这一署名，违反了准则 VII(B)。

By using “Expert, CFA,” Glass violated Standard VII(B).

补充解析 / **Supplementary explanation**

本案例“例 5：使用虚构姓名”应放在准则 VII(B) 的具体要求下判断。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / Reference to CFA

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

V10-M09-PR-001

课后习题 1
Practice Problem 1

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 248-249

题目与资料 / **Question and data**

1. Albert 和 Tye 最近创办了自己的投资咨询公司，并已报名参加 CFA 三级考试。

1. Albert and Tye, who recently started their own investment advisory business, have registered to take the Level III CFA exam.

Albert 的名片写着："Judy Albert，CFA 二级。"

Albert's business card reads, "Judy Albert, CFA Level II."

Tye 没有在名片上写任何有关 CFA 称号的信息，但他为公司设计的宣传资料介绍了 CFA 的要求，并说明 Tye 正在参与 CFA 项目，且已完成一级和二级。

Tye has not put anything about the CFA designation on his business card, but promotional material that he designed for the business describes the CFA requirements and indicates that Tye participates in the CFA Program and has completed Levels I and II.

根据准则：

According to the Standards:

A. Albert 违反了准则，但 Tye 没有。

A. Albert has violated the Standards, but Tye has not.

B. Tye 违反了准则，但 Albert 没有。

B. Tye has violated the Standards, but Albert has not.

C. Albert 和 Tye 都违反了准则。

C. both Albert and Tye have violated the Standards.

官方答案与解析 / **Official answer and explanation**

1. 正确答案是 A。本题涉及准则 VII(B)"提及 CFA 协会、CFA 称号及 CFA 项目"。

1. The correct answer is A. Standard VII(B) Reference to CFA Institute, the CFA Designation, and the CFA Program is the subject of this question.

Albert 名片上的表述暗示存在"CFA 二级"这一资格称号；而 Tye 仅在宣传资料中说明自己正在参与 CFA 项目，并已完成一级和二级。

The reference on Albert's business card implies that there is a "CFA Level II" designation; Tye merely indicates in promotional material that he is participating in the CFA Program and has completed Levels I and II.

考生不得暗示，通过某个级别的 CFA 考试后，就取得了某种部分资格。

Candidates may not imply that there is some sort of partial designation earned after passing a level of the CFA exam.

因此，Albert 违反了准则 VII(B)。不过，考生可以说明自己正在参与 CFA 项目，也可以列明已经完成的级别。

Therefore, Albert has violated Standard VII(B). Candidates may communicate that they are participating in the CFA Program, however, and may state the levels that they have completed.

因此，Tye 没有违反准则 VII(B)。参见准则 VII(B)：提及 CFA 协会、CFA 称号及 CFA 项目。

Therefore, Tye has not violated Standard VII(B). See Standard VII(B): Reference to CFA Institute, the CFA Designation, and the CFA Program

补充解析 / **Supplementary explanation**

本题的核心判断依据是准则 VII(B)（CFA称号、资格与项目的引用）。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / Reference to CFA

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

V10-M09-PR-002

课后习题 2
Practice Problem 2

章末练习 / Practice problem · 原版 PDF 页码 / Source PDF pages: 248-249

题目与资料 / **Question and data**

2. Park 参加 CFA 二级考试后感到非常沮丧。

2. Park is very frustrated after taking the Level II CFA exam.

备考期间，为补充官方提供的教材，她订购并使用了第三方机构的学习资料。

While she was studying for the exam, to supplement the curriculum provided, she ordered and used study material from a third-party provider.

Park 认为，这些补充资料将她的注意力引向了考试未涉及的某些主题，却忽略了其他领域。

Park believes the additional material focused her attention on specific topic areas that were not tested while ignoring other areas.

她在该机构的讨论区发布了以下内容："我对你们公司的 CFA 项目二级资料非常不满意。

She posts the following statement on the provider's discussion board: "I am very dissatisfied with your firm's CFA Program Level II material.

我觉得考试极其困难，使用你们的产品后，我对某些具体题目仍毫无准备。

I found the exam extremely difficult and myself unprepared for specific questions after using your product.

考试中有多道涉及存货和税务分析的题目，你们的服务怎么能在这些方面只提供如此有限的教学资源？

How could your service provide such limited instructional resources on the analysis of inventories and taxes when the exam had multiple questions about them?

我不会向其他考生推荐你们的产品。”

I will not recommend your products to other candidates.”

以下哪项陈述正确？

Which of the following statements is true?

A. Park 购买第三方复习资料，违反了《道德准则与专业行为准则》。

A. Park violated the Code and Standards by purchasing third-party review material.

B. Park 发表对考试难度的看法，违反了《道德准则与专业行为准则》。

B. Park violated the Code and Standards by providing her opinion on the difficulty of the exam.

C. Park 提供了有关考试所测主题的具体信息，违反了《道德准则与专业行为准则》。

C. Park violated the Code and Standards by providing specific information on topics tested on the exam.

官方答案与解析 / **Official answer and explanation**

2. 选项 C 正确。准则 VII(A)“参与 CFA 协会项目时的行为”禁止向考生或公众提供被视为 CFA 项目保密内容的信息。

2. Answer C is correct. Standard VII(A) Conduct as Participants in CFA Institute Programs prohibits providing information to candidates or the public that is considered confidential to the CFA Program.

Park 透露考试中出现了存货分析及税务分析相关题目，违反了本准则。

In revealing that questions related to the analysis of inventories and analysis of taxes were on the exam, Park has violated this standard.

选项 B 错误，因为该准则的指引明确承认，会员与考生可以对 CFA 项目发表意见。

Answer B is incorrect because the guidance for the standard explicitly acknowledges that members and candidates are allowed to offer their opinions about the CFA Program.

选项 A 错误，因为并未禁止考生使用外部资源。

Answer A is incorrect because candidates are not prohibited from using outside resources.

参见准则 VII(A)：参与 CFA 协会项目时的行为。

See Standard VII(A): Conduct as Participants in CFA Institute Programs

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VII(A)（参与CFA项目时的行为）。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

> 相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

LM 10 · 《道德准则与专业行为准则》的应用：一级
Application of the Code and Standards: Level I

37 条目 · 原题与解析逐条对应 / Paired source questions and explanations

V10-M10-KN-001

Mandracken案例
Mandracken

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 252-253

题目与资料 / **Question and data**

Mandracken案例 Mandracken

SBS Bank（SBS）为各类客户提供托管银行服务。

SBS Bank (SBS) serves as a custody bank for a wide range of clients.

SBS向客户提供多种服务，包括托管、清算、支付、结算和记录保存。

SBS offers a variety of services to its clients, including custody, clearing, payment, settlement, and record keeping.

SBS依据客户资产规模收取这些服务的费用。

SBS charges its clients an asset-based fee for these services.

根据银行客户协议，托管客户同意偿还托管人为其支付项目所发生的实际支出。

Pursuant to the bank's client agreement, custody clients agree to reimburse the bank for out-of-pocket expenses for items paid by the custodian on their behalf.

这些费用大部分来自通过环球银行金融电信协会（SWIFT）发送的报文。SWIFT是银行及其他金融机构使用的安全报文网络。

The majority of these expenses are for messages sent via the Society for Worldwide Interbank Financial Telecommunication (SWIFT), a secure messaging network used by banks and other financial institutions.

〔1〕案例改编自CFA协会《实践中的道德：投资管理道德案例集》（2019年）。www.cfainstitute.org/-/media/documents/ethics-in-practice/ethics-in-practice-casebook-2nd-edition-web.pdf。

1 Based on cases from CFA Institute, "Ethics in Practice: Ethics in Investment Management Casebook" (2019). www.cfainstitute.org/-/media/documents/ethics-in-practice/ethics-in-practice-casebook-2nd-edition-web.pdf.

虽然SBS按既定费率向托管客户收取SWIFT报文费用，但该费率高于提供此项服务的实际成本。

Although SBS charges custody clients an established rate for SWIFT messages, the rate is greater than the actual cost of providing this service.

负责客户服务的SBS副总裁Mandracken（CFA）发现了这一差异，并向主管提出。

Mandracken, CFA, a vice president at SBS who oversees client service responsibilities, recognizes this discrepancy and brings it to the attention of his supervisor.

Mandracken在电子邮件中写道："虽然客户收费表已披露收取SWIFT费用，但费用一直包含高于实际成本的加价，因此向客户收取的并非真正的代垫费用，因为我们加了一层利润。"

In an email, Mandracken states that "although disclosure of charging for SWIFT fees is noted in the clients' fee schedules, the fees have always included an increase over actual cost, so the charge to clients is not a true pass-through because we add a margin."

Mandracken的主管要求他降低新客户的SWIFT费率，并在现有客户续约时重新审视其费率。

Mandracken's supervisor instructs him to reduce the SWIFT fee rate for new clients and to revisit the rate for existing clients when their contracts are renewed.

1. 为履行CFA协会《道德准则与专业行为准则》规定的义务，Mandracken应当：

1. To meet his obligations under the CFA Institute Code and Standards, Mandracken should

A. 按照主管指示实施纠正程序。

A. implement the corrective procedures as directed by his supervisor.

B. 按照主管指示实施纠正程序，但向银行董事会报告自己的异议。

B. implement the corrective procedures as directed by his supervisor but report his objections to the bank's board of directors.

C. 拒绝参与任何使用该收费表的客户往来，直至银行修订SWIFT费率，使之反映服务的实际成本。

C. refuse to participate in any client interactions using the fee schedule until the bank revises the SWIFT rate to reflect the actual cost of the service.

官方答案与解析 / **Official answer and explanation**

C正确。本案例涉及在履行专业职责时，如何妥善处理他人的不当行为。

C is correct. This case involves how to appropriately address the misconduct of others in carrying out your professional responsibilities.

准则I(A)"了解法律"禁止CFA协会会员与考生明知而参与或协助违法或违背道德的行为，并要求他们与此类活动脱离关系。

Standard I(A) Knowledge of the Law prohibits CFA Institute members and candidates from knowingly participating or assisting in legal or ethical violations and requires them to dissociate from any such activity.

SBS向托管客户虚假陈述应偿付的费用，并向他们收取过高费用。

SBS is misrepresenting its reimbursable expenses to its custody clients and overcharging them.

虽然Mandracken已向主管提出问题，但主管的纠正措施不充分，因为这些措施：（1）只处理新客户的问题；（2）没有立即处理现有客户的问题；（3）没有处理对过去客户的虚假陈述及多收费问题。

Although Mandracken brings the issue to the attention of his supervisor, his supervisor's corrective measures are inadequate because they (1) address the issue only for new clients, (2) do not immediately address the issue for existing clients, and (3) do not address the misrepresentation and overcharges to past clients.

因此，Mandracken必须拒绝参与任何使用该收费表的客户往来，直至银行调整向托管客户收取的SWIFT费用，使之反映实际支出。

Mandracken must thus refuse to participate in any client interactions that use the fee schedule until the bank revises the SWIFT fees charged to custody clients to reflect actual out-of-pocket costs.

A错误。根据《准则》，Mandracken不能继续参与或与此类不当行为保持关联。

A is incorrect. Under the Code and Standards, Mandracken cannot continue to participate in or be associated with this misconduct.

会员不采取行动，并继续与涉及违法或不道德行为的人保持关联，可能被视为参与或协助该违法或不道德行为。

Inaction by a member and continuing association with those involved in illegal or unethical conduct might be viewed as participation or assistance in the illegal or unethical conduct.

B错误。Mandracken可能需要采取严厉措施，与该活动脱离关系并保护客户利益，例如离开银行，或向银行董事会或监管机构报告不当行为。

B is incorrect. Mandracken might need to take drastic measures to dissociate from the activity and to protect client interests, such as leaving the bank or reporting the misconduct to the bank's board of directors or regulators.

在采取此类行动之前，应考虑若干中间步骤，例如向主管或银行合规部门指出拟议纠正措施的不足；但Mandracken不能继续使用欺诈性的收费表与客户往来。

Several interim steps should be considered before this action, such as talking to his supervisor or the bank's compliance department about the inadequacy of the proposed corrective measures, but Mandracken cannot continue to interact with clients using a fraudulent fee schedule.

补充解析 / **Supplementary explanation**

正确选项为 **C**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 I(A)（知法守法）。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / Knowledge of the Law

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M10-KN-002

Pellie案例
Pellie

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 254

题目与资料 / Question and data

Pellie案例 Pellie

Pellie（CFA）是Kwaume Investment Group（KIG）的首席执行官。KIG是一家投资顾问公司，也是Kwaume Bank的全资子公司。

Pellie, CFA, is CEO of Kwaume Investment Group (KIG), an investment adviser that is a wholly owned subsidiary of Kwaume Bank.

一名Pellie及银行部分董事私下认识的长期银行客户，最近在KIG开立了投资账户，声明其投资目标是赚取收入。

A longtime bank customer that Pellie and some of the bank's board members know personally recently opened an investment account at KIG with a stated investment objective of earning income.

随后一年中，该客户进行了少量投资，但账户活动主要是数百笔银行交易，存入总额达9,000万美元，提取总额达8,400万美元。

The client made a few investments over the course of the next year, but most of the activity in the account involved several hundred bank transactions that totaled $90 million in deposits and $84 million in withdrawals.

交易包括与位于银行保密避风港，以及政府认定存在洗钱风险国家的个人和实体之间进行电子转账。

The transactions included electronic transfers to and from individuals and entities located in bank secrecy havens and countries identified by the government as at risk for money-laundering activity.

Pellie知道，该客户从事的国际业务涉及腐败和贿赂风险较高的交易。

Pellie knew that the client was engaged in international business pursuits involving transactions with a higher risk potential for corruption and bribery.

鉴于客户与银行的长期关系，Pellie假定这些交易具有正当商业目的，并接受了"所提供服务的费用""咨询费"和"佣金"等含糊说明。

Given the client's longstanding relationship with the bank, Pellie assumes the transactions have a legitimate business purpose and accepts vague descriptions, such as "for services provided," "consulting fees," and "commissions."

当他收到每日反洗钱（AML）报告时，未经进一步查询便予以批准；按照法律规定，当交易触发潜在可疑活动警示时，必须出具此类报告。

When he receives the daily anti-money-laundering (AML) reports, which are required by law when transactions trigger red flags of potentially suspicious activity, he approves them without further inquiry.

1. Pellie的行为：

1. Pellie's actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 是适当的，因为Pellie在保护客户信息的保密性。

B. appropriate because Pellie is protecting the confidentiality of client information.

C. 是适当的，因为Pellie可以依赖该账户的清算机构报告账户中的可疑活动。

C. appropriate because Pellie can rely on the account's clearing firm to report suspicious activity for the account.

官方答案与解析 / **Official answer and explanation**

A正确。Pellie的行为违反了准则I(A)"了解法律"。该准则规定，CFA协会会员与考生"必须了解并遵守……管辖其专业活动的一切适用法律、规则和规章"。

A is correct. Pellie's actions violate Standard I(A) Knowledge of the Law, which states that CFA Institute members and candidates "must understand and comply with all applicable laws, rules, and regulations . . . governing their professional activities."

案例所述事实本应引起对客户账户合法性的疑问。

The facts presented should have raised questions regarding the legitimacy of the client's account.

大量存取款与极少的投资交易同时出现，与声明以赚取收入为目标的投资账户不一致。

The high volume of deposits and withdrawals combined with the low number of investment transactions is inconsistent with an investment account having a stated objective of earning income.

账户交易看起来具有较高的洗钱风险，Pellie本应更严格地审查。

The transactions in the account appeared to be high-risk transactions for money-laundering activity and should have received a greater level of scrutiny by Pellie.

然而，Pellie并未依法调查，而是因客户与银行及其董事的长期关系而未进一步查询。

But rather than investigate as required by law, Pellie did not inquire further because of the client's longstanding relationship with the bank and its board members.

Pellie未遵守法律规定的反洗钱要求，违反了准则I(A)。

Pellie's failure to comply with AML requirements imposed by law violates Standard I(A).

B错误。对客户的忠诚义务及保护客户信息保密性的义务，不能成为允许客户违法，或以其他方式损害全球资本市场诚信或正常运作能力的理由。

B is incorrect. The duty of loyalty to clients and the preservation of confidentiality of client information cannot be used as justification to allow clients to violate the law or otherwise damage the integrity or viability of global capital markets.

C错误。Pellie不能依赖清算机构履行KIG审查交易是否涉及可疑活动的义务，因为这是他本人的职责。

C is incorrect. Pellie cannot rely on the clearing firm to meet KIG's obligation to review the transactions for suspicious activity because that is his responsibility.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(A)（知法守法）。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / **Knowledge of the Law**

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M10-KN-003

Mwangi案例
Mwangi

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 255

题目与资料 / **Question and data**

Mwangi案例 Mwangi

Mwangi（CFA）在一家销售保险产品的公司工作。

Mwangi, CFA, works for a firm that sells insurance products.

Mwangi的三名客户购买了一类产品（A类），但随后改变主意，要求转换为另一种价格较低的产品（B类）。

Three of Mwangi's clients purchase one type of product (Class A) but later change their minds and ask to switch to another, lower-priced product (Class B).

为完成该交易，法律要求Mwangi让客户签署B类产品的新买卖文件。

For Mwangi to complete the transaction, the law requires that she have her clients sign new sale and purchase documents for the Class B product.

由于客户提出要求时并非所有文件都已准备好，Mwangi建议客户等整套文件备妥后再签署。

Given that not all the documents are ready for signing at the time of the clients' request, Mwangi advises her clients to wait to sign until the complete set of documents has been prepared.

整套文件准备好后，Mwangi尝试联系客户签署，但未能成功。

When the full set of documents is ready, Mwangi tries unsuccessfully to reach her clients for their signatures.

由于缺少签名，Mwangi的经理威胁取消转换交易；考虑到客户购买了其他投资，这将使客户账户出现透支。

Because of the missing signatures, Mwangi's manager threatens to cancel the exchange, which, because of other investment purchases, would place the clients' accounts into an overdraft position.

根据公司政策，账户资金缺口持续两周后，将通过卖出账户资产弥补。

Under the firm's policies, account shortfalls are covered by selling account assets once the shortfall has been outstanding for two weeks.

为避免这种情况，Mwangi代客户签署了所需文件。

To prevent this from happening, Mwangi signs the necessary documents on behalf of her clients.

1. Mwangi的行为：

1. Mwangi's actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 可以接受，因为客户已同意进行转换。

B. acceptable because her clients had already given their permission for the exchange to be made.

C. 如果客户明确允许Mwangi代为签署文件，则可以接受。

C. acceptable if the clients gave Mwangi explicit permission to sign the documents on their behalf.

> 官方答案与解析 / **Official answer and explanation**

A正确。本案例涉及准则I(A)"了解法律"，该准则要求CFA协会会员与考生"遵守……管辖其专业活动的一切适用法律、规则和规章"。

A is correct. This case involves Standard I(A) Knowledge of the Law, which requires CFA Institute members and candidates to "comply with all applicable laws, rules, and regulations . . . governing their professional activities."

为完成从A类产品到B类产品的转换，法律要求Mwangi的客户签署新的买卖文件，但客户并未签署。

To complete the exchange from the Class A to the Class B product, Mwangi's clients were legally required to sign the new sale and purchase documents, which did not happen.

Mwangi代客户签署文件，构成了伪造客户签名。

By signing the documents on behalf of the clients, Mwangi forged their signatures.

这种违法行为也构成对准则I(A)的违反。

This violation of the law constitutes a violation of Standard I(A).

B错误。客户以书面或口头方式对交易作出一般性批准，不足以满足法律对客户签名的要求。

B is incorrect. General approval, written or verbal, of the transaction by the clients is insufficient to meet the legal requirement for client signatures.

C错误。即使客户完全明白转换所需手续，并明确允许Mwangi代为签表，法律仍要求文件上必须有客户本人的真实签名。

C is incorrect. Even if the clients fully understand what is required to make the switch and explicitly give Mwangi permission to sign the forms on their behalf, the law requires that the genuine signatures of the clients be on the documents.

虽然法律的目的在于保护客户，而客户愿意放弃其权利，但Mwangi仍不得绕过法律要求。

Although the intent of the law is to protect the clients and the clients would be waiving their rights, Mwangi is still not permitted to circumvent the legal requirements.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(A)（知法守法）。

规则如何作用于本题：先比较适用法律、监管要求与CFA准则，遵守其中更严格的要求。发现违法或违反准则的行为，不能继续知情参与或协助；内部汇报以后仍需判断是否真正停止了自己的关联。

推理顺序：依次确认适用规则、识别具体违规、向主管或合规部门寻求纠正，再采取足够措施使自己与违规活动脱离。是否必须对外举报取决于适用法律和具体情境。

为什么容易选错：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

相关知识点 / **Related concepts**

Standard I(A) — 知法守法 / Knowledge of the Law

相关边界：当地法律没有禁止，不等于CFA准则允许；向主管反映一次，也不等于可以继续执行明知不当的指令。外部举报通常不是准则在所有情境下自动要求的步骤。

V10-M10-KN-004

Myers案例
Myers

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 256

题目与资料 / **Question and data**

Myers案例 Myers

Myers（CFA）是Corboba的合伙人。Corboba是一家规模为30亿美元、专注于环境、社会与治理投资的对冲基金。

Myers, CFA, is a partner at Corboba, a $3 billion hedge fund that focuses on environmental, social, and governance investments.

为支持即将举行的公职选举，Myers希望以个人身份向候选人DeFrietas捐赠1万美元。

To support upcoming public office elections, Myers wants to personally donate $10,000 to one of the candidates, DeFrietas.

作为热衷于气候议题的倡议者和负责任投资的积极支持者，Myers赞同DeFrietas支持减少空气污染、缓解气候变化影响的环境政策。

As a passionate climate advocate and an avid proponent of responsible investment, Myers supports DeFrietas's backing of environmental policies to reduce air pollution and mitigate the effects of climate change.

Myers认为，这项政治捐款也可能使Corboba受益，因为DeFrietas竞选的职位能够影响哪些对冲基金获得州退休金计划的投资。

Myers believes his political contribution might also be beneficial for Corboba because DeFrietas is running for a position that can influence which hedge funds receive investments from the state's pension plans.

1. Myers的最佳做法是：

1. Myers's best course of action is to

A. 不向DeFrietas捐款。

A. refrain from donating to DeFrietas.

B. 向DeFrietas捐款，因为他使用的是个人资金，而且金额相对于对冲基金规模而言微不足道。

B. donate to DeFrietas because he is using personal funds in an amount that is insignificant relative to the size of the hedge fund.

C. 向DeFrietas捐款，因为这将支持一名环境政策与他本人信念一致的候选人。

C. donate to DeFrietas because he will be supporting a candidate whose environmental policies align with his beliefs.

> 官方答案与解析 / **Official answer and explanation**

A正确。如果Myers向DeFrietas的竞选活动捐款，其行为可能违反准则I(B)"独立性与客观性"。该准则规定，CFA协会会员与考生"不得提供……任何可被合理预期会损害……他人独立性与客观性的礼物、利益、报酬或对价"。

A is correct. If Myers makes the donation to DeFrietas's campaign, his actions would potentially violate Standard I(B) Independence and Objectivity, which states that CFA Institute members and candidates "must not offer ... any gift, benefit, compensation, or consideration that reasonably could be expected to compromise . . . another's independence and objectivity."

虽然Myers有正当理由向DeFrietas捐款，但事实明确表明，他也认为捐款可能影响DeFrietas选择Corboba管理州退休金计划的资金。

Although Myers has a legitimate reason for donating to DeFrietas, the facts clearly indicate that he believes the donation might also influence DeFrietas to choose Corboba to manage money for the state's pension plans.

准则I(B)禁止CFA协会会员与考生通过向直接负责管理人聘用决策的个人的政治竞选活动捐款，来谋求政府发起的退休基金提供的利润丰厚的资金委托。

Standard I(B) prohibits CFA Institute members and candidates from attempting to gain lucrative allocations from government-sponsored pension funds by making donations to the political campaigns of individuals directly responsible for the manager hiring decisions.

B错误。如果捐款意在影响DeFrietas，那么资金的来源及金额均不能改变问题的性质。

B is incorrect. The source and the amount of the funds are irrelevant if the donation is meant to influence DeFrietas.

此外，1万美元对于该竞选活动可能是相当大的金额，因此对DeFrietas可能很重要。

In addition, the sum of $10,000 might be significant in the context of the campaign and thus important to DeFrietas.

关键在于，捐款是否可被合理认定为意图不当影响DeFrietas的独立性与客观性，并使Myers或Corboba直接受益。

The critical issue is whether the donation is reasonably designed to improperly affect DeFrietas's independence and objectivity and benefit Myers or Corboba directly.

判断时需要考虑多个因素，包括捐款金额、Myers的捐款意图，以及DeFrietas所任职位对聘用决定有多大影响力。

Many factors would go into this determination, including the size of the donation, Myers's intent in making the donation, and how influential DeFrietas's position would be in making the hiring decision.

案例事实表明，Myers捐款的原因之一，是希望影响州政府对投资管理业务的委托。

The facts state that one of the reasons for Myers's donation is to have influence over receiving investment management business from the state.

C错误。Myers向DeFrietas提供政治捐款，似乎同时具有正当和不当的动机。

C is incorrect. Myers seems to have both proper and improper motivations for making a political contribution to DeFrietas.

Myers支持DeFrietas保护环境的立场，并希望推动这些目标。

Myers supports DeFrietas's positions on protecting the environment and wants to further those goals.

准则I(B)并非旨在阻止投资专业人士通过为候选人提供资金或其他支持而参与政治过程。

Standard I(B) is not meant to prevent investment professionals from participating in the political process through financial or other support for candidates.

但是，Myers认识到，向DeFrietas提供资金支持可能使Corboba受益，因为这会赢得某位可能有权决定是否投资Corboba基金的人士的好感。

But Myers recognizes that financial support of DeFrietas could benefit Corboba by gaining favor with someone who might be in a position to determine whether to invest in Corboba's fund.

因此，Myers的行为可能被视为不当。最佳做法是不向DeFrietas的竞选活动捐款，以避免任何潜在冲突，并寻找其他方式支持环境保护政策。

Therefore, Myers's actions could be perceived as inappropriate, so the best course of action would be to avoid any potential conflict by not donating to DeFrietas's campaign and finding other ways to support environmental protection policies.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(B)（独立性与客观性）。

规则如何作用于本题：判断礼品、旅行、报酬或内部压力是否可能影响专业判断，或使合理观察者怀疑判断受到影响。研究意见必须以独立分析为基础，不能服从销售目标、投行业务或发行人的偏好。

推理顺序：看利益由谁提供、价值和频率如何、是否与未来表现挂钩，以及是否有合理业务目的。必要时拒收、由自己或雇主支付费用，并作恰当披露。

为什么容易选错：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

相关知识点 / **Related concepts**

Standard I(B) — 独立性与客观性 / Independence and Objectivity

相关边界：客户对过去服务表示感谢与外部供应商试图影响选择，风险不同；披露也并不能自动使明显损害独立性的安排变得可接受。

V10-M10-KN-005

Lee案例
Lee

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 257

题目与资料 / **Question and data**

Lee案例 Lee

Lee（CFA）是AKC的理财规划师。AKC按照规划师售出的AKC产品数量支付报酬。

Lee, CFA, is a financial planner for AKC. AKC compensates its planners based on the number of AKC products they sell.

Lee建议一对夫妇，将合计125,000美元的退休资金转入一只采用大盘股策略的AKC投资基金。

Lee advises a married couple to transfer their retirement funds totaling $125,000 into a single AKC investment fund that follows a large-cap equity strategy.

Lee向这对夫妇披露，关闭退休账户需要支付合计30,000美元的罚金，但声称AKC产品更高的投资回报会弥补这一损失。

Lee discloses to the couple that they will have to pay a penalty totaling $30,000 for closing their retirement accounts but claims they will make up the loss with better investment returns from the AKC product.

1. Lee的行为：

1. Lee's actions are

A. 如果AKC产品适合这对夫妇，则可以接受。

A. acceptable if the AKC product is suitable for the couple.

B. 违反CFA协会《道德准则与专业行为准则》，因为她承诺了特定回报率。

B. a violation of the CFA Institute Code and Standards because she is promising a specific rate of return.

C. 可以接受，因为她充分披露了关闭退休账户的不利后果。

C. acceptable because she fully discloses the negative consequences of closing their retirement accounts.

官方答案与解析 / **Official answer and explanation**

B正确。本案例涉及准则I(C)“虚假陈述”。该准则规定，CFA协会会员与考生不得明知而对投资分析、建议或行动作出任何虚假陈述。

B is correct. This case involves Standard I(C) Misrepresentation, which states that CFA Institute members and candidates must not knowingly make any misrepresentation related to investment analysis, recommendations, or actions.

该准则禁止会员与考生就价格具有波动性的投资作出承诺或保证特定回报率的声明。

This standard prohibits members and candidates from making any statements that promise or guarantee a specific rate of return on volatile investments.

股票类投资本身具有波动性，未来回报无法预测，因此Lee承诺未来回报可以弥补提取资金的罚金，违反了准则I(C)。

Because the equity-based investment is inherently volatile and the future return is unpredictable, Lee’s promises about future returns making up for the penalty of withdrawing the funds violates Standard I(C).

信任是投资专业的基础。投资专业人士作出虚假或误导性陈述，不仅会损害投资者，也会降低投资者对投资专业的信心，并威胁资本市场的诚信。

Trust is the foundation of the investment profession. Investment professionals who make false or misleading statements not only harm investors but also reduce the level of investor confidence in the investment profession and threaten the integrity of the capital markets.

A错误。即使AKC产品适合这对夫妇，它仍属于本身具有波动性的股票类投资。

A is incorrect. Even if the AKC product is suitable for the couple, it is an equity-based investment that is inherently volatile.

任何声称该投资会提供某一回报率，或未来价值会达到某个金额的声明，均构成虚假陈述。

Any statements that the investment will provide a certain rate of return or be worth a certain amount in the future is a misrepresentation.

本案例还引出了其他疑问：建议这对夫妇承受如此重大的退休储蓄损失，是否符合其最佳利益；以及Lee的建议受到雇主薪酬方案影响，是否损害了她的独立性与客观性。

This case also raises questions about whether advising the couple to take such a significant loss in their retirement savings would be in their best interest and whether Lee’s independence and objectivity are compromised because her recommendation is influenced by the compensation scheme of her employer.

C错误。虽然Lee充分披露了将夫妇资产转入AKC产品的不利后果，但此项披露不能消除她对未来预期回报作出不当且误导性陈述的问题。

C is incorrect. Although Lee fully discloses the negative consequences of transferring the couple’s assets to the AKC product, that disclosure does not mitigate her inappropriate and misleading statement about future expected returns.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(C)（禁止虚假陈述）。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

V10-M10-KN-006

Andersen案例
Andersen

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 258

题目与资料 / **Question and data**

Andersen案例 Andersen

Andersen（CFA）是一家资产管理公司的首席执行官。

Andersen, CFA, is the CEO of an asset management firm.

Andersen与公司的其他高级投资经理，当面向一家大型退休金计划提案，争取管理其投资。

Andersen and other senior investment managers at his firm make an in-person proposal to manage the investments of a large pension plan.

应退休金计划的要求，Andersen提供了将负责管理该账户的关键人员名单。

In response to a request from the pension plan, Andersen provides a list of the key personnel who would manage the account.

在等待评估结果期间，一名Andersen列明的关键人员离开了公司；此人也曾参与当面的提案展示。

While waiting for the outcome of the evaluation, one of the key personnel that Andersen identified and who was part of the team that made the in-person presentation leaves the firm.

1. Andersen应当：

1. Andersen should

A. 不采取任何行动，因为退休金计划聘用的是公司，而非某个个人。

A. do nothing because the pension plan is hiring the firm, not an individual.

B. 立即告知退休金计划，一名关键人员已离职。

B. immediately inform the pension plan that one of the key personnel has left the firm.

C. 聘请一名胜任的替代人员，然后再通知退休金计划这一变化。

C. hire a competent replacement for the person who left and then inform the pension plan of the change.

官方答案与解析 / **Official answer and explanation**

B正确。本案例涉及准则I(C)“虚假陈述”，该准则禁止会员与考生明知而对与专业活动有关的任何事项作出虚假陈述。

B is correct. This case relates to Standard I(C) Misrepresentation, which prohibits members and candidates from knowingly misrepresenting anything relating to their professional activities.

在向退休金计划提交投资管理业务提案后，一名员工离开了Andersen的团队。

After the proposal is submitted to the pension plan for its investment management business, a staff member leaves Andersen’s team.

Andersen此前已将该离职人员列为最初进行提案展示的团队中的关键成员。

Andersen has identified the person leaving as a key member of the team that made the initial presentation.

既然退休金计划要求提供将负责该账户的人员名单，这一信息显然对其是否聘用Andersen公司很重要。

Given the pension plan asked for a list of individuals who would be handling the account, this information is clearly important in their decision to hire Andersen’s firm.

隐瞒该人员离职的信息，将构成因遗漏信息而导致的虚假陈述。

Withholding the information about the person leaving would be a misrepresentation by omission.

A错误。Andersen显然对公司整体充满信心，也很可能以经验和才能相当、具备胜任能力的专业人士接替离职人员，使客户服务能够顺利衔接。

A is incorrect. Andersen obviously has confidence in the firm as a whole and will likely replace the person leaving with a competent professional with similar experience and talent so that the transition in service is seamless for clients.

但退休金计划既然主动索要相关信息，就表明它明确关注具体由哪些人员管理其资产。

The pension plan is clearly concerned about the specific personnel involved in managing its assets because it asked for that information.

如果离职者是初级员工、对投资决策过程影响有限的员工，或未被列为关键员工且未参与提案展示的人员，那么Andersen可能无需向退休金计划提供更新。

If this were a junior employee, a staff member who had limited effect on the investment decision-making process, or someone who was not listed as a key employee or who had not been part of the team making the presentation, then Andersen might not need to provide an update to the pension plan.

不过，根据本案所述情况，为避免虚假陈述，Andersen必须告知退休金计划这名关键人员已经离职。

However, given the information in the case, to avoid a misrepresentation, Andersen must tell the pension plan about the departure of the key staff member.

C错误。等到找到接替者才通知已经太迟，因为了解团队中有哪些管理人员，显然对退休金计划的聘用决定很重要。

C is incorrect. Waiting until a replacement is found is too late because knowing who the managers are on the team is clearly important to the pension plan's hiring decision.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(C)（禁止虚假陈述）。

规则如何作用于本题：虚假陈述既包括直接说假话，也包括遗漏重要限制、夸大能力、选择性展示数据及未经归属使用他人思想。判断重点是客户或读者会形成怎样的实质印象。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

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Brodeur案例
Brodeur

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题目与资料 / **Question and data**

Brodeur案例 Brodeur

Brodeur（CFA）是全球电动汽车制造商LeTour的首席执行官。

Brodeur, CFA, is CEO of LeTour, a global company that makes electric cars.

Brodeur与LeTour向公众及监管机构披露，公司将使用Brodeur的个人社交媒体账户，向LeTour投资者及投资公众发布信息。

Brodeur and LeTour disclose to the public and regulators that the company will use Brodeur's personal social media account to disseminate information to LeTour investors and the investing public.

媒体报道公司在汽车生产及向买家交付方面遇到困难后，Brodeur在社交媒体发布消息，称公司"正在考虑以每股420美元将LeTour私有化。资金已落实。"

After the media reports that the company is having difficulty producing cars and delivering them to buyers, Brodeur posts on his social media that the company is "considering taking LeTour private at $420 a share. Funding is secure."

此前，Brodeur曾与一家大型主权财富基金（SWF）会面，该基金表达了对投资公司并将其私有化的一般兴趣。

Previously, Brodeur had met with a large sovereign wealth fund (SWF) that expressed general interest in investing in the company and taking the company private.

但是，Brodeur与该主权财富基金并未达成任何协议，也未确定股票收购价格。

But Brodeur and the SWF had not reached any agreement or determined a share purchase price.

Brodeur也在与投资银行讨论，但尚未聘请任何顾问协助公司私有化。

Brodeur was also in discussions with investment banks but had not yet retained any advisers to assist with taking the company private.

消息发布后，LeTour股价在成交量显著放大的情况下上涨超过6%，并以每股380美元收盘，较前一日高出10%。

After the post, LeTour's stock price increased more than 6% on significantly increased volume and closed at $380 per share, 10% higher than on the previous day.

当被问及帖子中的具体股价时，Brodeur承认，他没有与任何潜在投资者讨论过定价，选择该价格只是开玩笑。

When asked about the specific stock price in the post, Brodeur admitted that he had not discussed pricing with any potential investor but chose the price as a joke.

1. Brodeur的行为：

1. Brodeur's actions are

A. 不适当，因为帖子对事实作出了虚假陈述。

A. inappropriate because the post was a misrepresentation of the facts.

B. 不适当，因为并非所有投资者都使用社交媒体，因此Brodeur选择性地披露了信息，使部分投资者处于不利地位。

B. inappropriate because not all investors use social media, so Brodeur is selectively disclosing information and putting some investors at a disadvantage.

C. 是适当的，因为帖子只说"正在考虑"将公司私有化，因此仅包含推测性且非重大的信息。

C. appropriate because his post said only that he was "considering" taking the company private and thus contained only speculative, nonmaterial information.

官方答案与解析 / **Official answer and explanation**

A正确。本案例涉及准则I(C)"虚假陈述"，该准则规定，CFA协会会员与考生不得明知而对专业活动或投资活动作出任何虚假陈述。

A is correct. This case relates to Standard I(C) Misrepresentation, which states that CFA Institute members and candidates must not knowingly make any misrepresentation relating to professional or investment activities.

Brodeur的帖子建立在假设之上，并且与事实不符。

Brodeur's post was based on assumptions and contrary to the facts.

其中，他：（1）未与主权财富基金达成任何协议；（2）从未讨论过420美元的股价；（3）把价格设成这一水平只是开玩笑；（4）未正式聘请任何法律或财务顾问协助公司私有化。

Among other things, he (1) had not reached any agreement with the SWF, (2) had never discussed a share price of $420, (3) had set the price as a joke, and (4) had not formally retained any legal or financial advisers to assist with taking the company private.

与阅读帖子的市场参与者不同，Brodeur知道，他所谓"已落实"的资金，仅基于一次一般性谈话；谈话涉及的是在交易结构尚不明确的情况下、金额未定的一项潜在投资。

Unlike market participants reading his post, Brodeur knew that his supposed "secure" funding was based on a general conversation regarding a potential investment of an unspecified amount in the context of an undefined transaction structure.

在私有化成为可能之前，还有诸多不确定性需要解决，因此Brodeur知道或本应知道自己的陈述是虚假且误导性的。

Because of the uncertainties that would need to be resolved before going private could be possible, Brodeur knew or should have known that his statements were false and misleading.

社交媒体的在线或互动特点，并不会免除发布信息时应公开坦诚的要求。

The online or interactive aspects of social media do not remove the need to be open and honest about the information being distributed.

B错误。在某些条件下，通过社交媒体向投资者发布信息，可以是适当且合乎道德的。

B is incorrect. Disseminating information to investors using social media might be appropriate and ethical under certain conditions.

用于公开信息的传播渠道，无须保证覆盖所有投资者，但其设计必须能够有效地向公众公开信息。

Distribution channels to make information public do not need to be guaranteed to reach all investors, but they must be designed to effectively make the information public.

只要所分享的信息能够送达所有客户，或可供投资公众获取，社交媒体平台就可以与新闻稿、电子邮件等传统沟通方式相提并论。

As long as the information shared reaches all clients or is available to the investing public, social media platforms would be comparable with other, traditional forms of communication, such as press releases or email communication.

但由于该信息具有误导性，Brodeur使用社交媒体发布它的行为并不适当。

But because the information was misleading, Brodeur's use of social media was not appropriate.

C错误。该帖子可被视为"重大"信息，而非推测性信息，因为：（1）发布者是公司的首席执行官；（2）内容具有重大且根本性的影响；（3）投资者希望在作出投资决定前获知这些信息。

C is incorrect. The post can be considered “material” information and not speculative because (1) the source of the post was the company’s CEO, (2) the subject matter was dramatic and elemental, and (3) investors would want to know the information before making an investment decision.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

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社交媒体也是专业沟通渠道。发布重要建议时应依照合理分发政策，避免只让某个小群体获得不公平优势；不同服务级别可存在，但应披露并确保其他客户的公平机会不受损害。

推理顺序：逐项核对承诺、历史数据、来源和适用范围；发现无意错误后及时更正并通知受影响者。引用外部研究、模型或文字时保留适当出处。

为什么容易选错：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

相关知识点 / **Related concepts**

Standard I(C) — 禁止虚假陈述 / Misrepresentation

相关边界：收益最终实现不代表当初的无条件保证合规；资料来自公开网站也不意味着可以不注明来源。雇主拥有的内部研究与外部作者研究的归属要求须区分。

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Hanse案例
Hanse

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题目与资料 / **Question and data**

Hanse案例 Hanse

Hanse（CFA）是一名受雇于全球性投资银行的投资组合经理。

Hanse, CFA, is a portfolio manager employed by a global investment bank.

她管理一只环境、社会与治理（ESG）投资基金。

She manages an environmental, social, and governance (ESG) investment fund.

闲暇时，Hanse参加“反抗灭绝”组织的公民抗命示威。该社会政治运动以非暴力抵抗方式，抗议气候失衡、生物多样性丧失及生态崩溃。

In her free time, Hanse participates in civil disobedience demonstrations organized by the Extinction Rebellion, a sociopolitical movement that uses nonviolent resistance to protest climate breakdown, biodiversity loss, and ecological collapse.

在金融区举行的数次示威中，Hanse因涉嫌非法集会、妨碍公共交通及扰乱公共秩序而被捕。

At several demonstrations held in the financial district, Hanse is arrested on charges of unlawful assembly, obstructing public transit, and disorderly conduct.

她最终被判犯有数项轻微刑事罪行。

She is ultimately convicted of several minor criminal offenses.

Hanse与银行签署了一份标准雇佣合同，允许银行解雇任何被判刑事罪名成立的员工。

Hanse has signed a standard employment contract with the bank that allows it to terminate any employee who is convicted of a criminal offense.

1. 根据CFA协会《道德准则与专业行为准则》，Hanse的行为：

1. Under the CFA Institute Code and Standards, Hanse's actions

A. 不违反《准则》。

A. do not violate the Code and Standards.

B. 违反《准则》，因为她违反了与银行签订的雇佣合同。

B. violate the Code and Standards because she has violated her employment contract with the bank.

C. 违反《准则》，因为她在金融区因不当行为被捕。

C. violate the Code and Standards because she is arrested for misconduct in the financial district.

> 官方答案与解析 / **Official answer and explanation**

A正确。本案例涉及什么行为构成专业上的不当行为。

A is correct. This case relates to what constitutes professional misconduct.

准则I(D)"不当行为"禁止CFA协会会员与考生从事"涉及不诚实、欺诈或欺骗的任何专业行为"，或实施"任何对其专业声誉、诚信或胜任能力产生负面影响的行为"。

Standard I(D) Misconduct prohibits CFA Institute members and candidates from engaging "in any professional conduct involving dishonesty, fraud, or deceit" or from committing "any act that reflects adversely on their professional reputation, integrity, or competence."

一般而言，准则I(D)并非旨在涵盖为支持个人信念而进行公民抗命所导致的违法行为，因为此类行为不会对会员的专业声誉、诚信或胜任能力产生负面影响。

Generally, Standard I(D) is not meant to cover legal transgressions resulting from acts of civil disobedience in support of personal beliefs, because such conduct does not reflect adversely on the member's professional reputation, integrity, or competence.

B错误。Hanse被捕通常不会自动构成对银行政策的违反。

B is incorrect. Hanse's arrest is not likely an automatic violation of bank policies.

虽然Hanse的雇佣合同允许银行因刑事行为将其解雇，但银行显然可以根据定罪的性质与情境，自行决定是否保留员工。

Although Hanse's employment contract gives the bank the option to fire her for criminal activity, the bank can apparently use discretion in retaining employees depending on the nature and circumstances of the conviction.

此外，并非每次违反雇主的雇佣合同都会自动违反《准则》；只有违规涉及《准则》所规范的行为时，才会构成对《准则》的违反。

Further, the Code and Standards are not automatically violated with every violation of an employer's employment contract unless the violations relate to conduct addressed in the Code and Standards.

C错误。Hanse在金融区被捕这一事实，与其专业活动的联系并不充分，不足以使其行为构成对《准则》的违反。

C is incorrect. The fact that Hanse is arrested in the financial district is not a sufficient link to her professional activities to make her actions a violation of the Code and Standards.

Hanse的公民抗命行为体现了其个人信念，通常不会被视为涉及欺诈、不诚实或欺骗的行为，也不会被视为对其专业声誉、诚信或胜任能力产生负面影响的行为。

The acts of civil disobedience by Hanse reflect her personal beliefs, which would generally not be considered an act involving fraud, dishonesty, or deceit or an act that reflects poorly on her professional reputation, integrity, or competence.

补充解析 / **Supplementary explanation**

正确选项为 **A**。本题含否定或例外要求，选项应按题干的反向条件判断。

本题的核心判断依据是准则 I(D)（不当行为）。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / Misconduct

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

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Mang案例
Mang

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题目与资料 / **Question and data**

Mang案例 Mang

Mang（CFA）是一家地区性银行的投资顾问，该银行为高净值个人管理多个收费的全权委托账户。

Mang, CFA, is an investment adviser for a regional bank that has a number of discretionary, fee-based accounts for high-net-worth individuals.

银行政策规定，如果顾问忘记向交易部门发送指令而未能完成交易，可以在漏单后的30天内进行交易错误更正。

The bank's policies permit trade error corrections up to 30 days following a failure to place a trade when an adviser forgets to send an order to the trading desk.

为纠正错误，顾问可以按现行市价买入或卖出证券，价格差额通过内部错误账户由顾问本人承担。

To rectify the error, the adviser is permitted to buy or sell a security at the current market price, with the price differential charged to the adviser personally through an internal error account.

Mang多次利用交易错误更正政策，使不满意账户表现的客户受益。

On many occasions, Mang uses the trade error correction policy to benefit clients who are unhappy with their account's performance.

Mang找出一只过去30天内价格上涨的证券。

Mang identifies a security whose price has increased in the past 30 days.

然后，他告诉交易部门，自己几天前错误地漏买了这只证券，当时的价格明显低于当前市价。

He then tells the trade desk he mistakenly failed to buy that particular security some days before, when the price was substantially lower than the current market price.

申请获批后，交易部门买入证券，并通过错误账户将价格差额计入Mang个人应承担的费用。

Once the request is approved, the trade desk purchases the security and charges the price differential to Mang personally through the error account.

交易后不久，Mang再发出卖出证券的指令，为客户实现净利润。

Shortly after that trade, Mang sends an order to sell the security and net a profit for the client.

随后，Mang告诉客户，他送给了他们一项"礼物"或一笔"无风险"交易。

Mang then tells the client that he has given them a "gift" or "no-risk" trade.

1. Mang的行为：

1. Mang's actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 是适当的，因为Mang是为了客户的利益行事。

B. are appropriate because Mang is acting for the benefit of the client.

C. 是适当的，因为银行没有因Mang的行为受损。

C. are appropriate because the bank is not harmed by Mang's actions.

官方答案与解析 / **Official answer and explanation**

A正确。Mang违反了准则I(D)“不当行为”，该准则禁止CFA协会会员与考生从事涉及不诚实、欺诈或欺骗的专业行为。

A is correct. Mang is violating Standard I(D) Misconduct, which prohibits CFA Institute members and candidates from engaging in professional conduct involving dishonesty, fraud, or deceit.

在实际上没有发生交易错误时，他通过误导、欺诈和欺骗的做法，滥用银行政策来提高客户账户的业绩。

He is engaging in a misleading, fraudulent, and deceptive practice and misusing the bank's policies to enhance the performance of his clients' accounts when no legitimate error was made.

他个人补偿客户，借此误导客户对其投资顾问能力，以及账户实际表现的认识。

He personally compensates clients as a means to mislead them about his ability as an investment adviser as well as the actual performance of their accounts.

B错误。虽然交易使客户受益，但Mang以欺诈和欺骗行为误导客户，构成专业上的不当行为。

B is incorrect. Although the trades benefit his clients, Mang is engaging in professional misconduct by misleading his clients with fraudulent and deceptive conduct.

C错误。即使这些做法没有给银行带来财务损失，也不会使Mang的行为变得不那么具有欺骗性、欺诈性或误导性。

C is incorrect. The fact that these practices did not cause financial losses for the bank does not make Mang's conduct any less deceptive, fraudulent, or misleading.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(D)（不当行为）。

规则如何作用于本题：禁止与职业诚信、声誉或胜任能力相冲突的欺诈、欺骗和其他不诚实行为。判断应联系职业责任与诚信影响，不是把所有私人不当、争议或违法一律当成准则违规。

推理顺序：识别行为中的故意欺骗、利益侵占或诚信损害，再评估其与专业能力或职业声誉的关系。事实是否发生在工作场所并不是唯一标准。

为什么容易选错：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

相关知识点 / **Related concepts**

Standard I(D) — 不当行为 / **Misconduct**

相关边界：个人破产、政治抗议或其他私人事件不能仅凭标签认定违规；但利用志愿职位或工作身份实施欺骗也不能以“不是投资业务”开脱。

V10-M10-KN-010

Mahajan案例
Mahajan

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 262

题目与资料 / Question and data

Mahajan案例 Mahajan

Mahajan（CFA）是一家大型全球投资公司的优秀研究分析师，是覆盖可再生能源行业的研究团队成员。

Mahajan, CFA, is a successful research analyst for a large, global investment firm, working as part of a research team covering the renewable energy sector.

为推进职业发展，Mahajan申请了新职位，并获一家专注于ESG因素与评级的精品投资研究公司聘用。

To further his career, Mahajan applies for a new position and is hired by a boutique investment research firm focusing on ESG factors and ratings.

在新职位中，Mahajan将负责监督一个由数名初级分析师组成的团队。

As part of the new position, Mahajan will be supervising a team of several junior analysts.

虽然他在过去的职位上曾与其他分析师合作，但此前从未承担监督职责。

Although he worked with other analysts at his prior positions, he has not previously had supervisory responsibility.

其团队的研究范围包括可再生能源行业，以及交通运输业和建筑业。

His team's remit includes the renewable energy sector, as well as transportation and construction.

为准备新工作，Mahajan报名参加CFA协会ESG投资证书课程，参加了数场聚焦建筑业环保实践的网络研讨会，广泛阅读电动交通发展的资料，并加入了一个面向ESG分析师的行业组织。

To prepare for his new job, Mahajan enrolls in the CFA Institute Certificate in ESG Investing program, attends several webinars focusing on environmentally friendly practices in the construction industry, engages in extensive outside reading on developments in electric transportation, and joins a trade organization for ESG-focused analysts.

1. 就履行遵守《准则》的责任而言，Mahajan的行动：

1. With regard to meeting his responsibilities to comply with the Code and Standards, Mahajan's actions

A. 足以履行《准则》规定的全部责任。

A. are sufficient to comply with all his responsibilities under the Code and Standards.

B. 未能符合《准则》的要求，因为他没有参加正式的持续教育课程。

B. fail to meet the requirements of the Code and Standards because he is not enrolled in a formal continuing education program.

C. 未能符合《准则》的要求，因为他尚未开展相关活动，以获得履行新监督职责所需的技能与知识。

C. fail to meet the requirements of the Code and Standards because he has not undertaken activities to obtain the skills and knowledge needed for fulfilling his new role as supervisor.

官方答案与解析 / **Official answer and explanation**

C正确。本案例涉及准则I(E)“胜任能力”，该准则要求会员与考生具备并持续保持履行其专业职责所需的胜任能力。

C is correct. This case relates to Standard I(E) Competence, which requires members and candidates to act with and maintain the competence necessary to fulfill their professional responsibilities.

Mahajan接受新职位后，专业职责发生了变化；除了以往职位所需能力外，新职位还要求具备其他技能、能力与知识。

Mahajan's professional responsibilities changed when he took the new position that requires competence in other skills, abilities, and knowledge beyond those needed for his previous position.

他将首次承担监督职责，同时覆盖的行业范围也扩大了。

He will have supervisory responsibility for the first time, and the industry sectors that he will be covering have expanded.

准则I(E)要求Mahajan扩展其胜任能力，使之涵盖新职位的全部职责。

Standard I(E) requires Mahajan to extend his competence to cover all responsibilities of his new role.

Mahajan通过教育和自学，努力培养能力，以承担日益扩大的研究与分析职责。

Through education and self-study, Mahajan endeavors to develop competence for his widening responsibility for research and analysis.

但是，他没有采取措施，获取履行对其他分析师的监督职责所需的技能与知识。

However, he does not take steps to obtain the skills and knowledge needed for fulfilling his supervisory responsibility over the other analysts.

为此，他本可以采取一些行动，例如参加管理方面的会议或职业发展课程、取得合规资格，以及接受公司内部关于监督职责的培训。

To do this, he could have taken such steps as attending conferences or taking professional development courses on management, earning compliance credentials, and undergoing internal training from his firm on supervisory responsibility.

A错误。虽然Mahajan专注于提升自己对新职位所覆盖新行业的胜任能力，但他未按准则I(E)的要求，采取措施获取履行对其他分析师的新监督职责所需的技能与知识。

A is incorrect. While he focuses on improving his competence on the new industries he will be covering as part of his new position, Mahajan does not take steps to obtain the skills and knowledge needed for fulfilling his new supervisory responsibility of the other analysts, as required by Standard I(E).

B错误。准则I(B)并不要求会员与考生必须参加正式的持续教育或职业发展计划，才能遵守准则I(E)，尽管这可以是培养并保持胜任能力的方法之一。〔译注：本句原文写作“I(B)”，上下文讨论的是“I(E)”。〕

B is incorrect. Standard I(B) does not require members and candidates to participate in formal continuing education or a professional development program to comply with Standard I(E), although doing so would be one method of developing and maintaining competence.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 I(E)（专业胜任能力）。

规则如何作用于本题：从事被承诺的专业活动需要具备并维持相应知识、技能与能力。能力要求随角色、产品与技术变化而变化；接受新任务前应确认自己能胜任。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：先列出当前职责需要的知识，再比较自身准备情况。不足时可培训、寻求有资质协助或限制服务范围，不能为留住客户而贸然使用不理解的产品。

为什么容易选错：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

相关知识点 / **Related concepts**

Standard I(E) — 专业胜任能力 / Competence

相关边界：投资亏损不自动意味着不胜任；应评估当时的知识准备和合理过程。没有所有领域的专长也不等于违规，关键是是否胜任自己提供的服务。

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Khatri案例
Khatri

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 263-264

题目与资料 / **Question and data**

Khatri案例 Khatri

CFA®课程考生Khatri与朋友们在当地板球队打球，其中包括他的姻亲兼律师Patel，以及软件开发公司ZeroPower（ZP）的老板Ahuja。

Khatri, a candidate in the CFA® Program, plays on a local cricket team with his friends, including Patel, his brother-in-law and an attorney, and Ahuja, owner of a software development company called ZeroPower (ZP).

Patel负责ZP的法律事务。Khatri、Patel及朋友圈中的许多其他人都投资了ZP。

Patel handles the legal work for ZP. Khatri, Patel, and many other friends in their circle have invested in ZP.

最近，一家大型全球信息技术公司GIT提出，以显著高于ZP当前股价的价格收购该公司。

Recently, a large global information technology company (GIT) made an offer to buy ZP at a substantial premium over the company's current share price.

Patel正在与GIT的律师合作，协助他们进行尽职调查。

Patel is working with lawyers from GIT to assist in their due diligence.

某个周末，正值谈判特别紧张的时期，Khatri、Patel和Ahuja一同参加板球比赛。

One weekend, during a particularly intense period of negotiations, Khatri, Patel, and Ahuja are playing in a cricket tournament.

比赛间隙，Khatri偶然听到Patel用手机与GIT的代表交谈。

Between matches, Khatri overhears Patel speaking with representatives of GIT on his cell phone.

虽然没有提到收购ZP，但Khatri听到Patel反复提及“GIT”这一名称。

Although mention of a ZP acquisition is not made, Khatri hears Patel repeatedly reference the name “GIT.”

周末期间，Khatri多次看到Patel和Ahuja凑在一起私下交谈，因而猜测对ZP的收购即将发生。

Khatri guesses that the acquisition of ZP is happening soon after seeing Patel and Ahuja huddled in private conversation several times over the course of the weekend.

星期一，Khatri致电经纪人，增持了5,000股ZP股票。

On Monday, Khatri calls his broker and increases his investment in ZP by 5,000 shares.

一周后，ZP宣布被GIT收购，股价上涨30%。

One week later, ZP announces its acquisition by GIT and its share price increases 30%.

1. Khatri的行为：

1. Khatri’s actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 可以接受，因为Khatri的投资基于他自己的推测。

B. acceptable because Khatri’s investment was based on his own speculation.

C. 可以接受，因为Khatri是在公共场所获得的信息。

C. acceptable because Khatri received the information in a public environment.

> 官方答案与解析 / **Official answer and explanation**

A正确。Khatri通过偶然听到Patel电话中的机密信息，以及观察到这些电话引起的Patel与Ahuja之间的互动，掌握了重大非公开信息。

A is correct. Khatri comes into possession of material nonpublic information by overhearing confidential information from Patel’s phone calls and witnessing Patel’s interactions with Ahuja that were prompted by those calls.

准则II(A)“重大非公开信息”禁止CFA协会会员与考生根据其掌握的重大非公开信息采取投资行动。

Standard II(A) Material Nonpublic Information prohibits CFA Institute members and candidates from taking investment action based on material nonpublic information in their possession.

Patel本应更加谨慎，确保通话内容不被他人听到，但他未能这样做，并不意味着Khatri可以利用偶然听到的重大非公开信息。

Patel should have been more careful to keep his phone conversations private, but his failure to do so does not allow Khatri to use material nonpublic information received from overhearing those conversations.

B错误。虽然并未明确提及收购ZP，且Khatri需要进行一定推断，但他知道或本应知道，这些信息具有保密性、非公开性及重大性。

B is incorrect. Although information about the acquisition of ZP was not explicitly stated and Khatri was required to make some degree of deduction, he knew or should have known that this information was confidential, nonpublic, and material.

他的行为不同于马赛克理论。在马赛克理论下，投资分析师通过将非重大的非公开信息与公开信息相结合进行分析，从而形成洞见。

His actions are different from mosaic theory, in which investment analysts combine nonmaterial and nonpublic information with public information in their analysis to derive insights.

C错误。虽然Patel的电话及其与Ahuja的互动发生在公共场所，但这并不意味着相关信息已公开。

C is incorrect. Although Patel's phone calls and interactions with Ahuja take place in a public environment, that does not mean the information is public.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

马赛克分析的合法性来自输入资料的性质，而不是最终结论是否重大。可以由公开与非重大非公开的小线索形成重要结论；如果某一输入本身已经是重大且非公开的信息，拼接其他资料也不能消除限制。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

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Kwame案例
Kwame

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 264-265

题目与资料 / **Question and data**

Kwame案例 Kwame

Kwame（CFA）是PH3D的首席财务官。PH3D是一家研究、开发及商业化女性健康药品的生物科技公司。

Kwame, CFA, is the chief financial officer of PH3D, a biotech firm that researches, develops, and commercializes pharmaceutical drugs for women's health.

PH3D就一款前景良好的新药，向政府监管机构提交了药品申请。

PH3D submits a drug application to the government regulator for a promising new drug.

由于药品出现了未具体说明的缺陷，监管机构推迟了两次与PH3D原定举行的会议。

The regulator postpones two scheduled meetings with PH3D when unspecified deficiencies with the drug arise.

会议延期的公告使公司股价下跌10%。

The public announcement of the postponements results in a 10% drop in the company's stock price.

当监管机构与PH3D终于举行会议时，PH3D提交了尚未公开的初步试验数据，数据显示该药品具有有利指标。

When the meeting between the regulator and PH3D finally takes place, PH3D presents unpublished preliminary test data with favorable indicators for the drug.

监管机构反应积极，并在进一步研究的条件下，给予PH3D临时监管批准。

The regulator reacts positively and gives PH3D provisional regulatory approval, contingent on further studies.

此后，部分跟踪PH3D的卖方研究分析师向Kwame询问会议情况。

Afterward, some of the sell-side research analysts covering PH3D ask Kwame about the meeting.

Kwame通过电子邮件回复，称他认为与监管机构的会议"非常积极且富有成效"，而且公司对监管机构的反应"感到惊喜"。

Kwame responds by email, indicating that he believes the meeting with the regulator was "very positive and productive" and that the company was "pleasantly surprised" by the regulator's reaction.

Kwame没有分享有利的初步试验数据。

Kwame does not share the favorable preliminary test data.

Kwame向分析师发送邮件后，公司股价上涨19%。

After Kwame's emails to the analysts, the company's stock price increases 19%.

1. Kwame的行为：

1. Kwame's actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 是适当的，因为他没有向分析师分享尚未公开的初步试验数据，而只是概括描述会议的总体气氛。

B. are appropriate because he does not share the unpublished preliminary test data with the analysts and restricts his comments to the general tenor of the meeting.

C. 是适当的，因为他只是回答跟踪公司情况的研究分析师所提的问题。

C. are appropriate because he responds to questions from research analysts covering the company.

官方答案与解析 / **Official answer and explanation**

A正确。本案例涉及选择性披露重大非公开信息。

A is correct. This case relates to selective disclosure of material nonpublic information.

准则II(A)"重大非公开信息"禁止CFA协会会员与考生促使他人根据重大非公开信息采取行动。

Standard II(A) Material Nonpublic Information prohibits CFA Institute members and candidates from causing others to act on material nonpublic information.

如果信息的披露会影响证券价格，或理性投资者希望在作出投资决定之前获知该信息，那么它就具有重大性。

Information is material if its disclosure would affect the price of a security or if reasonable investors would want to know the information before making an investment decision.

信息在向整个市场传播或供市场普遍获取之前，仍属于"非公开"信息；Kwame仅向询问PH3D与监管机构会议情况的部分卖方分析师作出回应，不能被视为公开发布信息。

Information is "nonpublic" until it has been disseminated or made available to the marketplace in general, and Kwame's response to select sell-side analysts inquiring about PH3D's meeting with the regulator would not be considered public dissemination of the information.

本案例中，新药的有利初步试验结果及监管机构的积极反应，既会影响证券价格，也是理性投资者希望获知的信息。

In this case, both the drug's positive preliminary test results and the regulator's positive reaction to the new drug is information that would have an impact on the price of the security in addition to information that reasonable investors would want to know.

B错误。虽然Kwame未向分析师分享试验结果，但他透露了与监管机构的会议"非常积极且富有成效"。

B is incorrect. Although Kwame does not share the test results with the analysts, he shares that the meeting with the regulator was "very positive and productive."

这也是理性投资者希望获知的信息。

This is information that reasonable investors would want to know.

C错误。Kwame只向经常跟踪PH3D的一小群分析师分享了信息，并未向一般投资公众发布。

C is incorrect. Kwame shares this information with a select group of analysts who regularly cover PH3D and not the general investing public.

Kwame只是回答问题这一事实，与判断无关。

The fact that Kwame is only responding to questions is irrelevant.

Kwame和PH3D应在向分析师披露之前，或至少同时，公开发布与监管机构会议有关的信息。

Kwame and PH3D should have issued a public announcement about the meeting with the regulator before or at the same time that information was disclosed to analysts.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 II(A)（重大非公开信息）。

规则如何作用于本题：重大信息是可能影响价格或合理投资者决策的信息；非公开意味着尚未向市场充分传播。持有重大非公开信息时，不得据此交易或促使他人交易。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把“非秘密”误当成“公开”；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：分别检验重大性和公开性，不能只看信息真假或来源人数。若信息来自内部人、选择性披露或专家网络，进一步核查是否涉及保密经营信息，并采取隔离或限制交易措施。

为什么容易选错：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

相关知识点 / **Related concepts**

Standard II(A) — 重大非公开信息 / Material Nonpublic Information

相关边界：付费取得、很多人知道或最终预测正确，都不能自动使信息公开。马赛克理论允许把公开信息与非重大非公开信息拼成结论，不允许使用重大非公开的核心事实。

V10-M10-KN-013

Abbha案例
Abbha

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 265-266

题目与资料 / **Question and data**

Abbha案例 Abbha

Abbha（CFA）是一名证券业务承包顾问，协助Superior Energy（SE）在Regional Security Exchange（RSX）上市。

Abbha, CFA, is a securities contractor working to assist Superior Energy (SE) with listing its shares on the Regional Security Exchange (RSX).

SE提交了一份招股说明书，拟以每股2美元的价格发行最多500万股，筹集1,000万美元。

SE files a prospectus for an offer of up to 5 million shares at $2 each to raise $10 million.

RSX目前适用的上市规则要求，申请在RSX上市的实体须满足“最低股东分散要求”：至少有300名股东，且各自持股价值达到最低标准。

The RSX current applicable listing rule requires that entities seeking admission to the RSX meet a “minimum spread requirement” of at least 300 shareholders with a minimum value holding to qualify for listing.

在上市申请中，SE的代表告知RSX，公司已满足至少300名股东的最低分散要求。

In their listing application, representatives of SE inform RSX that the minimum spread requirement of 300 shareholders has been met.

这些披露将Abbha安排的31名个人或公司列为股东，但他们实际上都未购买SE证券。

These disclosures include as shareholders 31 people or companies arranged by Abbha, though none are actual buyers of SE securities.

Abbha为这31名股东提供了虚假的姓名和地址。

Abbha provides false names and addresses for the 31 shareholders.

SE的股票发行筹集了超过350万美元，发行股份超过175万股。

The SE share offer raises more than $3.5 million, with more than 1.75 million shares issued.

SE获准列入RSX的正式上市名单，股票在交易所挂牌报价。

SE is admitted to the official list of the RSX, with its shares quoted on the exchange.

随着时间推移，SE股价稳步上涨，公司吸引了数百名投资者和股东，早期投资者获得了优异的投资回报。

Over time, the price of SE shares steadily increases, the company attracts hundreds of investors and shareholders, and early investors achieve an excellent investment return.

1. Abbha的行为：

1. Abbha’s actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 可以接受，因为SE后来证明是一家实力雄厚、业绩优秀的公司。

B. are acceptable because SE proved to be a strong company with excellent performance.

C. 可以接受，因为这种对RSX规则的技术性违反没有伤害任何投资者。

C. are acceptable because no investors were harmed by the technical violation of RSX rules.

官方答案与解析 / **Official answer and explanation**

A正确。Abbha通过虚增SE证券的初始股东人数，营造其股票将具备充足流动性的印象，并让新投资者放心购买，实施了以信息为手段的市场操纵。

A is correct. Abbha engaged in information-based manipulation by inflating the number of initial shareholders in SE securities to create the impression that its shares would have sufficient liquidity and to give new investors comfort in buying them.

准则II(B)"市场操纵"禁止CFA协会会员与考生从事人为夸大交易量、误导市场参与者的行为。

Standard II(B) Market Manipulation prohibits CFA Institute members and candidates from engaging in practices that artificially inflate trading volume to mislead market participants.

为规避监管要求并激发投资者兴趣，Abbha通过虚假陈述夸大了投资者对SE证券的初始兴趣，使公司在虚假前提下获得上市。

To circumvent regulatory requirements and drive investor interest, Abbha's misrepresentations overstated initial interest in SE securities, thereby creating false pretenses under which the company was listed.

B错误。SE最终成为真实且表现良好的投资，并不能减轻Abbha行为中的不道德、误导及欺骗性质。

B is incorrect. The fact that SE ultimately proved to be a bona fide and well-performing investment does not mitigate Abbha's unethical, misleading, and deceitful conduct.

C错误。RSX证券上市的最低股东分散要求，旨在证明投资者对公司的兴趣足以支持该公司上市。

C is incorrect. The purpose of the minimum spread requirement for RSX security listings is to demonstrate that investor interest in a company is sufficient to justify the company's listing.

最低股东分散要求可以确保公司上市时具有一定流动性，并防止那些无法吸引足够投资者兴趣、质量较低的申请人上市。

Th minimum spread requirement ensures some level of liquidity at the time a company is listed and prevents lower-quality applicants that are unable to attract sufficient investor interest from being listed.

伪造初始投资者人数，已超出对RSX规则的技术性违反，并且具有实质性后果。

Falsifying the number of initial investors goes beyond a technical violation of RSX rules and has substantial consequences.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 II(B)（市场操纵）。

规则如何作用于本题：操纵可通过虚假信息，也可通过交易制造虚假的价格、成交量或市场需求。关注是否意图误导市场，使其他参与者据虚假信号作出决定。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：把传播内容与真实依据对照，把交易经济实质与表面成交量对照。自买自卖、协调交易、散布谣言后出货等安排会破坏价格发现。

为什么容易选错：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

相关知识点 / **Related concepts**

Standard II(B) — 市场操纵 / Market Manipulation

相关边界：交易确实影响价格不一定就是操纵；正常投资和有充分依据的分析可以改变价格。决定性区别是行为的真实性、正当目的与欺骗意图。

V10-M10-KN-014

Maste案例
Maste

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 266-267

题目与资料 / **Question and data**

Maste案例 Maste

Maste（CFA）是Dov Services（Dov）的唯一董事，该公司销售金融产品并提供咨询建议。

Maste, CFA, is the sole director of Dov Services (Dov), a firm that sells financial products and advice.

Maste指示Dov的授权代表，将《Dov客户保护政策》纳入与客户签订的合同。

Maste directs Dov's authorized representatives to incorporate the Dov Client Protection Policy into their contracts with clients.

该保护政策列明了提供财务建议的条款，并声称其"包含多项客户保护措施，旨在确保你（客户）获得最佳建议，以及法律允许范围内的最大保护"。

The protection policy, which sets forth the terms for providing financial advice, states that it "contains a number of client protections designed to ensure that you (the client) receive the best possible advice and the maximum protection available under the law."

保护政策的条款：（1）免除Dov及其授权代表因未按客户最佳利益行事而产生的多种责任；（2）解除Dov及其授权代表对客户和投资进行适当性分析的义务；（3）使客户相信，不能因Dov或其代表违反证券法而向其提出索赔。

The protection policy's terms (1) excuse Dov and its authorized representatives from various liabilities arising from their failure to act in a client's best interest, (2) relieve Dov and its authorized representatives of their duty to conduct suitability analyses of clients and investments, and (3) lead clients to believe that they cannot make claims against Dov or its representatives for violating securities law.

1. Maste的行为：

1. Maste's actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 是适当的，因为Dov与Maste向客户充分披露了《Dov客户保护政策》的条款。

B. are appropriate because Dov and Maste fully disclose the terms of the Dov Client Protection Policy to clients.

C. 是适当的，因为Dov与Maste可以自由地与客户协商咨询协议的条款。

C. are appropriate because Dov and Maste are free to negotiate the terms of advisory agreements with clients.

官方答案与解析 / **Official answer and explanation**

A正确。《Dov客户保护政策》的条款不当地试图通过披露，限制未按客户最佳利益行事或未提供适当建议的责任，从而免除Dov与Maste对客户承担的基本道德义务，而且这些义务很可能也是法律义务。

A is correct. The terms of the Dov Client Protection Policy improperly attempt to use disclosure to relieve Dov and Maste of their fundamental ethical (and very likely legal) obligations to clients by limiting liability for failures to act in the client's best interests or to provide appropriate advice.

准则III(A)"忠诚、审慎与谨慎"规定，CFA协会会员与考生对客户负有忠诚义务，要求他们为客户利益行事，并将客户利益置于自身利益之前。

Standard III(A) Loyalty, Prudence, and Care sets forth a duty of loyalty on the part of CFA Institute members and candidates to their clients and requires them to act for the benefit of their clients and to place their clients' interests before their own.

此外，准则V(A)"勤勉尽责与合理依据"要求会员与考生提供勤勉、独立、全面的建议，并为投资行动建立合理且充分的依据；准则III(B)"公平对待"要求会员与考生就向客户提出的任何投资建议进行适当性分析；准则I(C)"虚假陈述"规定，会员与考生不得对投资服务作出任何虚假陈述。〔译注：原文在适当性分析处写作"III(B) Fair Dealing"；本书关于适当性的对应准则为III(C) Suitability。〕

In addition, Standard V(A) Diligence and Reasonable Basis requires members and candidates to provide diligent, independent, and thorough advice and to have a reasonable and adequate basis for investment action; Standard III(B) Fair Dealing requires members and candidates to conduct a suitability analysis for any investment recommendation to their clients; and Standard I(C) Misrepresentation says that members and candidates cannot make any misrepresentations relating to investment services.

CFA协会《道德准则与专业行为准则》的这些内容，界定了适用于投资专业人士的基本原则，并详细说明了投资者应当期待财务顾问遵循的行为。

These components of the CFA Institute Code and Standards define the fundamental principles applicable to investment professionals and detail the conduct investors should expect from their financial advisers.

B错误。顾问不能通过披露，免除其对客户承担的基本道德义务。

B is incorrect. Disclosure cannot be used to relieve advisers of their fundamental ethical obligations to clients.

《Dov客户保护政策》还具有欺骗性，因为它错误描述了客户就道德及监管违规行为提起法律诉讼的权利，并似乎造成一种虚假印象，使客户认为这些条款对自己有利。

The Dov Client Protection Policy is also deceptive because it misrepresents the client's right to bring legal action for ethical and regulatory violations and appears to give the false impression that a client would benefit from its terms.

C错误。虽然一般而言，客户与顾问可以自由协商咨询协议条款，但顾问利用客户协议，造成双方权利义务的严重失衡，或限制其对客户承担的忠诚、审慎与谨慎等基本道德义务，是不当的。

C is incorrect. Although in general, clients and advisers are free to negotiate the terms of advisory agreements, for advisers to use the client agreement to create a significant imbalance between the rights and obligations of the adviser and the client or to limit the fundamental ethical obligations of loyalty, prudence, and care to the client is improper.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / **Loyalty, Prudence, and Care**

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

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Gaini案例
Gaini

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 267-268

题目与资料 / **Question and data**

Gaini案例 Gaini

Gaini（CFA）是一名商品交易员，拥有多名零售客户，其中包括Laube。Laube开立了一个自行决策的零售外汇账户，Gaini不就该账户的任何交易提供建议。

Gaini, CFA, is a commodities trader with a number of retail clients, including Laube, who opens a self-directed foreign exchange retail account for which Gaini does not advise on any trades.

Laube签署了Gaini的标准客户协议，其中包含保证金要求及保证金不足时平仓的相关条款。

Laube signs Gaini's standard customer agreement, which contains provisions relating to margin requirements and liquidation in the event of margin deficits.

协议授权Gaini自行决定，“在保证金不足的账户中，不经通知平掉任何或全部未平仓头寸”。

The agreement authorizes Gaini, at his discretion, “to liquidate, without notice, any or all open positions in an account with insufficient margin.”

Laube最初买入两份各100,000美元的美元兑瑞士法郎（USD/CHF）合约，保证金要求为4,000美元。

Laube initially purchases two 100,000 US dollar/Swiss franc (USD/CHF) contracts and sets her margin requirement to $4,000.

随后，Laube又提交两笔各100,000美元的USD/CHF“待执行限价单”，当合约交易价格达到指定水平时执行。

Laube then places two additional 100,000 USD/CHF “pending limit” orders that will execute if the contract trading prices reach a specified level.

两笔订单的限价不同，因此会先后执行。

Each order has a different limit price, so one will execute before the other.

下单后不久，Laube开始了一次较长时间的度假。

Shortly after placing the orders, Laube goes on an extended vacation.

她度假期间，第一笔限价单成交，保证金要求上升至6,000美元。

While she is away, execution on the first limit order occurs, and the margin requirement increases to $6,000.

之后，价格达到第二笔订单的限价，该订单成交，保证金要求进一步上升至8,000美元。

Then, the next limit price is reached, and the second order executes, increasing the margin requirement to $8,000.

这些交易完成后，Laube仍在度假，而账户余额降至6,900美元。

After the trades, while Laube is still on vacation, her account balance drops to $6,900.

Gaini未作通知便平掉Laube账户中的全部头寸，平仓实现了37,000美元的损失。

Without notice, Gaini liquidates all positions in Laube’s account, realizing a loss of $37,000 from the liquidation.

1. Gaini的行为：

1. Gaini’s actions

A. 是适当的，因为Gaini遵循了Laube客户协议中列明的政策与程序。

A. are appropriate because Gaini followed the policy and procedures set forth in Laube’s client agreement.

B. 违反CFA协会《道德准则与专业行为准则》，因为Gaini有义务保护Laube的财务状况，以维护她的最佳利益。

B. violate the CFA Institute Code and Standards because Gaini has a duty to act in the best interest of Laube by protecting her financial position.

C. 不适当，因为Gaini原本可以只平掉一份外汇合约头寸，就满足保证金要求。

C. are inappropriate because Gaini could have met the margin requirement by liquidating only one foreign exchange contract position.

官方答案与解析 / **Official answer and explanation**

A正确。本案例涉及准则III(A)“忠诚、审慎与谨慎”，该准则要求CFA协会会员与考生以忠诚、审慎与谨慎的态度，维护客户最佳利益，并妥善处理与其他客户及市场的关系。

A is correct. This case relates to Standard III(A) Loyalty, Prudence, and Care, which imposes on CFA Institute members and candidates a duty to act with loyalty, prudence, and care in their clients' best interests and in relation to other clients and the markets.

然而，履行这项责任所需的具体行为，取决于与客户关系的性质。

However, the conduct that fulfills this responsibility depends on the nature of the relationship with the client.

Laube自行决定交易，由Gaini执行，而Gaini不提供投资建议。

Laube self-directs her trades, which are executed by Gaini, who does not provide investment advice.

此外，Laube自愿与Gaini约定了账户保证金不足的后果，相关政策与程序已在客户协议中明确列出。

Additionally, Laube freely contracts with Gaini regarding the consequences of insufficient margins in her account, and these policies and procedures are clearly set forth in her client agreement.

没有任何迹象表明，Gaini就保证金要求或平仓程序误导了Laube。

Nothing indicates that Gaini misled Laube about the margin requirements or the liquidation procedures.

虽然授权不经通知平仓的合同条款，并不意味着Laube放弃获得诚信对待的权利，但这些保证金及平仓条款，也不是Gaini试图免除忠诚、审慎与谨慎义务的安排。

Although the contractual provision authorizing liquidation without notice does not waive Laube's right to be dealt with in good faith, the margin and liquidation provisions are not an attempt by Gaini to waive his duty of loyalty, prudence, and care.

这些条款只是界定双方关系的范围，Gaini与Laube可以自由协商。

They simply set forth the parameters of the relationship, which Gaini and Laube are free to negotiate.

虽然Laube遭受了重大交易损失，但Gaini按照客户协议条款平掉其未平仓头寸，有助于维护市场的正常运作与诚信。

Although Laube suffered significant trading losses, Gaini liquidated Laube's open positions in accordance with the terms of the customer agreement, serving to protect the integrity of the market.

B错误。根据本案事实，当Laube未满足保证金要求时，Gaini保护自己及其他客户财务状况的责任，优先于他对Laube所负的相关义务。

B is incorrect. Given the facts of this case, Gaini's responsibility to protect his own financial position and that of his other customers supersedes any duties he owes to Laube when she defaults on the margin requirements.

鉴于Laube与Gaini之间关系的有限性质，Gaini没有义务主动监控Laube的账户来保护她的财务利益。

Because of the limited nature of the relationship between Laube and Gaini, Gaini is not obligated to actively monitor Laube's account to protect her financial interests.

否则，Gaini就必须持续监测一个可能恶化的市场，或采取额外的风险管理措施，而这些既未获其同意，也不在Laube所签合同的约定范围内。

Doing so would require Gaini to continuously monitor a potentially deteriorating market or to take on additional risk management measures that he has not agreed to and that Laube has not contracted for.

C错误。双方已在合同中同意，Gaini可以自行决定不经通知进行全部平仓以弥补保证金缺口，因此他没有义务选择只平掉一份外汇合约的较温和替代方案；平掉全部未平仓头寸，也不构成对Laube义务的违反。

C is incorrect. Gaini is not obligated to use a less drastic alternative by closing only one foreign exchange contract position and does not breach a duty to Laube by liquidating all open positions when the parties have contractually agreed that total liquidation to meet a margin deficit may be done at Gaini's discretion without notice.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

V10-M10-KN-016

Braung案例
Braung

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 268-269

题目与资料 / **Question and data**

Braung案例 Braung

某地区政府聘请Braung（CFA）及其公司担任发行一般责任债券的财务顾问。

A regional government hires Braung, CFA, and his firm to serve as its financial adviser for issuing general obligation bonds.

该地方政府多年来多次发行债券，筹建市政设施，其中包括一座高度设防的羁押设施和两栋学校建筑。

The municipality conducts several bond offerings over the years for constructing municipal facilities, including a maximum-security detention facility and two school buildings.

为处理这些债券发行，Braung多次前往纽约与评级机构会面。

In connection with the bond issues, Braung makes a number of trips to New York City to meet with ratings agencies.

由于周末出行成本较低，会议通常安排在星期一或星期五。

The trips are typically planned for a Monday or Friday because the costs for weekend travel are less.

Braung的妻子陪同出行，他们通常在会议前后留在纽约过周末，观看体育赛事、戏剧演出并参观博物馆。

Braung's wife accompanies him on the trips, and they typically spend the weekend either before or after the meetings in New York City to enjoy sporting events, theater performances, and museums.

行程预订后，Braung经常为了配合与其他客户的会面，多次更改火车及酒店安排。

Braung often makes a number of train and hotel changes after a trip is booked to accommodate meetings with other clients.

Braung向主管提交差旅费用，主管扣除她认为与出差商业目的无关的费用后，将账单交给地方政府报销。

Braung submits his travel expenses to his supervisor, who deducts costs she believes are unrelated to the business purpose of the trip and submits the bills to the municipality for reimbursement.

1. 下列哪项费用最可能可以向发行债券的政府机构报销？

1. Which of the following expenses can most likely be billed to the government entity issuing the bonds?

A. Braung在周末的住宿和餐饮费用，因为周末出行的费率更低

A. Braung's accommodation and meal expenses for the weekend days because the travel rates are less expensive over a weekend

B. 体育赛事及戏剧演出的门票，只要金额未超过合理的商务招待水平

B. Tickets to the sporting and theater events, as long as they do not exceed a reasonable amount for business entertainment

C. 因Braung正常业务活动而产生的航班及酒店变更费用

C. Flight and hotel change fees that result from the regular course of Braung's business activities

官方答案与解析 / **Official answer and explanation**

A正确。本案例涉及准则III(A)"忠诚、审慎与谨慎"，该准则规定，CFA协会会员与考生对客户负有忠诚义务，必须为客户利益行事，并将客户利益置于自身利益之前。

A is correct. This case relates to Standard III(A) Loyalty, Prudence, and Care, which states that CFA Institute members and candidates have a duty of loyalty to their clients, must act for their clients' benefit, and must place client interests before their own.

根据该准则，投资专业人士，包括市政证券交易商，在处理客户账户时不得采取任何欺骗、不诚实或不公平的做法。

Under this standard, investment professionals, including municipal security dealers, must not engage in any deceptive, dishonest, or unfair practice when handling client accounts.

预订周末行程所节省的交通费用，可能超过Braung在纽约多留几天增加的住宿及餐饮费用，因此客户的总成本反而更低。

The savings in travel fees for booking a weekend travel schedule could be greater than the additional accommodation and meal expenses for Braung to stay the extra days in New York City, making the cost to the client lower.

在这种情况下，Braung选择总体上最便宜的行程，降低客户成本，符合其对客户的忠诚义务。

Under these circumstances, Braung would be meeting his duty of loyalty to the client by choosing the most inexpensive travel schedule overall, thus limiting costs to the client.

个人观看戏剧和体育赛事的门票，以及为会见其他无关客户而产生的行程变更费用，不属于可向该客户报销的开支。

Charging personal theater and sporting event tickets or travel change fees associated with seeing unrelated clients would not qualify as chargeable expenses to the client.

最佳做法是在委托开始时，以书面形式详细说明哪些费用可以报销。

The best scenario would be to detail in writing at the outset of the engagement which expenses would be considered reimbursable.

B错误。在利益冲突方面，CFA协会《道德准则与专业行为准则》允许会员与考生在正常业务过程中接受或提供适度的礼物与招待，例如节日期间接受供应商或赠送客户的礼篮。

B is incorrect. In the context of conflicts of interest, the CFA Institute Code and Standards allow members and candidates to accept or provide modest gifts and entertainment in the ordinary course of business (a gift basket at the holidays from a vendor or to a client, for example).

但是，“正常业务过程”并不允许投资专业人士将明显与商务会议无关的额外娱乐费用转嫁给客户。

But that “ordinary course of business” does not allow investment professionals to charge clients for obviously extraneous entertainment expenses not connected to a business meeting.

为投资专业人士自身利益而向客户收取过高或奢侈的开支，可能构成违反准则III(A)的欺骗、不诚实或不公平行为。

Charging excessive or lavish expenses for the personal benefit of the investment professional at the expense of the client can constitute a deceptive, dishonest, or unfair practice that violates Standard III(A).

C错误。尽管忙碌的投资专业人士可能因其他优先事务，被迫更改已经安排好的客户出差行程，但因此产生的额外费用通常必须由该专业人士（Braung）作为自身经营开销承担，而不能向客户收取。

C is incorrect. Although busy investment professionals might be forced by other priorities to change travel arrangements when a client trip has already been scheduled, additional expenses resulting from the change most likely must be borne by the investment professional (Braung) as an overhead cost, not charged to the client.

（在少数特定情况下，这些费用可以向导致行程变更的那位客户收取。）

(Under some limited circumstances, those expenses might be charged to the client who necessitates the travel changes.)

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(A)（忠诚、审慎与关怀）。

规则如何作用于本题：客户利益优先于雇主和个人利益。先正确识别客户是谁，再判断交易、佣金、托管和代理安排是否服务于该客户及其受益人。

旅行费用要看必要性、合理性和利益来源。偏远现场调研所需的普通交通与豪华度假招待具有不同的独立性影响；能由自己或雇主负担时，直接支付通常更容易避免利益牵连。

礼品和关系往来应按接受者的决策角色评估。如果提供好处的人正在争取交易、经理遴选或业务，合理观察者可能怀疑判断被影响；应审查好处的价值、频率、时点与独立审批。

推理顺序：养老金等安排通常需要关注计划参与者和受益人。使用客户佣金应能为客户带来合理投资服务价值，并尽力取得最佳执行，而非交换个人或公司其他好处。

为什么容易选错：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

相关知识点 / **Related concepts**

Standard III(A) — 忠诚、审慎与关怀 / Loyalty, Prudence, and Care

相关边界：最佳执行不是机械追求最低佣金；质量、价格、速度和整体服务都可能相关。授权交易范围有限时责任须按服务约定界定，但基本诚信责任仍存在。

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Scherzer案例
Scherzer

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 270

题目与资料 / **Question and data**

Scherzer案例 Scherzer

Scherzer（CFA）是一家大型投资管理公司的研究主管。

Scherzer, CFA, is the head of research at a large investment management firm.

她每月发布《投资建议更新报告》，向客户传达公司对投资建议作出的任何调整。

She publishes monthly “Recommendation Update Reports” to communicate to clients any investment recommendation changes her firm has made.

报告在每月第一个星期五通过电子邮件发送给客户，并于随后星期一发布在公司网站上。

The reports are sent to clients via email on the first Friday of the month and posted on the firm’s website the following Monday.

公司内部政策规定，投资建议只能每月通过该报告调整一次。

The firm’s internal policy is that a change in recommendation can only be made once a month through this report.

Scherzer还每周发布一份报告，介绍分析师收集的信息；这些信息可能暗示未来投资建议会发生变化，或使读者推断建议即将改变。

Scherzer also publishes weekly reports with information gathered by analysts that might implicitly signal a future change in recommendation or lead a reader to infer that a recommendation will be changing.

虽然每月的《投资建议更新报告》会发送给所有客户，但希望收到周报的客户须支付每年1,000美元的费用。

Although the monthly “Recommendation Update Reports” are sent to all clients, clients who wish to receive the weekly publication must pay an annual fee of $1,000.

所有客户均可选择这项服务，且每份客户协议中都已充分披露。

This option is available to any client and is fully disclosed as part of every client agreement.

1. 为符合CFA协会《道德准则与专业行为准则》，Scherzer必须：

1. To comply with the CFA Institute Code and Standards, Scherzer is required to

A. 无须采取额外行动，因为她的做法已符合《准则》。

A. do nothing because her actions comply with the Code and Standards.

B. 在向客户发送月报的同时，将其发布在公司网站上。

B. publish the monthly report on the firm’s website at the same time it is sent to clients.

C. 不收取额外费用，向所有客户发送周报。

C. send the weekly reports to all clients at no additional charge.

官方答案与解析 / **Official answer and explanation**

A正确。准则III(B)“公平对待”要求CFA协会会员与考生在提供投资分析及提出投资建议时，公平、客观地对待所有客户。

A is correct. Standard III(B) Fair Dealing requires CFA Institute members and candidates to deal fairly and objectively with all clients when providing investment analysis and making investment recommendations.

该准则还要求，投资建议相关信息的传播方式，应使所有客户都有公平机会根据信息采取行动。

It also requires that information about investment recommendations be disseminated in such a manner that all clients have a fair opportunity to act on the information.

Scherzer通过电子邮件同时向所有客户发送投资建议更新报告，使每名客户都有机会据此采取行动。

Scherzer distributes the recommendation update reports to all clients simultaneously via email, giving each an opportunity to act on the information.

《准则》也没有将Scherzer与客户就投资进行沟通的时机限制为提出投资建议时；她可以在适当情况下，向客户提供更新或澄清信息。

Scherzer is also not limited by the Code and Standards in communicating with clients about investments only when an investment recommendation is provided and can provide updated or clarifying information to clients as appropriate.

此外，只要：（1）所有客户均有资格购买周报服务；（2）向客户披露不同服务层级；（3）没有通过周报变更投资建议，从而使仅收到月报的现有客户处于不利地位，Scherzer向付费订阅的客户提供周报就不违反《准则》。

In addition, Scherzer does not violate the Code and Standards by providing weekly reports to clients who pay a subscription fee for the service as long as (1) all clients are eligible to purchase the service, (2) the different levels of service are disclosed to clients, and (3) no change in recommendations is made that would disadvantage existing clients who receive only the monthly report.

B错误。《准则》不要求Scherzer在公司网站上向公众发布报告。

B is incorrect. The Code and Standards do not require Scherzer to publish the reports to the public on the firm's website.

C错误。

C is incorrect.

《准则》允许CFA协会会员与考生，为愿意额外付费购买高级服务的客户提供更个性化、专业化或深入的服务，条件是：（1）这些服务不使未支付额外费用的其他客户处于不利地位；（2）向客户披露不同服务层级；（3）所有客户均可获得这些服务。

The Code and Standards allow CFA Institute members and candidates to provide more personal, specialized, or in-depth service to clients who are willing to pay for premium services through additional fees as long as (1) those services do not disadvantage other clients who do not pay additional fees, (2) the differing levels of service are disclosed to clients, and (3) the services are made available to all.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(B)（公平对待）。

规则如何作用于本题：公平意味着在建议分发、交易机会和分配规则上采用合理、一贯且透明的程序。客户可有不同收费和服务等级，但不能让某些客户不当地抢先获益或牺牲其他客户。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：先看哪些客户适合这项建议或交易，再检查通知时点、分配方法、部分成交和最小交易单位规则。稀缺IPO或交易机会应按预先合理的办法分配。

为什么容易选错：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

相关知识点 / **Related concepts**

Standard III(B) — 公平对待 / Fair Dealing

相关边界：公平不等于每个账户得到相同股数、完全相同服务或同一秒收到信息。差异服务应公开提供，不能损害其他客户的公平机会。

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Marte案例
Marte

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 271-272

题目与资料 / **Question and data**

Marte案例 Marte

Marte（CFA）是美国属地波多黎各的一名资产管理人。

Marte, CFA, is an asset manager in Puerto Rico, a US territory.

波多黎各居民投资当地证券时，可以获得显著的税收优惠。

Residents of Puerto Rico receive significant tax advantages when they invest in local securities.

为利用这一优势，Marte的公司向客户提供一只依照波多黎各金融法律法规设立的封闭式投资基金的份额。该基金至少67%的持仓为当地证券，并获准以最多50%的资产为基础进行借款。

To capitalize on this advantage, Marte's firm offers its clients shares in a closed-end investment fund, organized under Puerto Rico's financial laws and regulations, that holds at least 67% local securities and is permitted to borrow against up to 50% of its assets.

基金通常将杠杆用至法律允许的上限。

The fund is usually leveraged to the extent legally permitted.

Marte的许多客户净资产不高，投资目标属于保守或中等风险水平。

Many of Marte's clients have a modest net worth and conservative or moderate investment objectives.

Marte说服这些客户，将其85%或以上的资产投资于该封闭式基金。

Marte convinces them to invest 85% or more of their assets in shares of the closed-end fund.

1. Marte的行为：

1. Marte's actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 是适当的，因为这些做法为客户利用了基金独特的税收优惠。

B. are appropriate because they take advantage of the fund's unique tax benefits for his clients.

C. 只要Marte充分披露基金的风险与收益，就是适当的。

C. are appropriate as long as Marte fully discloses the risks and benefits of the fund to his clients.

官方答案与解析 / **Official answer and explanation**

A正确。准则III(C)"适当性"规定，与客户存在投资顾问关系的CFA协会会员与考生，必须"在提出投资建议或采取投资行动之前，确定投资适合客户的财务状况，并符合客户以书面列明的目标、授权范围及限制"。

A is correct. Standard III(C) Suitability states that CFA Institute members and candidates in an advisory relationship with clients must "determine that an investment is suitable to the client's financial situation and consistent with the client's written objectives, mandates, and constraints before making an investment recommendation or taking investment action."

考虑到客户的财务状况与保守投资目标，账户中该基金份额的高度集中，加上杠杆，使如此大规模的投资不具适当性，因为客户需要更加分散的投资组合。

Given the financial circumstances and conservative investment objectives of his clients, the high concentration of the fund's shares in his clients' accounts, combined with the leverage, makes the large investment in the fund unsuitable because greater portfolio diversification is needed.

尽管存在税收优惠，高度集中的投资仍带来更高风险：一次影响基金份额价值的市场事件，就可能显著降低账户总价值。

Despite the tax advantages, highly concentrated investments carry an increased risk that a single market event affecting the value of the fund's shares would significantly decrease the total account value.

封闭式基金内部使用杠杆，又进一步加剧了这一风险；当市场事件导致份额价值大跌时，杠杆可能放大基金损失。

This risk is exacerbated by the fact that the closed-end fund is internally leveraged, which could magnify the fund's loss during a market event that causes share values to drop steeply.

B错误。鉴于该投资工具享有有利的税收优惠，以一定比例投资其份额，可能对客户是适合且恰当的。

B is incorrect. Given the favorable tax advantages of the investment vehicle, investment in shares of the closed-end fund might be suitable and appropriate for his clients at some level.

但是，考虑到客户的财务状况及投资目标，高度集中叠加杠杆，使如此大规模地投资该基金不具适当性。

But given the financial circumstances and investment objectives of his clients, the high concentration, combined with the leverage, makes the large investment in the fund unsuitable.

C错误。虽然Marte始终应充分披露其建议的风险与收益，但披露不能免除投资必须符合客户财务状况、风险承受能力和投资目标的要求。

C is incorrect. Although Marte should always fully disclose the risks and benefits of his recommendations to his clients, doing so does not take away the need for the investment to be suitable for the clients' financial circumstances, risk tolerance, and investment goals.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(C)（适当性）。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

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Duri案例
Duri

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 272-273

题目与资料 / **Question and data**

Duri案例 Duri

Duri（CFA）是一名注册客户代表，为零售客户提供财务建议。

Duri, CFA, is a registered account representative providing financial advice to retail clients.

她也是Tabak Accountants的主要合伙人。Duri协助多名咨询客户，将退休资产从现有退休金账户转入自行管理的退休金基金（SMSF），这些基金的目标是直接投资住宅物业。

She is also a principal partner of Tabak Accountants. Duri assists a number of advisory clients who want to move their retirement assets from existing superannuation (pension) accounts to self-managed superannuation funds (SMSFs) that have the goal of investing in direct residential property.

当客户表示对这类SMSF有兴趣时，Duri接受了他们希望直接投资物业的理由，并假定他们具备管理退休金事务所需的时间和专业能力。

When clients express interest in these types of SMSFs, Duri accepts their reasons for wanting to invest in direct property and assumes that they have the time and expertise to manage their superannuation affairs.

她将这些客户的投资目标重新分类为“增长”，以配合新的投资策略。

She reclassifies their investment objectives as “growth” to match the new investment strategy.

Duri向客户收取设立SMSF的费用，并建议由她所在的Tabak Accountants编制客户的年度账目和税务申报表。

Duri charges her clients for establishing the SMSFs and recommends that her firm, Tabak Accountants, prepare the clients’ annual accounts and tax returns.

1. Duri的行为：

1. Duri’s actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 可以接受，因为她是在遵循客户指示。

B. are acceptable because she is following the directives of her clients.

C. 如果Tabak Accountants提供的服务合理且收费具有竞争力，则可以接受。

C. are acceptable if the services provided by Tabak Accountants are reasonable and the costs of services are competitive.

官方答案与解析 / **Official answer and explanation**

A正确。

A is correct.

准则III(C)“适当性”要求，与客户存在投资顾问关系的CFA协会会员与考生，在采取投资行动前，合理了解客户的投资经验、风险及回报目标，以及财务限制，以确定投资是否适合客户的财务状况，并符合客户的目标及授权范围。

Standard III(C) Suitability requires CFA Institute members and candidates in an advisory relationship to make a reasonable inquiry into a client's investment experience, risk and return objectives, and financial constraints to determine whether an investment is suitable for the client's financial situation and consistent with the client's objectives and mandates before taking investment action.

当Duri的客户希望将退休资产转入直接投资住宅物业的SMSF时，Duri似乎没有进行适当性分析，就接受了他们的理由。

When Duri's clients want to move their retirement assets into an SMSF that invests in direct residential property, Duri appears to accept their reasoning without conducting a suitability analysis.

案例没有说明Duri是否进行了以下任何工作：

The case does not indicate whether Duri did any of the following:

■ 评估客户希望直接投资物业的原因

■ Assess the reasons a client wants to invest in direct property

■ 考虑客户的财务目标

■ Consider the client's financial goals

■ 将设立SMSF或持有出租物业所涉及的收益、风险与成本，与现有退休金账户中的其他投资选择进行比较

■ Compare the benefits, risks, and costs associated with establishing an SMSF or owning rental property to existing superannuation account investment alternatives

■ 考虑资产分散化

■ Consider asset diversification

■ 确定客户是否打算在退休后从SMSF领取退休金，以及持有投资物业这类缺乏流动性的资产时，应如何实现这一安排

■ Determine whether the client intends to draw a pension from the SMSF once the individual reaches retirement or how the client will do that with an illiquid asset, such as investment property

■ 评估客户是否具备管理退休金事务所需的时间和专业能力，其中包括管理出租物业

■ Evaluate whether the client has the time and expertise to manage his or her superannuation affairs, including managing a rental property

■ 考虑如果客户收入下降，或物业在一段时间内空置，SMSF的投资策略是否仍然可行。未分析这些及其他因素，就将客户转入SMSF，是不适当的。

■ Consider whether the SMSF investment strategy will remain viable if the client's income is reduced or the property is unoccupied for a period of time Without analyzing these and other factors, for Duri to move her clients to the SMSFs would be inappropriate.

B错误。如果客户要求调整投资策略，Duri作为其投资顾问，有责任进行分析，确保新的方向适合且恰当。

B is incorrect. If her clients request a change in their investment strategy, Duri has a responsibility as their investment adviser to conduct an analysis to ensure that the new direction is suitable and appropriate.

Duri似乎将所有客户都归类为增长型投资者，只是在表面上为投资SMSF寻找理由，却没有分析这一分类是否准确。

Duri appears to have classified all clients as growth investors to superficially justify their investment in an SMSF vehicle without analyzing whether this classification was an accurate assessment.

C错误。Duri似乎是为了增加自己的收入，才建议由其公司为客户的SMSF投资提供会计服务。

C is incorrect. Duri appears to be recommending that her firm provide clients with accounting services for the SMSF investments to create additional income for herself.

但是，准则III(A)"忠诚、审慎与谨慎"要求会员与考生为客户的利益行事，并将客户利益置于自身利益之前。

But Standard III(A) Loyalty, Prudence, and Care requires members and candidates to act for the benefit of their clients and to place their clients' interests before their own.

至少，Duri必须向客户充分披露她与Tabak之间的关系，将其列为潜在利益冲突。

At a minimum, Duri's relationship with Tabak must be fully disclosed to clients as a potential conflict of interest.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(C)（适当性）。

规则如何作用于本题：在提供投资建议前，应合理了解客户的经验、目标、风险承受能力与财务情况，并在整体组合层面评估投资是否适合。管理专门授权组合时还须遵守既定策略或风格。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：把具体交易放回IPS和全组合风险中看，核查期限、流动性和集中度；客户重要情况变化时及时更新。客户主动提出不合适交易时也要讨论并记录风险。

为什么容易选错：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

相关知识点 / **Related concepts**

Standard III(C) — 适当性 / Suitability

相关边界：高风险证券并非对所有客户都不适合，低风险证券也并非对所有目标都合适。客户口头同意不能自动消除调查、说明或授权限制。

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Jergenn案例
Jergenn

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题目与资料 / **Question and data**

Jergenn案例 Jergenn

Jergenn（CFA）是Volare Investment Management（VIM）基金的投资组合经理。该基金是依照南非法律设立的注册集体投资计划（CIS）。

Jergenn, CFA, is the portfolio manager for the Volare Investment Management (VIM) fund, a registered collective investment scheme (CIS) organized under the laws of South Africa.

Jergenn编制的该基金2022年监管披露与营销资料，列出了2014至2020年的年度投资业绩，数据准确且计算无误。

VIM's 2022 regulatory disclosure and marketing material for the fund, produced by Jergenn, presents annual investment performance data for the 2014–20 period that is accurate and calculated correctly.

该业绩记录来自一组独立账户构成的组合；在资产于2021年转入CIS架构之前，这些账户采用了VIM基金所使用的策略。

The performance history is that of a composite of separate accounts that followed the strategy used by the VIM fund before the assets were moved over to the CIS environment in 2021.

1. 在展示基金历史业绩时，Jergenn的行为：

1. In presenting the fund's performance history, Jergenn's actions

A. 违反CFA协会《道德准则与专业行为准则》。

A. violate the CFA Institute Code and Standards.

B. 是适当的，因为投资业绩数据准确。

B. are appropriate because the investment performance is accurate.

C. 只要业绩按扣费后口径计算，就是适当的。

C. are appropriate as long as the performance calculations are net of fees.

官方答案与解析 / **Official answer and explanation**

A正确。准则III(D)"业绩展示"规定，CFA协会会员与考生必须作出合理努力，确保投资业绩信息公平、准确且完整。

A is correct. Standard III(D) Performance Presentation states that CFA Institute members and candidates must make a reasonable effort to ensure that investment performance information is fair, accurate, and complete.

虽然Jergenn展示的业绩计算正确，所含数据在技术上也准确，但他未明确说明这些数据对应VIM基金注册为CIS之前的期间，可能误导投资者以为该CIS基金已有很长的历史业绩记录。

Although the performance information presented by Jergenn is calculated correctly and includes technically accurate data, Jergenn's failure to indicate clearly that the performance data applied to a period before the VIM fund was registered as a CIS has the potential to mislead investors into believing that the CIS fund had a long track record.

为满足准则"公平、准确且完整"的要求，Jergenn应披露，2014至2020年的业绩属于此前一个采用相同投资策略与目标的类似实体，而以CIS形式存在的VIM基金直到2021年才成立。

To meet the "fair, accurate, and complete" requirement of the standard, Jergenn should disclose that the 2014–20 performance history was for a prior but similar entity with the same investment strategy and objectives and that the VIM fund, as a CIS, has been in existence only since 2021.

B错误。虽然业绩数据准确、计算无误，但未披露相关账户的性质，会使展示具有误导性。

B is incorrect. Although the performance is accurate and correctly calculated, the lack of disclosure about the nature of the accounts makes the presentation misleading.

C错误。业绩既可按扣费后口径，也可按扣费前口径展示，前提是投资者获得充分信息，了解业绩如何计算，以及费用可能如何影响回报。

C is incorrect. Performance can be presented either net or gross of fees as long as investors are sufficiently informed about how the performance is calculated and what effect fees might have on the returns.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(D)（业绩呈现）。

规则如何作用于本题：业绩信息应公平、准确、完整，使读者了解真实结果、期间、方法与限制。不能通过挑账户、挑时期或隐去费用与模拟性质制造优于事实的印象。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

推理顺序：检查数据是否覆盖合适账户及期间、计算和权重是否一致、是否包含终止账户、前雇主业绩归属是否说明，及模拟与真实结果是否明确区分。

为什么容易选错：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

相关知识点 / **Related concepts**

Standard III(D) — 业绩呈现 / **Performance Presentation**

相关边界：不强制所有人使用同一呈现方法，但方法必须诚实且披露足够。GIPS合规是另一项更具体要求；未声称GIPS合规也仍需满足本准则。

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Giddings与Marsh案例
Giddings and Marsh

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题目与资料 / **Question and data**

Giddings与Marsh案例 Giddings and Marsh

Giddings（CFA）负责GWH的合规事务。GWH是一家大型经纪自营商及投资顾问公司。

Giddings, CFA, is responsible for compliance at GWH, a large broker/dealer and investment adviser.

在财富管理业务中，公司保存客户的个人身份识别信息，包括姓名、地址、电话号码、账户号码、余额和持仓。

In connection with GWH's wealth management business, the company maintains personally identifiable information (names, addresses, phone numbers, account numbers, balances, and holdings) of its clients.

Giddings制定了多项政策与限制，其中包括《行为守则》，以规范员工访问和处理这些机密信息。

Giddings adopts a number of policies and restrictions, including a Code of Conduct, that address employees' access to and handling of this confidential information.

Marsh（CFA）在GWH担任客户服务助理。为便于远程办公，他决定将客户数据下载到位于自己住所的个人服务器上。

Marsh, CFA, who works for GWH as a client services associate, decides to download client data to his personal server located at his residence to facilitate his telecommuting.

Marsh的服务器遭到黑客入侵，他下载的部分客户个人信息被放到互联网上出售。

Marsh's server is hacked, and portions of the personal client information Marsh downloaded are posted for sale on the internet.

1. Marsh或Giddings是否违反了CFA协会《道德准则与专业行为准则》？

1. Did either Marsh or Giddings violate the CFA Institute Code and Standards?

A. Marsh违反了《准则》。

A. Marsh violated the Code and Standards.

B. Giddings违反了《准则》。

B. Giddings violated the Code and Standards.

C. Marsh与Giddings均违反了《准则》。

C. Both Marsh and Giddings violated the Code and Standards.

官方答案与解析 / **Official answer and explanation**

C正确。准则III(E)"保守机密"要求CFA协会会员与考生对现有客户、前客户及潜在客户的信息保密，除非信息涉及违法活动、法律要求披露，或客户允许披露。

C is correct. Standard III(E) Preservation of Confidentiality requires that CFA Institute members and candidates keep information about current, former, and prospective clients confidential unless the information concerns illegal activities, disclosure is required by law, or the client permits disclosure.

虽然该准则不要求投资专业人士成为信息安全专家，但他们必须通过遵循合规程序，作出合理努力以防止机密信息被意外传播。

Although the standard does not require investment professionals to be information security experts, they must make reasonable efforts to prevent the accidental distribution of confidential information by following compliance procedures.

假设Marsh未获准将客户数据下载至个人服务器，那么他为个人目的擅自取用客户信息，违反了准则III(E)。

Assuming Marsh did not have permission to download client data to his personal server, his misappropriation of client information for his own purposes is a violation of Standard III(E).

虽然信息不是由他本人传播的，但他的不当行为促成了这些信息被公开。

And although he was not responsible for the distribution of the information, his misconduct facilitated the publication of the information.

Marsh需要了解并遵循公司的电子信息传输与存储程序。

Marsh needed to understand and follow the firm's electronic information communication and storage procedures.

作为合规主管，Giddings有责任实施充分的合规政策与程序，其设计应能够合理保护客户信息。

As the compliance officer, Giddings is responsible for implementing sufficient compliance policies and procedures reasonably designed to protect client information.

他有责任确保客户信息的保密性，防范可能危及记录安全或完整性的威胁，并防止未经授权访问或使用客户信息而损害GWH客户。

He is responsible for ensuring the confidentiality of customer information, protecting against any potential threats to the security or integrity of the records, and preventing unauthorized access or use of client information that could harm GWH clients.

虽然GWH制定了限制访问及处理客户信息的政策，但这些保护措施显然不够充分，因为Marsh能够将公司文件下载到个人计算机上。

Although GWH has policies restricting access to and handling of client information, the extent of those safeguards was apparently insufficient because Marsh was able to download company files to his personal computer.

客户信息遭到访问并被公开这一事实，使Giddings合规工作的有效性受到质疑。

The fact that client information was accessed and published makes the effectiveness of Giddings's compliance efforts questionable.

即使政策本身充分，也没有迹象表明Giddings审计或测试过这些旨在保护客户信息的措施是否有效。

Even if the policies were sufficient, nothing indicates that Giddings audited and/or tested the effectiveness of the safeguards meant to keep client information confidential.

A错误。Marsh与Giddings均违反了《准则》。

A is incorrect. Both Marsh and Giddings violated the Code and Standards.

B错误。Marsh与Giddings均违反了《准则》。

B is incorrect. Both Marsh and Giddings violated the Code and Standards.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 III(E)（保守机密）。

规则如何作用于本题：对当前、过去和潜在客户的信息通常负有保密义务。可以披露的例外包括客户授权、法律要求，以及在适用法律允许时与客户非法活动相关的情形。

推理顺序：先确认信息属于谁、谁有权授权、接收人是否合法，以及是否存在明确法定义务。与合规或法律顾问讨论时也要控制不必要的信息扩散。

为什么容易选错：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

相关知识点 / **Related concepts**

Standard III(E) — 保守机密 / Preservation of Confidentiality

相关边界：亲属、朋友或同事不因关系亲近就自动获得访问权；怀疑有问题也不代表可任意公开客户资料。保密义务不会因客户关系终止而自然消失。

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Nickoli案例
Nickoli

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题目与资料 / **Question and data**

Nickoli案例 Nickoli

Nickoli（CFA）是HHI Capital Management（HHI）的投资顾问。

Nickoli, CFA, is an investment counselor with HHI Capital Management (HHI).

当地CFA协会分会的一位同行，鼓励Nickoli离开HHI，与她一起加入Vesuvius Asset Advisers。

A colleague at her local society encourages Nickoli to leave HHI and join her at Vesuvius Asset Advisers.

Nickoli最终同意，并决定在新年伊始离职。

Nickoli eventually agrees and decides to leave at the beginning of the new year.

在提交辞职申请前的几周，她告诉客户，由于自己即将离开HHI，他们可能会由新的投资顾问服务。

In the weeks before submitting her resignation, she tells her clients that they will likely be working with a new investment counselor because she is leaving HHI.

客户对此感到惊讶，并追问她离职的原因。Nickoli表示，她对公司的组织架构感到失望，不认同公司的发展方向，对现任领导层缺乏信心，怀疑公司能否吸引并留住优秀员工，而且认为其他HHI员工也受到不当对待，很快会相继离职。

Her clients express surprise, and when asked for details about why she is leaving, Nickoli shares that she is frustrated by the firm's structure, disagrees with the direction the firm is going, lacks confidence in the current leadership, doubts the firm will be able to attract and retain good people, and believes other HHI employees have been mistreated and will also be leaving soon.

Nickoli的几名HHI客户表示，希望获得Vesuvius的信息，并可能有兴趣转移账户。

Several of Nickoli's HHI clients indicate that they would like information about Vesuvius and might be interested in switching their accounts.

提交辞职申请后，Nickoli立即将有兴趣的客户姓名提供给Vesuvius；新年开始后，她便招揽这些客户，将账户从HHI转到新公司。

After submitting her resignation, Nickoli immediately shares the names of the interested clients with Vesuvius, and after the first of the year, she begins soliciting them to transfer their accounts from HHI to her new firm.

1. Nickoli的行为：

1. Nickoli's conduct is

A. 违反《道德准则与专业行为准则》。

A. a violation of the Code and Standards.

B. 可以接受，因为她在离开HHI之后才开始招揽客户。

B. acceptable because she did not solicit clients until after she left HHI.

C. 可以接受，因为她关注客户的最佳利益，并认为Vesuvius提供的服务更好。

C. acceptable because she is looking out for her clients' best interests and believes Vesuvius provides better service.

官方答案与解析 / **Official answer and explanation**

A正确。准则IV(A)"忠诚"规定，CFA协会会员与考生"必须为雇主利益行事，不得……以其他方式损害雇主"。

A is correct. Standard IV(A) Loyalty states that CFA Institute members and candidates "must act for the benefit of their employer and not . . . otherwise cause harm to their employer."

虽然准备离职的员工通常可以在终止雇佣关系前，为更换公司作出安排或准备，但这些准备不得与其持续承担的义务冲突，即为现任雇主的最佳利益行事，不以其他方式削弱、诋毁或损害雇主。

Although a departing employee is generally free to make arrangements or preparations to change firms before terminating the relationship, those preparations must not conflict with the employee's continued duty to act in the best interests of the current employer and not otherwise undermine, disparage, or cause harm to that employer.

本案中，Nickoli在通知公司并提交辞职申请前数周，就已决定离开HHI并加入Vesuvius。

In this case, Nickoli decides to leave HHI and join Vesuvius weeks before she notifies the firm and submits her resignation.

在此期间，准则IV(A)要求她继续维护现任雇主的最佳利益，不得从事与此义务冲突的活动，直至辞职生效并离开公司。

During that time, Standard IV(A) obligates her to continue to act in her current employer's best interests and not engage in any activities that would conflict with this duty until her resignation becomes effective and she leaves the firm.

Nickoli在提交辞职申请前数周，向HHI客户发表诋毁及损害公司的言论，并在仍受雇于HHI时向其客户推介Vesuvius，违反了对HHI的忠诚义务。

Nickoli violates her duty of loyalty to HHI by making disparaging and harmful statements about the firm to its clients in the weeks before she submits her resignation and by promoting Vesuvius to HHI clients while she is still employed by HHI.

B错误。虽然Nickoli离开HHI之后才正式招揽客户，但她利用在HHI任职的最后数周，识别哪些客户可能希望了解Vesuvius并转移账户，然后在加入Vesuvius后联系了他们。

B is incorrect. Although she did not make actual solicitations until after she left HHI, Nickoli used the final weeks of her employment with HHI to determine which of the firm's clients might be interested in receiving information about Vesuvius and possibly transferring their accounts from HHI and then contacted them after her move to Vesuvius.

C错误。虽然投资专业人士应维护客户的最佳利益，但即使Nickoli认为客户转到Vesuvius继续由她服务会更好，这些客户的关系仍是与HHI建立的。

C is incorrect. Although investment professionals should protect their clients' best interests, even if Nickoli believes the clients will be better off with her at Vesuvius, the clients' relationship is with HHI.

她是HHI的代表，因此只要仍受雇于该公司，就不得采取损害公司的行动。

She is a representative of HHI, so she must not act in a manner harmful to the firm while still employed there.

如果Nickoli认为HHI的行为或业务做法严重到损害客户利益，她可以立即辞职离开HHI，随后再向以前的客户说明自己的担忧。

If Nickoli believes the conduct or business practices of HHI are so egregious that they harm client interests she is free to resign her position and leave HHI immediately and subsequently notify her former clients of her concerns.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(A)（对雇主的忠诚）。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M10-KN-023

Kuznetsov案例
Kuznetsov

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 277

题目与资料 / **Question and data**

Kuznetsov案例 Kuznetsov

Kuznetsov（CFA）是一家中型投资公司的投资组合经理，公司鼓励员工向客户销售自有投资产品。

Kuznetsov, CFA, is a portfolio manager for a medium-sized investment firm that encourages its employees to sell proprietary investment products to their clients.

Kuznetsov开始销售这些产品，并在一年内成为公司销售这些产品最多的员工。

Kuznetsov begins selling these investment products, and within a year, he becomes the firm’s top seller of the products.

他获得了极高的绩效评价及丰厚奖金。

He receives glowing performance reviews and a large bonus.

但是，Kuznetsov逐渐发现，与其他适合其客户、且增长机会更佳的外部投资选择相比，公司投资产品的业绩更差、费用也更高。

However, Kuznetsov begins to realize that the firm’s investment products are underperforming and are more expensive than other, external investment options that are suitable for his clients and present stronger growth opportunities.

于是，他停止向客户销售公司的投资产品。

He stops selling the firm’s investment products to his clients.

尽管主管不断加大压力，要求他恢复销售公司产品，Kuznetsov仍然拒绝。

Although his supervisor puts increasing pressure on him to resume selling the firm’s products, Kuznetsov refuses.

他多次向管理层投诉，称自己受到压力，被要求将公司利益置于客户利益之上。

He complains several times to management that he is being pressured to place the firm’s interests above his clients.

他秘密录下与主管的数次谈话，并复印了客户记录，以记录他认为属于主管不当行为的证据。

He secretly records several conversations with his supervisor and makes copies of client records that document what he considers inappropriate conduct by his supervisor.

管理层忽视其投诉，主管也开始给他较差的绩效评价。于是，Kuznetsov向当地监管机构投诉主管及公司，并提供录音和客户档案副本作为证据。

When management ignores his complaints and Kuznetsov's supervisor begins giving him poor performance reviews, he files a complaint with the local regulator against his supervisor and his firm, providing the recordings and copies of client files as evidence.

公司得知Kuznetsov的行动后，将其解雇。

After the firm becomes aware of Kuznetsov's actions, he is fired.

1. Kuznetsov的行为：

1. Kuznetsov's actions are

A. 是适当的，因为他在保护客户利益。

A. appropriate because he is protecting his clients' interests.

B. 违反CFA协会《道德准则与专业行为准则》，因为他没有对客户信息保密。

B. a violation of the CFA Institute Code and Standards because he fails to keep client information confidential.

C. 违反CFA协会《道德准则与专业行为准则》，因为他将与主管的争议提交监管机构，使雇主面临财务和声誉损害，违反了对雇主的忠诚义务。

C. a violation of the CFA Institute Code and Standards because he violates his duty of loyalty to his employer by taking his dispute with his supervisor to the regulator and exposing the employer to financial and reputational harm.

> 官方答案与解析 / **Official answer and explanation**

A正确。准则IV(A)"忠诚"规定，CFA协会会员与考生"必须为雇主利益行事，不得……泄露机密信息，也不得以其他方式损害雇主"。

A is correct. Standard IV(A) Loyalty states that CFA Institute members and candidates "must act for the benefit of their employer and not . . . divulge confidential information, or otherwise cause harm to their employer."

但有时会出现某些情况，使投资专业人士为了保护客户利益，需要采取与雇主利益相反的行动。

But occasionally, circumstances might arise in which investment professionals need to engage in conduct contrary to their employer's interests to protect clients' interests.

雇主向Kuznetsov施压，要求他向客户销售更昂贵且并非最佳选择的投资产品，是在为自身利益行事，而不是维护客户最佳利益。

In pressuring Kuznetsov to sell more expensive, suboptimal investment products to his clients, the employer is acting in its own interests and not in the clients' best interests.

Kuznetsov将雇主的不道德做法通知监管机构，显然是在维护客户的最佳利益。

Kuznetsov is clearly acting in the best interests of the clients by notifying the regulators of his employer's unethical practices.

B错误。Kuznetsov为保护客户利益，复制客户记录并交给监管机构，是有正当理由的举措。

B is incorrect. Copying client records to give to the regulator is a justifiable step for Kuznetsov to take to protect his clients' interests.

C错误。一般而言，Kuznetsov录下与主管的谈话并向监管机构举报雇主，是有正当理由的，因为他试图揭露雇主不道德、并且可能违法的行为，以保护客户利益。

C is incorrect. In general, Kuznetsov's decision to record conversations with his supervisor and report the employer to the regulator is justified because he is attempting to protect his clients' interests by calling out his employer's unethical (and possibly illegal) conduct.

不过，某些司法辖区可能禁止在未获对方同意的情况下录音。

However, certain jurisdictions might have laws against recording conversations without the other party's consent.

在本案这些情况下，他的"举报"行为不违反《准则》。

Under these circumstances, his "whistle-blowing" activity is not a violation of the Code and Standards.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(A)（对雇主的忠诚）。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / **Loyalty**

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M10-KN-024

Clemence案例
Clemence

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 278

题目与资料 / **Question and data**

Clemence案例 Clemence

Clemence（CFA）是DeLaurier Strategic Advisers的财富管理顾问，负责为400多名零售客户提供财务规划及财富管理服务。

Clemence, CFA, is a wealth management adviser for DeLaurier Strategic Advisers, where she is responsible for financial planning and wealth management for more than 400 retail clients.

她通过身为知名律师的配偶，以及身为医生的姐妹，认识了许多客户。

She met many of her clients through her spouse, who is a well-known attorney, and her sister, who is a physician.

Clemence决定离开DeLaurier，加入另一家公司；新职位无需开发新的顾问客户，但将承担更多研究与投资管理职责。

Clemence decides to leave DeLaurier to take a position at another firm, where she will not be expected to generate new advisory clients but will take on more research and investment management responsibilities.

她与DeLaurier友好分手，并向主管交接全部背景资料和信息，使客户能够顺利转交新的客户经理。

She leaves DeLaurier on good terms, providing her supervisor with all the background and information to seamlessly transition her clients to a new account manager.

并非Clemence的所有客户，都拥有足够的受管理资产，能够成为其新公司的客户。

Not all of Clemence's clients have sufficient assets under management to become clients at her new firm.

在离开DeLaurier当天，Clemence下载了一份包含公司客户、潜在客户和前客户的电子表格，并发送到自己的私人邮箱。

On the day Clemence leaves DeLaurier, she downloads a spreadsheet of DeLaurier's clients, prospects, and former clients and sends it to her personal email.

清单包括姓名、受管理资产规模、地址及电话号码。

The list includes names, assets under management, addresses, and phone numbers.

Clemence打算出于礼貌联系客户，告知新职位，感谢他们曾经成为客户，并表达信心：即使她已离开公司，DeLaurier仍会继续提供胜任且专业的服务。

Clemence intends to contact her clients as a courtesy to inform them of her new position, thank them for being clients, and express her confidence that DeLaurier will continue to provide them with competent and professional service even though she has left the firm.

1. Clemence的行为：

1. Clemence's actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 是适当的，因为她在保护客户利益。

B. appropriate because she is protecting the interests of her clients.

C. 只要她仅联系与自己是私人朋友的客户，告知新职位，就是适当的。

C. appropriate as long as she contacts only those clients who are personal friends to inform them of her new position.

官方答案与解析 / **Official answer and explanation**

A正确。准则IV(A)“忠诚”要求CFA协会会员与考生“为雇主利益行事，不得……泄露机密信息，也不得以其他方式损害雇主”。

A is correct. Standard IV(A) Loyalty requires that CFA Institute members and candidates “act for the benefit of their employer and not . . . divulge confidential information, or otherwise cause harm to their employer.”

Clemence下载客户名单并带走，以便离开DeLaurier后使用，违反了对雇主的忠诚义务。

Clemence has violated her duty of loyalty to her employer by downloading the client list and taking it with her for use after she leaves DeLaurier.

客户名单属于DeLaurier的财产，其中还包含公司客户的专有机密信息。Clemence将这些信息用于个人目的，属于不当使用，无论其目的多么善意。

The client list is DeLaurier’s property. The list also contains proprietary confidential information about DeLaurier clients that Clemence is improperly using for her own purposes, no matter how well intentioned those purposes might be.

Clemence本可以在离开DeLaurier之前，征求雇主许可，立即向客户发送感谢信，这样就无须将客户信息带走。

Clemence could have asked her employer’s permission to send a “thank you” note to her clients immediately before leaving DeLaurier, thus eliminating the need to take client information with her.

B错误。Clemence显然不是为了让新公司受益而使用客户名单与资料；相反，她似乎在帮助DeLaurier维护原客户利益，让他们安心继续选择DeLaurier作为财务顾问。

B is incorrect. Clemence is clearly not motivated to use the client list and information to benefit her new firm but appears rather to be working for DeLaurier to protect the interests of her former clients and make them feel comfortable in continuing to use DeLaurier as their financial adviser.

但是，Clemence获取客户信息的做法过了界，也带走了可能超出其原本意图范围的信息。

But in obtaining information about her clients, Clemence goes too far and also takes more information than perhaps intended.

除了她自己的客户信息外，她还取得了公司其他前客户、现有客户和潜在客户的信息。

In addition to information about her clients she has also obtained information about the firm’s former, current, and prospective clients.

C错误。Clemence可以通过社交媒体或私人联系等个人渠道，联系与自己是朋友的原客户，但不能使用DeLaurier的财产来完成这些沟通。

C is incorrect. Clemence may contact her former clients who are friends through personal channels, such as social media or a personal contact, but she cannot use DeLaurier’s property to facilitate this communication.

另一种做法是征求DeLaurier的许可，带走自己客户的联系信息，以便发送最后一封感谢信。

As an alternative, she could ask DeLaurier’s permission to take her clients’ contact information so she can send them a final “thank you” correspondence.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(A)（对雇主的忠诚）。

规则如何作用于本题：受雇期间应为雇主合理利益服务，不得利用雇主资源、机密或业务机会为竞争活动获利。离职准备与实际竞争、招揽现有客户之间有重要区别。

社交媒体也是专业沟通渠道。发布重要建议时应依照合理分发政策，避免只让某个小群体获得不公平优势；不同服务级别可存在，但应披露并确保其他客户的公平机会不受损害。

推理顺序：判断行为发生在离职前还是离职后，使用的材料属于谁，是否有有效协议，以及是否侵占业务或客户名单。可以保有技能和经验，但不能擅自带走雇主财产或机密。

为什么容易选错：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

相关知识点 / **Related concepts**

Standard IV(A) — 对雇主的忠诚 / Loyalty

相关边界：离职后一般可以合法竞争和招揽客户，但受保密、财产和有效限制协议约束。记得客户姓名与复制机密客户数据库的性质不同。

V10-M10-KN-025

Estevez案例
Estevez

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 279-280

题目与资料 / **Question and data**

Estevez案例 Estevez

Estevez（CFA）是精品投资研究公司BIR的高级研究分析师。BIR覆盖聘请其提供研究服务的微型及小型市值公司，这类服务称为“发行人付费研究”，目的在于向投资者推介股票。

Estevez, CFA, is a senior research analyst at BIR, a boutique investment research firm covering micro- and small-cap companies that hire BIR to provide research coverage (called issuer-paid research) to promote their stock to investors.

由于BIR声誉卓著，投资者及希望吸引潜在投资者的公司，都对其研究服务有很大需求。

Because of BIR’s stellar reputation, its research services are in high demand among both investors and companies seeking potential investors.

Estevez协助BIR选择研究覆盖的公司，并监督一组初级研究分析师。

Estevez helps BIR select the companies it covers and oversees a team of junior research analysts.

一些公司鼓励Estevez将自己纳入BIR研究范围，并承诺若获纳入，就向她支付单独的奖金。

Some companies encourage Estevez to select their company for BIR research coverage by giving her a separate bonus if they are included in the BIR research universe.

1. Estevez的行为：

1. Estevez's actions are

A. 违反CFA协会《道德准则与专业行为准则》，因为她开展研究时的独立性与客观性受到了损害。

A. a violation of the CFA Institute Code and Standards because her independence and objectivity in conducting the research are compromised.

B. 只要Estevez不使用来自该公司的重大非公开信息，就可以接受。

B. acceptable as long as Estevez does not use material nonpublic information from the company.

C. 只要她所在公司书面批准研究覆盖公司向她支付的款项，就可以接受。

C. acceptable as long as her company approves in writing the payments offered by covered companies.

官方答案与解析 / **Official answer and explanation**

C正确。准则IV(B)"额外报酬安排"要求会员与考生在接受任何"可被合理预期会与雇主利益发生冲突"的礼物、利益或报酬之前，获得雇主的书面同意。

C is correct. Standard IV(B) Additional Compensation Arrangements requires members and candidates to obtain written consent from their employer before they accept any gift, benefit, or compensation that "might reasonably be expected to create a conflict of interest with their employer's interest."

Estevez从BIR选定开展研究覆盖的公司那里获得利益。

Estevez receives a benefit from companies that BIR selects to receive research coverage.

Estevez参与BIR选择研究对象的过程，构成利益冲突，因为她可能偏向向其支付奖金的公司。

Estevez's involvement in the process of choosing the companies that BIR agrees to research presents a conflict of interest because she might favor those companies that pay her the bonus.

Estevez必须向所在公司披露，她正从被选中的公司获得利益；BIR也必须向报告使用者披露，该公司向Estevez支付了奖金，并为研究覆盖付费。

Estevez would have to disclose to her company that she is receiving the benefit from the selected company, and BIR would have to disclose to the users of the report that the company paid Estevez the bonus and is paying for the research coverage.

A错误。发行人付费研究本身并不自动构成不道德行为，也不必然损害分析师的独立性与客观性。

A is incorrect. Issuer-paid research itself is not automatically unethical nor does it automatically compromise an analyst's independence and objectivity.

不过，这一领域存在许多潜在利益冲突，因此必须遵守重要的保护措施。

However, this area is filled with potential conflicts, so important safeguards must be observed.

BIR必须采用严格程序，防止分析师的客观性受到被研究公司的影响。

BIR must adopt strict procedures to protect the analyst's objectivity from being influenced by the company.

这些保护措施还必须包括：充分披露研究分析师的任何利益冲突；充分披露报酬安排，包括研究费用的支付来源；以及制定政策，使研究建议不受报酬金额或性质的影响。

Such safeguards must also include full disclosure of any conflicts of interest on the part of the analyst conducting the research; full disclosure of any compensation arrangements, including the source of the payment for the research; and policies that separate the research recommendations from the level or nature of the payment.

B错误。即使Estevez不使用该公司的重大非公开信息，也不能免除她就公司支付的奖金进行充分披露并获得雇主同意的要求。

B is incorrect. Even if she is not using material nonpublic information from the company, this does not alleviate Estevez's need for full disclosure and employer consent regarding her bonuses from companies.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(B)（额外报酬安排）。

规则如何作用于本题：外部报酬、客户奖金或其他利益若可能与雇主利益冲突，应在接受前取得所有相关方的书面同意。需要让雇主判断工作分配和客户公平性是否受到影响。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

信息已经告诉少数分析师或大客户，仍可能没有向整个市场充分公开。不能把"非秘密"误当成"公开"；需考虑传播渠道、投资者可获得性以及市场是否有机会接收。

推理顺序：明确报酬来源、条件、规模和服务时间，并在承诺或接受前完成书面同意。绩效挂钩的客户奖金尤其可能使受雇者偏向某一客户。

为什么容易选错：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

相关知识点 / **Related concepts**

Standard IV(B) — 额外报酬安排 / Additional Compensation Arrangements

相关边界：事后口头告知不等于事前书面同意；额外补偿不只限现金，实物、旅行或其他经济利益也可能相关。

V10-M10-KN-026

Duhih案例
Duhih

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 280-281

题目与资料 / **Question and data**

Duhih案例 Duhih

RC Group（RCG）是一家注册期货佣金商，设有多个分支机构，其中一个位于美国田纳西州孟菲斯。

RC Group (RCG) is a registered futures commission merchant with several branch offices, including one in Memphis, Tennessee (USA).

Duhih（CFA）受聘担任孟菲斯分部经理，监督数名员工，其中包括Lewes（CFA）。

Duhih, CFA, is hired to be the branch manager of the Memphis office, supervising several employees, including Lewes, CFA.

Duhih允许Lewes在家工作，因此Lewes在孟菲斯办公室既无实体工位，甚至也无进入大楼的权限；Duhih只是偶尔向Lewes询问工作情况。

Duhih allows Lewes to work from home, so Lewes does not have a physical workspace in the Memphis office or even access to the building, and Duhih only occasionally checks in with Lewes regarding work.

Duhih与RCG都不知道，Lewes同时还为另一家名为AFCM的期货佣金商工作。

Unknown to either Duhih or RCG, Lewes also works for another futures commission merchant, called AFCM.

Lewes为AFCM安排互换协议，其中包括数家肉牛育肥场客户的订单。

Lewes arranges swap agreements for AFCM, including orders with several cattle feed yard clients.

Lewes与RCG的另一名员工合作，为由RCG代理的育肥场客户开立新的期货账户。

Working with another employee at RCG, Lewes opens new futures accounts for the feed yard clients that RCG represents.

虽然这些账户的佣金全部由另一名RCG员工领取，但她私下与Lewes分成。

Although the other RCG employee receives all the commissions for the accounts, she secretly splits them with Lewes.

Duhih不知道Lewes参与了这种佣金分成安排。

Duhih is unaware of Lewes's participation in this commission-sharing arrangement.

1. Duhih作为主管的行为：

1. Duhih's actions as a supervisor are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 如果RCG总部定期审计孟菲斯分部，则可以接受。

B. acceptable if the RCG headquarters conducts regular audits of the Memphis branch.

C. 如果RCG没有制定充分的政策和程序来发现及阻止潜在员工不当行为，则可以接受。

C. acceptable if RCG did not develop adequate policies and procedures for the detection and deterrence of possible employee misconduct.

> 官方答案与解析 / **Official answer and explanation**

A正确。准则IV(C)"主管的职责"规定，会员与考生"必须作出合理努力，确保受其监督或管辖的任何人遵守适用的法律、规则、规章及《道德准则与专业行为准则》"。

A is correct. Standard IV(C) Responsibilities of Supervisors states that members and candidates "must make reasonable efforts to ensure that anyone subject to their supervision or authority complies with applicable laws, rules, regulations, and the Code and Standards."

主管至少必须通过确保建立有效的合规体系，作出合理努力来发现并防止违反法律、监管规定和公司政策的行为。

At a minimum, supervisors must make reasonable efforts to detect and prevent legal, regulatory, and policy violations by ensuring that effective compliance systems have been established.

虽然案例没有明确说明Duhih采取了哪些措施来勤勉履行监督职责，但Lewes在家工作且无权进入分部办公室，表明Duhih的监督至多很有限，而且明显无效。

Although the case does not clearly present what steps Duhih took to diligently exercise supervisory responsibility, the fact that Lewes works from home and did not have access to the branch office suggests that Duhih's supervision is minimal at best and noticeably ineffective.

此外，Duhih应支持公司，鼓励其制定道德准则、清晰的书面合规政策与程序，并就适当的道德行为开展员工培训。

In addition, Duhih should support his company by encouraging it to adopt a code of ethics, have clearly written compliance policies and procedures, and conduct employee training on appropriate ethical behavior.

B不正确。由RCG总部合规人员定期审计孟菲斯分部，可能是确保分部员工遵守适用法律、法规及RCG政策的良好方式。

B is not correct. A regular audit of the Memphis branch by compliance personnel from RCG headquarters could be an excellent way to ensure that branch employees are complying with applicable law, regulations, and RCG policies.

但这不能代替现场分部经理Duhih实施有效且持续的监督。

However, it would not be a substitute for effective and regular supervision by Duhih, the onsite branch manager.

C错误。主管必须了解充分的合规体系应具备什么，并作出合理努力，确保建立、记录适当的合规程序，将其传达给受约束人员，并确保程序得到遵循。

C is incorrect. Supervisors must understand what constitutes an adequate compliance system and make reasonable efforts to ensure that appropriate compliance procedures are established, documented, communicated to covered personnel, and followed.

如果Duhih知道RCG没有充分的政策与程序来发现及阻止潜在员工不当行为，他就有义务向管理层指出不足、协助制定充分的合规政策，或拒绝承担监督职责。

If Duhih knew that RCG did not have adequate policies and procedures for detecting and deterring potential employee misconduct, he was obligated to tell management about the shortcoming, help develop adequate compliance policies, or decline supervisory responsibility.

缺乏充分政策，不能成为未能发现RCG员工（包括Lewes）潜在不当行为的借口。

A lack of adequate policies is not an excuse for failing to detect potential misconduct by RCG employees, including Lewes.

Duhih只有在了解RCG的政策与程序，以及公司期望他如何确保下属遵守这些规定后，才应接受监督职责。

Duhih should not have accepted supervisory responsibility until he understood not only RCG's policies and procedures but also the company's expectations of him with regard to maintaining his subordinates' compliance with them.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(C)（主管责任）。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

主管要证明的是合理而有效的监督过程。制度若缺失，应先推动修复；发生异常后应查明事实、限制继续损害并跟进整改。仅要求下属承诺以后守规，不足以替代调查。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M10-KN-027

Denikin父子案例
Denikin & Denikin

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 281-282

题目与资料 / **Question and data**

Denikin父子案例 Denikin & Denikin

Sasha Denikin（CFA）以研究分析师身份，在Galak Investment Partners开启投资职业生涯；该公司由其父亲Franz Denikin（CFA）创立并控制。

Sasha Denikin, CFA, began his investment career as a research analyst for Galak Investment Partners, a company founded and controlled by his father, Franz Denikin, CFA.

数年后，Franz将Galak的所有权转让给Sasha，Sasha成为公司董事。

After several years, Franz transfers ownership of Galak to Sasha, who becomes a director of the company.

Franz告诉公司客户，所有客户账户仍由他管理。

Franz tells the firm’s clients that he retains management of all client accounts.

长期任职的首席合规官（CCO）宣布退休后，Sasha获提拔担任首席合规官。

When the longtime chief compliance officer (CCO) announces her retirement, Sasha is promoted to CCO.

虽然Sasha此前没有合规经验，但计划安排原首席合规官以顾问身份继续承担合规职责，同时指导并培训Sasha。

While Sasha has no previous compliance experience, the plan is for the prior CCO to retain compliance responsibilities as a consultant while mentoring and training Sasha.

尽管拥有该职衔，Sasha实际上无权监督父亲的行为，Franz仍然绝对控制Galak。

Despite his title, Sasha has no actual authority to supervise his father's conduct, and Franz continues to exert absolute control over Galak.

Sasha也无权联系客户或审阅Galak与客户的沟通资料，因为其父亲坚持所有客户联系都必须经由自己。

Sasha also does not have permission to contact clients or review Galak communications with clients because his father insists that all client contact go through him.

担任首席合规官期间，Sasha多次向父亲提出与父亲行为有关的合规问题，但他无力对父亲执行公司的政策与程序。

During his tenure as CCO, Sasha raises multiple compliance issues with his father regarding his father's actions, but Sasha is powerless to enforce company policies and procedures concerning his father's conduct.

在继续担任Galak首席合规官一段时间后，Sasha最终因挫败而辞职。

After continuing to serve as Galak CCO for a time, Sasha finally resigns in frustration.

1. Sasha Denikin的行为：

1. Sasha Denikin's actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 可以接受，因为Franz掌握公司的实际权力并承担客户责任，因此不可能受下属监督。

B. acceptable because Franz holds the actual power and client responsibilities at the firm and thus cannot be under the supervision of a subordinate.

C. 可以接受，因为Sasha因无法履行合规职责而感到挫败后，辞去了首席合规官职务。

C. acceptable because Sasha resigns as CCO when he is frustrated by his inability to exercise his compliance responsibilities.

> 官方答案与解析 / **Official answer and explanation**

A正确。准则IV(C)"主管的职责"要求CFA协会会员与考生"作出合理努力，确保受其监督或管辖的任何人遵守适用的法律、规则、规章及《道德准则与专业行为准则》"。

A is correct. Standard IV(C) Responsibilities of Supervisors requires CFA Institute members and candidates to "make reasonable efforts to ensure that anyone subject to their supervision or authority complies with applicable laws, rules, regulations, and the Code and Standards."

负有监督职责的会员与考生，必须通过确保建立有效合规体系，作出合理努力来防止并发现违规行为。

Members and candidates with supervisory responsibility must make reasonable efforts to prevent and detect violations by ensuring that effective compliance systems are established.

如果因合规体系不充分而无法履行监督职责，他们应以书面形式拒绝接受监督责任，直至公司采用合理程序，使其能够充分履行监督职责。

If they cannot carry out their supervisory responsibilities because of an inadequate compliance system, they should decline in writing to accept the supervisory responsibility until the firm adopts reasonable procedures to allow for the adequate exercise of that supervisory responsibility.

Sasha知道自己尚不具备担任Galak首席合规官的资格，却仍接受了这一职位。

Sasha knows that he is not qualified to serve as CCO of Galak but still accepts the role.

作为首席合规官，Sasha在合规事务上对公司全体员工负有监督责任。

As CCO, Sasha has supervisory responsibility for all firm employees in compliance matters.

但Sasha难以履行首席合规官职责，因为公司架构使他对父亲没有实际权力，无法确保父亲的行为符合内部政策及监管规则。

However, Sasha has difficulty performing his CCO duties because the firm's structure gives him no real authority over his father to ensure that his father's conduct complies with internal policies and regulatory rules.

Sasha知道父亲无视公司规定，但即使身为首席合规官及公司董事，他仍没有实际权力或能力监督并影响Franz的行为。

Sasha knows that his father is ignoring firm rules, but despite being CCO and a director of the company, Sasha has no real authority or ability to supervise and influence Franz's conduct.

B错误。Franz作为公司创始人及实际控制人的身份，并不能使其免受首席合规官的监督。

B is incorrect. Franz's status as the founder and the one truly controlling the company does not exempt him from oversight by the CCO.

C错误。如果Sasha因合规体系不充分或自身经验不足，而无法履行职责，他应拒绝担任首席合规官，直至接受充分培训，并且Galak采用程序，使其能够有效地对父亲行使监督职责。

C is incorrect. If Sasha is unable to fulfill his responsibilities because of an inadequate compliance system or a lack of experience, he should refuse the CCO role until he has been fully trained and Galak adopts procedures allowing him to effectively exercise supervisory responsibility over his father.

例如，Sasha可以与即将离任的首席合规官合作，建立包括道德准则、合规政策与程序、教育培训计划、奖励道德行为的激励机制，以及公司统一最佳实践标准的合规方案，以帮助其履行监督义务。

For example, Sasha could work with the outgoing CCO to establish a compliance program that includes a code of ethics, compliance policies and procedures, education and training programs, an incentive structure rewarding ethical behavior, and firmwide best practice standards to help meet his supervisory obligations.

然而，Sasha是在相当长一段时间内未能充分履行监督职责，并很可能未维护公司客户最佳利益之后，才选择辞去首席合规官职务并离开公司。

However, Sasha chooses to quit the CCO job and resign from the firm only after a significant period during which he fails to adequately meet his supervisory responsibilities and, likely, the best interests of the firm's clients.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 IV(C)（主管责任）。

规则如何作用于本题：有监督权者应尽合理努力预防和发现下属违规，建立与业务风险相称的制度并跟进异常。仅有纸面合规政策或事后提醒通常不足。

推理顺序：检查监督权限、培训、限制、记录和定期审查是否有效。出现可疑情况应迅速调查、限制相关活动并修复漏洞；若制度严重不足，接受监督职责前应要求改进。

为什么容易选错：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

相关知识点 / **Related concepts**

Standard IV(C) — 主管责任 / Responsibilities of Supervisors

相关边界：下属违规并不自动证明主管失责；但主管不能只以不知情或相信下属为由免责。判断重点是是否采取了合理监督措施。

V10-M10-KN-028

Harrel与Chong案例
Harrel and Chong

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 283-284

题目与资料 / **Question and data**

Harrel与Chong案例 Harrel and Chong

Corix Bioscience是一家从事大麻二酚（CBD）产品制造与分销的初创公司。

Corix Bioscience is a startup company in the manufacturing and distribution of cannabidiol (CBD) products.

为推广公司，Corix首席执行官聘请独立研究分析师兼CFA课程考生Harrel，撰写并分发一份公司研究报告。

To promote the company, the Corix CEO hires Harrel, an independent research analyst and CFA Program candidate, to write and distribute a research report on the company.

首席执行官向Harrel表示：

The CEO tells Harrel the following:

■ Corix与原住民部族签订了协议，获准进入部族土地开展商业性工业大麻与大麻种植，并在部族土地上的零售店销售相关产品。

■ Corix has an agreement with indigenous tribes that allows it to access tribal lands for commercial hemp and cannabis farming and to sell hemp and cannabis products in retail outlets on tribal lands.

■ Corix已取得国家监管机构的合规证书，获准运输、加工及出口工业大麻产品。

■ Corix has a certificate of compliance from the national regulator that permits the company to transport, process, and export industrial hemp products.

■ 上一年度工业大麻收成的质量与数量均超出预期，形成了大量产品库存。

■ The prior year's harvest of hemp exceeded expectations in both quality and quantity, resulting in a substantial inventory of product.

Harrel将这些信息全部纳入研究报告，并对公司作出了正面分析。

Harrel includes all this information in a research report and provides a positive analysis of the company.

但是，Corix既未与原住民部族签订协议，也未获得监管批准——合规证书是伪造的——而且从未种植或收获过大量商业用工业大麻。

However, Corix does not have agreements with indigenous tribes, nor does it have regulatory approval—the certificate of compliance is a forgery— and Corix never cultivated or harvested significant quantities of commercial hemp.

CFA持证人Chong是Nature's Harvest Investment Management（NHIM）的研究分析师。他将Harrel报告中的信息与结论纳入自己对Corix的研究，并给出"买入"建议。

Chong, a CFA charterholder and research analyst at Nature's Harvest Investment Management (NHIM), incorporates the information and conclusions from Harrel's research report into his own research on Corix and includes a "buy" recommendation on the company.

Chong的报告分发给了NHIM的投资组合经理。

Chong's report is distributed to portfolio managers at NHIM.

Corix最终被证实是一项虚假业务，导致NHIM客户遭受重大损失。

Corix is ultimately shown to be a fake operation, leading to substantial losses for NHIM's clients.

1. 哪位或哪些人最可能违反了CFA协会《道德准则与专业行为准则》？

1. Which individual(s) most likely violated the CFA Institute Code and Standards?

A. 仅Harrel

A. Harrel only

B. 仅Chong

B. Chong only

C. Harrel与Chong均违反

C. Both Harrel and Chong

> 官方答案与解析 / **Official answer and explanation**

C正确。准则V(A)"勤勉尽责与合理依据"规定，CFA协会会员与考生在分析投资时必须勤勉且全面，并且任何投资建议都必须具备由适当研究与调查支持的合理且充分的依据。

C is correct. Standard V(A) Diligence and Reasonable Basis states that CFA Institute members and candidates must exercise diligence and thoroughness in analyzing investments and must have a reasonable and adequate basis that is supported by appropriate research and investigation for any investment recommendation.

Harrel与Chong都没有达到该准则的要求。

Harrel and Chong do not meet the requirements of this standard.

Harrel依赖Corix的说法，却未独立调查信息的准确性，因此在分析公司时没有做到勤勉与全面。

By relying on the statements given by Corix and not conducting an independent investigation into the accuracy of the information, Harrel did not exercise diligence and thoroughness in analyzing the company.

Chong似乎依赖Harrel的研究提出“买入”建议，却未进行自己的独立研究。

Chong seemingly relied on Harrel’s research to formulate his “buy” recommendation without conducting his own independent research.

依赖第三方研究的投资专业人士，必须以合理且勤勉的努力确定该研究是否正确。

Investment professionals who rely on third-party research must make reasonable and diligent efforts to determine whether that research is correct.

案例事实没有表明，Chong曾独立核实信息、批判性评估Harrel的研究，或基于过去经验及对Harrel工作质量的了解，有理由依赖该报告。

The facts do not indicate that Chong independently verified the information, critically assessed Harrel’s research, or had reason to rely on Harrel’s report based on past experience and familiarity with the quality of Harrel’s work.

此外，Harrel是独立研究人员，没有能够落实尽职调查标准的管理架构，因此应对其尽职调查质量产生疑问。

In addition, Harrel works as an independent researcher and thus has no management structure that could enforce due diligence standards, which should raise concerns about the quality of Harrel’s due diligence.

Chong也未认识到，Harrel的工作属于发行人付费研究，因此需要接受更严格的审查。

Chong also did not recognize that Harrel’s work was issuer-paid research and thus subject to increased scrutiny.

NHIM本应建立清晰的尽职调查政策与程序，要求Chong在代表公司完成并发布研究之前予以遵循。

NHIM should have had clear due diligence policies and procedures in place that Chong would need to follow before completing and disseminating research on behalf of the firm.

A错误。Harrel与Chong均违反了《准则》。

A is incorrect. Both Harrel and Chong violated the Code and Standards.

B错误。Harrel与Chong均违反了《准则》。

B is incorrect. Both Harrel and Chong violated the Code and Standards.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 V(A)（勤勉与合理依据）。

规则如何作用于本题：研究、建议与投资行动应建立在适当调查、独立判断和合理依据上。可以使用外部研究或模型，但应评估其质量、假设和适用性。

发行人付费研究必须让读者知道谁付钱及如何付钱。固定、与结论或销售无关的收费方式更有利于保持客观；报酬与报告结论、股价或融资成功挂钩会产生更直接的诱导。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

推理顺序：追溯结论到数据、假设、估值与风险分析；选择外部经理或服务商时也进行相应尽调。参与团队研究时，若总体过程有合理依据，个人不同意部分判断不必自动退出署名。

为什么容易选错：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

相关知识点 / **Related concepts**

Standard V(A) — 勤勉与合理依据 / Diligence and Reasonable Basis

相关边界：失败投资不自动证明没有勤勉；成功也不能洗白缺乏依据的决定。引用知名机构、复杂模型或专家观点都不能替代必要核查。

V10-M10-KN-029

Dukis案例
Dukis

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 284-285

题目与资料 / **Question and data**

Dukis案例 Dukis

Dukis（CFA）是一家全球信用评级机构的董事总经理。

Dukis, CFA, is a managing director at a global credit ratings service.

她负责的团队，为商业抵押贷款支持证券（CMBS）提供新发行评级及持续跟踪信用评级。

She is responsible for the group that assigns new issue and surveillance credit ratings to commercial mortgage-backed securities (CMBSs).

为确定评级，Dukis与团队计算每只证券的偿债覆盖率（DSCR），这是CMBS评级使用的一项关键量化指标。

To determine the ratings, Dukis and her group calculate the debt service coverage ratio (DSCR) of each security, a key quantitative metric used to rate CMBSs.

全球金融危机发生后不久，评级机构改变了某些证券的DSCR计算方法，使其更准确地反映风险。

Shortly after the global financial crisis, the ratings agency changes its methodology for calculating the DSCR for certain securities so that it more accurately reflects risk.

Dukis的团队在随后发布信用评级时，没有披露这一变更。

Dukis's group publishes subsequent credit ratings without disclosing the change.

采用新方法后，这些证券获得了比按原方法计算时更高的信用评级。

When the new methodology is used, the securities receive higher credit ratings than they would have received if the original methodology had been used.

1. Dukis的行为：

1. Dukis's actions are

A. 是适当的，因为新方法能更准确地反映风险。

A. appropriate because the new methodology more accurately reflects risk.

B. 违反CFA协会《道德准则与专业行为准则》，因为她没有向投资公众披露方法的变更。

B. a violation of the CFA Institute Code and Standards because she did not disclose the change in methodology to the investing public.

C. 是适当的，因为DSCR计算只是确定证券总体评级的一个要素，因此无须披露。

C. appropriate because no disclosure is necessary, given that calculating DSCR is only one element in determining the overall rating of the security.

官方答案与解析 / **Official answer and explanation**

B正确。准则V(B)"与客户及潜在客户沟通"要求CFA协会会员与考生向投资者披露用于分析投资的投资流程的基本形式与一般原则，以及可能对这些流程产生重大影响的任何变化。

B is correct. Standard V(B) Communication with Clients and Prospective Clients requires CFA Institute members and candidates to disclose to investors the basic format and general principles of the investment process they use to analyze investments, as well as any changes that might materially affect those processes.

评级机构的一致性与透明度对投资者很重要。

Ratings agencies' consistency and transparency are important to investors.

如果评级方法的应用不一致，不同评级可能就难以比较。

If rating methodologies are not applied consistently, ratings might not be easily comparable.

同样，如果缺乏透明度，投资者就无法评估信用评级机构所用的方法及其应用方式，也无法判断应对评级赋予多大权重。

Similarly, without transparency, investors cannot assess the methodologies used by the credit ratings agency or the application of those methodologies, which means they cannot determine how much weight to give the rating.

Dukis本应向投资者披露DSCR计算方法的变更。

Dukis should have disclosed to investors the change in methodology for calculating the DSCR.

A错误。即使新方法确实更准确地反映风险，也仍必须向投资者传达这一变化。

A is incorrect. Even if the new methodology does more accurately reflect risk, the change must still be communicated to investors.

C错误。DSCR显然是证券评级使用的一项关键量化指标，因为计算方法改变后，评级高于按原方法计算的结果，对信用评级产生了重大影响。

C is incorrect. The DSCR is clearly a key quantitative metric used to rate the securities because the change in methodology materially affected the credit ratings by rating them higher than the original method.

如此关键因素的变化必须披露。

A change in such a key factor must be disclosed.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 V(B)（与客户及潜在客户沟通）。

规则如何作用于本题：客户需要理解服务性质、费用、投资过程、重要风险与限制及其重大变化。沟通应区分可验证事实、分析假设与主观预测，避免把估计说成确定结果。

授权范围改变会改变客户原先同意承担的风险。即使经理相信新策略回报更好，也不能未经适当沟通或授权就越过既定风格、资产类别和风险限制。

量化模型要理解数据、参数、适用区间和极端情形。漂亮的回测可能掩盖前视偏差、过度拟合或流动性限制；使用前需要合理验证，使用中监控假设变化。

推理顺序：逐项核查"买什么、为什么、付多少、风险在哪里、有什么变化"。费用计算口径或策略发生重大变化时，应及时清楚告知，而非只在难以察觉的位置更新文件。

为什么容易选错：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

相关知识点 / **Related concepts**

Standard V(B) — 与客户及潜在客户沟通 / Communication with Clients and Prospective Clients

相关边界：披露不要求泄露专有算法细节，但需要让客户理解方法和主要局限。概率很高的预测仍不是事实或保证。

V10-M10-KN-030

Duermott案例
Duermott

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 285-286

题目与资料 / **Question and data**

Duermott案例 Duermott

Duermott（CFA）是小型投资公司Enhanced Investment Strategies（EIS）的总裁。

Duermott, CFA, is president of Enhanced Investment Strategies (EIS), a small investment firm.

EIS的大多数客户都是Duermott的老相识，其投资组合已由公司管理数十年。

Most clients of EIS are longtime associates of Duermott who have had their investment portfolios with the firm for decades.

由于与客户关系密切，Duermott非常熟悉他们的投资状况、收入及退休需求，以及风险承受能力。

Because of his close personal relationship with his clients, Duermott is very familiar with their investment profile, income and retirement requirements, and risk tolerance.

他了解所有客户的重要人生变化，例如健康问题、购置房地产、子女大学费用及退休，并据此调整客户的投资组合。

He keeps up with all his clients' life-changing events—such as health issues, real estate purchases, children's university expenses, and retirement—and adjusts the clients' portfolios accordingly.

Duermott定期在EIS办公室与客户会面，也经常在办公室以外与他们碰面，从而获得更多机会向他们更新投资情况。

Duermott regularly meets with his clients at EIS's offices, and he also sees them on numerous occasions outside the office, which gives him additional opportunities to update them on their investments.

EIS客户在开户时填写客户协议和风险状况资料，而这些资料在Duermott"有时间时"才会更新。

EIS clients complete a client agreement and risk profile when opening their account, and those profiles are updated whenever Duermott finds the time to do so.

1. Duermott的业务做法：

1. Duermott's business practices are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 可以接受，因为他定期与客户沟通投资情况。

B. acceptable because he regularly communicates with clients about their investments.

C. 可以接受，因为他调整客户投资，确保其适合客户随着收入及风险状况变化而改变的需要。

C. acceptable because he adjusts clients' investments to ensure that they are suitable for the clients' needs given their changing income and risk profile.

> 官方答案与解析 / **Official answer and explanation**

A正确。准则V(C)"记录保存"规定，CFA协会会员与考生必须"建立并保存适当记录，以支持其投资分析、建议、行动，以及与客户和潜在客户进行的其他投资相关沟通"。

A is correct. Standard V(C) Record Retention states that CFA Institute members and candidates must "develop and maintain appropriate records to support their investment analyses, recommendations, actions, and other investment-related communications with clients and prospective clients."

本案中，Duermott与客户私交密切，但只在"有时间时"才更新客户记录，看来并未及时或定期更新。

In this case, Duermott is personally close to his clients, but he updates client records only when he "finds the time to do so," which does not appear to be promptly or regularly.

作为客户顾问及公司总裁，Duermott有责任在客户情况变化时保存适当记录。

Duermott has a responsibility as his clients' adviser and as the president of his company to maintain appropriate records when client circumstances change.

如果缺乏必要、相关且最新的了解客户资料，Duermott就难以确认并证明，EIS已经识别客户的需求和情况，并在推荐投资时加以考虑。

Without necessary, relevant, and up-to-date know-your-client information, Duermott would have difficulty establishing and proving that EIS has identified the needs and circumstances of its clients and has taken them into account in recommending investments.

客户的情况、投资目标、风险承受能力或收入需求发生变化时，应及时更新记录，并定期审阅，以记录这些变化。

When client circumstances, investment goals, risk tolerances, or income needs change, records should be promptly updated, and they should be reviewed regularly to document these changes.

B错误。虽然Duermott通过定期与客户沟通，履行了投资管理人的相关道德义务，但他并未持续保存最新的客户记录。

B is incorrect. Although Duermott is fulfilling his ethical obligations as an investment manager by communicating regularly with his clients, he is not keeping regular, up-to-date client records.

C错误。虽然Duermott及时审查并调整客户投资组合，以满足客户不断变化的财务状况，但他并未持续保存最新的客户记录。

C is incorrect. Although Duermott is reviewing and adjusting client portfolios on a timely basis to meet clients' changing financial circumstances, he is not keeping regular, up-to-date client records.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 V(C)（记录保存）。

规则如何作用于本题：应保存支持研究、建议、投资行动和客户沟通的记录，使他人能够理解决策依据。资料形式可包括纸质、电子、模型输入和交流记录。

适当性不能只按单项证券风险判断。应核对客户总资产、负债、目标和既有持仓，说明这笔交易如何改变整体风险；客户目标变化时，旧IPS不能继续作为不更新的借口。

留存材料要足以重建建议的逻辑链：客户要求、原始数据、关键假设、分析和沟通。只保存最后的买卖指令，往往无法说明当时为何适合客户。

推理顺序：根据法律、监管和公司政策确定保留要求；没有其他适用规定时，教材建议至少保存七年。离职时明确资料归属并遵守雇主的记录政策。

为什么容易选错：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

相关知识点 / **Related concepts**

Standard V(C) — 记录保存 / **Record Retention**

相关边界：个人参与撰写不等于可以把雇主资料带走。需要支持判断的记录不仅包括最终报告，也包括关键数据、假设与客户目标。

V10-M10-KN-031

Reebh案例

Reebh

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 286-287

题目与资料 / **Question and data**

Reebh案例 Reebh

Reebh（CFA）是Lux Asset Management（Lux）的首席执行官及创始合伙人。

Reebh, CFA, is the CEO and founding partner of Lux Asset Management (Lux).

Reebh为高净值个人及数家小型机构客户提供资产管理和资产配置服务。

Reebh provides asset management and allocation services for high-net-worth individuals and several small institutional clients.

其服务包括将客户资金交由专长于特定资产类别的第三方分顾问管理。

His services include investing client funds with third-party subadvisers who have a specialty in a particular asset class.

Reebh的客户了解并批准Lux将其资产分配给分顾问。

Reebh's clients are aware and approve of Lux's allocation of their assets to subadvisers.

第三方分顾问按客户委托给他们或投入其基金的资产总值，向Lux支付费用。

The third-party subadvisers make payments to Lux based on the total value of a client's assets placed or invested in the subadvisers' funds.

1. Reebh的行为：

1. Reebh's actions are

A. 是适当的，因为Reebh已披露使用分顾问。

A. appropriate because Reebh has disclosed the use of subadvisers.

B. 不适当，因为这些付款属于不当转介费。

B. inappropriate because the payments are an improper referral fee.

C. 除非Reebh向客户披露其与分顾问之间的财务安排，否则不适当。

C. inappropriate unless Reebh discloses the financial arrangement he has with the subadvisers to his clients.

官方答案与解析 / **Official answer and explanation**

C正确。准则VI(A)"避免或披露利益冲突"要求CFA协会会员与考生，"对于可被合理预期会损害其独立性与客观性，或妨碍履行对客户义务的一切事项，予以避免，或作出充分且公平的披露"。

C is correct. Standard VI(A) Avoid or Disclose Conflicts requires CFA Institute members and candidates to "avoid or make full and fair disclosure of all matters that could reasonably be expected to impair their independence and objectivity or interfere with respective duties to their clients."

分顾问根据Lux委托给他们的客户资产价值向Lux付款，会形成潜在利益冲突，因为这会激励Reebh聘用愿意付费、但未必最适合客户的分顾问。

The payments subadvisers make to Lux based on the value of the client assets Lux places with the subadvisers creates a potential conflict of interest because Reebh is thereby incentivized to hire subadvisers who pay the fee but who might not necessarily be the best subadvisers for his clients.

Reebh可以不接受这种报酬结构，从而避免该利益冲突。

Reebh can avoid this conflict by not agreeing to this compensation structure.

如果Reebh继续以这种方式收款，就必须向客户披露财务安排。

If Reebh continues to accept payment in this manner, Reebh must disclose the financial arrangement to clients.

A错误。Reebh已披露Lux使用分顾问，但没有披露Lux使用这些分顾问的财务安排。

A is incorrect. Reebh has disclosed Lux's use of subadvisers, but he has not disclosed the financial arrangement for Lux to use those subadvisers.

B错误。充分向客户披露后，转介安排可能可以接受；不过Reebh并不是将客户介绍给分顾问，而是在代表客户直接聘用他们。

B is incorrect. Although referral arrangements might be acceptable with full disclosure to clients, Reebh is not referring clients to the subadvisers but is hiring them directly on his clients' behalf.

> 补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VI(A)（避免或披露利益冲突）。

规则如何作用于本题：优先避免影响独立判断或客户忠诚的利益冲突；无法合理避免时，作充分、公平、显著而容易理解的披露。个人持股、商业关系和报酬安排都可能影响他人评估建议。

外包研究或管理不会外包自己的尽调责任。应了解服务商的方法、数据质量、能力、利益冲突与持续表现，并保留选择依据；仅凭名气或历史业绩不足。

披露要让客户真正理解利益方向，例如本人持股、公司承销关系或与交易对手的联系如何影响建议。持股金额变化、关系新增或报酬改变后，旧披露也可能不再充分。

推理顺序：先识别谁获益、谁可能受损，再判断能否消除冲突；保留冲突时说明性质、来源和经济影响，并随情况变化更新。

为什么容易选错："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

> 相关知识点 / **Related concepts**

Standard VI(A) — 避免或披露利益冲突 / Avoid or Disclose Conflicts

相关边界："客户应该知道"或在不显眼文件中含糊提及通常不足。披露不能使本身被禁止的交易或对客户不忠的安排自动合规。

V10-M10-KN-032

Yang案例
Yang

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 287-288

题目与资料 / Question and data

Yang案例 Yang

Yang（CFA）是Dacco的研究分析师。Dacco是一家注册经纪自营商及投资顾问公司。

Yang, CFA, is a research analyst at Dacco, a registered broker/dealer and investment adviser.

在Dacco任职期间，Yang设立了Prestige Trade Investments Limited（Prestige），并担任该公司客户的投资顾问。

While employed with Dacco, Yang establishes Prestige Trade Investments Limited (Prestige) and acts as investment adviser for the firm's clients.

Yang负责制定Prestige的投资策略，并代表Prestige指挥全部交易。

Yang is responsible for formulating Prestige's investment strategy and directs all trades on behalf of Prestige.

几天之内，Yang通过自己在Dacco的个人账户，买入了50,000股Zhongpin股票及1,978份Zhongpin看涨期权。

Over several days, Yang purchases 50,000 shares of Zhongpin stock and 1,978 Zhongpin call options for his personal account at Dacco.

不久后，Yang使用Prestige的2,980万美元资金，买入超过300万股Zhongpin股票。

Shortly after, Yang uses $29.8 million of Prestige's funds to purchase more than 3 million shares of Zhongpin stock.

1. Yang的行为：

1. Yang's actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 可以接受，因为Yang的个人投资与向Prestige客户提供的投资建议并不冲突。

B. acceptable because Yang's personal investments are not in conflict with the investment advice being given to his clients at Prestige.

C. 只要Prestige客户未因Yang此前通过Dacco账户购买Zhongpin证券而受到不利影响，就可以接受。

C. acceptable as long as Prestige clients are not negatively affected by Yang's prior purchase of Zhongpin securities through his account at Dacco.

官方答案与解析 / Official answer and explanation

A正确。准则VI(B)"交易优先顺序"规定，"客户的投资交易……必须优先于〔CFA协会〕会员或考生作为实益拥有人参与的投资交易"。

A is correct. Standard VI(B) Priority of Transactions states that “investment transactions for clients . . . must have priority over investment transactions in which a [CFA Institute] Member or Candidate is the beneficial owner.”

Yang正在对Prestige客户的交易实施“抢先交易”。抢先交易是指在为客户账户交易之前，先为个人账户进行交易。

Yang is “front-running” his Prestige clients’ trades. Front-running involves trading for one’s personal account before trading for client accounts.

Yang先在Dacco的个人账户中买入Zhongpin股票及看涨期权，随后才指挥Prestige客户买入Zhongpin。

Yang purchases Zhongpin stock and call options in his personal account at Dacco before directing the Zhongpin trades for clients at Prestige.

Prestige投入Zhongpin股票的2,980万美元，可能对Yang持有的股票和期权价格产生显著向上影响。

The $29.8 million of Prestige funds invested in Zhongpin stock could have a material upward effect on the price of the stock and options Yang holds.

即使仅仅给人造成Yang可以利用Prestige资金获利的印象，也会削弱投资者对Yang及资本市场的信任。

Even the perception that Yang could profit by using Prestige’s funds will diminish investors’ trust in Yang and the capital markets.

B错误。Yang的个人投资与客户投资方向一致，因此个人交易与为客户采取的投资行动或提供的建议之间，并不存在方向上的冲突。

B is incorrect. Yang’s personal investments are tracking with his client investments, so no conflict exists between his personal trading and the investment actions/advice for clients.

但本案的问题在于交易时机，因为Yang抢在客户交易之前进行了个人交易。

However, the timing of the trades is the issue in this case because Yang is “front-running” his clients’ trades.

C错误。即使Prestige客户没有因Yang此前的个人账户交易而受损，也不能使其行为变得可接受。

C is incorrect. The fact that Prestige clients are not harmed by Yang’s earlier trades for his personal accounts does not make his actions acceptable.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VI(B)（交易优先顺序）。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

按时点排列事件：形成建议、客户获知、客户交易执行、个人交易。预先审批和限制期可以降低冲突，但不得把它们当作利用客户订单或未发布研究获利的许可。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M10-KN-033

Kapadia案例
Kapadia

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 288-289

题目与资料 / **Question and data**

Kapadia案例 Kapadia

Kapadia（CFA）是一家资产管理公司的交易员，该公司管理数只大型全球共同基金。

Kapadia, CFA, is a trader for an asset management company that manages several large global mutual funds.

Kapadia为公司某只共同基金的投资组合经理执行股票买卖指令。

Kapadia executes the equity buy-and-sell orders for the portfolio managers of one of the company’s mutual funds.

他可以根据市场情况，自行决定在交易日内的任何时间执行这些指令。

He has the discretion to execute the orders at any time during the day, depending on market conditions.

执行前，Kapadia会联系数位密友和亲属，告诉他们共同基金将交易哪些证券。

Before executing the orders, Kapadia contacts several close friends and relatives to give them information on which securities the mutual fund will be trading.

随后，这些朋友和亲属进行与Kapadia即将代表共同基金执行的交易相同方向的交易。

In turn, these friends and relatives make trades that mirror the imminent trades to be executed by Kapadia on behalf of the mutual fund.

1. Kapadia的行为：

1. Kapadia’s actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 只有当客户因此遭受财务损失时，才属于不当行为。

B. inappropriate only if the client is harmed financially by the conduct.

C. 是适当的，因为他没有分享个别客户的机密信息。

C. appropriate because he does not share confidential information about individual clients.

官方答案与解析 / **Official answer and explanation**

A正确。准则VI(B)“交易优先顺序”规定，“客户的投资交易必须优先于”为会员或考生个人利益进行的投资交易。

A is correct. Standard VI(B) Priority of Transactions states that “investment transactions for clients must have priority over investment transactions” for a member or candidate’s personal benefit.

Kapadia正在协助朋友和亲属，抢在雇主共同基金的交易之前进行交易。

Kapadia is facilitating front-running by his friends and relatives on the trades of his employer’s mutual fund.

抢先交易是指利用事先获知的信息，在客户账户交易之前先为个人账户交易以获得经济利益；这是一种不道德、而且往往违法的做法。

Front-running is the unethical and often illegal practice of trading on advance information for one’s personal account before trading for client accounts to gain an economic advantage.

虽然Kapadia可能没有直接获得财务利益，但向与自己关系密切的人提供信息，也使他获得了个人利益。

Although Kapadia might not directly benefit financially, he benefits personally by providing the information to those with whom he has close relationships.

B错误。Kapadia协助实施抢先交易，即在客户账户交易前先为个人账户交易，本身就不道德且不适当；即使朋友和亲属的交易未推动证券价格、未使共同基金失去价格优势或自身交易利润，从而未损害基金，也不能改变这一点。

B is incorrect. Kapadia’s engagement in the practice of front-running, which involves trading in personal accounts before trading for client accounts, is unethical and inappropriate even if the trades of Kapadia’s friends and relatives do not disadvantage the mutual fund by moving the price of the security or causing the fund to lose the price advantage or any profit from its own trades.

C错误。虽然Kapadia没有分享个别客户或基金中个别投资者的机密信息，但他确实分享了基金本身的机密信息。

C is incorrect. Although Kapadia does not share the confidential information of individual clients or individual investors in the fund, he does share confidential information about the fund itself.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VI(B)（交易优先顺序）。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界：“家人账户”不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M10-KN-034

Perrkins案例
Perrkins

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 289-290

题目与资料 / Question and data

Perrkins案例 Perrkins

Perrkins（CFA）是GT Financial（GTF）的首席投资官。

Perrkins, CFA, is the chief investment officer of GT Financial (GTF).

Perrkins的妻子担任GTF合规主管。GTF有数十名零售客户，管理资产总额为7,000万美元。

Perrkins's wife is GTF's compliance officer. GTF has several dozen retail clients and total assets under management of $70 million.

所有客户资产均以全权委托方式管理。

All client assets are managed on a discretionary basis.

Perrkins经常通过经纪自营商的综合交易账户为客户交易，使其能够代表多名客户，同时以合并交易方式买卖证券。

Perrkins frequently makes trades for his clients using an omnibus trading account through a broker/dealer, which allows Perrkins to buy and sell securities in a block trade on behalf of multiple clients simultaneously.

Perrkins通常在收市后，才将买入证券分配到各客户账户。

Perrkins regularly allocates the securities purchases to individual client accounts after the market closes.

在某个六个月期间，Perrkins将75%的盈利交易分配给他与妻子拥有或控制的九个账户。

Over one six-month period, Perrkins allocates 75% of the profitable trades to nine accounts that Perrkins and his wife own or control.

与此同时，他将82%的亏损交易分配给GTF三名最大客户的账户。

At the same time, he allocates 82% of the unprofitable trades to the account of the three largest GTF clients.

1. Perrkins的行为：

1. Perrkins's actions are

A. 违反CFA协会《道德准则与专业行为准则》。

A. a violation of the CFA Institute Code and Standards.

B. 只要向客户披露交易分配做法，就可以接受。

B. acceptable as long as he discloses the trade allocation practices to his clients.

C. 只要以后反过来优待大客户，使他们长期不受损害，就可以接受。

C. acceptable as long as he reverses his trade allocation practices to favor the larger clients so that they are not harmed over the long term.

官方答案与解析 / **Official answer and explanation**

A正确。准则VI(B)“交易优先顺序”规定，客户的投资交易优先于个人交易。

A is correct. Standard VI(B) Priority of Transactions states that investment transactions for clients have priority over personal transactions.

Perrkins先在公司综合账户交易，然后推迟分配到具体账户，待有机会观察证券日内表现后，便可以将盈利交易挑选给自己拥有实益权益的账户。

By trading in the firm's omnibus account and then delaying the allocation of trades to a specific account until he has an opportunity to observe the security's intraday performance, Perrkins can pick the winning trades for accounts in which he has a beneficial interest.

这种做法违反了准则VI(B)。之后，他将亏损交易分配给规模足够大的客户账户，使这些账户能够吸收逐笔增加的交易损失，而不易引起客户怀疑损失源自欺诈。

This practice is a violation of Standard VI(B). He then allocates the losing trades to clients' accounts that are large enough to absorb incremental trading losses without arousing suspicion that the losses are due to fraud.

Perrkins的行为也很可能违反准则III(B)“公平对待”，该准则规定，会员与考生“在……采取投资行动或从事其他专业活动时，必须公平、客观地对待所有客户”。

Perrkins's actions are also likely a violation of Standard III(B) Fair Dealing, which states that members and candidates "must deal fairly and objectively with all clients when . . . taking investment action or engaging in other professional activities."

B错误。向客户披露交易分配方式，不能使Perrkins不道德且具有欺诈性的行为变得可接受。

B is incorrect. Disclosure to his clients as to how he is allocating the trades does not make Perrkins's unethical, fraudulent behavior acceptable.

C错误。Perrkins不能暂时将个人利益置于客户利益之上，再打算未来为客户补偿。

C is incorrect. Perrkins cannot temporarily favor his personal interests over his clients' interests with the intent of rectifying the situation for his clients in the future.

道德行为不能像记账一样相互抵销。

Ethical conduct is not subject to a ledger-keeping exercise.

CFA协会会员与考生在任何时候都必须遵守《准则》的道德原则及要求。

CFA Institute members and candidates must comply with the ethical principles and requirements of the Code and Standards at all times.

补充解析 / **Supplementary explanation**

正确选项为 **A**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VI(B)（交易优先顺序）。

规则如何作用于本题：客户和雇主的交易应优先于会员或考生拥有受益权的个人交易。重点是避免利用尚未执行的客户需求或未发布研究信息为自己抢先获利。

推理顺序：查明账户受益人及控制权、客户订单/研究分发的时点和预先审批要求。家属账户若是正常收费客户账户，原则上与其他客户公平对待，不应刻意优待或排挤。

为什么容易选错："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

相关知识点 / **Related concepts**

Standard VI(B) — 交易优先顺序 / Priority of Transactions

相关边界："家人账户"不能只凭关系判断为个人交易；要确认受益权。事后没有获利也不意味着抢先交易合规。

V10-M10-KN-035

Kiang案例
Kiang

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 290

题目与资料 / **Question and data**

Kiang案例 Kiang

Kiang（CFA）是一名成功的投资顾问，拥有数名对其服务非常满意的高净值客户。

Kiang, CFA, is a successful investment adviser with several high-net-worth clients who are very happy with his services.

许多客户向亲友推荐Kiang的顾问服务，Kiang也鼓励这种推荐，以拓展业务。

Many of Kiang's clients recommend his advisory services to their friends and family, and Kiang encourages these recommendations to build his business.

每年，Kiang都会为向其顾问公司转介新客户的客户举办一场精心安排的聚会。

Each year, Kiang hosts an elaborate party for clients who have referred new clients to his advisory firm.

聚会上，Kiang向出席者赠送小额礼品卡。

At the party, Kiang distributes nominal gift cards to attendees.

对于转介了特别有利可图客户的人，Kiang有时还会提供顾问费折扣。

In some cases, Kiang offers discounts on advisory fees to clients who sent him referrals that proved particularly lucrative.

许多参加庆祝活动的客户，本身也是由其他客户介绍给Kiang的；他们又继续向更广泛的亲友推荐Kiang，形成循环。

Many of the clients attending these celebrations were referred to Kiang by other clients, and they, in turn, continue the cycle of recommending Kiang to a wider circle of friends and family.

1. Kiang的行为最可能：

1. Kiang’s actions most likely are

A. 可以接受，属于对客户忠诚的奖励。

A. acceptable as a reward for client loyalty.

B. 可以接受，因为他公平对待所有客户。

B. acceptable because he treats all clients fairly.

C. 违反CFA协会《道德准则与专业行为准则》。

C. a violation of the CFA Institute Code and Standards.

> 官方答案与解析 / **Official answer and explanation**

C正确。准则VI(C)“转介费”规定，会员与考生“必须视适当情况，向雇主、客户及潜在客户披露……因推荐……服务而向他人支付的任何报酬、对价或利益”。

C is correct. Standard VI(C) Referral Fees states that members and candidates “must disclose to their employer, clients, and prospective clients, as appropriate, any compensation, consideration, or benefit . . . paid to others for the recommendation of . . . services.”

本案中，Kiang举办精心安排的聚会、赠送礼品卡，并在某些情况下，向转介了特别有利可图客户的人提供顾问费折扣。

In this case, Kiang hosts an elaborate party, distributes gift cards, and, in some cases, offers discounted advisory fees to clients who have referred particularly lucrative clients.

按照准则，这些利益属于必须披露的转介费。

Under the standard, these benefits would be considered referral fees that must be disclosed.

案例没有显示Kiang曾向潜在客户作出任何披露。

The facts do not indicate that Kiang makes any disclosure to potential clients.

某些潜在客户在成为客户并获得费用折扣后，才得知Kiang为转介支付报酬，并不构成充分披露。

The fact that some prospects, upon becoming clients, become aware that he pays for referrals when they receive discounted fees is insufficient disclosure.

如果Kiang向所有客户举办聚会或赠送礼品卡，以奖励其忠诚，无论他们是否提供转介，那么可以接受。

It would be acceptable if Kiang were to host a party or give gift cards to all his clients to reward their loyalty, regardless of whether they provided referrals.

A错误。聚会、礼品卡及顾问费折扣超出了单纯奖励客户忠诚的范围，应被视为仅向推荐Kiang服务的现有客户提供的转介费。

A is incorrect. The party, gift cards, and discounted advisory fees are more than a reward for client loyalty and would be considered referral fees that are provided only to existing clients for recommending Kiang’s services.

B错误。可以说Kiang公平对待客户，因为只要转介新业务，所有客户都有机会获得这些利益与费用折扣；是否通过转介取得利益，由客户自行决定。

B is incorrect. Arguably, Kiang treats his clients fairly because he offers all of his clients the opportunity to receive these benefits and fee discounts as long as they refer others to his business, and whether the clients access these benefits by making referrals is up to them.

但是，无论Kiang是否公平对待全部客户，他没有披露对转介给予的利益及报酬，仍然违反准则VI(C)。

However regardless of whether Kiang is treating all clients fairly, he is violating Standard VI(C) by not disclosing the benefits and compensation he awards for referrals.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VI(C)（推荐费）。

规则如何作用于本题：就推荐客户、产品或服务收取或支付的费用及其他利益，应向雇主以及客户或潜在客户作适当披露，使其能够评价推荐的客观性和实际费用。

费用必须说明计算基础、适用范围和实际经济负担。把包含加价的收费说成原样转付、只对新客户修正而继续向老客户误导收费，都会保留原有问题。

转介利益不只是一笔现金佣金，也可能是业务互换、折扣或部门间安排。客户需要在决定是否接受服务前了解推荐者获得什么，才能评价推荐的独立性和服务总成本。

推理顺序：列清安排的性质、金额或价值、支付方式和持续性，并在客户订立服务关系前披露。部门间非现金转介利益也可能造成同类冲突。

为什么容易选错：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

相关知识点 / **Related concepts**

Standard VI(C) — 推荐费 / Referral Fees

相关边界：对客户免费不表示没有推荐费；内部转介或实物好处也不自动豁免。只向雇主报告而不向相关客户披露可能仍不充分。

V10-M10-KN-036

Taveras案例

Taveras

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 291-292

题目与资料 / **Question and data**

Taveras案例 Taveras

Taveras（CFA）主持由当地CFA协会分会赞助的考前培训课程。

Taveras, CFA, leads an exam preparation course sponsored by his local society.

考试结束后，分会为学员举办庆祝活动。

The society hosts a celebration for the students after the exam is over.

庆祝活动中，几名学员描述了自己的考试经历。

During the celebration, several of Taveras's students describe their experience of taking the exam.

大多数人谈论考试难度相对于预期的感受，有些人则表示，对某些教材领域没有被考查感到意外。

Most give their opinion on the relative difficulty of the exam compared to their expectations, and some describe their surprise about areas of the curriculum that were not tested.

Taveras询问学员，他们认为哪些考题最难。

Taveras asks his students for their opinions on the most difficult exam questions.

1. 根据CFA协会《道德准则与专业行为准则》，对于Taveras而言，最可能：

1. Under the CFA Institute Code and Standards, Taveras is most likely

A. 考试结束后，禁止与学员讨论考试。

A. prohibited from discussing the exam with students after it is over.

B. 可以自由地将考试信息传达给未来培训班的考生，帮助他们备考。

B. free to pass along information about the exam to candidates in future prep courses to help prepare them for the exam.

C. 可以向未来培训班考生分享学员对考试难度的看法，以强调充分准备的必要性。

C. allowed to share the opinions of his students about the difficulty of the exam with candidates in future prep courses to emphasize the need to thoroughly prepare.

> 官方答案与解析 / **Official answer and explanation**

B正确。准则VII(A)"参与CFA协会项目的行为"规定，考生"不得从事任何损害……CFA协会项目的完整性、有效性或安全性的行为"。〔译注：原文答案字母与选项内容存在不一致。按下文解析与选项对应关系，允许分享总体考试难度感受的是C；原文的B、C答案标签疑似互换，此处保留原文。〕

B is correct. Standard VII(A) Conduct as Participants in CFA Institute Programs states that candidates "must not engage in any conduct that compromises . . . the integrity, validity, or security of CFA Institute programs."

Taveras可以向未来培训班学员分享往届学员认为CFA考试比预期更难的感受，以鼓励他们全面学习教材，并尽可能充分准备。

For Taveras to share with future prep course participants the opinions of his previous students who found the CFA exam more difficult than expected is acceptable as a way to encourage future students to study the curriculum thoroughly and prepare as much as possible.

但是，Tavares不应索取或传播有关考试具体内容的信息。

However, Tavares should not solicit or pass on information regarding the specifics of the exam.

A错误。一群共同经历严格备考及CFA考试过程的考生，自然会希望在结束后庆祝这一成果，并讨论考试。

A is incorrect. A group of candidates who collectively completed the rigorous process of studying for and taking the CFA exam will naturally want to celebrate the accomplishment and discuss the exam after it is over.

考生可以与Taveras概括讨论考试体验，但不能提供关于考题或所考查一般领域的具体信息。

Candidates are allowed to discuss their exam experience with Taveras in general terms, but they cannot provide specific information about the exam regarding the questions or the general areas tested.

C错误。Taveras不能向未来考生传播具体信息，也不应索取具体考题的信息；否则将违反旨在保护未来考试完整性与安全性的准则VII(A)。〔译注：本段原文标为C，但内容对应前述选项B，参见本题上方译注。〕

C is incorrect. Taveras cannot pass along specific information to future candidates and should not be soliciting information about specific questions; doing so would be a violation of Standard VII(A), which is designed to protect the integrity and security of future exams.

补充解析 / **Supplementary explanation**

正确选项为 **B**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VII(A)（参与CFA项目时的行为）。

规则如何作用于本题：不得破坏CFA考试、项目和协会声誉或完整性。考试题目、具体考查内容、评卷材料及志愿活动中获得的保密信息，不因考试结束或身份变化而自由公开。

离职的时间线是关键证据。在职时招揽现有客户或使用雇主资源经营竞争业务，与为未来成立公司作一般准备不同；离职后仍要尊重有效保密和非招揽义务。

推理顺序：区分对考试总体难度和个人感受的普通讨论，与透露具体问题、答案、题目数量或哪些课程内容被考查的讨论；同时遵守考试中心及延期申请规则。

为什么容易选错：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

相关知识点 / **Related concepts**

Standard VII(A) — 参与CFA项目时的行为 / Conduct as Participants

相关边界：只分享给朋友、声称题目不难、未直接写出答案、考完以后再谈，均不自动消除保密义务。对协会表达批评与泄露保密信息要区分。

V10-M10-KN-037

Ahmed案例
Ahmed

知识检查 / Knowledge check · 原版 PDF 页码 / Source PDF pages: 292-293

题目与资料 / **Question and data**

Ahmed案例 Ahmed

Ahmed最近获得CFA称号，并加入一家中型对冲基金担任高级分析师。

Ahmed recently earned his CFA designation and joined a medium-sized hedge fund as a senior analyst.

他的主管Bennett是公司的创始人，十年前获得CFA称号，并自豪地在名片及基金全部营销资料上使用该称号。

His supervisor, Bennett, the firm's founder, earned her CFA designation 10 years ago and proudly uses the CFA designation on her business card and on all marketing materials for the fund.

Bennett告诉Ahmed，自己过去四年没有缴纳CFA协会会费，也不再参加协会的持续教育课程。

Bennett shares with Ahmed that she has not paid her CFA Institute membership dues for the past four years and no longer participates in the organization's continuing education program.

当Ahmed询问Bennett使用称号的问题时，她说自己通过CFA考试后就取得了CFA资格，这种资格如同大学学位，不会被收回。

When Ahmed asks Bennett about her use of the designation, she states that by passing the CFA exam, she earned the CFA charter and that the credential is like a university degree that cannot be taken away.

后来，两人与一名潜在投资者举行营销会议。投资者提到，自己已将管理人选择范围限定为由CFA持证人担任高级职位的公司。

Later, during a marketing meeting the two have with a potential investor, the investor notes that he narrowed his manager search to only firms that employ CFA charterholders in senior positions.

当投资者询问Bennett，公司投资部门所有人是否都是CFA持证人时，她回答："是的，完全正确。"

When he asks Bennett if everyone in the firm on the investment side is a CFA charterholder, she responds, "Yes, that is correct."

Ahmed没有回应。

Ahmed does not respond.

1. Ahmed或Bennett是否违反了CFA协会《道德准则与专业行为准则》？

1. Did either Ahmed or Bennett violate the CFA Institute Code and Standards?

A. Ahmed违反了《准则》，但Bennett没有。

A. Ahmed violated the Code and Standards, but Bennett did not.

B. Bennett违反了《准则》，但Ahmed没有。

B. Bennett violated the Code and Standards, but Ahmed did not.

C. Ahmed与Bennett均违反了《准则》。

C. Both Ahmed and Bennett violated the Code and Standards.

> 官方答案与解析 / **Official answer and explanation**

C正确。准则VII(B)"提及CFA协会、CFA称号及CFA课程"规定，会员与考生在提及CFA称号时，"不得……对持有CFA称号作出虚假陈述"。

C is correct. Standard VII(B) Reference to CFA Institute, the CFA Designation, and the CFA Program states that when referring to the CFA designation, members and candidates "must not misrepresent . . . holding the CFA designation."

CFA称号不同于大学学位，因为获准使用称号的人，还必须持续满足包括缴纳会费在内的CFA协会会员要求，才能保留自称CFA持证人的权利。

The CFA designation is not like a degree from a university, because once individuals have been granted the right to use the designation, they must also satisfy CFA Institute membership requirements, which include paying dues, to maintain the right to refer to themselves as CFA charterholders.

会员并非必须参加CFA协会专业学习计划，才能保持使用称号的资格；但协会鼓励参与，以履行《道德准则》中保持并提高专业胜任能力的要求。

Participation in the CFA Institute Professional Learning program is not mandatory for members to maintain their designation, but it is encouraged as a way to meet the CFA Institute Code of Ethics provision that members maintain and improve their professional competence.

Bennett未向CFA协会缴纳会费，因此会员资格被视为已经失效。

Bennett's membership is considered lapsed because she has not been paying dues to CFA Institute.

在重新激活会员资格之前，Bennett继续使用CFA称号，并向潜在客户表示自己是持证人，违反了准则VII(B)。

Until she reactivates her membership, Bennett is violating Standard VII(B) by continuing to use the CFA designation and representing herself as a charterholder to a potential client.

Ahmed知道Bennett的CFA协会会员资格已经失效。

Ahmed knows that Bennett's CFA Institute membership has lapsed.

准则I(A)"了解法律"禁止会员与考生明知而参与或协助他人违规，并要求与任何不道德或违法行为脱离关系。

Standard I(A) Knowledge of the Law prohibits members and candidates from knowingly participating or assisting in the violations of others and requires members and candidates to dissociate from any unethical or illegal conduct.

在销售会议上，Ahmed明知有人向潜在投资者提供可能造成损害的虚假信息，却保持沉默；即使他本人未主动实施不当行为，也会被视为协助Bennett提供虚假信息。

By staying silent in a sales meeting in which he knows false information is being given to a potential investor that could cause harm to that investor, Ahmed would be seen as assisting Bennett in providing that false information, even though Ahmed is not actively engaging in the misconduct himself.

最佳做法是，Ahmed直接向Bennett提出其行为存在的问题，并要求她恢复会员资格，或纠正向潜在投资者作出的陈述。

Best practice would be for Ahmed to address Bennett directly about her conduct and ask her to reinstate her membership or correct the statement she made to the potential investor.

如果Bennett拒绝采取纠正行动，Ahmed应向基金合规部门报告其行为，以便处理，并通过不再与Bennett参加其他销售会议，与该活动脱离关系。

If Bennett refuses to take corrective action, Ahmed should report her conduct to the fund's compliance department for it to address and should dissociate himself from the activity by not participating in any additional sales meetings with Bennett.

A不正确，因为Ahmed与Bennett均违反了《准则》。

A is not correct, because both Ahmed and Bennett violated the Code and Standards.

B不正确，因为Ahmed与Bennett均违反了《准则》。

B is not correct, because both Ahmed and Bennett violated the Code and Standards.

补充解析 / **Supplementary explanation**

正确选项为 **C**。需要依据题干已给出的行为、角色与时间顺序作出判断。

本题的核心判断依据是准则 VII(B)（CFA称号、资格与项目的引用）。

规则如何作用于本题：可以准确陈述已通过考试或持有资格的事实，但不得夸大CFA称号的意义、暗示优于其他人的保证或保证未来业绩。使用称号和候选人身份要满足当时的资格条件。

把真实资格状态与营销推论拆开。可以如实陈述考试经历，但称号使用取决于有效资格和会员要求；不应把通过速度或称号本身转化为优越投资业绩的保证。

推理顺序：检查会员状态、项目注册状态及称号用法；把事实经历与评价性宣传拆开。用真实姓名和准确职衔，避免创造不存在的部分CFA资格。

为什么容易选错：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。

相关知识点 / **Related concepts**

Standard VII(B) — CFA称号、资格与项目的引用 / **Reference to CFA**

相关边界：通过某一级不等于获得部分CFA头衔；连续通过可以作为客观事实表达，但不能据此宣称投资能力或业绩必然卓越。